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CHAPTER 1: THIS GUIDE AND ITS ANNEXES

INTRODUCTION

1.001

This part of the *PCT Applicant's Guide* (the Guide) consists of general information on the Patent Cooperation Treaty (PCT) intended for those interested in filing international patent applications, in particular, information on the “international phase” of the PCT procedure. This is supplemented by a number of Annexes Containing more detailed information; whenever the word “Annex” followed by a capital letter is used in the Guide, it is a reference to an Annex. A second part follows and contains general information on the “national phase” of the PCT procedure, namely the procedure before the designated (or elected) Offices. A designated (or elected) Office is the national or regional Patent Office of or acting for a State party to the PCT (a “Contracting State”) that is designated (or elected) in an international application. This National Phase also indicates the requirements to be complied with before each of these Offices in their respective National Chapters. Since 2006, the Guide is only available via the Internet at <https://www.wipo.int/en/web/pct-system/guide/index>. An e-mail update service is also available which provides users of the Guide with a weekly notice informing them which Guide information has been updated that week.

1.002

In the text of the Guide, Article refers to Articles of the PCT, Rule refers to the PCT Regulations and Section refers to the PCT Administrative Instructions. References to a paragraph relate to the texts of either the International or the National Phases of the Guide.

1.003

Although the information contained in this Guide is fairly comprehensive, it should be borne in mind that it condenses and interprets rules that are contained in longer, official texts, particularly the PCT itself and the Regulations under the PCT, and it is those texts which apply in the case of any inconsistency with this Guide. Consultation of those texts is indispensable for complete information.

1.004

Since the text of the PCT and PCT Regulations is sometimes fairly complex, and since the drafting and prosecution of patent applications is itself a complex matter, prospective applicants, unless they are specialists in patent law themselves, are strongly advised to obtain professional advice from patent attorneys or patent agents, and to use the services of such attorneys or agents.

1.005.

Up-to-date versions of the PCT Treaty and Regulations may be browsed or downloaded from the PCT Resources page at: <https://www.wipo.int/en/web/pct-system/texts/index>. These texts are also available in Arabic, Chinese, French, German, Italian, Japanese, Portuguese, Russian and Spanish.

Printed brochures of the PCT and Regulations, in many of the above languages, may be ordered as WIPO publication number 274 from the International Bureau at the address given in Annex B (IB), or by e-mail from publications.mail@wipo.int. A copy may also be downloaded, free of charge, from the following website: <https://www.wipo.int/publications/en/>. Publication orders should also indicate the language of the required publication. PCT users may consult published international applications on PATENTSCOPE at: <https://www.wipo.int/en/web/patentscope/>. It is also recommended that they consult the *Official Notices (PCT Gazette)* which contain notices and information of a general character. Accession of new Contracting States, changes in fees and other information are promptly published therein. A complete collection of *Official Notices (PCT Gazette)* from 1978 to the present is available in electronic form on the WIPO website at: <https://www.wipo.int/en/web/pct-system/official-notices/index>.

1.006

Up-to-date news about the PCT is available from the PCT Newsletter, a monthly publication. In addition to matters such as adherence of further States to the PCT and changes in requirements of Offices and Authorities, the PCT Newsletter also includes the current list of PCT Contracting States, reports of international meetings concerning the PCT, amendments to the PCT Regulations, changes to PCT forms, statistics relating to the filing of international applications, practical advice for PCT users, information about forthcoming PCT seminars and tables of PCT fees. The PCT Newsletter is available on the WIPO

website at: <https://www.wipo.int/en/web/pct-system/newslett/>. This web page also contains a fully searchable collection of all practical advice published since 1994, plus back issues of the PCT Newsletter which are also fully searchable as from the January 1994 issue onwards. In addition to English, excerpts from the PCT Newsletter are also available in Chinese (<https://www.wipo.int/zh/web/pct-system/newslett/index>), Japanese (<https://www.wipo.int/ja/web/pct-system/newslett/index>) and Korean (<https://www.wipo.int/ko/web/pct-system/newslett/index>).

1.007

Those wishing to know the background to the PCT are advised to consult the “Records of the Washington Diplomatic Conference on the Patent Cooperation Treaty, 1970” which is available on the WIPO website at: <https://www.wipo.int/en/web/pct-system/texts/washington>.

1.008

Further useful material is contained in the Administrative Instructions under the PCT (available at https://www.wipo.int/en/web/pct-system/texts/ai/ai_index), the PCT Receiving Office Guidelines (available at <https://www.wipo.int/en/web/pct-system/texts/ro/index>), and the PCT International Search and Preliminary Examination Guidelines (available at <https://www.wipo.int/en/web/pct-system/texts/ispe/index>). However, the Administrative Instructions and those Guidelines are mainly addressed to the authorities carrying out the various tasks entrusted to them by the PCT. To the extent that they are of interest to applicants, their contents are duly reflected in the notes to some PCT forms and in the text of this Guide.

CHAPTER 2: WHAT IS THE PCT?

2.001. What is the Patent Cooperation Treaty (PCT)?

The Patent Cooperation Treaty or PCT is a multilateral treaty that was concluded in Washington in 1970 and entered into force in 1978. It is administered by the International Bureau of the World Intellectual Property Organization (WIPO), whose headquarters are in Geneva (Switzerland).

2.002. What are the advantages of using the PCT?

The PCT facilitates the obtaining of protection for inventions where such protection is sought in any or all of the PCT Contracting States (refer to PCT Contracting States (formerly Annex A)). It provides for the filing of one patent application ("the international application"), with effect in several States, instead of filing several separate national and/or regional patent applications. In addition to designations of PCT Contracting States for the purposes of obtaining national patents and similar titles, an international application includes designations for regional patents in respect of States party to any of the following regional patent treaties: the Protocol on Patents and Industrial Designs within the framework of the African Regional Intellectual Property Organization (ARIPO) (hereinafter referred to as "the ARIPO Harare Protocol"), the Eurasian Patent Convention, the European Patent Convention, and the Agreement establishing the African Intellectual Property Organization (OAPI) (hereinafter referred to as "the OAPI Agreement"). The PCT does not eliminate the necessity of prosecuting the international application in the national phase of processing before the national or regional Offices, but it does facilitate such prosecution in several important respects by virtue of the procedures carried out on all international applications during the international phase of processing. The formalities check, the international search and the optional supplementary international search(es) and the likewise optional international preliminary examination carried out during the international phase, as well as the automatic deferral of national processing which is entailed, give the applicant more time and a better basis for deciding whether and in which countries to further pursue the application.

CHAPTER 3: THE INTERNATIONAL PHASE AND THE NATIONAL PHASE OF THE PCT PROCEDURE

3.001. What are the different phases of the PCT?

The PCT procedure consists of two main phases. It begins with the filing of an international application and ends (in the case of a favorable outcome for the applicant) with the grant of a number of national and/or regional patents: hence the terms “international phase” and “national phase.” (The expression “national phase” is used even if the Office before which it takes place is a regional Office.) The expressions “international phase” and “national phase” are not actually used in the PCT, but they are convenient, short expressions which have become customary and are therefore used in this Guide.

3.002

The international phase, which is the subject of this part of the Guide, consists of five stages. The first three occur automatically for all international applications and the last two are optional. The first three steps consist of the filing of the international application by the applicant and its processing by the “receiving Office” (refer to Annex C), the establishment of the international search report and written opinion by one of the “International Searching Authorities” (refer to Annex D), and the publication of the international application together with the international search report by the International Bureau of WIPO (hereinafter referred to as “the International Bureau”). The fourth step includes the establishment of a supplementary international search which may be carried out by one or more of the International Searching Authorities (other than the one that carried out the main international search) resulting in the establishment of a supplementary international search report (refer to Annex SISA). Hereinafter, reference to the “(main) international search” alone does not include reference to the “supplementary international search”, and reference to “international search report” alone does not include reference to “supplementary international search report”, except where otherwise indicated. The third step includes communication of the published international application and the international search report and, where applicable, the supplementary international search report(s), as well as the international preliminary report on patentability (Chapter I of the PCT), by the International Bureau to the national (or regional) Offices from which the applicant wishes to be granted a patent on the basis of the international application (the so-called “designated Offices”). The communication occurs upon request by the designated Office to the International Bureau.

3.003

The optional fifth step involves what is known as international preliminary examination (under Chapter II of the PCT), and is concluded with the establishment of the international preliminary report on patentability (Chapter II of the PCT) by one of the “International Preliminary Examining Authorities” (refer to Annex E). The international preliminary report on patentability (Chapter II of the PCT) analyzes aspects of the general patentability of the invention. Together with the published international application, the international search report and any supplementary international search report, the international preliminary report on patentability (Chapter II of the PCT) is communicated to the national (or regional) Offices from which the applicant wishes to be granted a patent on the basis of the international application (the so-called “elected Offices”). The communication occurs upon request by the elected Office to the International Bureau. International preliminary examination is available subject to certain conditions and qualifications being met; those are discussed in detail in paragraph 10.004.

3.004. What is the national phase of the PCT?

On completion of the international phase, further action is required before and in each of the national (or regional) Offices from which the applicant wishes to be granted a patent on the basis of the international application. In particular, the applicant has to pay to those Offices the required national (or regional) fees, furnish them with any translations that are required and appoint a representative (patent agent) where required. There are time limits by which those steps must be taken if the application is to proceed in the national phase (refer to paragraphs 4.014 to 4.016, 5.005 and 5.006 below). If the steps are not taken within the applicable time limit, the effect of the international application may cease in any State where the time limit has not been met. The national (or regional) Offices then examine the application and grant or refuse the national (or regional) patent on the basis of their national laws. (In the PCT and in this Guide, any reference to “national law” is also a reference to a regional treaty such as the ARIPO Harare Protocol, the Eurasian Patent Convention, the European Patent Convention and the OAPI Agreement – refer to paragraph 2.002.) These procedures before the national (or regional) Offices constitute what is usually referred to as the “national phase” of the PCT procedure and are considered in that part of this Guide.

3.005. When must I enter the national phase before a specific Office?

It is up to the applicant to decide whether and when to enter the national phase before each national (or regional) Office. The international phase continues, for any particular State, until entry into the national phase before the national (or regional) Office concerned or until the expiration of the applicable time limit for entering the national phase before that Office. Since the national phase may be entered before different Offices at different times, the international application may simultaneously be in the international phase for some States and the national phase for others. Where national phase processing or examination has begun before a particular Office, any actions taken on the international application remaining in the international phase have no effect on the proceedings before that Office.

CHAPTER 4: USEFULNESS OF THE PCT FOR APPLICANTS

4.001. What are the advantages of the PCT?

Use of the PCT saves effort - time, work - for any person or firm ("the applicant") seeking protection for an invention in a number of countries.

4.002

Use of the PCT also helps the applicant to make decisions about the prosecution of the application before the various national Patent Offices in the national phase of processing.

4.003

The saving arises primarily from the fact that, under the PCT, the applicant files one application – the international application – in one place, in one language and pays one initial set of fees, and that this international application has the effect of a national or regional application, which, without the PCT, the applicant would have to file separately for each country or region.

4.004. What is an international search report and a written opinion?

The help to the applicant in the national phase prosecution of the application follows from the "advice" provided in the international search report, a report which is established for each international application, according to high, internationally regulated standards, by one of the Patent Offices that are highly experienced in examining patent applications and that have been specially appointed to carry out international searches. Those Offices are listed in Annex D ("International Searching Authorities"). Detailed advice may also be obtained from the written opinion established by the International Searching Authority which gives a preliminary non-binding opinion on whether the claimed invention appears to be novel, to involve inventive step and to be industrially applicable.

4.005. What is a supplementary international search?

If the applicant so requests (Form PCT/IB/375), a supplementary international search may be carried out, by one or more of the participating International Searching Authorities (refer to Annex SISA) other than the one which carried out the main international search. The supplementary international search report(s) (Form PCT/SISA/501), thus obtained will provide the applicant with a more comprehensive overview of the relevant prior art and enable him/her to better assess the chances of obtaining patent protection for his/her invention (refer to Chapter 8).

4.006

If the applicant files a demand under Chapter II, international preliminary examination is carried out on the basis of the international search report and the written opinion of the International Searching Authority, and concludes with the international preliminary report on patentability (Chapter II of the PCT). Offices qualified to prepare such reports are specifically appointed to carry out international preliminary examinations and are listed in Annex E ("International Preliminary Examining Authorities"). Note that those Offices listed in Annex E are the same as those Offices listed in Annex D ("International Searching Authorities") since, in order to be appointed International Searching Authority, an Office must also hold an appointment as International Preliminary Examining Authority, and *vice versa*. The additional benefit for applicants of filing a demand for international preliminary examination is that it provides the applicant with an opportunity to enter into a dialogue with the examiner at the International Preliminary Examining Authority and to possibly amend the international application in order to influence the content of the international preliminary report on patentability (Chapter II of the PCT).

4.007

The advantages offered by the PCT are given in more detail below.

4.008. What is the advantage of filing a PCT application?

By the single act of filing an international application under the PCT, it is possible to secure the very effect that, without the PCT, would require as many filings of separate applications as there are countries or regions in which the applicant seeks protection.

4.009. In which language can I file my international application?

The filing of an international application takes place in one of the languages accepted by the Office with which the application is filed; for many applicants that will be the language, or one of the languages, used by the national or regional Patent Office of, or acting for, their country.

4.010. Where can I file my international application?

The international application is filed in a single place; it is generally filed at the national Patent Office of the applicant's country or at a regional Patent Office acting for the applicant's country, or it may be filed direct with the International Bureau in its capacity as a receiving Office under the PCT.

4.011. Are there any formal requirements for my international application?

There is a prescribed form for the international application. This form must be accepted by all designated Offices for the purposes of the national phase, so that there is no need to comply with a great variety of widely differing formal requirements in the many countries in which protection may be sought.

4.012. Where can I pay the fee for my international application?

The international fees payable in respect of the filing of an international application may be paid at one time, at one Office and in one currency. The costs and possible complications connected with the payment, on filing, of many fees in many countries, and generally in different currencies, are thus avoided.

4.013. What are the advantages of the PCT system in comparison to the Paris route?

Before the applicant goes to the effort and expense of having translations prepared, paying the national or regional fees and appointing agents in the various countries, his/her views are able to mature to a greater extent than would be possible without the PCT, not only because the applicant has more time, but also because the international search report, the written opinion of the International Searching Authority, the supplementary international search report(s), and the international preliminary report on patentability (Chapter II of the PCT) constitute a solid basis on which he/she can judge the chances of obtaining protection. Furthermore, any patents subsequently granted by the designated or elected Offices can be relied on by the applicant to a greater extent than would have been the case without the benefit of the international search report, the written opinion of the International Searching Authority, the supplementary international search report(s), and the international preliminary report on patentability (Chapter II of the PCT). Moreover, because of the longer time the applicant has for making decisions, he/she is better placed to assess the technical value and economic interest of patent protection and to select the particular countries in which he/she desires to continue seeking protection for the invention. As a result, substantial savings can be made in both translation and filing costs for those countries which are no longer of interest to the applicant.

4.014

If an international application is filed in a language which is not both a language accepted by the International Searching Authority which is to carry out the international search and a language of publication, it needs to be translated into an appropriate language shortly after filing, but all the translations required by the Offices of or acting for the countries in which the applicant ultimately wishes to obtain protection need to be prepared only much later. Instead of having to be filed within the 12-month priority period, they are generally not required until the expiration of the time limit referred to in paragraph 4.016.

4.015

Fees payable to national or regional Patent Offices similarly become due later than they do without the PCT, and only in the case where the applicant decides to go ahead with the processing of the international application at the national or regional Patent Office. Generally, such national or regional fees must be paid within the same time limit as referred to in paragraph 4.016.

4.016. What is the time limit for entering the national phase?

Since 1 April 2002, the applicable time limit for entering the national phase is 30 months from the priority date (or even later in some cases) for all Offices except those in respect of which the former 20-month time limit remains applicable unless the applicant files a demand for international preliminary examination before the expiration of 19 months from the priority date, in which case the 30-month time limit (or even later in some cases) will also apply. For regular updates on these applicable time limits, refer to the *Official Notices (PCT Gazette)*, the PCT Newsletter, and the relevant National Chapters; a cumulative table is also available from WIPO's website at: https://www.wipo.int/en/web/pct-system/texts/time_limits.

4.017

An international search report (and any supplementary international search report) which is favorable from the applicant's viewpoint strengthens his/her position vis-à-vis the various national or regional Patent Offices, and his/her arguments for the grant of a patent by those Offices are likely to be more convincing.

4.018

This is even more true in the case of a favorable international preliminary report on patentability under either Chapter I or II, which contains far more material on which to base an opinion on the chances of obtaining patents than does an international search report.

4.019

If the international search report and the written opinion of the International Searching Authority are partly favorable and partly unfavorable, the applicant can modify the claims so as to maintain only those which are likely to result in the grant of a patent. If the international search report and the written opinion are unfavorable, and the applicant consequently decides not to proceed any further, he/she saves the cost of having the application processed in the various countries. The same applies to supplementary international search report(s).

4.020

The preceding paragraph also applies in the case of international preliminary reports on patentability under Chapter II of the PCT.

4.021

Important other advantages resulting from use of the PCT route are referred to in this text. They consist, among other things, in savings in the procedure before the designated Offices (for instance, there is no need to provide each Office with original drawings, or certified copies of the priority application, there is a reduction in national fees in several countries and the European Patent Office, etc.).

REGIONAL PATENTS VIA THE PCT

4.022. Can I obtain a regional patent via the PCT ?

Important additional advantages for applicants wishing to protect their inventions in countries party both to any of the various regional patent treaties (refer to paragraph 2.002) and to the PCT result from combined use of the PCT system and those regional systems. Not only is the PCT fully compatible with the regional patent systems, but there are possibilities for advantageous combined use of both kinds of systems by applicants, irrespective of the country in which they file. The following paragraphs deal with the combined use of the PCT with the regional patent systems under which patents may be obtained via the PCT, namely, the ARIPO Harare Protocol, the Eurasian Patent Convention, the European Patent Convention and the OAPI Agreement, via the so-called “ARIPO-PCT route,” “Eurasian-PCT route,” “Euro-PCT route” and “OAPI-PCT route.” In the case of the European Patent Convention, it is also possible to obtain patents through combined use of that Convention and the PCT in the States to which a European patent may be extended or where it may be validated – refer to paragraph 4.026.

4.023

An applicant filing a PCT application and wishing to obtain protection in countries party to any of those regional patent treaties obtains, from the PCT application filed, for example, with the Japan Patent Office (JPO) or with the United States Patent and Trademark Office, the effect of a simultaneous filing with each regional Office concerned for the purposes of obtaining a regional patent. In such a case, before taking any action outside his/her home country, the applicant can safely wait until the results of the PCT search procedure (and, optionally, of the international preliminary examination) are known and also make full use of the extended period (refer to paragraph 5.005) by the end of which a translation of the PCT application, if it was not filed in one of the official languages of the regional Office (refer to the various National Chapters), must be submitted and, where required, an agent appointed for the procedure before that Office.

4.024

An applicant may file a PCT application with his/her own national Office as receiving Office, even at the very end of the priority year, and still obtain an immediate automatic filing effect with each of the regional Offices concerned. A further advantage is that, at the time of filing the PCT application, the applicant pays only one initial set of fees. The four regional designations which are presently possible cover more than 50 PCT Contracting States. If, on the other hand, the applicant chooses to file separate regional patent applications on the basis of a first application filed with his/her own national Office, he/she will, by the end of the priority year, have to comply with all the requirements of each of the regional treaties as to formalities, fees and appointment of agents.

4.025. I am a national of a State party to one of the regional patent treaties. May I file an international application to obtain both regional and national protection?

Similar advantages are offered by use of the ARIPO-PCT, Eurasian-PCT, Euro-PCT and OAPI-PCT routes in the reverse direction. In other words, a national of a State party to one of the regional patent treaties or of one of the States to which a European patent may be extended (refer to paragraph 4.026) may, instead of filing separate patent applications with a regional Office and, for instance, the Japan Patent Office (JPO) and the United States Patent and Trademark Office, choose to file, on the basis of a national application or as a first application, an international application under the PCT containing the designation of all PCT Contracting States for the purposes of obtaining, where applicable, both regional and national patents.

4.026. Can I validate or extend a European patent via the PCT?

A further advantage of the Euro-PCT route is the possibility of making use, where available, of the procedure for extension or validation of European patents. Agreements on extending or validating the protection conferred by European patents have been concluded between the European Patent Organisation and some States which are not party to the European Patent Convention. Provided that the international application contains a designation for a national patent of the State concerned and also a designation for a European patent the applicant may make use of the Euro-PCT route with a view to extending to or validating in that State a European patent subsequently granted on the basis of the international application (refer to paragraph 5.054 and Annex B (EP), as well as National Chapter Summary (EP)).

CHAPTER 5: FILING AN INTERNATIONAL APPLICATION

GENERAL

5.001. What is an international application?

Article 2(vii), Article 3(1)

An application is “international” when it is filed under and with reference to the PCT. It is the first step towards obtaining a patent in or for a State party to the PCT: “in” such a State when a national patent is desired; for such a State when a regional patent (ARIPO, Eurasian, European or OAPI patent) is desired.

5.002. What may be the subject of an international application?

Article 2(i), Article 2(ii), Article 3(1)

An international application must be an application for the protection of an invention. The PCT encompasses the filing of applications for patents for inventions, inventors' certificates, utility certificates, utility models, and various kinds of patents and certificates of addition (refer to Article 2(i)). An international application thus cannot validly be filed for certain other forms of industrial property rights which fall outside the scope of inventions, such as, for example, purely ornamental designs.

5.003. What are the main effects of an international application?

Article 4(1)(ii), Article 11(3), Article 64(4), Rule 4.9

Any international application has two main effects. One of those effects, generally speaking, is the same as that of a national (or regional) application. It occurs on the date accorded as the international filing date (refer to paragraph 6.005). It is produced in or for the “designated States,” that is, the States in which or for which the applicant wishes to obtain a patent by filing an international application. For the prior art effect of international applications in the United States of America, refer to National Chapter (US).

5.004. What are “elected States”?

Article 31(1), Article 31(4)(a)

Designated States in respect of which international preliminary examination has been demanded by the applicant are called elected States in the terminology of the PCT.

5.005

Article 22(1), Article 23(1)

Subject to what is said in the following paragraph, the other main effect of an international application is that, normally, no designated Office may process or examine the international application prior to the expiration of 30 months from the priority date (for the definition of “priority date”, refer to paragraph 5.058) and that any fees due to a designated Office and any translation of the international application to be furnished to a designated Office will have to be paid and furnished, respectively, only by the expiration of that 30-month period. In respect of certain designated Offices (currently two), the applicable time limit is the former 20-month time limit (for Luxembourg) or 21-month time limit (for the United Republic of Tanzania), not the 30-month time limit because, due to the incompatibility, for the time being, of the modified PCT provision (PCT Article 22(1)) with the relevant national law, those Offices made a declaration of incompatibility which will remain in effect until it is withdrawn by the respective Offices. Furthermore, certain other designated Offices have fixed time limits expiring even later than 30 months (for more detailed information, refer to paragraph 4.016 and the National Chapters (Summaries)). This effect of the international application is normally referred to as the effect of “delaying” the patent examination and granting procedure before the national (or regional) Offices.

5.006

Article 39(1), Article 40(1)

If international preliminary examination has been demanded before the expiration of 19 months from the priority date, the delaying effect in respect of any State whose designated Office has notified the International Bureau that the 30-month time limit under Article 22(1), as in force from April 1, 2002, is incompatible with the national law applied by that Office, is 10 months longer, so that any fees due to an elected Office and any translation of the international application will have to be paid and furnished, respectively, only by the expiration of 30 months from the priority date. (For more detailed information refer to the National Phase and National Chapters. Later time limits apply in some Offices.)

5.007. Can I claim priority from an international filing date?

Article 8, Article 11(4)

An international application which has been accorded an international filing date is the equivalent of a “regular national filing” within the meaning of the Paris Convention for the Protection of Industrial Property and, consequently, may be invoked as the basis of a priority claim in a national, regional or other international application filed subsequently within the time limit and subject to the conditions provided for in that Convention.

5.008. Where should an international application be filed?

Article 10, Rule 19.1(a), Rule 19.2

Annexes B indicate, for each Contracting State, the authorities with which its nationals and residents may, as applicants, file international applications. In the terminology of the PCT, these authorities are called “receiving Offices” (because they receive international applications). They are listed with their full names and addresses, their telephone, facsimile numbers and, where available, their e-mail and/or Internet addresses, in Annexes B, and the requirements of each receiving Office are listed in Annex C. Where there are several applicants who are not all nationals and/or residents of the same Contracting State, any receiving Office of or acting for a Contracting State of which at least one of the applicants is a resident or national is competent to receive an international application filed by those applicants. Alternatively, at the applicant's option, the international application may be filed with the International Bureau as receiving Office, regardless of the Contracting State of which the applicant is a resident or national. If there are two or more applicants, the international application may be filed with the International Bureau as receiving Office if at least one of the applicants is a resident or national of a Contracting State. Residents or nationals of States which are party to the PCT and also to the ARIPO Harare Protocol, to the Eurasian Patent Convention, to the European Patent Convention, or to the OAPI Agreement generally also have the option of filing an international application with the ARIPO Office, the Eurasian Patent Office, the European Patent Office, or the OAPI Office, respectively. Compliance with any national security prescriptions applicable under national law is the applicant's responsibility. As to measures which may be applied by receiving Offices in connection with such prescriptions, refer to paragraph 6.010.

5.009. Can I choose between different receiving Offices to file my international application?

Article 31(2)(a), Rule 18.1, Rule 54

Applicants may have a choice between several receiving Offices, for example, where there are two or more applicants whose States of nationality and residence include more than one Contracting State, or where a sole applicant has nationality and/or residence in more than one Contracting State.

5.010. What are the elements of an international application?

Article 3(2), Article 7

Any international application must contain the following elements: request, description, claim or claims, one or more drawings (where drawings are necessary for the understanding of the invention), and abstract. Detailed information on each is given below.

5.011. What is the order of the elements of the international application?

Section 207(a)

The elements of the international application must be arranged in the following order: request, description, claim(s), abstract, drawing(s) (if any). Any sequence listing part of the description must be provided as a separate electronic file (XML).

5.012. How must the sheets of an international application be numbered?

Rule 11.7(a), Section 207(b)

All the sheets constituting the international application must be numbered in consecutive Arabic numerals with three series of numbers: the first applying to the request, the second applying to the part consisting of the description, the claim(s) and the abstract (refer to paragraph 5.106), and the third applying to the drawings (refer to paragraph 5.140).

5.013. What language must be used for an international application?

Article 3(4)(i), Rule 12.1(a), Rule 12.1(c), Rule 12.1(d), Rule 12.4(a-bis), Rule 48.3(b)

The language in which an international application must be filed depends on the receiving Office. Some receiving Offices allow the applicant to choose between two or more languages. For any sequence listing part of the description, the language requirements apply only to the language-dependent free text in the sequence listing. The language or languages which may be used for filing an international application, including the language-dependent free text in any sequence listing, with a given receiving Office are

indicated in Annex C. If the international application is filed in a language other than Arabic, Chinese, English, French, German, Japanese, Korean, Portuguese, Russian or Spanish (that is, the languages in which international applications may be published – refer to paragraphs 9.017 to 9.020), or if the language in which the international application is filed is not accepted by the International Searching Authority which is to carry out the international search (refer to paragraph 7.002 and Annex D), a translation of the international application will need to be furnished for the purposes of international search and/or international publication. A translation may also be required for the purposes of the supplementary international search if neither the language in which the international application is filed or published nor that in which the translation is furnished for the purposes of the main international search is accepted by the Authority which is to carry out the supplementary international search (refer to Annex SISA). Furthermore, a translation may also be required for the purposes of the international preliminary examination if the language in which the international application is filed or published is not accepted by the International Preliminary Examining Authority which is to carry out the international preliminary examination (refer to Annex E). For any sequence listing part of the description, the translation requirements apply only to the language-dependent free text in the sequence listing. The requirements in relation to languages and the furnishing of translations are explained in greater detail in paragraphs 6.013 to 6.020, 8.012, 9.017 to 9.019 and 10.011. Those requirements operate, in most cases, in such a way that only one translation would need to be furnished for the purposes of the international phase of processing. All elements of the international application must normally be in the same language, with the exception of the language-dependent free text in a sequence listing if permitted by the receiving Office. However, the request must be in a language of publication which the receiving Office accepts for that purpose (refer to Annex C), and the text matter of the drawings (if any) and the abstract may be in the language in which the international application is to be published (refer to paragraphs 6.018 and 6.019).

5.014

Rule 19.4(a)(ii)

For the case where an international application is not filed in a language accepted by the receiving Office with which it is filed, refer to paragraph 6.034.

THE REQUEST

5.015. What is the form of the request?

Rule 3.1, Rule 3.2, Rule 3.4, Rule 4, Rule 89*bis*.1, Rule 89*ter*, Section 102

Where international applications are filed electronically, the Request Form is generated by the relevant electronic filing system. For the means of filing international applications, refer to paragraph 6.003.

Where the international application is filed on paper with a receiving Office which accepts international applications filed on paper, the request must be made on a printed form (Form PCT/RO/101) to be filled in with the required indications or be presented as a computer print-out complying with the Administrative Instructions. A filled-in sample and a blank copy of the Form PCT/RO/101 are available from the Internet website address indicated below. Any prospective applicant may also obtain copies of the printed Request Form PCT/RO/101, free of charge, from the receiving Office with which he/she plans to file an international application on paper or from the International Bureau. To facilitate preparation of the request, the International Bureau has prepared downloadable and editable PDF (portable document format) versions on its website. These may be downloaded from <https://www.wipo.int/web/pct-system/forms/index> and completed using a computer or printed out and filled in using a typewriter. The request, and instructions on how to complete the editable version, is also available from that site.

5.016. Which indications must the request contain?

Article 4(1), Article 43, Article 44, Article 45, Rule 3, Rule 4.1, Rule 4.9(a), Rule 4.10, Rule 4.11, Rule 4.14*bis*, Rule 4.15

The request contains a petition for the international application to be processed according to the PCT and must also contain certain indications. It must contain the title of the invention. It must identify the applicant, (normally) the inventor, and the agent (if any). The filing of a request constitutes the designation of all Contracting States bound by the PCT on the international filing date, for the grant of every kind of protection available and for the grant of both regional and national patents. The request should also contain, where applicable, a priority claim, an indication of the applicant's choice of competent International Searching Authority and a reference to any relevant earlier international, international-type or other search. The request must be signed. Details for the filling in of the request form are given below in respect of each Box of that form. As to the language of the request, refer to paragraph 5.013.

5.017. Must I indicate a file reference?

Section 109

It is recommended that the applicant indicate his/her file reference, if any, not exceeding 25 characters in length, in the box provided for this purpose on the first sheet of the request form. The file reference may be composed either of letters of the Latin alphabet or Arabic numerals, or both. The hyphen character (“-”) may be used as a separator between alphanumeric characters. The receiving Office, International Bureau, International Searching Authority and International Preliminary Examining Authority will use the file reference in correspondence with the applicant (refer to also to paragraphs 5.105, 10.015 and 11.071 as to the indication of file references on other elements of, or papers relating to, the international application).

5.018. Are there any physical requirements for the requests?

Rule 11.9(d)

Physical Requirements. Any text matter in the request must be in characters the capital letters of which are not less than 0.21 cm high.

Box No. I: Title of Invention**5.019. What are the requirements with respect to the title of the invention?**

Rule 4.3, Rule 5.1(a)

The title of the invention must be short (preferably two to seven words, when in English or translated into English) and precise. The same title must be given by the applicant in Box No. I of the request and at the beginning of the description (refer to paragraph 5.094).

Boxes Nos. II and III: Applicants; Inventors**5.020. Who may file an international application?**

Article 9(1), Article 9(3), Rule 18.1, Rule 18.3

Any resident or national of a Contracting State may file an international application. Where there are two or more applicants, at least one of them must be a national or a resident of a Contracting State. The Contracting States are listed in the PCT Contracting States (formerly Annex A). As to questions of residence and nationality, refer to paragraph 5.023.

5.021. [Deleted]**5.022. May I indicate different applicants for the various designated States?**

Article 9(3), Section 203(b)

In any international application, different applicants may be indicated for the various designated States. Note, however, that where more than one type of protection is available for a Contracting State (refer to paragraph 5.055 and Annex B), different applicants may not be indicated for different types of protection, furthermore for the national and regional designation of a State, the same applicant or applicants must be indicated.

5.023. How are questions of residence and nationality determined?

Rule 18.1

The question whether an applicant is a resident or national of a Contracting State depends on the national law of that State and is decided by the receiving Office. In any case, however, possession of a real and effective industrial or commercial establishment in a Contracting State is considered residence in that State, and a legal entity constituted according to the national law of a Contracting State is considered a national of that State. Where a question of the applicant's residence or nationality arises in connection with an international application filed with the International Bureau as receiving Office, the International Bureau will request the national Office of, or acting for, the Contracting State concerned to decide the question and will inform the applicant of such request. The applicant has the opportunity to submit arguments relating to the issue of residence or nationality directly to that national Office, which will decide the question promptly.

5.024. How must the applicant be identified?

Rule 4.5

The applicant must be identified by the indication of his/her name and address and by marking next to that indication, the check-box “This person is also inventor” in Box No. II, or “applicant and inventor” in Box No. III, where the applicant is also the inventor or one of the inventors, or the check-box “applicant

only” where the applicant is not also the inventor or one of the inventors. Where the applicant is a corporation or other legal entity (that is, not a natural person), the check-box “applicant only” must be marked. Where the applicant is registered with the receiving Office, the number or other indication under which the applicant is so registered may also be indicated in Boxes No. II or III. The applicant's nationality and residence must also be indicated (refer to paragraph 5.031). For the identification of the inventor, refer to paragraph 5.035. For later changes in the person, name and address of the applicant, refer to paragraphs 11.018 to 11.022.

5.025. How must names be indicated in the request?

Rule 4.4(a), Rule 4.19(a)

The names of natural persons must be indicated by the family name followed by the given name(s). Academic degrees or titles or other indications which are not part of the person's name must be omitted. The family name should preferably be written in capital letters (refer to filled-in sample of the request form at the address indicated in paragraph 5.015).

5.026

Rule 4.4(b)

The name of a legal entity must be indicated by its full official designation (preferably in capital letters).

5.027. How must addresses be indicated in the request?

Rule 4.4(c)

Addresses must be indicated in such a way as to satisfy the requirements for prompt postal delivery at the address indicated and must consist of all the relevant administrative units up to and including the house number (if any). The address must also include the country.

5.028. When is the indication of a telephone number, a facsimile number or an e-mail address recommended?

Rule 4.4(c)

It is recommended that the telephone number, facsimile number and e-mail address of the applicant, named first in the request, be given, if no agent or common representative is indicated in Box No. IV (refer to paragraphs 5.041 to 5.051). In order to allow rapid and safe receipt of notifications from Offices, it is strongly recommended that an e-mail address is provided to receive notifications.

5.029. Does the receiving Office or other PCT Authorities send notifications by e-mail?

If an e-mail address is indicated in Box No. II of the request form, the receiving Office, the International Searching Authority (also in its capacity as Authority specified for supplementary search), if they provide such a service, and the International Bureau will send notifications in respect of the international application to the applicant by e-mail, thus avoiding processing or postal delays. Note that, in this case, no paper notifications will usually be sent by postal mail, unless the relevant Office is willing to additionally send such paper notifications. Details of which Authorities will send notifications by e-mail are included in Annex B. If no e-mail address is provided, or if the applicant chooses to receive notifications exclusively by postal mail, by marking the corresponding check-box in Box No. II, or in the cases where the receiving Office or the International Searching Authority (also in its capacity as Authority specified for supplementary search), does not provide for sending notifications by e-mail, notifications will be sent to the given mailing address exclusively by postal mail. It is the applicant's responsibility to keep any e-mail address details up-to-date and to ensure that incoming e-mails are not blocked, for any reason, on the recipient's side. Changes to the e-mail address indicated in the request should be requested to be recorded, preferably directly at the International Bureau, under Rule 92*bis* (refer to paragraphs 11.018 to 11.022).

5.030. May a special address be given for the sending of correspondence?

Rule 4.4(d)

Only one address may be indicated for each applicant in Box No. II or III. However, where no agent, or common representative, is indicated in Box No. IV of the request, a special address for correspondence may be indicated in that Box. Where an applicant is indicated in Box No. IV as common representative, an address for correspondence may be indicated in that Box (refer to paragraphs 5.047 and 5.051) other than the address given for that applicant in Box No. II or III.

5.031. Why and how must the nationality and residence of the applicant be indicated in the request?

Article 9(1), Rule 18, Rule 19

This information is needed to determine whether the applicant is entitled to file an international application and also to determine the competence of the receiving Office. It must be provided by an indication of the names of the country of which the applicant is a national and of the country of which he/she is a resident. Where the country of residence is not indicated specifically but a country is indicated in the address, it will be assumed that the country of residence is the country indicated in the address. For the procedure where an international application is filed with a “non-competent” receiving Office, refer to paragraph 6.035. For the manner of indicating names of countries, refer to paragraph 5.033.

5.032. Must the indications in respect of applicants be provided for all applicants?

Rule 26.2bis(b)

If there is more than one applicant, it is advisable that the indications outlined in paragraphs 5.024 to 5.031 are provided in respect of all applicants. However, if the indication of the address, nationality and residence has been provided in respect of at least one applicant who is entitled to file the international application with the receiving Office, the receiving Office will not invite the applicant to furnish the missing indications in respect of any other applicant.

5.033. How must the names of States be indicated?

Section 115

The name of any State may be indicated either by the full name of the State or by a short title or two-letter code or any combination thereof. This principle applies for the indication of the names of States in all Boxes of the request where such names must be indicated. Country Names and Two-Letter Codes (formerly Annex K) contains a comprehensive list of the short names and two-letter codes accepted for use in indicating countries, territories and intergovernmental organizations (and their Offices) in documents relating to international applications under the PCT. The list is as set out in WIPO Standard ST.3, which is published in the WIPO Handbook on Industrial Property Information and Documentation and available on the Internet site at <https://www.wipo.int/documents/d/standards/docs-en-03-03-01.pdf>.

5.034. Which of several applicants should be named first?

It is recommended that the applicant who will represent all the applicants and to whom notifications are to be sent be named first, since he will be considered to be the common representative of all the applicants if no common agent or common representative is appointed and if that applicant is entitled to file an international application with the receiving Office (refer to paragraph 5.048). However, if a common agent representing all applicants or a common representative is indicated in Box No. IV of the request, notices will be sent to that common agent or common representative. (Also refer to paragraphs 11.015 to 11.017.)

5.035. When and how must the inventor be identified?

Article 4(1)(v), Article 4(4), Rule 4.1(a)(iv), Rule 4.6

Where the person identified in Box No. II as applicant is also the inventor, it is sufficient to mark the check-box “This person is also inventor”. No repetition of the name and address of the inventor is required in Box No. III. Where the inventor is identified in Box No. III, the check-box “applicant and inventor” must be marked if the inventor is also applicant; the check-box “inventor only” must be marked if the inventor is not also applicant. Where the inventor is not the same for all designated States, refer to paragraph 5.038. Where the inventor is deceased, refer to paragraphs 11.023 to 11.026.

5.036. When must I mark the check-box “inventor only” in the request form?

Article 4(4), Rule 4.1(c)(i)

Where the inventor is not also an applicant, the check-box “inventor only” must be marked and his/her name and address must be indicated in one of the sub-boxes of Box No. III. The name and address of the inventor may be omitted from the request where the national law of none of the designated States requires that the name of the inventor be furnished at the time of filing a national application. Annexes B indicate what the requirements are for each Contracting State or intergovernmental organization. However, unless special reasons prevent the indication of the name and address of the inventor, it is recommended that it always be included in the request since such information is generally required in the national phase.

5.037. Must I indicate the inventor's name and address in the request form?**Rule 4.4**

As regards the indication of the name and address of the inventor, what is said in this respect for the applicant, in paragraphs 5.025 and 5.027, also applies. An indication of the country of which the inventor is a national or resident is not required unless the inventor is also applicant. For later changes in the person, name or address of the inventor, refer to paragraphs 11.018 and 11.020.

5.038. What must be done if the inventors are not the same for all designated States?**Rule 4.6(c)**

The PCT permits different inventors to be indicated for different designated States where, in this respect, the requirements of the national laws of the designated States are not the same. For the manner of indicating for which designated States the person named is the inventor, refer to item 1(iii) of the Supplemental Box of the request form (refer to filled-in sample of the request form at the address indicated in paragraph 5.015). Where, and this is the usual case, all the inventors are the same for all designated States, no special indication in the Supplemental Box is required.

5.039. How, in the case of several applicants, are the designated States for which they are applicants to be identified?

Details concerning the designation of States in general are given in paragraphs 5.052 to 5.054 below. At the bottom of Box No. II and of each sub-box of Box No. III, there are two check-boxes (refer to filled-in sample of the request form at the address indicated in paragraph 5.015). One (but only one) of those check-boxes must be marked for the applicant identified in Box No. II and for each further applicant, if any. Neither should be marked if the person identified in any of the sub-boxes of Box No. III is "inventor only". An explanation of the two check-boxes is given below, separately for Box No. II and Box No. III.

Box No. II:

☐ all designated States"

This check-box must be marked where the person identified in Box No. II is and qualifies as applicant for all designated States.

☐ the States indicated in the Supplemental Box"

This check-box must be marked only in special cases where the applicant is not an applicant for all designated States: Where, for example, each of three applicants is applicant for different States, the indication of the States for which the person identified in Box No. II is applicant must be made in the Supplemental Box of the request form (refer to the explanation given below in relation to the sub-boxes of Box No. III for the other two applicants in such a case). The manner in which the Supplemental Box is to be used is explained in detail in item 1(ii) of the Supplemental Box itself (refer to filled-in sample of the request form at the address indicated in paragraph 5.015)

Box No. III:

☐ all designated States"

This check-box must be marked where the person identified in the sub-box as "applicant and inventor" or as "applicant only" is and qualifies as applicant for all designated States.

☐ the States indicated in the Supplemental Box"

This check-box must be marked only in special cases where the applicant is not an applicant for all designated States. Where, for example, each of three applicants is applicant for different States, the indication of the States for which each of the two further applicants identified in a sub-box of Box No. III as "applicant and inventor" or "applicant only" must be made in the Supplemental Box of the request form (refer to the explanation given above in relation to the sub-boxes of Box No. II for the first applicant). The manner in which the Supplemental Box is to be used is explained in detail in item 1(ii) of the Supplemental Box itself (refer to filled-in sample of the request form at the address indicated in paragraph 5.015).

5.040. [Deleted]

Box No. IV: Agent or Common Representative

5.041. Does the applicant have to be represented by an agent before the receiving Office, the International Bureau and other International Authorities under the PCT?

Article 27(7), Article 49, Rule 2.2, Rule 90.1

Annex C indicates, for each receiving Office, whether the applicant has to be represented by an agent. As already stated (refer to paragraph 1.004), in view of the importance of careful preparation of the international application and of its proper processing, it is in any case highly advisable for applicants to use the services of a professional patent attorney or patent agent.

5.042. Who may be appointed to act as an agent?

Article 49, Rule 83.1*bis*, Section 106

Any person who can act as an agent before the Office which acts as receiving Office (refer to Annex C) may be appointed as an agent for any international application filed with that Office. Where the international application is filed with the International Bureau as receiving Office, any person who has the right to practice before the national (or regional) Office of, or acting for, a Contracting State of which the applicant (or, if there are two or more applicants, any of the applicants) is a resident or national may be appointed as agent (refer to Annex C). An appointed agent who has the right to represent the applicant before the receiving Office is automatically also entitled to act before the International Bureau, the International Searching Authority and the International Preliminary Examining Authority.

5.043. How is an agent to be appointed?

Article 4(1)(iii), Rule 4.1(a)(iii), Rule 4.7, Rule 90.3

Subject to paragraph 5.044 an agent may be appointed by designation in Box No. IV of the request (refer to filled-in sample of the request form at the address indicated in paragraph 5.015) if the international application is signed by the applicant (also refer to paragraphs 5.088 and 5.089). Otherwise the appointment of the agent must be in a separate document ("power of attorney") signed by the applicant. The indication in Box No. IV of the request or in the power of attorney must contain the name and address of the agent in the manner indicated in paragraphs 5.025 to 5.028. It is recommended that the agent's telephone number facsimile number and/or e-mail address also be indicated. In order to allow rapid and safe receipt of notifications from Offices, it is strongly recommended that an e-mail address is provided to receive notifications. Where the agent is registered with the receiving Office, the number or other indication under which the agent is so registered may also be indicated. Where there are several applicants, an agent representing all of them may be appointed by designation in the request or by a separate power of attorney or by a combination of both methods, provided that all the applicants have signed either the request or a separate power of attorney. Model powers of attorney are available in editable PDF format on the WIPO website at: <https://www.wipo.int/en/web/pct-system/forms/pa/index>. The separate power of attorney must be submitted to the receiving Office or to the International Bureau or, if the appointment was made specifically for the purposes of the procedure before the International Searching Authority or International Preliminary Examining Authority, to the Authority concerned (refer to paragraph 5.045). Where a general power of attorney authorizes an agent to represent the applicant before the Office which acts as receiving Office, and where that general power includes the filing of international applications, a copy of the general power of attorney originally submitted to the receiving Office must accompany any international application in relation to which the appointment made in it is to be exercised unless this requirement has been waived by the receiving Office concerned (refer to paragraph 5.044), and reference must be made to that copy in Box No. IX of the request. It is to be noted that general powers of attorney must be deposited with the receiving Office (not with the International Bureau, except where the international application is filed with the International Bureau as receiving Office) or, if the appointment was made specifically for the purposes of the procedure before the International Searching Authority or International Preliminary Examining Authority, with the Authority concerned (refer to paragraph 5.045).

5.044. Is it always necessary to submit a power of attorney or a copy of my general power of attorney with my international application?

Rule 90.4(d), Rule 90.4(e), Rule 90.5(c), Rule 90.5(d)

Any receiving Office, International Searching Authority, International Preliminary Examining Authority or the International Bureau may waive the requirement that a separate power of attorney be submitted to it. Any receiving Office, International Searching Authority, or International Preliminary Examining Authority may waive the requirement that a copy of a general power of attorney is attached to the request, the demand or a separate notice. The receiving Office or Authority may waive these requirements in general or only for certain cases. In cases where either waiver is applicable, no separate power of attorney or

copy of a general power of attorney needs to be furnished by the applicant. Any such waiver and any conditions relating thereto are published in the *Official Notices (PCT Gazette)* (also refer to Annexes C, D and E). Please note that a separate power of attorney or a copy of a general power of attorney must, in any event, still be furnished for any case of withdrawal, even if the requirement has been waived for other cases. Any waiver made by a receiving Office only applies in respect of that Office but not necessarily in respect of other Authorities involved in the PCT procedure. Regarding signature requirements, refer to paragraphs 5.088 to 5.091; for special provisions regarding withdrawals, refer to paragraphs 11.048 to 11.061.

5.045. May I appoint a new agent or additional agents after having filed the international application?

Rule 90.1(d)(ii), Rule 90.6(b)

Further agents may be appointed at any time to represent the applicant either generally or specifically before the International Searching Authority or the International Preliminary Examining Authority, and an agent appointed for general purposes, unless otherwise indicated in the document appointing that agent, may appoint sub-agents to represent the applicant. The appointment of a new agent is treated as revocation of any former appointment of agents, unless otherwise indicated in the power of attorney appointing the new agent.

5.046

Article 27(7), Rule 4.7, Rule 90.3

If representation by an agent before the receiving Office is required (refer to paragraph 5.041), it is advisable that the agent be appointed by the time the international application is filed to ensure that the international application will be accepted for processing by the receiving Office. The practice of the receiving Office with regard to enforcing the requirement that an agent be appointed is, generally the same as that observed by it in the case of national (or regional) applications. If the appointment of an agent is not obligatory, an appointment may be made either at the time of filing the international application or later.

5.047. Is the person who signs the request for a corporate applicant regarded as an agent?

The answer depends on the nature of the authorization to act for the corporate applicant - that is, on whether the person signs on behalf of the corporate applicant or as an appointed agent. If the name of that person is indicated in Box No. IV and the check-box "agent" is marked, the person will be regarded as an agent and a power of attorney may be required. If the corporate applicant is indicated in that Box and the check-box "common representative" is marked, the person who signs will not be regarded as an agent. The mere fact that a person is indicated as part of the address for correspondence to the corporate applicant as common representative (refer to paragraph 5.051) does not mean that the person will be regarded as an agent.

5.048. Can one of several applicants represent all of them as a common representative?

Rule 2.2bis, Rule 90.2

If a common agent is not appointed by all the applicants, one of the applicants may be appointed by the other applicants as the common representative of all the applicants (refer to paragraph 11.005). If neither a common agent nor a common representative is appointed, the first-named applicant who has a right to file an international application with the receiving Office concerned is automatically considered to be the deemed common representative of all the applicants (refer to paragraph 11.006).

5.049

A more detailed explanation of the provisions relating to agents and common representatives appears in paragraphs 11.001 to 11.014.

5.050. Will I receive notifications by e-mail?

If an e-mail address is indicated, in Box No. IV of the request form, the receiving Office, the International Searching Authority (also in its capacity as Authority specified for supplementary search), if they provide such a service, and the International Bureau will send notifications in respect of the international application to the agent or common representative at the indicated e-mail address, thus avoiding processing or postal delays. Note that, in this case, no paper notifications will usually be sent by postal mail, unless the relevant Office is willing to additionally send such paper notifications. If no e-mail address is provided, or if the agent or common representative chooses to receive notifications exclusively by postal mail, by marking the corresponding check-box in Box No. IV, or in the cases where the receiving Office or the International Searching Authority (also in its capacity as Authority specified for supplementary search), does not provide for sending notifications by e-mail, notifications will be sent to

the given mailing address exclusively by postal mail. Where an e-mail address has been provided both in respect of the applicant and in respect of an agent or common representative, e-mail notifications will only be sent to the appointed agent or common representative (also refer to paragraph 5.029).

5.051. When and how may a special address for correspondence be given?

Rule 4.4(d), Section 108

Correspondence is sent to the appointed agent or common representative, if any. Where no agent or common representative is appointed, any correspondence will be sent to the address, indicated in Box No. II or III, of the applicant (if only one person is named as applicant) or of the applicant who is considered to be the common representative (if there are two or more persons named as applicants) (refer to paragraphs 5.048 and 11.006). However, if the applicant wishes correspondence to be sent to a different address, in such a case, that address must be indicated in Box No. IV instead of the indication of an agent or common representative. In this case, and only in this case, the last check-box of Box No. IV must be marked (that is, the last check-box must not be marked if either of the check-boxes "agent" or "common representative" in Box No. IV has been marked).

Box No. V: Designation of States

5.052. What is the designation of States?

Article 4(1)(ii), Article 11(1)(iii)(b), Rule 4.9(a)

The designation of States is the indication of Contracting States in or for which the applicant may seek protection for his invention. For international applications filed after 1 January 2004, the filing of the request automatically constitutes:

- (i) the designation of all Contracting States that are bound by the Treaty on the international filing date;
- (ii) an indication that the international application is, in respect of each designated State to which Article 43 or 44 applies, for the grant of every kind of protection which is available by way of the designation of that State; and
- (iii) an indication that the international application is, in respect of each designated State to which Article 45(1) applies, for the grant of a regional patent and also, unless Article 45(2) applies, a national patent.

This is also valid where the applicant does not use the request Form PCT/RO/101 issued on 1 January 2004, or thereafter, or where the international filing date is changed to a date either on, or after, 1 January 2004.

5.053. Can any States be excluded from the automatic and all-inclusive designation of PCT Contracting States?

Rule 4.9(b)

As an exception to the automatic and all-inclusive designation of Contracting States, Germany, Japan and the Republic of Korea may be excluded from being designated. The reason for this exception is that these States have notified the International Bureau that the national law applied by their designated Offices contains provisions to the effect that the filing of an international application which contains the designation of that State and which claims the priority of an earlier national application having effect in the same State, has the result that the earlier national application ceases to have effect. Check-boxes can therefore be marked when an applicant wants to avoid undesired loss of the national priority application. Further details relating to this issue, and particular conditions which may apply, are explained in Annex B in respect of these States.

5.054. Is the procedure for extending or validating a European patent to or in a country having an Extension or Validation Agreement with the European Patent Organisation available through the filing of an international application?

A European patent granted on an international application may, if the necessary conditions are met, be extended to or validated in a State having an Extension or Validation Agreement to that effect with the European Patent Organisation. The procedure is available through the filing of an international application as the filing of the request constitutes the designation of all States, including the designation of the European Patent Office and the designation for a national patent of all States having concluded an Extension or Validation Agreement, and which are also PCT Contracting States. Annex B (EP) contains information as to the States to which European patents may be so extended. Details of the applicable procedure, including the steps to be taken on entering the national phase and fees payable, have been

published in the Official Journal of the European Patent Office (No. 1-2/1994, pages 75 to 88, No. 11/1997, pages 538 to 542 and 2/2015, A18-A20); also refer to the National Chapter Summary (EP).

5.055. Is it possible to choose a kind of protection other than a patent, and if so how is it done?

Article 4(1)(ii), Article 4(3), Article 43, Article 44, Rule 4.1(b)(iii), Rule 4.11, Rule 49bis.1

As indicated in paragraph 5.052, the filing of the request constitutes the indication that the international application is, in respect of each designated State to which Article 43 or 44 applies, for the grant of every kind of protection which is available by way of the designation of that State. Examples of such kinds of protection are an inventor's certificate, a utility certificate, a utility model, a "petty patent", a patent of addition, a certificate of addition or an inventor's certificate of addition. It is not possible, during the international phase, to indicate the wish to obtain a certain kind of protection for a particular designated Office. Any further choice of the kind of protection sought can only be made at the time of national phase entry before the respective designated Offices. Please note, however, that it is possible to withdraw a certain type of protection in respect of the designation of a State. Annexes B indicate, for each Contracting State, the kinds of protection available.

5.056. Is it necessary to include any parent information in the international application?

Where, when entering the national phase, a title (patent, certificate, inventor's certificate) of addition is sought, or where the applicant wishes the international application to be treated as an application for a continuation or a continuation-in-part, the applicant may indicate this information and the parent application or grant following the name of the designated State in the "Supplemental Box" (refer to item 2 or 3 of that Supplemental Box).

5.056A. Is it possible to correct or add any indication concerning reference to continuation or continuation-in-part, parent application or grant made in the request form?

Rule 26quater, Section 317bis, Section 419bis

The applicant may correct or add to the request any indication referred to in Rule 4.11 by a notice submitted to the International Bureau within a time limit of 16 months from the priority date, provided that any notice which is received by the International Bureau after the expiration of that time limit shall be considered to have been received on the last day of that time limit if the notice reaches the International Bureau before the technical preparations for international publication have been completed. The International Bureau will notify the applicant of any indication corrected or added under Rule 26quater.1. If a notice under Rule 26quater.1 is submitted by the applicant to the receiving Office, that Office will mark the date of receipt on the notice and transmit it promptly to the International Bureau. The notice shall then be considered to have been received by the International Bureau on the date marked. Where any correction or addition of an indication referred to in Rule 4.11 is not timely received, the International Bureau will inform the applicant that such an indication or correction should be submitted directly to the designated Office or Offices concerned.

Box No. VI: Priority Claim and Restoration of the Right of Priority

5.057. How may the priority of an earlier application be claimed?

Article 8(1), Rule 4.1(b)(i), Rule 4.10

Any international application may contain a declaration claiming the priority of one or more earlier applications filed in or for any country party to the Paris Convention for the Protection of Industrial Property or in or for a member of the World Trade Organization (WTO) that is not party to that Convention (refer to https://www.wipo.int/en/web/pct-system/paris_wto_pct). Note that where priority is claimed of an earlier filing in or for a WTO member which is not party to the Paris Convention, a PCT Contracting State that is not a Member of the WTO is not required to recognize the effects of such a priority claim. An earlier regional (ARIPO, Eurasian, European, OAPI or any other similar regional organization providing for the grant of regional patents and where at least one of the countries party to that regional patent treaty is party also to the Paris Convention or the WTO) application or an earlier international application can also serve as a basis for a priority claim. Any priority claim must be made in the request. The priority claim must contain the necessary indications which allow the earlier application to be uniquely identified. If the earlier application was a national application, it must indicate the country in which it was filed, the date on which it was filed and the number under which it was filed. Where the earlier application was a regional application, the priority claim must indicate the Office with which it was filed; only where not all countries party to the regional patent treaty under which the earlier application was filed are also party to the Paris Convention for the Protection of Industrial Property (the Paris Convention) or are also members of the WTO must the priority claim indicate at least one country party to the Paris Convention or at least one

member of the WTO for which that earlier regional application was filed. Where the earlier application was an international application, the priority claim must indicate the receiving Office with which it was filed. The two-letter code (refer to Country Names and Two-Letter Codes (formerly Annex K) and paragraph 5.033) may be used for the indication of the country or, where applicable, for the Office of filing. Subject to certain conditions, priority claims may be corrected and added, after the international application has been filed, by a notice submitted to the receiving Office or to the International Bureau (refer to paragraphs 6.038 to 6.044).

5.058. What does “priority date” mean?

Article 2(xi)

Where the international application contains a priority claim, “priority date” means the filing date of the application whose priority is claimed. Where the international application does not contain such a claim, “priority date” means the filing date of the international application. Where the international application contains two or more claims, “priority date” means the filing date of the earliest application whose priority is claimed.

5.059. What does “priority period” mean?

Rule 2.4, Rule 80.5

“Priority period” means the period of 12 months from the filing date of the earlier application whose priority is claimed in the international application. The day of filing of the earlier application is not included in this period. Subject to what is said below, in order to validly claim priority, an international application must always be filed within the priority period; otherwise, the right of priority will be lost. Note that, in certain cases (refer to Rules 2.4(b) and 80.5) the priority period may expire on a later day. Note further that, if the international application is filed after the expiration of the priority period but within a certain time limit, it may be possible, under limited circumstances, to request restoration of the right of priority (refer to paragraphs 5.062 to 5.069; this, however, will not apply to all Contracting States).

5.060. What are the principles governing the right of priority for international applications?

Article 8(1), Article 8(2)(a), Article 11(3), Article 11(4), Rule 4.10

The PCT makes no change to the provisions which govern the right of priority and are contained in Article 4 of the Paris Convention for the Protection of Industrial Property; WTO members are required to apply Paris Convention Article 4 in accordance with Article 2.1 of the Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement). Since an international application has the effect in each designated State of a regular national application, it may claim priority from another application, and be used as the basis for a priority claim in a later application, just like any regular national application. So far as PCT procedures are concerned, the priority claim is particularly important because it establishes a priority date for the purposes of computing time limits under the PCT. The validity of a priority claim is not determined during the international phase (although the matter is taken into consideration for the purposes of establishing international preliminary reports on patentability (Chapter I or II of the PCT)). Also, a priority claim would, subject to the possibility of correction (refer to paragraphs 6.038 to 6.044), for the purposes of the procedure under the PCT, be considered not to have been made if the application, the priority of which is claimed, was not filed either in a country party to the Paris Convention or in a member of the WTO, if the international application were filed more than two months after the expiration of the priority period (refer to paragraphs 5.062 and 6.038) or if the priority claim did not include the required details concerning the date on which and the country and/or Office, as the case may be, where the earlier application was filed.

5.061. How must dates be indicated in the priority claim?

Section 110

Each date appearing in the international application or in any correspondence must be indicated by the Arabic number of the day, the name of the month and the Arabic number of the year, in that order. In the request, after, below or above that indication, the date should be repeated in parentheses with a two-digit Arabic numeral each for the number of the day and the number of the month, the number of the year must be indicated in four digits, in that order and separated by periods, slants or hyphens, for example: “20 March 2006 (20.03.2006) or 20 March 2006 (20/03/2006) or 20 March 2006 (20-03-2006)”.

5.062. What are the consequences if the international application is filed after the expiration of the priority period?

Rule 26bis.3

Where an international application has an international filing date which is later than the date on which the priority period expired (refer to paragraph 5.059) but within a period of two months from that date, the

priority claim concerned will not be declared void for the purposes of the international phase of the PCT procedure, irrespective of whether the restoration of the right of priority is requested (refer to below), or whether such a request is accepted or refused by the receiving Office. Where the priority claim in question is the only or the earliest priority claim in the international application, it will continue to serve as the basis to calculate all time limits during the international phase. Note, however, that the fact that the priority claim is retained in the international application does not mean in any way that the validity of such a priority claim in the national phase is assured.

In respect of such a priority claim, the applicant may file a request for the restoration of the right of priority with the receiving Office (refer to the following paragraphs for the procedure relating to the restoration of the right of priority). Several receiving Offices have, however, notified the International Bureau under Rule 26bis.3(j) of the incompatibility of the provisions governing such requests to restore the right of priority with the national laws applied by those Offices. As a result, those receiving Offices will not apply those provisions and thus do not accept such requests. A list of Offices which will not accept requests under Rule 26bis.3(a) can be found on WIPO's website at https://www.wipo.int/en/web/pct-system/texts/reservations/res_incomp#R_26bis_3_j. To the extent that the applicant is aware, before filing the international application, of the need to file a request for restoration, he/she should consider filing the international application with a competent receiving Office that does accept such requests. For example, the receiving Office of the International Bureau accepts such requests and is competent for international applications filed by a national or resident of any PCT Contracting State. If the need to file a request to restore only becomes apparent after the international application has already been filed, the applicant may request the receiving Office to transmit the international application to the receiving Office of the International Bureau under Rule 19.4(a)(iii).

5.063. What is the time limit for requests for the restoration of the right of priority?

Rule 26bis.3(e)

The time limit for complying with the requirements to request the restoration of the right of priority is two months from the date on which the priority period expired. If the receiving Office requires the applicant to provide a declaration or evidence in support of the statement of reasons for failure to timely file the international application (refer to paragraph 5.064), it will allow the applicant a reasonable time under the circumstances to furnish such documents.

5.064. How should a request for the restoration of the right of priority be filed with the receiving Office?

Rule 4.1(c)(v), Rule 26bis.1(a), Rule 26bis.3

The request form, Box VI, includes an option for the applicant to request restoration of the right of priority and a similar option is included in ePCT. The applicant only needs to add an indication, in the case of multiple priority claims, to clarify in respect of which priority claim restoration is requested. The request to restore the right of priority may also be submitted separately from the request form by way of a letter to the receiving Office.

For the request to restore the right of priority to be successful, the following requirements must be met:

- the international application must contain a priority claim to an earlier application. In addition, this international application must have been filed within two months from the date of the expiration of the priority period. If, the international application does not contain the relevant priority claim at the time of filing, such a claim must be added, in accordance with Rule 26bis.1(a) (refer to paragraphs 6.038 to 6.040), within two months from the expiration of the priority period (refer to Rules 26bis.3(c) and (e));

- the request to restore should state the reasons for the failure to file the international application within the priority period. This statement of reasons should be submitted as a separate document and accompany the request for restoration in the request form or may be filed subsequently within the time limit under Rule 26bis.3(e). The statement of reasons should take into consideration the restoration criterion which the applicant seeks to satisfy, from among those applied to such requests by the Office (refer to Annex C and paragraph 5.065);

- a fee for requesting restoration, if applicable, must be paid (refer to Annex C for whether a particular receiving Office requires a fee for the restoration of the right of priority) before the expiration of the time limit under Rule 26bis.3(e); the time limit for payment of the fee may be extended for a period of up to two months from the expiration of the time limit under Rule 26bis.3(e) (Rule 26bis.3(d));

- if required by the receiving Office, a declaration or other evidence in support of the statement of reasons should preferably be furnished together with the request to restore but may also be furnished upon invitation by the receiving Office (Rule 26bis.3(f)) (for the applicable time limit, refer to paragraph 5.063).

5.065. What are the criteria for restoration applied by the receiving Office?

Rule 26bis.3(a), Rule 49ter.1(a), Rule 49ter.1(b)

There are two possible criteria for restoration: either the failure to file the international application within the priority period occurred in spite of due care required by the circumstances having been taken or the failure to file the international application within the priority period was unintentional. All Offices to which these Rules are applicable (refer to paragraph 5.062) must apply at least one of these criteria. If a receiving Office wishes, it may apply both criteria for restoration and leave the choice to the applicant as to which criterion is sought to be applied in a specific case, noting that it would be advantageous for the applicant to obtain a positive finding by the receiving Office on the stricter criterion of “due care” since such a finding would in general be effective in all designated States, unlike a finding on the less strict “unintentionality” criterion. Furthermore, a receiving Office will be free to apply, upon request of the applicant, first the “due care” criterion and then, if the receiving Office finds that that criterion is not complied with, the “unintentionality” criterion.

5.066. What needs to be included in the statement of reasons for the request to restore the right of priority and what additional information may be required in support of a request for restoration of the right of priority?

Rule 26bis.3(f)

The statement of reasons should indicate the reasons for the failure to file the international application within the priority period. It should contain all the relevant facts and circumstances which would allow the receiving Office to determine that the failure to file the international application within the priority period occurred in spite of due care required by the circumstances having been taken or was unintentional. Under Rule 26bis.3(f), the receiving Offices may require that a declaration or other evidence in support of the statement of reasons be furnished or, if some evidence has already been provided, that additional evidence be furnished. When submitting the statement of reasons and possibly any declaration or evidence in support of a request for restoration of the right of priority, the applicant must bear in mind that in general all these documents will be made publicly available by the International Bureau on PATENTSCOPE after the international publication of the international application (refer to paragraph 5.067 for exceptions). Any private or confidential information which is not necessary for supporting the request itself, should preferably be left out.

5.067. Can the applicant request that certain documents relating to a request for the restoration of the right of priority not be transmitted to the International Bureau?

Rule 26bis.3(h-bis)

Generally, receiving Offices will forward to the International Bureau all documents submitted in connection with a request for restoration of the right of priority. However, the applicant can make a reasoned request to the receiving Office that certain documents or parts thereof relating to such a request not be forwarded. Receiving Offices may also contact the applicant directly where such documents are noted to invite the applicant to submit a reasoned request for omission. If the receiving Office, upon the applicant's request, finds that any document does not obviously serve the purpose of informing the public about the international application and publication or public access to any such document would clearly prejudice the personal or economic interests of any person and there is no prevailing public interest to have access to that document or part of it, it will not transmit that document or part of it to the International Bureau. The applicant should note that if essential information, necessary for establishing that the criterion for “due care” had been met, is not forwarded and thus not made available to the designated/elected Offices, it is more likely that the request for restoration of the right of priority will be reviewed during the national phase, and that he/she will be required to provide equivalent information again to the designated/elected Offices.

5.068. Will there be an opportunity for dialogue with the receiving Office should that Office intend to refuse the request?

Rule 26bis.3(g)

If the receiving Office intends to refuse the request for restoration of the priority claim, it is required to notify the applicant of its intention. The applicant then has an opportunity to make observations on the intended refusal within a reasonable time limit, specified in the notification of intended refusal (Form PCT/RO/158). Note that this notification may in practice be sent to the applicant together with an invitation to file a declaration or other evidence.

5.069. What are the effects of a decision by a receiving Office on designated Offices?

Rule 49ter.1

A decision by a receiving Office to restore a right of priority based on the criterion of “due care” will, as a general rule, be effective in all designated Offices, unless the designated Office submitted a notification of incompatibility under Rule 49ter.1(g). A decision by a receiving Office to restore a right of priority based on the criterion of “unintentionality” will be effective only in those designated States the applicable laws of which provided for restoration of the right of priority based on that criterion or on a criterion which, from the viewpoint of applicants, is more favorable than that criterion. A decision by a receiving Office to refuse to restore the right of priority can always be reviewed by a designated Office, unless it has submitted a notification of incompatibility under Rule 49ter.1(g), such that restoration is not possible in that jurisdiction.

In addition, a review of a positive decision may be made by a designated Office in the limited situation where it reasonably doubts that one of the substantive requirements for restoration was complied with. No review is permitted on purely formal grounds, such as, for example, the ground that the relevant fee in the international phase might not have been paid.

5.070. When and to whom must the priority document be furnished?

Rule 4.1(c)(ii), Rule 17.1, Rule 17.2(a), Section 411

Before the expiration of 16 months from the priority date (or, where the applicant requests early processing pursuant to Article 23(2), before that request is made), a certified copy of the earlier application (whether it is a national, regional or international application) must be submitted by the applicant either to the International Bureau or to the receiving Office (unless it has already been filed with the receiving Office together with the international application). Any certified copy that reaches the International Bureau after the expiration of 16 months from the priority date, but before the date of international publication of the international application, will be considered to have reached the International Bureau on the last day of that 16-month period. The copy must be certified by the authority with which the earlier application was filed. Where that authority is the same Office as the receiving Office, the applicant may, instead of submitting the certified copy, request the authority, before the expiration of 16 months from the priority date, to prepare and transmit the certified copy to the International Bureau; in that case, the fee usually charged by the Office should be paid when the request for transmittal is made; the easiest solution for the applicant is to make this request at the time of filing the international application, by marking the check-box provided for that purpose in Box No. VI of the request Form PCT/RO/101. Furthermore, where the priority document is available to the International Bureau from a digital library in accordance with Rule 17.1(b-bis) and Section 715(a), the applicant may, prior to the date of international publication, request the International Bureau to obtain the priority document from such a digital library (refer to paragraph 5.070B). The International Bureau will not charge a fee for this service. The easiest solution for the applicant is to make this request with the International Bureau at the time of filing the international application, by marking the check-box provided for that purpose in Box No. VI.

5.070A. How will I know if my earlier application is available to the PCT System from a digital library?

The only available “digital library” in the PCT system is the WIPO Digital Access Service (DAS). This offers access to earlier applications filed at the receiving Office of the International Bureau and a number of national Offices for use as priority documents. However, unlike some of the bilateral priority document sharing systems between national Offices, the earlier application is only available if the applicant has taken specific steps to make the document available.

5.070B. What steps must be taken so that the International Bureau can obtain the priority document from a digital library, in particular via DAS?

The procedural steps that the applicant needs to follow so that the earlier application will be available to the International Bureau are set out on the DAS website at the following address: <https://www.wipo.int/en/web/das/description> and on the individual web sites of the participating offices (refer to the list at <https://www.wipo.int/en/web/das/participating-offices/search>). Having carried out these steps, the applicant will receive an access code. The applicant should then mark the applicable check-boxes in Box No. VI, and indicate the access code for each specific priority document or submit a written request containing this information to the International Bureau.

5.070C. What steps must be taken when the earlier application to be made available via DAS is an international application?

Applicants may also claim priority from an international application when filing a patent application at another Office (an Office of Second Filing). If the international application was filed with the receiving Office of the International Bureau, the applicant may send a letter to that Office requesting that the

document be made available via DAS, and then request the Office of Second Filing to retrieve that document from DAS. For international applications filed at other receiving Offices, check the list of Offices at <https://www.wipo.int/en/web/das/participating-offices/search> to refer to whether a particular participating Office will make international applications, filed at its receiving Office, available to DAS in addition to national applications.

5.070D

The International Bureau notifies the applicant of the date on which the priority document was received or obtained. Any designated Office may request a copy of the priority document from the International Bureau. Provided the applicant has either furnished a certified copy or requested that the priority document be transmitted or obtained and paid the necessary fee as described above, no designated Office may ask the applicant to furnish a certified copy of the earlier application. Where this is not the case and unless the earlier application of which priority is claimed was filed with the designated Office in its capacity as national Office or if the priority document is available to the designated Office from a digital library, any designated Office may disregard the priority claim. The designated Office must first, however, have given the applicant an opportunity to furnish the priority document within a time limit which is reasonable under the circumstances. For the obligation of the applicant to furnish a simple (not certified) copy of the priority document to the designated Offices (including a copy of the priority certificate), refer to National Phase, paragraph 5.009 and the relevant National Chapters.

5.071

Rule 17.2(b)

For information as to the obtaining of copies of the priority document after international publication, refer to paragraph 9.023.

Box No. VII: International Searching Authority

5.072. Must an applicant indicate a choice of International Searching Authority?

Rule 4.1(b)(iv), Rule 4.14bis

Where two or more International Searching Authorities are competent to carry out the international search, the applicant must indicate the Authority chosen in the appropriate space in Box No. VII. For details on which International Searching Authorities are competent, refer to Annex C and paragraph 7.002.

5.073. Can the International Searching Authority be requested to take into account the results of an earlier search?

Rule 4.1(b)(ii), Rule 4.12, Rule 12bis, Rule 16.3, Rule 23bis, Rule 41.1

If the applicant wishes the International Searching Authority, in carrying out the international search, to take into account the results of an earlier international, international-type or national search (Rule 4.12) and has complied with all the requirements under Rule 12bis.1, the Authority must, to the extent possible, take into account the results of the earlier search if it was carried out by the same Office as that which is acting as the International Searching Authority (Rule 41.1(i)). However, if the earlier search was carried out by another International Searching Authority or national (or regional) Office, the International Searching Authority may choose whether it takes into account the results of the earlier search (Rule 41.1(ii)). To the extent that the International Searching Authority takes such earlier search results into account, the International Searching Authority must reduce the search fee to the extent and under the conditions provided for in the agreement under Article 16(3)(b) (Rule 16.3). International Searching Authorities are free to decide the extent and conditions for such search fee reductions. For the full texts of the agreements under Article 16(3)(b) refer to https://www.wipo.int/en/web/pct-system/access/isa_ipea_agreements (also refer to paragraph 5.198).

The request form, Continuation of Box No. VII (item 1), includes an option for the applicant to request that the results of an earlier search be taken into consideration by the International Searching Authority and a similar option is included in ePCT. The applicant only needs to check the corresponding box in Continuation of Box No. VII (item 1) and identify the earlier application (whether national, regional or international) in respect of which the earlier search was carried by including the filing date, the filing number and the country of filing.

Rule 12bis.1(a)

In general, if the applicant has made a request for the results of an earlier search to be taken into account, he/she should – together with the international application and at the time of filing – provide the receiving

Office with a copy of the results of the earlier search. However, the applicant will not need to furnish a copy of the earlier search results in the following cases:

Rule 12bis.1(c)

— where the earlier search was carried out by the same Authority or Office as that which will act as the International Searching Authority;

Rule 12bis.1(b)

— where the earlier search was not carried out by the International Searching Authority indicated in Box No. VII of the request form but by the same Office as that which is acting as the receiving Office; in this case, the applicant can request the receiving Office to prepare and transmit the earlier search results directly to the International Searching Authority by marking the check-box provided in Continuation of Box No. VII (item 1) of the request form. This request may be subject to the payment of a fee;

Rule 12bis.1(d)

— where, although the earlier search was not carried out by the receiving Office or the International Searching Authority, a copy of the earlier search results is available to that Office or Authority in a form and manner acceptable to it, for example, from a digital library and the applicant indicated this fact as provided for in Continuation of Box No. VII (item 1) of the request form.

If the applicant wants the results of more than one search to be taken into account, the above-mentioned indications must be specified for each and every earlier search. In addition, where the applicant requests the International Searching Authority to take into account the results of more than one earlier search, the sheet of the request form containing the Continuation of Box No. VII, Use of Earlier Search and Classification Results, should be duplicated as many times as necessary and marked “continuation sheet of item 1 of Continuation of Box No. VII” to allow the applicant to comply with the requirements and provide the required information for each earlier application.

5.073A. May the International Searching Authority request the applicant to furnish any other documents in connection with an earlier search than those transmitted by the receiving Office?

Rule 4.12, Rule 12bis.2

Unless the applicant has done so already, the International Authority may invite the applicant (Form PCT/ISA/238) to furnish to it a copy of the earlier application, a translation (where required) of that earlier application into a language accepted by the International Searching Authority, a translation (where required) of the results of the earlier search into a language accepted by the International Searching Authority and/or a copy of any document cited in the results of the earlier search. However, the International Searching Authority may not require the applicant to furnish any or some of those documents in the following cases:

Rule 12bis.2(b)

— where the earlier search was carried out by the same Authority or Office as that which will act as the International Searching Authority;

Rule 12bis.2(c)

— where the applicant marks the check-box provided in Continuation of Box No. VII (item 1) of the request form stating that the international application is the same or substantially the same as the earlier application in respect of which the earlier search was carried out, except that it is filed in a different language, the International Searching Authority may not require a copy of the earlier application or a translation thereof;

Rule 12bis.2(b)

— where a copy of the earlier application or of any document cited in the results of the earlier search or a translation of the earlier application or a translation of the results of the earlier search are available to the International Searching Authority in a manner acceptable to it, and if the applicant has indicated so by marking the check-box provided in Continuation of Box No. VII (item 1) of the request form.

5.073B. Will the receiving Office also transmit the earlier search and classification results to the International Searching Authority where the applicant did not make a request to take into account the results of an earlier search?

Rule 23bis.2(a), Rule 41.2

Where the international application claims priority of an earlier application and the applicant did not make any indication in item 1 of Continuation of Box No. VII of the request form, the receiving Office is nevertheless required to transmit to the International Searching Authority a copy of the earlier search and classification results (unless such a copy is already available to the International Searching Authority) if the earlier application was filed with the same national or regional Office as that which is acting as

receiving Office, and that Office has carried out the search in respect of the earlier application. The receiving Office may transmit a copy of the earlier search and classification results if the earlier application was filed with a different Office but where the results of that earlier search and classification are nevertheless available to the receiving Office. The receiving Office is only obliged to transmit any earlier search and classification results which are available to it at the time of filing of the international application.

Rule 23bis.2(e)

Some Offices have notified the International Bureau (https://www.wipo.int/en/web/pct-system/texts/reservations/res_incomp) that the transmission of copies of earlier search and classification results without the authorization of the applicant is not compatible with their national law. Therefore, where the international application is filed with a receiving Office that has notified the International Bureau accordingly, the applicant may nevertheless authorize the receiving Office to transmit earlier search and classification results to the International Searching Authority by marking the first check-box in item 2.3 of Continuation of Box No. VII of the request form. Only the international applications filed with the following receiving Offices are concerned by this situation: the Australian Patent Office, the Finnish Patent and Registration Office (PRH), the Hungarian Intellectual Property Office (HIPO), the Industrial Property Office (Czechia), the Intellectual Property Office of Singapore, the Israel Patent Office, the Japan Patent Office (JPO), the Norwegian Industrial Property Office, the Swedish Intellectual Property Office (PRV) and the United States Patent and Trademark Office (USPTO).

Where the earlier search concerns an international application and that earlier search was carried out by a different International Searching Authority than the International Searching Authority indicated in Box No. VII of the request form, the applicant may authorize the receiving Office to transmit the earlier search and classification results to the International Searching Authority indicated in Box No. VII of the request form, by marking the second check-box in item 2.3 of Continuation of Box No. VII of the request form.

5.073C. May the applicant request the receiving Office not to transmit the earlier search results to the International Searching Authority?

Rule 23bis.2(b)

Some Offices have notified the International Bureau (refer to https://www.wipo.int/en/web/pct-system/texts/reservations/res_incomp) that they may, upon request of the applicant, decide not to transmit the results of an earlier search to the International Searching Authority. Where the international application is filed with an Office that has notified the International Bureau accordingly, namely, the Finnish Patent and Registration Office (PRH), the German Patent and Trade Mark Office and the Swedish Intellectual Property Office (PRV), the applicant may request the receiving Office not to transmit the earlier search results to the ISA, by marking the check-box in item 2.2 of Continuation of Box No. VII of the request form.

5.073D. Will the International Searching Authority take the results of an earlier search into account if the applicant has not made a request under Rule 4.12?

Rule 41.2

Where the international application claims the priority of an earlier application in respect of which a search has been carried out by the same Office that acts as International Searching Authority, the Authority is required to take the results of that earlier search into account when carrying out the international search. Where the receiving Office has transmitted to the International Searching Authority a copy of any earlier search or classification results, or where such a copy is otherwise available to it, for example, from a digital library, the International Searching Authority may take those results into account when carrying out the international search.

Box No. VIII: Declarations

5.074. What declarations may be referred to in Box No. VIII and included in Boxes Nos. VIII(i) to (v)?

The applicant may, for the purposes of the national law applicable in one or more designated States, include any of the following declarations under Rule 4.17:

Rule 4.17(i), Rule 51bis.1(a)(i)

Box No.VIII(i): declaration as to the identity of the inventor (This declaration need not be made if the name and address of the inventor are indicated in the request, that is, usually in Boxes No. II and/or III).

Rule 4.17(ii), Rule 51bis.1(a)(ii)

Box No.VIII(ii): declaration as to the applicant's entitlement, as at the international filing date, to apply for and be granted a patent. (This declaration does not apply to situations where the applicant's entitlement was acquired only after the international filing date.)

Rule 4.17(iii), Rule 51*bis*.1(a)(iii)

Box No.VIII(iii): declaration as to the applicant's entitlement, as at the international filing date, to claim priority of the earlier application. (This declaration does not apply to situations where the applicant's entitlement was acquired only after the international filing date.)

Rule 4.17(iv), Rule 51*bis*.1(a)(iv)

Box No.VIII(iv): declaration of inventorship (only for the purposes of the United States of America). (Submitting a declaration of inventorship during the international phase may be advantageous as inventors may be more difficult to be reached when the application enters the national phase).

Rule 4.17(v), Rule 51*bis*.1(a)(v)

Box No.VIII(v): declaration as to non-prejudicial disclosures or exceptions to lack of novelty.

5.075. What is the purpose of those declarations?

Rule 4.17, Rule 51*bis*.1, Rule 51*bis*.2

The purpose of declarations under Rule 4.17 is to enable applicants to comply with some of the national requirements of the designated Offices referred to in Rule 51*bis*.1 already during the international phase. The national laws of many designated Offices require the applicant to furnish documents or evidence relating to certain matters, for example the applicant's entitlement to apply for or be granted a patent, during the national phase. By submitting declarations under Rule 4.17 during the international phase, the applicant will generally not have to furnish any documents or evidence on the particular subject matter covered by the declaration to any designated Office which has such a requirement. For example, when the applicant furnishes a declaration under Rule 4.17(ii) during the international phase, he/she does generally not need to submit any further document or evidence relating to the applicant's entitlement to apply for or be granted a patent (for example an assignment document transferring rights from the inventor to the applicant) during the national phase before designated Offices which have such requirements under their national law (refer also to paragraph 5.081). The PCT does not require that declarations be submitted during the international phase, but if they are, they should be prepared using standardized wording (refer to paragraphs 5.076 to 5.078). No other declaration(s) may be included in any of Boxes VIII (i) to (v).

5.076. How must the declarations be presented in the request?

Rule 4.17, Section 211, Section 212, Section 213, Section 214, Section 215

Each declaration should be made on the appropriate sheet (Box No. VIII (i) to (v)); a "continuation sheet for declaration" (Continuation of Box No. VIII (i) to (v)) should be used in case any single declaration does not fit on the corresponding sheet. The declarations must be worded using the standardized wording provided for in Sections 211 to 215. Except in respect of the declaration of inventorship for the purposes of the designation of the United States of America (refer to paragraph 5.077), the applicant must choose those items and elements of the standardized wording that apply and place them in the appropriate order, taking into account the facts of the case, the chronology of events, etc. Detailed guidance on making these declarations is contained in the Notes to the request form. If no declaration is made, none of the declaration sheets should be included in the request.

5.077. Where can I find the text for the declaration of inventorship for the purposes of the designation of the United States of America?

Rule 4.17(iv), Section 214(a), Section 214(b)

The text of the declaration of inventorship for the purposes of the designation of the United States of America only is pre-printed in Box No. VIII(iv) of the request form since that text must be used as set out in Section 214, no parts may be omitted or presented in an order different from that used in the form. When this declaration is furnished after the international filing date, the PCT application number must be added to the declaration in the space provided for this purpose. In addition, when there are several inventors, all inventors must sign and date a complete declaration containing all inventors, even if they do not sign the same (copy of the) declaration, and the name, residence and address must be included for each inventor.

5.078. Must the standardized wordings of declarations always be used?

Rule 51*bis*.2

The standardized wording should always be used otherwise the designated Offices may require the applicant to furnish a new declaration or further evidence in the national phase. It should be noted, that even if a declaration has not been made using the standardized wording, the International Bureau will nevertheless publish it. It will then be up to each designated Office concerned to determine whether it can accept the declaration or not; in other words, the applicant will not have any guarantee that an Office will accept it. If the circumstances of a particular case are such that the standardized wording under Rule

4.17 is not applicable the applicant should consider complying with the requirement during the national phase.

5.079. Must a declaration under Rule 4.17 be signed?

Rule 4.17(iv), Section 214(a), Section 214(b)

Only the declaration of inventorship for the purposes of the designation of the United States of America must be signed and dated by all inventors. No other declaration must be signed.

5.080. Do all designated Offices accept declarations made under Rule 4.17 under their national law?

Rule 51bis.2

All designated Offices that have special national requirements allowed under the PCT accept such declarations. For more information about which States require the substantive information in each of the declarations, refer to “Special requirements of the Office” in the corresponding National Chapter (Summary) for the designated Office concerned, and National Phase, paragraphs 5.003 to 5.005.

5.081. May the designated Offices require further evidence during the national phase?

Rule 51bis.2

Where the declaration in question is one of those referred to in Rule 4.17(i) to (iv), the designated Office may not require any document or evidence relating to the subject matter of such declaration unless it may reasonably doubt the veracity of that declaration. Where the declaration in question is that referred to in Rule 4.17(v), the designated Office may require further documents or evidence, noting that the matter of non-prejudicial disclosures and exceptions to lack of novelty is a substantive matter of patentability. It is to be noted that the fact that a declaration is made does not, of itself, establish the matters declared: those matters remain for determination by the designated Offices in accordance with the applicable national law.

5.082. How do designated Offices receive the declarations relevant to them?

Rule 48.2(a)(x), Rule 48.2(b)(iv)

All declarations will be part of the published international application (refer to paragraph 9.015) and will therefore not be communicated separately to the designated Offices concerned.

5.083. What is the purpose of the check-boxes in Box No. VIII?

The check-boxes in Box No. VIII should be completed by the applicant to allow the receiving Office to verify that the declaration(s) referred to correspond to those made in Boxes No. VIII (i) to (v).

If the applicant chooses not to make any declaration at the time of filing the international application or if the declarations are not yet available at the time of filing, the request should not include the optional sheets for declarations and nothing should be marked in the check-boxes in Box No. VIII.

5.083A. Can a declaration referred to in Rule 4.17 be corrected or added during the international phase?

Rule 26ter.1

A declaration may be corrected, or a new (missing) declaration added, by a notice submitted to the International Bureau. For further details, refer to paragraphs 6.045 to 6.050. It should be noted, however, that a declaration may not be withdrawn once it has been filed.

Box No. IX: Check List

5.084. What is the purpose of the check list?

Rule 3.3, Section 313

Box No. IX should be completed by the applicant to allow the receiving Office to verify the completeness of the documents constituting and/or accompanying the international application and, in particular, to check whether the international application as filed actually contains the number of sheets in paper form indicated in items (a) to (f).

5.085

The actual number of sheets constituting each element of the international application as well as their total should be indicated (for the numbering of sheets, refer to paragraph 5.012). As for the sheets of the request, they are at least four in number (the first sheet, the second sheet, the third sheet and the last sheet). There may be more sheets if one or more optional sheets are used (the continuation sheet for Box No. III, the supplemental sheet, the declaration sheet or the continuation sheet for declaration).

5.086

Article 27(2), Rule 13*bis*, Rule 51*bis*.1, Section 209

For details on the completion of Box No. IX and on the kinds of items which may need to be filed with the international application, refer to the Notes to the request form. Also refer to the National Chapters for details concerning certain matters in relation to designated Offices.

5.087

Rule 3.3(a)(iii), Rule 8.2, Section 201

The applicant must further indicate in Box No. IX the number of that figure of the drawings (if any) which is suggested to accompany the abstract for publication (refer to paragraph 5.170) and preferably also the language of filing of the international application.

Box No. X: Signature of Applicant or Agent**5.088. Who must sign the international application and when?**

Article 14(1)(a)(i), Rule 4.1(d), Rule 4.15, Rule 26.2*bis*(a), Rule 51*bis*.1(a)(vi), Rule 90.3

The international application must be signed in Box No. X of the request by the applicant, or, where there are two or more applicants, by all of them. However, if there is more than one applicant, the receiving Office will not invite the applicant to furnish missing signatures when the request is signed by at least one of the applicants. Note, however, that in this case, any designated Office may in accordance with the applicable national law require the confirmation of the international application by the signature of any applicant for the designated State who has not signed the request. Subject to certain conditions indicated in paragraph 5.089, the request may be signed by the agent instead of the applicant(s).

5.089. May the international application be signed by an agent?

Rule 2.1, Rule 4.1(d), Rule 4.15, Rule 90.3, Rule 90.4, Rule 90.5

The international application may be signed by an agent, but in that case the agent must be appointed as such in a separate power of attorney signed by the applicant. The power of attorney has to be submitted to the receiving Office unless the receiving Office has waived the requirement to furnish a separate power of attorney (refer to paragraphs 5.041 to 5.051, and 11.001 to 11.014). If there are two or more applicants, the request may be signed by an agent on behalf of all or only some of them; in that case the agent must be appointed as such in one or more powers of attorney signed by the applicants on whose behalf the agent signs the application. Where a power of attorney appointing an agent who signs an international application is missing and the receiving Office requires that a power of attorney be furnished, the signature is treated as missing until the power of attorney is submitted. For the case of a general power of attorney, refer to paragraphs 5.043 and 11.009.

5.090. How must the international application be signed?

The signature should be executed indelibly in a dark color, preferably in black ink, so that it will appear clearly in a photocopy. The name of each person signing the international application should be indicated (preferably typewritten) next to the signature. Where the person signs on behalf of a legal entity, the capacity in which that person signs should also be indicated.

5.091. When may a seal be used instead of a signature?

Rule 2.3

In international applications filed with the China National Intellectual Property Administration (CNIPA), Japan Patent Office (JPO) and Ministry of Intellectual Property of the Republic of Korea (MOIP) as receiving Office, a seal may be used instead of a signature.

Notes to the Request Form**5.092. What are the Notes to the request form?**

The Notes to the request form are intended to facilitate the completion of that form. They indicate, in relation to each Box of that form, what indications are required and how they are to be made. The Notes are not required to be submitted with the request, however, and should not be numbered as part of the request.

Fee Calculation Sheet

5.093. What is the fee calculation sheet?

The fee calculation sheet is intended to help the applicant to calculate the total amount of fees payable to the receiving Office. The sheet is usually annexed to the request form which the applicant obtains from the receiving Office. It is not part of the form and is not counted as a sheet of the request, however, and its use is not mandatory. Nevertheless, it is strongly recommended that the applicant complete the fee calculation sheet and submit it to the receiving Office. This will help the receiving Office to verify the calculations and identify any errors. Where two or more International Searching Authorities are competent for searching the international application (refer to paragraph 7.002), the Authority which was chosen by the applicant and indicated in Box No. VII of the request form (refer to paragraph 5.072) should also be indicated in the fee calculation sheet, together with the amount of the applicable search fee (refer to paragraph 5.187). Refer to the Notes to the fee calculation sheet for details about completion of the sheet. For information about the payment of fees generally, refer to paragraphs 5.184 to 5.199.

THE DESCRIPTION

5.094. How must the description be drafted?

Article 5, Article 11(1)(iii)(d), Rule 5, Section 204

The description must disclose the invention in a manner sufficiently clear and complete for it to be carried out by a person skilled in the art. It must start with the title of the invention as appearing in Box No. I of the request. Rule 5 contains detailed requirements as to the “manner and order” of the description, which, generally, should be in six parts. Those parts should have the following headings: “Technical Field,” “Background Art,” “Disclosure of Invention,” “Brief Description of Drawings,” “Best Mode for Carrying Out the Invention” or, where appropriate (refer to paragraph 5.096), “Mode(s) for Carrying Out the Invention,” and “Industrial Applicability.”

5.095

The details required for the disclosure of the invention so that it can be carried out by a person skilled in the art depend on the practice of the national Offices. It is therefore recommended that due account be taken of national practice (for instance in Japan and the United States of America) when the description is drafted. The need to amend the description during the national phase (refer to paragraph 5.111 below) may thus be avoided.

5.096

Rule 5.1(a)(v)

What is said in paragraph 5.095 applies likewise to the need to indicate the best mode for carrying out the invention. If at least one of the designated Offices requires the indication of the best mode (for instance, the United States Patent and Trademark Office), that best mode must be indicated in the description.

5.097

A description drafted with due regard to what is said in paragraphs 5.094 to 5.096 will be accepted by all the designated Offices. It might require more care than the drafting of a national patent application, but certainly much less effort than the drafting of multiple applications, which is necessary where the PCT route is not used for filing in several countries.

5.098

The requirement of unity of invention is discussed, in connection with the claims, in paragraphs 5.114 to 5.123.

5.099. What special requirements apply to the sequence listing part of the description?

Annex C of the Administrative Instructions, Rule 12.1(d), Rule 5.2, Section 208, Section 513

Where the international application contains disclosure of a nucleotide and/or amino acid sequence required to be included in a sequence listing pursuant to Annex C of the Administrative Instructions, the description must contain a sequence listing part of the description which complies with the standard provided for in Annex C (WIPO Standard ST.26). Under WIPO Standard ST.26, the sequence listing must be filed in XML format. Any language-dependent free text in the sequence listing must be provided in a language accepted for that purpose by the receiving Office. If permitted by the receiving Office, the same language-dependent free text may be provided in two languages within the same sequence listing,

English and another language (refer to Annex C of the PCT Applicant's Guide for the requirements of each receiving Office). For further information relating to nucleotide and/or amino acid sequence listings, including those filed for the purposes of international search, refer below and to paragraphs 7.005 to 7.012.

5.100. How to best file an international application containing a sequence listing?

Annex C of the Administrative Instructions, Annex F of the Administrative Instructions, Rule 19.4(a)(ii-bis), Section 208, Section 702

An international application containing a sequence listing is best filed in electronic form, since the sequence listing must be filed in electronic form in XML format. The application should be filed in an electronic document format and/or by a means of transmittal accepted by the receiving Office for the purposes of filing international applications in electronic form (Annex F). Any receiving Office that does not accept the filing of sequence listings in XML format will transmit the international application to the International Bureau as receiving Office under Rule 19.4. The sequence listing must be prepared in accordance with Annex C of the Administrative Instructions (compliant with WIPO Standard ST.26), generated preferably using the WIPO Sequence software (refer to paragraph 5.104). Applicants are strongly discouraged from filing international applications with the main body on paper and the sequence listing separately in electronic form. For international applications filed on paper, the sequence listing in XML format must accompany the international application (e.g., on an electronic carrier).

5.101. How is the fee for filing sequence listings calculated?

Rule 13ter.1, Schedule of Fees, Section 707, Annex C of the Administrative Instructions

No page fees are payable for any sequence listing filed in XML format in accordance with WIPO Standard ST.26.

5.102. What happens if a separate electronic file appearing to be a disclosure of sequences is filed in a format other than XML?

Annex C of the Administrative Instructions

As explained in paragraphs 5.099 and 5.100, any sequence listing part of the description must be filed in XML complying with WIPO Standard ST.26. If at the time of filing the applicant included a separate electronic file disclosing sequences in a format other than XML (e.g., in PDF or ST.25 TXT), the receiving Office will invite the applicant to confirm whether the applicant wishes to add the content as sheets to the main part of the description. If this is the applicant's intention, the applicant must confirm to the receiving Office that the content of the file should form part of the description and if the file is not in the format accepted for the main part of the description, resubmit the content in such a format (e.g., PDF). Some receiving Offices may convert the file into the acceptable format directly and ask the applicant to confirm. Any sheets added to the main part of the description will be taken into account in the calculation of the international filing fee. The applicant may later amend the description (under Article 34 or at the time of national phase entry) to include a sequence listing part of the description complying with WIPO Standard ST.26. If the applicant fails to confirm or pay any applicable fee for sheets in excess of 30, the content of the file originally submitted will be disregarded and will not form part of the international application.

5.103. Do all receiving Offices accept the filing of sequence listings in electronic format?

Rule 19.4(a)(ii-bis)

Receiving Offices which are prepared to accept the filing of international applications in electronic format are indicated in Annex C. Any receiving Office which does not accept sequence listings filed in XML format will transmit the international application to the International Bureau as receiving Office under Rule 19.4.

5.104. Does the International Bureau recommend any software for the preparation of sequence listings in electronic format?

To ensure compliance with the prescribed standard, sequence listings should be created using WIPO Sequence (available for download from WIPO website at: <https://www.wipo.int/en/web/standards/sequence/index>).

5.105. What are the physical requirements for the description?

Rule 11, Section 109

Rule 11 lists the physical requirements which have to be met by an international application. The paper must be of A4 size, white and durable. The minimum margins must be 2 cm on the top, the bottom and the right side of the sheet, and 2.5 cm on the left side of the sheet. The margins should not exceed 3 cm on the bottom and the right side of the sheet and 4 cm on the top and the left side of the sheet. The margins must be completely blank, except that a file reference not exceeding 25 characters in length may

be placed by the applicant in the left-hand corner of the top margin within 1.5 cm from the top of the sheet. The file reference may be composed either of letters of the Latin alphabet or Arabic numerals, or both. The hyphen character (“-”) may be used as a separator between alphanumeric characters. Any text matter in the description must be in characters the capital letters of which are not less than 0.28 cm.

5.106. How should the pages and lines be numbered?

Rule 11.7, Rule 11.8, Rule 11.9, Section 207

The page number must be centered at the top or bottom of the sheet, but not in the 2 cm margin (that is, a page number, if at the top of the sheet, must be below the 2 cm margin, and if at the bottom of the sheet, above the 2 cm margin). It is strongly recommended that every fifth line of each sheet be numbered in the right half of the left margin. The description must be typewritten or printed. The typing must be 1½ spaced and in dark indelible color so as to permit direct reproduction. The capital letters of the characters must be a minimum of 0.28 cm high.

5.107. How are chemical or mathematical formulae to be represented?

Rule 11.9(b), Rule 11.10(b)

The description, the claims and the abstract may contain chemical or mathematical formulae. Such formulae may be written by hand or drawn if necessary but it is recommended that appropriate drafting aids or materials such as stencils or transfers be used. For practical reasons formulae may be grouped together on one or more sheets in the description and paginated with it. It is recommended in such cases that each formula be designated by a reference sign and the description should contain references to such formulae whenever necessary. Chemical or mathematical formulae may also be grouped together and be placed after the claims as drawings. In such a case, the chemical or mathematical formulae must be drawn to comply with the requirements for drawings and the sheets must be numbered as drawing sheets (refer to paragraph 5.157).

5.108

Rule 11.9(b), Rule 11.9(d), Rule 11.13(h)

Chemical or mathematical formulae must employ symbols in general use and must be drawn in such a way that they are completely unambiguous. Numerals, letters and signs which are not typed must be legible and identical in form in the various formulae, irrespective of the element of the international application in which they appear. Chemical or mathematical formulae appearing in the text of the international application must have symbols the capital letters of which are at least 0.28 cm high. Where they appear on sheets of drawings, these symbols must be at least 0.32 cm high. All mathematical symbols used in a formula which appear in a description or on sheets of drawings should be explained in the description, unless their significance is clear from the context. In any case, the mathematical symbols used may be collated in a list.

5.109. How are tables to be represented?

Rule 11.10(c), Rule 11.10(d)

For the sake of convenience, tables may be grouped together in one or more sheets of the description and paginated with it. If two or more tables are necessary, each should be identified by a Roman numeral (independently of the pagination of the description or drawings or of the figure numbering) or by a capital letter, or by a title indicating its contents, or by some other means. Each line and column in a table should begin with an entry explaining what it represents and, if necessary, the units used. As far as possible, all tables should be set out upright on the sheets. Where the tables cannot be presented satisfactorily in an upright position, they may be placed sideways, with the top of the tables on the left-hand side of the sheet.

5.110. How can obvious mistakes in the description be rectified?

Rule 91

The procedure for rectification of obvious mistakes is explained in paragraphs 11.033 to 11.044. The omission of an entire sheet of the description cannot be rectified without affecting the international filing date (refer to paragraphs 6.025 and 6.026). Changes other than the rectification of obvious mistakes are considered amendments (refer to paragraph 5.111).

5.111. Can the description be amended during the international phase?

Article 28, Article 34(2)(b), Article 41(1), Rule 52, Rule 78

The description can be amended during the international phase only if the applicant files a demand for international preliminary examination (refer to paragraph 10.001). The description can also be amended during the national phase before each designated or elected Office (refer to National Phase). Different provisions apply to amendment of the claims in the international phase - refer to paragraph 5.127.

THE CLAIMS

5.112. How must claims be drafted?

Article 611(1)(iii)(e), Rule 6.1, Rule 6.2, Rule 6.3, Rule 6.4

The claim or claims must “define the matter for which protection is sought.” Claims must be clear and concise. They must be fully supported by the description. Rule 6 contains detailed requirements as to the number and numbering of claims, the extent to which any claim may refer to other parts of the international application, the manner of claiming, and dependent claims. As to the manner of claiming, the claims must, whenever appropriate, be in two distinct parts; namely, the statement of the prior art and the statement of the features for which protection is sought (the characterizing portion).

5.113

Rule 6.4(a)

In principle, under the PCT, any dependent claim which refers to more than one other claim (multiple dependent claim) must refer to such claims in the alternative only, and multiple dependent claims cannot serve as a basis for any other multiple dependent claim. However, the national laws of most Contracting States permit a manner of claiming which is different from that provided for in the preceding sentence, and the use of that different manner of claiming is in principle also permitted under the PCT. For the purposes of those designated States where that different manner of claiming is not permitted, the applicant must decide which drafting style to adopt. If that different manner of claiming is used, amendments may need to be made to the claims during the national phase in those States which do not permit it. Moreover, the national Offices of such States, when they act as International Searching Authorities, may indicate under Article 17(2)(b) that a meaningful search could not be carried out if that different manner of claiming is used (refer to paragraph 7.014).

5.114. What is meant by the requirement of “unity of invention”?

Article 3(4)(iii), Rule 13, Rule 45bis.6(a)

An international application should be drafted so that the claims relate to only one invention or to a group of inventions so linked as to form a single general inventive concept. This principle is laid down in Article 3(4)(iii) and Rule 13. Observance of this requirement is checked by neither the receiving Office nor the International Bureau, but it is checked by, and is important to the procedure before, the International Searching Authority (refer to paragraphs 7.015 to 7.021), the Authority specified for supplementary search (refer to paragraph 8.044) and the International Preliminary Examining Authority (refer to paragraph 10.072), and may be relevant in the national phase before the designated and elected Offices. Since separate searches and examinations are required for distinctly different inventions, additional fees are required if the international search or international preliminary examination is to cover two or more inventions (or groups of inventions linked as just described). (For how the issue of unity of invention affects the supplementary international search, refer to paragraph 8.043.)

5.115. How is the requirement of unity of invention satisfied?

Rule 13.2, Rule 13.3, Section 206

Unity of invention is present only when there is a technical relationship among the claimed inventions involving one or more of the same or corresponding special technical features. The expression special technical features means those technical features that define a contribution which each of the claimed inventions, considered as a whole, makes over the prior art. The determination whether a group of inventions is so linked as to form a single inventive concept is made without regard to whether the inventions are claimed in separate claims or as alternatives within a single claim. An initial determination of unity of invention based on the assumption that the claims avoid the prior art will be made before the prior art search but may be reconsidered on the basis of the results of the search. Annex B of the Administrative Instructions contains detailed criteria governing the determination whether an international application complies with the requirement of unity of invention under Rule 13. The following paragraphs set out a summary of some of the more important criteria discussed in that Annex. Illustrations of three particular situations are explained in detail below:

- (i) combinations of different categories of claims (for example - product, process, use, and apparatus or means),
- (ii) so-called Markush practice and
- (iii) the case of intermediate and final products.

5.116. May different categories of claims be combined in an international application?

The method for determining unity of invention contained in Rule 13 is construed as permitting, in particular, the inclusion of any one of the following combinations of claims of different categories in the same international application:

- (i) in addition to an independent claim for a given product, an independent claim for a process specially adapted for the manufacture of the said product, and an independent claim for a use of the said product, or
- (ii) in addition to an independent claim for a given process, an independent claim for an apparatus or means specifically designed for carrying out the said process, or
- (iii) in addition to an independent claim for a given product, an independent claim for a process specially adapted for the manufacture of the said product and an independent claim for an apparatus or means specifically designed for carrying out the said process,

it being understood that a process is specially adapted for the manufacture of a product if it inherently results in the product and that an apparatus or means is specifically designed for carrying out a process if the contribution over the prior art of the apparatus or means corresponds to the contribution the process makes over the prior art.

5.117

An apparatus or means is considered to be specifically designed for carrying out a claimed process if the contribution over the prior art of the apparatus or means corresponds to the contribution the process makes over the prior art. Consequently, it would not be sufficient that the apparatus or means is merely capable of being used in carrying out the claimed process.

5.118. What is permitted under the “Markush Practice”?

Rule 13.2 also governs the Markush practice wherein a single claim defines alternatives of an invention - a common drafting practice for inventions in the chemical field. In this special situation, the requirement of a technical interrelationship and the same or corresponding special technical features as defined in Rule 13.2, is considered to be met when the alternatives are of a similar nature.

5.119

When the Markush grouping is for alternatives of chemical compounds, they are regarded as being of a similar nature where the following criteria are fulfilled:

- (i) all alternatives have a common property or activity, and
- (ii) (a) a common structure is present - that is, a significant structural element is shared by all of the alternatives, or
- (b) in cases where the common structure cannot be the unifying criteria, all alternatives belong to a recognized class of chemical compounds in the art to which the invention pertains.

5.120

When dealing with alternatives, if it can be shown that at least one Markush alternative is not novel over the prior art, the question of unity of invention will be reconsidered by the examiner. Reconsideration does not necessarily imply that an objection of lack of unity will be raised.

5.121. Can both intermediate and final products be claimed?

The situation involving intermediate and final products is also governed by Rule 13.2. The term intermediate is intended to mean intermediate or starting products. Such products have the ability to be used to produce final products through a physical or chemical change in which the intermediate loses its identity. Unity of invention should be considered to be present in the context of intermediate and final products where the following two conditions are fulfilled:

- (i) the intermediate and final products have the same essential structural element, in that:
 - (a) the basic chemical structures of the intermediate and the final products are the same, or
 - (b) the chemical structures of the two products are technically closely interrelated, the intermediate incorporating an essential structural element into the final product, and

(ii) the intermediate and final products are technically interrelated, this meaning that the final product is manufactured directly from the intermediate or is separated from it by a small number of intermediates all containing the same essential structural element.

5.122

Unity of invention may also be considered to be present between intermediate and final products of which the structures are not known - for example, as between an intermediate having a known structure and a final product the structure of which is not known, or as between an intermediate of unknown structure and a final product of unknown structure. In order to satisfy unity in such cases, there must be sufficient evidence to lead one to conclude that the intermediate and final products are technically closely interrelated as, for example, when the intermediate contains the same essential element as the final product or incorporates an essential element into the final product.

5.123. Must all designated or elected Offices accept an international application that complies with the unity of invention requirements laid down in Rule 13 of the PCT?

Article 2(x), Article 27(1), Rule 13

An international application which complies with the unity of invention requirements laid down in Rule 13 must be accepted by all the designated and elected Offices, since Article 27(1) does not allow any national law (as defined in Article 2(x)) to require compliance with requirements relating to the contents of the international application different from or additional to those provided for in the PCT.

5.124. What are the physical requirements for the claims?

Rule 11, Rule 11.4(a)

The physical requirements are the same as those for the description as outlined in paragraph 5.105. Note that the claims must commence on a new sheet.

5.125. May claims include tables?

Rule 11.10(c)

The claims may include tables if this is desirable in view of the subject matter involved. In this case, the tables must be included in the text of the relevant claim; they may not be annexed to the claims nor may reference be made to tables contained in the description (refer to paragraph 5.109).

5.126. How can obvious mistakes in the claims be rectified?

Rule 91

The procedure for rectification of obvious mistakes is explained in paragraphs 11.033 to 11.044. The omission of an entire sheet of the claims cannot be rectified without affecting the international filing date (refer to paragraphs 6.025 and 6.026). It is recommended that a request for the rectification of obvious mistakes in the claims be made only if the mistake is liable to affect the international search; otherwise, the rectification should be made by amending the claims (refer to paragraph 5.127).

5.127. Can the claims be amended during the international phase?

Article 19, Article 28, Article 34(2)(b), Article 41(1)

Yes, the claims may be amended under Article 19 on receipt of the international search report (refer to paragraphs 9.004 to 9.011); they may also be amended during international preliminary examination if the applicant has filed a demand (refer to paragraphs 10.024 and 10.067) and during the national phase.

THE DRAWINGS

5.128. When is the inclusion of drawings required in the international application?

Article 3(2) Article 7, Rule 7.1

The international application must contain drawings when they are necessary for the understanding of the invention. Moreover where, without drawings being actually necessary for the understanding of the invention, the nature of the invention admits of illustration by drawings, the applicant may include such drawings and any designated Office may require the applicant to file such drawings during the national phase.

5.129. What is considered to be a drawing?

Rule 7.1

Perspectives, exploded views, sections and cross-sections, and details on a different scale are all considered to be drawings. Drawings also cover flow sheets and diagrams, such as functional diagrams

and graphic representations of a given phenomenon which express the relationship between two or more parameters.

5.130

Rule 11.10

Where chemical or mathematical formulae and tables are included in the description, claims or abstract, they are not considered to be drawings and are thus not subject to the same requirements as drawings (refer to paragraphs 5.131 to 5.133). However, such graphic forms may be submitted as drawings, in which case they are subject to the same requirements as drawings.

5.131. How must the drawings be presented?

Rule 11.10, Rule 11.11, Rule 11.13

Drawings must be presented on one or more separate sheets. They may not be included in the description, the claims or the abstract. They may not contain text matter, except a single word or words when absolutely indispensable. Rules 11.10 to 11.13 contain detailed requirements as to further physical requirements of drawings. Any drawing meeting those requirements must be accepted in the national phase by the designated Offices. Drawings newly executed according to national standards may not be required during the national phase if the drawings filed with the international application comply with Rule 11. A file reference may be indicated on each sheet of the drawings as for the description (refer to paragraph 5.105).

5.132

Rule 11.2(a)

The drawings must be so presented as to admit of direct reproduction by photography, electrostatic processes, photo offset and microfilming, in any number of copies.

5.133

Rule 11.2(a), Rule 11.2(b), Rule 11.2(c), Rule 11.3, Rule 11.5, Rule 11.6(c), Rule 11.12

Drawings must be on sheets of A4 paper (29.7 cm x 21 cm) which must be flexible, strong, white, smooth, non-shiny and durable. The sheets must be free from creases and cracks; they must not be folded. Each sheet must be reasonably free from erasures and must be free from alterations, overwriting and interlineations. Only one side of each sheet may be used. The usable surface of sheets must not exceed 26.2 cm x 17.0 cm. The sheets must not contain frames around the usable surface. The minimum margins which must be observed are: top and left side: 2.5 cm; right side: 1.5 cm; bottom: 1.0 cm.

5.134. Should figures of drawings be arranged in a particular manner?

Rule 11.10(d), Rule 11.13(j)

All the figures constituting the drawings must be grouped together on a sheet or sheets without waste of space, but clearly separated from each other. However, figures should not be separated by lines.

5.135

Rule 11.10(d), Rule 11.13(j)

As far as possible, all figures of the drawings should be set out upright on the sheets. Where the drawings cannot be presented satisfactorily in an upright position, they may be placed sideways, with the tops of the drawings on the left-hand side of the sheet. Thus, a figure which is broader than it is high, may be set out so that the bottom of the figure lies parallel to and along the right-hand side of the sheet. In this case, if other figures are drawn on the same sheet, they should be set out in the same way, so that all the figures on a single sheet lie in the same position. Similar considerations apply to tables and chemical and mathematical formulae (refer to paragraphs 5.107 and 5.109).

5.136

The drawings should contain as many figures as may be necessary to adequately show the claimed invention. The views may be plan, elevation, section, or perspective views; detail views of portions or elements, on a larger scale if necessary, may be used. Exploded views, with the separated parts of the same figure embraced by a bracket, to show the relationship or order of assembly of various parts, are permissible. One figure should not be placed upon or within the outline of another figure.

5.137

Where an invention concerns improvements to details of existing devices and machines, a general figure may be desirable to indicate where on the device or machine the improvement is situated, in order to ensure that the drawings are readily understood. If, for example, the invention relates to the fixing of an elastic diaphragm in a diaphragm pump, a figure - generally the first - may represent the entire pump, as

improved by the invention, the details of which will then be given in the other figures. On the other hand, it would be unnecessary to represent the entire machine comprising this diaphragm, for example the automobile in which the diaphragm pump circulates the fuel.

5.138

It is sufficient to choose the views which are the most representative and contain the minimum of hidden parts, so that the object is completely and unambiguously defined by means of the smallest possible number of views. To this end, it is sometimes sufficient to replace the various views of an object by a single perspective view. The simplest view compatible with the desired result should be chosen.

5.139

Rule 11.13(i)

Where figures on two or more sheets form in effect a single complete figure, the figures on the several sheets must be so arranged that the complete figure can be assembled without concealing any part of any of the figures appearing on the various sheets. Partial figures drawn on separate sheets must always be capable of being linked edge to edge, that is to say, no partial figure may contain parts of another partial figure. A very long figure may be divided into several parts placed one above the other on a single sheet. However, the relationship between the different parts must be clear and unambiguous. It is therefore recommended that a smaller scale figure be included showing the whole formed by the partial figures and indicating the positions of the parts shown.

5.140. How must drawings be numbered?

Rule 11.7, Section 207(b)

All sheets of drawings must be numbered in the center of either the top or the bottom of each sheet but not in the margin (as for the sheets of the description - refer to paragraph 5.106) in numbers larger than those used as reference signs in order to avoid confusion with the latter. For drawings, a separate series of numbers is to be used (refer to paragraph 5.012). The number of each sheet of the drawings must consist of two Arabic numerals separated by an oblique stroke, the first being the sheet number and the second being the total number of sheets of drawings. For example, 2/5 would be used for the second sheet of drawings where there are five sheets in all and 1/1 would be used in the case of a single sheet.

5.141

Rule 11.13(k), Rule 49.5(f)

Different figures on the sheets of drawings must be numbered in Arabic numerals consecutively and independently of the numbering of the sheets and, if possible, in the order in which they appear. The numbers of the figures should be preceded by the expression Fig., whatever the language of the international application. Where a single figure is sufficient to illustrate the claimed invention, it should not be numbered and the abbreviation Fig. should not appear. Numbers and letters identifying the figures must be simple and clear and may not be used in association with brackets, circles, or inverted commas, except as regards partial figures intended to form one complete figure, irrespective of whether they appear on one or several sheets. In this case the complete figure may be identified by the same number followed by a capital letter (for example, Fig. 7B).

5.142

The different figures should preferably be set out, as far as possible, on each sheet in ascending numerical order from left to right and from top to bottom. If one of two figures illustrates on a larger scale a detail from the other, each figure should be numbered separately, and if possible, consecutively.

5.143. How should drawings be executed?

Rule 11.13

The drawings must be executed in durable, black, uniformly thick and well-defined lines and strokes. In all cases, the thickness of the lines and strokes must take into account the scale, nature, execution and perfect legibility of the drawing and of the reproductions. All lines in the drawings must, ordinarily, be drawn with the aid of a drafting instrument, except those which by their nature do not permit the use of such instruments, for example, irregular diagrams, ornamental structures and curved reference lines (refer to paragraph 5.145).

5.144. May lines of different thicknesses be used in the same drawing?

Lines and strokes of different thicknesses may be used in the same drawing where different thicknesses have a different meaning. One could, for instance, use:

— a continuous thick line for edging and outlining views and cross-sections;

- a continuous thin line for reference lines (refer to paragraph 5.145 for further details), hatching, outlining parts of adjoining elements, fictitious lines of intersection of surfaces connected by curved or rounded edges;
- a continuous thin line drawn freehand for delimiting views, part sections or interrupted views;
- a thin broken line made up of short dashes for hidden edges and contours;
- a dot-dash thin line for axes and planes of symmetry, extreme positions of movable elements, in front of a cross-section;
- a thin line terminating in two thick lines for outlines of cross-sections.

5.145. How should reference lines be shown?

Reference lines (also referred to as leading lines), that is, lines between the reference signs (for example, reference numerals) and the details referred to, may be straight or curved and should be as short as possible. They must originate in the immediate proximity of the reference sign and extend to the feature indicated. Reference lines for certain reference signs may be omitted. Reference signs of this type, which are not connected to anything, will then indicate the surface or cross-section on which they are placed. In such cases the reference sign may be underlined to make it quite clear that the line has not been left out by mistake. Reference lines must be executed in the same way as other lines in the drawing (refer to paragraph 5.143).

5.146. May I use arrows in drawings?

Arrows may be used at the end of the reference lines provided that their meaning is clear. They may indicate a number of points:

- (i) a freestanding arrow indicates the entire section towards which it points;
- (ii) an arrow touching a line indicates the surface shown by the line looking along the direction of the arrow;
- (iii) arrows may also be used in appropriate cases to show the direction of movement.

5.147. How are cross-sections to be represented?

Rule 11.13(b)

In making and representing cross-sections, certain conditions must be observed with regard to the indication and identification of the figures concerned and how they are to be represented, as more fully explained in paragraphs 5.148 and 5.149.

5.148

Where a figure is a cross-section on another figure, the latter should indicate the position of the section and may indicate the viewing direction by arrows at each end. In addition, in order to allow each sectional figure to be quickly identified, especially where several cross-sections are made on the same figure, each end of the cross-section line should be marked on the diagram with the same single Arabic or Roman numeral which identifies the figure in which the section is illustrated. A cross-section represents that part of an object which is situated on a cutting surface. In industrial drawings, the cross-section is that part of the object which is behind the cutting surface from the point of view of the person looking at it. Cutting surfaces are generally plane surfaces and if they are not, they must be defined precisely. Cross-sections must always follow the cutting surface, whatever it may be.

5.149

A cross-section must be set out and drawn in the same manner as a normal view whose parts in cross-section are hatched with regularly spaced parallel oblique strokes, the space between strokes being chosen on the basis of the total area to be hatched. Hatching should not impede the clear reading of the reference signs and reference lines. Consequently, if it is not possible to place reference signs outside the hatched area, the hatching may be broken off wherever reference signs are inserted. Certain types of hatching may be given a specific meaning. The hatching should be at a substantial angle to the surrounding axes or principal lines, preferably 45°. The various parts of a cross-section of the same item should be hatched in the same manner. The hatching of juxtaposed different elements should be angled in a different way. In the case of large areas, hatching can be confined to an edging drawn around the inside of the outline of the area to be hatched.

5.150. What should be the scale of figures of the drawings?

Rule 11.13(c)

The scale of the figure should be such that all the essential details can be clearly distinguished in a linear reduction in size to two-thirds. In exceptional cases, where required, the scale of the drawing may be graphically represented. Indications such as actual size or scale $\frac{1}{2}$ on the drawings or in the description, are not permitted, since these lose their meaning with reproduction in different format.

5.151

Rule 11.13(g)

Each element of each figure must be in proportion to each of the other elements in the figure, except where the use of a different proportion is indispensable for the clarity of the figure. As a preferred alternative to a difference in proportion within one figure for the purpose of achieving the necessary clarity, a supplementary figure should be added giving a larger scale illustration of the element of the initial figure. In such cases, it is recommended that the enlarged element shown in the second figure be surrounded by a finely drawn or dot-dash circle in the first figure pinpointing its location without obscuring the figure.

5.152. How should numbers, letters, reference signs and like indications be presented and applied to drawings?

Rule 11.13(e)

Numbers, letters and reference signs and any other data given on the sheets of drawings, such as the numbering of figures, and of the sheets of the drawings, acceptable text matter, graduations on scales, etc., must be simple and clear, and not used in association with any brackets, inverted commas, circles or outlines whatsoever. Signs indicating minutes, seconds or degrees are permitted. Numbers, letters and reference signs should be laid out in the same direction as the diagram so as to avoid having to rotate the sheet. Such numbers, letters and reference signs should not be so placed in the closed and complex parts of the drawings as to interfere with a thorough comprehension of the same, and therefore should rarely cross or mingle with the lines. As a general rule, numbers, letters and reference signs should be placed as closely as possible to the part in question.

5.153

Rule 11.13(h)

A minimum size of 0.32 cm is required for all numbers and letters used on the drawings so that their reduction in size to two-thirds remains easily legible. The Latin alphabet should normally be used for letters. The Greek alphabet is to be accepted, however, where it is customarily used, for example, to indicate angles, wavelengths, etc.

5.154

Rule 11.13(l)

Reference signs are to be used in a manner which is consistent as between the description, claims and drawings. In particular, reference signs not mentioned in the description must not appear in the drawings, and *vice versa*. Features of a drawing should not be designated by a reference sign in cases where the feature itself has not been described. This situation may arise as a result of amendments to the description involving the deletion of pages or whole paragraphs. One solution would be to delete reference signs on the drawing which have been deleted in the description. Where for any reason a figure is deleted, all reference signs relating solely to that figure appearing in the description and claims should also be deleted.

5.155

Rule 11.13(m)

The same features, when denoted by reference signs, must, throughout the international application, be denoted by the same signs. However, where several variants or embodiments of a claimed invention are described, each with reference to a particular figure, and where each variant contains features whose function is the same or basically the same, the features may, if this is indicated in the description, be identified by reference numbers made up of the number of the figure to which it relates followed by the number of the feature, which is the same for all variants, so that a single number is formed. For example, the common feature "15" would be indicated by "115" in Fig. 1, while the corresponding feature would be indicated by "215" in Fig. 2, thereby allowing the individual feature and the figure on which it is to be considered to be indicated at the same time. Complex cases involving many pages of drawings may be made easier to read if, when the individual variants or embodiments are described with reference to particular groups of figures, the common reference sign is prefixed by the number of the particular variant or embodiment to which it relates; however, this should, if used, be explained in the description.

5.156. May drawings contain text matter?

Rule 11.11

The drawings must not contain text matter, except a single word or words when absolutely indispensable, such as “water”, “steam”, “open”, “closed”, “section on AB” and in the case of electric circuits and block schematic or flow sheet diagrams, a few short catch words indispensable for understanding. Significant amounts of text matter should be avoided in the drawings as this can cause difficulties not only in understanding but also in translation. Any words used must be so placed that if translated, they may be pasted over without interfering with any lines of the drawings.

5.157. May symbols be used in drawings?

Rule 10.1(d), Rule 10.1(e)

Known devices may be illustrated by symbols which have a universally recognized conventional meaning and are generally accepted in the art provided no further detail is essential for understanding the subject matter of the claimed invention. Other signs and symbols may be used provided that they are not likely to be confused with existing conventional symbols, that they are readily identifiable, that is, simple, and providing that they are clearly explained in the text of the description. Different types of hatching may also have different conventional meanings as regards the nature of a material seen in cross-section.

5.158. Is the use of shading permitted?

The use of shading in figures is allowed provided this assists in their understanding and is not so extensive as to impede legibility. Shading may, for instance, be used to indicate the shape of spherical, cylindrical, conical elements, etc. Flat parts may also be lightly shaded. Such shading is allowed in the case of parts shown in perspective but not for cross-sections. Only spaced lines may be used for shading, not fully blacked out areas. These lines must be thin, as few in number as possible and they must contrast with the rest of the drawings.

5.159. May a photograph or color drawing be presented?

The PCT makes no provision for photographs or color drawings. Nevertheless, they may be submitted where it is impossible to present in a black and white drawing what is to be shown (for instance, crystalline structures). Where, exceptionally, photographs and/or color drawings are submitted, they must be on sheets of A4 size and respect the minimum margins (refer to paragraph 5.133). While the receiving Office will not necessarily require replacement sheets where photographs and/or color drawings are submitted, for international publication purposes, all images will be converted to black and white (not greyscale). As a result, details may be lost which could impact the disclosure of the invention in the international application and affect the processing of the international application in the international and the national phase. The filing software accepted by some receiving Offices allows for the specific indication that photographs and/or color drawings are filed as part of the international application. Such indications will trigger a notice on the front page of the published international application to indicate that the original drawings are available on PATENTSCOPE, which may assist national phase processing in Offices where color drawings are accepted. However, it will not overcome the need to provide true black and white drawings to other Offices when required, representing the color images without adding subject matter.

5.160. May a list of reference signs used in the drawings be included in the description?

Rule 11.13(n)

In the case of international applications dealing with complex subjects and incorporating a large number of drawings, a separate sheet listing all reference signs may be included at the end of the description as a part thereof. This list may take whatever form is appropriate and contain all the reference signs together with the designation of the features which they denote. This method could have the advantage of allowing an easier reference to the meaning of the various reference signs employed and understanding of the drawings.

5.161. How can obvious mistakes in the drawings be rectified?

Rule 91

The procedure for rectification of obvious mistakes is explained in paragraphs 11.033 to 11.044. The omission of an entire sheet of drawings cannot be rectified without affecting the international filing date (refer to paragraphs 6.025(i)(b) and 6.026). Changes other than the rectification of obvious mistakes are considered amendments (refer to paragraph 5.162).

5.162. Can the drawings be amended during the international phase?

Article 28, Article 34(2)(b), Article 41(1)

The drawings can be amended during the international phase only if the applicant files a demand for international preliminary examination (refer to paragraph 10.001). The drawings can also be amended during the national phase.

5.163

As regards the figure or, exceptionally, figures to accompany the abstract, refer to paragraph 5.171.

THE ABSTRACT

5.164. What is the use of the abstract?

Article 3(3), Rule 8.3

The abstract serves as a scanning tool for the purposes of searching in the particular art and especially assists the scientist, engineer or researcher in formulating an opinion on whether there is a need to consult the international application itself. It merely serves the purpose of technical information and cannot be taken into account for any other purpose, particularly not for the purpose of interpreting the scope of the protection sought.

5.165. What content should the abstract normally contain?

Rule 8.1(a)

The abstract should consist of a summary of the disclosure as contained in the description, the claims, and any drawings. It should indicate the technical field to which the invention pertains and should be drafted in a way which allows a clear understanding of the technical problem, the gist of the solution to that problem through the invention, and the principal use or uses of the invention. Where applicable, it should also contain the chemical formula which, among all the formulae contained in the international application, best characterizes the invention. The abstract should be primarily related to what is new in the art to which the invention pertains. WIPO Standard ST.12/A provides more detailed guidance in this respect.

5.166. If the invention is in the nature of a modification to an apparatus, process, product or composition, what should the abstract contain?

If the invention is in the nature of a modification to an apparatus, process, product or composition, the abstract should be directed to the technical disclosure of the modification. If the invention is of a basic nature, the entire technical disclosure may be new in the art and the abstract should be directed to the entire disclosure. If an international application relating to a product, particularly a compound or composition, also contains significant disclosure of its method of preparation or use, this matter should also be abstracted. If the disclosure involves alternatives, the abstract should deal with the preferred alternative and identify the others if this can be done succinctly; if this cannot be done, it should mention that they exist and whether they differ substantially from the preferred alternative.

5.167. What should the abstract contain?

Where applicable, and provided the international application contains the information, the abstract should include at least the following: (1) if the invention is a machine, apparatus, or system, its organization and operation; (2) if the invention is an article, its method of making; (3) if the invention is a chemical compound, its identity and preparation; (4) if the invention is a mixture, its ingredients; (5) if the invention is a process, the steps. Extensive mechanical and design details of apparatus should not be given.

5.168. What should the abstract contain in case of chemical inventions for compounds or compositions?

Rule 8.1(a)(ii)

With regard particularly to chemical inventions for compounds or compositions, the general nature of the compound or composition should be given as well as the use thereof, for example, the compounds are of the class of alkyl benzene sulfonyl ureas, useful as oral anti-diabetics. Exemplification of a class should be by a typical example. For processes, the type of reaction, reagents and process conditions should be stated, generally illustrated by a single example. Wherever applicable, the chemical formula should be given which, among all the formulae contained in the international application, best characterizes the invention.

5.169. What should the abstract not contain?

Rule 8.1(c)

The abstract must not contain statements on the alleged merits or value of the claimed invention or on its speculative application.

5.169A. How long should the abstract be?

Rule 8.1(b)

The abstract must be as concise as the disclosure permits. Phrases should not be used which can be implied, such as This disclosure concerns, The invention defined by this disclosure and This invention relates to. If it is drafted in English, it should preferably be in the range of 50 to 150 words. The same applies to the translation in English if the abstract is drafted in a language other than English.

In order to provide guidance to applicants in preparing abstracts when they are drafted in languages other than English, the International Bureau has analyzed the abstracts of past international applications. That analysis shows that, on average, if the abstract drafted in one of the following languages of publication falls into the corresponding range of number of words or characters, when it is translated into English, that translation will likely be within the range of 50 to 150 words: Arabic, 35 to 110 words; Chinese, 80 to 240 characters; French, 50 to 150 words; German, 40 to 120 words; Japanese, 100 to 300 characters; Korean, 30 to 130 words; Portuguese, 50 to 150 words; Russian, 35 to 110 words; and Spanish, 50 to 150 words.

5.170. When should a figure be suggested to accompany the abstract?

Rule 3.3(a)(iii), Rule 8.2

Where the international application contains drawings, the applicant should indicate, in the check list of the request, the number of the figure in the drawings which the applicant suggests should be published with the abstract.

5.171. Which figure should accompany the abstract?

The figure illustrating the abstract must be the figure which best characterizes the claimed invention and must be chosen from the drawings accompanying the international application. Only one figure should generally be indicated. The abstract may exceptionally be illustrated by more than one figure where necessary information cannot be otherwise conveyed. A figure containing significant amounts of text matter should be avoided as text can be difficult to read when reduced to the size of the front page drawing to accompany the abstract. In addition, large amounts of text in the figure to accompany the abstract can impede the understanding of the invention given that translated text in a figure is placed below or at the side of the drawing. If none of the figures is found useful for the understanding of the abstract, no figure need be indicated in the check list. The figure or figures that will accompany the abstract at the time the international application is published may not be included in the abstract.

5.171A. Should the abstract contain reference signs?

Rule 8.1(d)

The abstract should be clear and easy to understand. Where the international application contains drawings, each main technical feature mentioned in the abstract and illustrated by a drawing should be followed by a reference sign, placed between parentheses. The reference numerals used in the abstract must correspond to those indicated in the relevant figures.

5.172. How must the abstract be presented?

Section 207, Rule 11

The abstract must be presented on a separate sheet which must appear after the claims and be numbered accordingly (refer to paragraph 5.012). It must comply with the same physical requirements as those applicable for the description (refer to paragraph 5.105).

5.173. What happens if the abstract is missing or defective?

Article 14(1)(a)(iv), Article 14(1)(b), Rule 26.2, Rule 38.2, Rule 38.3

Where the receiving Office finds that the abstract is missing, it invites the applicant to furnish it within a time limit of two months from the date of the invitation to correct. The international application can be considered withdrawn if no abstract is furnished to the receiving Office within the time limit fixed. Where the receiving Office has not invited the applicant to furnish an abstract, the International Searching Authority establishes one. The same applies where the abstract does not comply with the requirements outlined in the preceding paragraphs (also refer to paragraph 7.022). Where the abstract is established

by the International Searching Authority, the applicant may submit comments on it within one month from the date of mailing of the international search report.

5.174. Can an abstract be corrected even if the International Searching Authority has already approved it?

Rule 38.3

The applicant is entitled, until the expiration of one month from the date of mailing of the international search report, to submit to the International Searching Authority proposed modifications of the abstract. It will be up to the Authority to decide whether to modify the abstract accordingly.

OTHER FORMAL REQUIREMENTS

5.175. What other formal requirements does the international application have to meet?

Article 21(6), Rule 9

The international application may not contain matter contrary to morality or public order, disparaging statements or obviously irrelevant or unnecessary matter. When the receiving Office, the International Searching Authority, the Authority specified for supplementary search or the International Bureau note lack of compliance with the prescriptions of Rule 9, the Office or Authority may suggest that the applicant correct the international application accordingly. For the procedure to correct a defect under Rule 9, refer to paragraph 6.052.

5.176

Rule 10

There are certain requirements as to the technical terminology and signs to be used (metric system, etc.). They are specified in Rule 10. The use of such prescribed technical terminology will be accepted by all designated Offices.

5.177. Are there any physical requirements for the international application?

Article 3(4)(ii), Article 14(1)(a)(v), Rule 11

The international application must comply with certain physical requirements, such as requirements concerning fitness for reproduction, the paper to be used, the manner of writing (generally typewritten or printed), etc. The details are spelled out in Rule 11. They are, in general, very similar to the requirements applied by the major Patent Offices for national applications (and by the Eurasian Patent Office and the European Patent Office for Eurasian and European patent applications, respectively).

5.178. Can I indicate a name or address in the request form in characters other than those of the Latin alphabet?

Rule 4.16

Where any name or address is written in characters other than those of the Latin alphabet (for example, Chinese, Cyrillic or Japanese), it must be transliterated or translated into English. For details, refer to Rule 4.16.

5.179. In how many copies must an international application be filed?

Rule 11.1(a), Rule 11.1(b), Rule 21

An international application, and, where applicable, a translation of the international application, must be filed in one, two or three copies, depending on the requirements of the receiving Office. Annex C contains the relevant information. Also refer to Rule 21.

5.180

Article 12, Rule 21.1, Rule 22.1(a), Rule 23.1(a), Section 305

It is to be noted that there must eventually be three copies of every international application: one is kept by the receiving Office (the home copy), one is transmitted by the receiving Office to, and is kept by, the International Bureau (the record copy), and one is transmitted by the receiving Office to, and kept by, the International Searching Authority (the search copy). If less than the required number of copies is filed by the applicant (refer to paragraph 5.179), the receiving Office is responsible for preparing the additional copies and may charge a fee to the applicant.

5.181. In which cases must I furnish a translation of the international application?

Rule 12, Rule 12.3, Rule 21.1, Rule 22.1(a), Rule 23.1(a), Section 305*bis*

Where the international application was filed in a language which is accepted by the receiving Office but not by the International Searching Authority which is to carry out the international search, the applicant

has to furnish a translation of the international application (refer to paragraphs 6.013 to 6.020 for details). In that case, the receiving Office forwards a copy of the international application in the language of filing (the “record copy”) to the International Bureau, a copy (the “search copy”) to the International Searching Authority and retains one copy (the “home copy”). When the receiving Office receives the translation of the international application, it forwards one copy to the International Bureau (the “record copy - translation (Rule 12.3)”), keeps one copy for its files (the “home copy - translation (Rule 12.3)”) and forwards the third copy, together with a copy of the request (the “search copy - translation (Rule 12.3)”) to the International Searching Authority. If the translation is filed by the applicant in fewer than the required number of copies (refer to paragraph 5.179), the receiving Office is responsible for preparing the additional copies and may charge a fee to the applicant.

5.182

Rule 12.4, Rule 21.1, Rule 22.1(a), Section 305*bis*

Where the international application was filed in a language which is accepted by the receiving Office and by the International Searching Authority which is to carry out the international search but which is not also in a language of publication, the applicant has to furnish a translation of the international application (refer to paragraphs 6.013 to 6.023 for details). In that case, the receiving Office forwards a copy of the international application in the language of filing (the “record copy”) to the International Bureau, a copy (the “search copy”) to the International Searching Authority and retains one copy (the “home copy”). When the receiving Office receives the translation of the international application, it forwards one copy to the International Bureau (the “record copy - translation (Rule 12.4)”) and keeps one copy for its files (the “home copy - translation (Rule 12.4)”). No copy of the translation of the international application will therefore be forwarded to the International Searching Authority by the receiving Office. If the translation is filed by the applicant in fewer than the required number of copies (refer to paragraph 5.179), the receiving Office is responsible for preparing the additional copy and may charge a fee to the applicant.

5.183

Rule 62.1(i), Section 420

Where the International Preliminary Examining Authority is not part of the same national Office or intergovernmental organization as the International Searching Authority, the International Bureau will, promptly upon receipt of the international search report or, if the demand was received after the international search report, promptly upon receipt of the demand, send a copy of the international application and the international search report together with a copy of the written opinion of the International Searching Authority to the International Preliminary Examining Authority. Where neither the language in which the international application was filed nor the language in which the international application is published is accepted by the International Preliminary Examining Authority that is to carry out the international preliminary examination, the applicant must furnish with the demand a translation of the international application into a language which is both a language accepted by that Authority and a language of publication. No such translation is required where the International Searching Authority and the International Preliminary Examining Authority are part of the same national Office or intergovernmental organization. In cases where, instead of the international search report, a declaration under Article 17(2)(a) was issued, references in the preceding sentences to the international search report shall be considered references to the said declaration.

FEES

5.184. What fees are due in respect of an international application?

Article 3(4)(iv)

There are three kinds of fee which must be paid in connection with every international application.

Rule 14

(i) The transmittal fee is fixed by, and accrues to, the receiving Office for the performance of its tasks in connection with the receipt and checking of the international application, and for the transmittal of copies of it to the International Bureau and the International Searching Authority.

Rule 16.1

(ii) The “search fee” is fixed by, and accrues to the benefit of, the International Searching Authority for the carrying out of the international search and the establishment of the international search report and the written opinion of the International Searching Authority.

Rule 15.1, Rule 96

(iii) The “international filing fee” is fixed in the Schedule of Fees annexed to the PCT Regulations and accrues to the International Bureau for the performance of various tasks, including the publication of the international application and, where applicable, the issuance on behalf of the International Searching Authority of the international preliminary report on patentability (Chapter I of the PCT) and the communication of various notifications to the applicant, the receiving Office, the International Searching Authority, the International Preliminary Examining Authority, and the designated and elected Offices.

5.185. To whom are the fees payable?

Rule 14.1(a), Rule 15.1, Rule 16.1(b)

All three kinds of fee referred to in paragraph 5.184 are payable to the receiving Office with which the international application is filed. The receiving Office then transfers the international filing fee to the International Bureau and the search fee to the International Searching Authority or, in accordance with Annex G of the Administrative Instructions, to the International Bureau for further transfer to the beneficiary Office.

5.186. What is the currency in which the fees are payable?

Rule 14.1(b), Rule 15.2, Rule 16.1(b)

Generally, the fees referred to in paragraph 5.184 are payable in the currency of the country in which the receiving Office is located. Complete information on this question is contained in Annex C and, for the search fee, in Annex D.

5.187. What are the amounts of the fees?

Rule 14.1(b), Rule 15.2, Rule 16.1(a)

Annex C and, for the search fee, Annex D indicate the amounts of the fees referred to in paragraph 5.184. Where the applicant has the choice between two or more International Searching Authorities (refer to paragraph 7.002), the amount of the search fee depends on which International Searching Authority is chosen and indicated in Box No. VII of the request form (refer to paragraphs 5.072 and 5.093) and in the fee calculation sheet (refer to paragraph 5.093).

5.188. What fee reductions are available?

An applicant who is a natural person and who is a national of and resides in a State that is listed as being a State whose per capita gross domestic product is below 25, 000 US dollars (according to the most recent 10-year average per capita gross domestic product figures at constant 2005 US dollars values published by the United Nations), and whose nationals and residents who are natural persons have filed less than 10 international applications per year (per million population) or less than 50 international applications per year (in absolute numbers) according to the most recent five-year average yearly filing figures published by the International Bureau is entitled, in accordance with the Schedule of Fees, item 5, to a reduction of 90% of the international filing fee. In addition, an applicant who qualifies for the 90% reduction in the international filing fee will not have to pay the transmittal fee in respect of an international application filed with the International Bureau as receiving Office. The same applies (i.e. the 90% reduction in the international filing fee and no transmittal fee to be paid if filing is made with the International Bureau as receiving Office) for an applicant, whether a natural person or not, who is a national of and resides in a State that is listed as being classified by the United Nations as a least developed country. (For a list of States whose nationals and residents are eligible for the fee reduction, refer to <https://www.wipo.int/documents/d/pct-system/docs-en-fee-reduction-january.pdf>). However, it should be noted that the applicant is only entitled to the reduction if, at the time of filing the international application, the applicant is or all applicants are the true and only owner(s) of the application and under no obligation to assign, grant, convey or license the rights in the invention to another party which is not eligible for the fee reduction. If there are several applicants, each must satisfy one or the other of the above-mentioned criteria. If the applicant is or all applicants are entitled to the reduction, this reduction applies on the basis of the indications of name, nationality and residence given in Boxes Nos. II and III of the request, without a need for a specific request to be made. The fee reduction will be available even if one or more of the applicants are not from PCT Contracting States, provided that each of them satisfies the above-mentioned criteria and that at least one of them is a national or resident of a PCT Contracting State and thus is entitled to file an international application. Information about PCT Contracting States whose nationals and residents are entitled to a reduction of 90% of the international filing fee, is contained in Annex C and, in particular Annex C(IB). As far as other States are concerned, inquiries should be addressed to the International Bureau. It is to be noted that, if both the reduction for electronic filing of an international application and the 90% reduction of the international filing fee are applicable, the 90% reduction is calculated after the reduction for electronic filing of an international application.

5.189. Is there any fee reduction for applications filed in electronic form?

Rule 89*bis*, Rule 89*ter*, Section 702, Section 707

An applicant who files an international application is entitled to a reduction in the international filing fee provided that the international application is filed in electronic form with a receiving Office which is prepared to accept the filing of international applications in electronic form and in compliance with Part 7 and Annex F of the Administrative Instructions or the basic common standard.

The reduction is 100 Swiss francs or the equivalent where the request and the text of the description, claims and abstract are not in character coded format, 200 Swiss francs or the equivalent where the request is in character coded format and the text of the description, claims and abstract is not in character coded format and is 300 Swiss francs or the equivalent where the request and the text of the description, claims and abstract are in character coded format.

5.190

The international search fee as well as the preliminary examination fee payable to the Austrian Patent Office, the European Patent Office (EPO) and the Spanish Patent and Trademark Office, are reduced by 75% under certain conditions (refer to Annexes D and E).

5.191. When are the fees due?

Rule 14, Rule 15.3, Rule 16.1(f)

All fees referred to in paragraph 5.184 may be paid at the same time, and, if they are paid upon filing of the international application with the receiving Office, no problems can arise. However, all fees can be paid as much as one month from the date of receipt of the international application by the receiving Office. The dates on which payments are deemed to have been received are determined by the receiving Office. The latter applies the same rules as are applied in the case of payments for national applications.

5.192. What happens if the amounts of the fees are changed?

Rule 15.3, Rule 16.1(f)

Where the amount of the international filing fee or of the search fee, in the currency in which the fee is payable, changes, the new amount must be paid as from the date of its entry into force. However, where the amount of any such fee changes between the date on which the international application was received and the date of payment, the amount payable is the amount applicable on the date of receipt of the international application. This system allows the applicant to pay all the fees for the international application, within the one-month period, on the basis of the amounts applicable on the date on which the application was filed with the receiving Office.

5.193. What happens if the fees are not paid or not paid in full?

Rule 16*bis*.1, Rule 16*bis*.2

Where, within the time they are due, the applicant has not paid any or all of the fees, the receiving Office invites the applicant to pay the missing amount, together with a late payment fee, within a time limit of one month from the date of the invitation. If the applicant pays the amount (including the late payment fee) specified in the invitation, the deficiency in payment has no consequences for the international application. The amount of the late payment fee is 50% of the missing amount or, if that 50% is less than the transmittal fee, an amount equal to the transmittal fee; but the amount of the late payment fee may not exceed the amount of 50% of the international filing fee referred to in item 1 of the Schedule of Fees, not taking into account any fee for each sheet of the international application in excess of 30 sheets (refer to Annex C).

5.194

Where, within the time by which they are due, the applicant has not paid any or all of the fees, any payment relating to the missing amount must be considered to have been received within the time by which those fees are due, if the payment is received by the receiving Office before that Office sends the invitation, referred to in the preceding paragraph, to pay the missing amount.

5.195

Article 14(3), Rule 16*bis*.1(c), Rule 27.1, Rule 29.1, Section 321

If the transmittal fee, the international filing fee and the search fee are not paid in the prescribed currency and within the prescribed time limits, including the time limit set in the invitation from the receiving Office to pay the missing amount together with the late payment fee (refer to paragraph 5.193), the international application is considered withdrawn, and the receiving Office promptly informs the applicant accordingly. However, any payment must be considered to have been received before the expiration of the applicable

time limit if it is received by the receiving Office before that Office makes the applicable declaration, under Article 14(3), that the international application is considered withdrawn.

5.196

If the amounts paid do not cover the transmittal fee (if applicable), the international filing fee and the search fee (if applicable), the moneys paid will be allocated as specified by the applicant or, in the absence of such specification, as prescribed by the Administrative Instructions by the receiving Office, which promptly notifies the applicant accordingly.

5.197. In which case can I ask for a refund of the transmittal fee?

Rule 15.4, Rule 16.2

There is no rule under the PCT concerning the possibility of asking for a refund of the transmittal fee. The search fee and the international filing fee are refunded where, due to prescriptions concerning national security, the international application is not treated as such, or where the receiving Office refuses to accord an international filing date to the international application under Article 11(1). Such refusal occurs, generally speaking, where the international application is defective in certain respects (refer to paragraph 6.005). The receiving Office will also refund the international filing fee or the search fee to the applicant if the international application is withdrawn or considered withdrawn before the transmittal of the record copy to the International Bureau or the transmittal of the search copy to the International Searching Authority, as the case may be.

5.198. In which case can I ask for the refund of the international search fee?

Rule 16.3, Rule 41.1

Most International Searching Authorities will refund part or all of the search fee if the international application is withdrawn or considered withdrawn after transmittal of the search copy but before the start of the international search (refer to Annex D). Where the International Searching Authority must, under Rule 41.1(i), or may, under Rule 41.1(ii), take into account the results of the earlier search when carrying out the international search (also refer to paragraph 5.073), in accordance with Rule 16.3, the International Searching Authority must refund the search fee to the extent and under the conditions provided for in the agreement under Article 16(3)(b). International Searching Authorities are free to decide the extent and conditions for such search fee reductions.

5.199

For refunds or reductions of fees in the national phase, refer to National Phase, paragraph 4.007 and National Chapters (Summaries).

CHAPTER 6: PROCESSING OF THE INTERNATIONAL APPLICATION BY THE RECEIVING OFFICE

GENERAL

6.001. What are the main procedural steps at the receiving Office?

The main procedural steps that any international application goes through at the receiving Office are the following:

Article 10

(i) the international application and the related fees are received by the receiving Office;

Article 11(1), Article 14(1)(a)

(ii) the international application is checked by the receiving Office to determine whether it meets the requirements prescribed by the PCT as to the language, form and contents of international applications (the checks performed by the receiving Office are of a formal nature and do not go into the substance of the invention);

Article 11(2)(a), Article 14(1)(b), Rule 20.1, Rule 20.3, Rule 26.1

(iii) where the checks made by the receiving Office show that the international application does not meet certain requirements as to fees, language, form and contents, that Office invites the applicant to furnish the necessary corrections;

Article 11(1), Article 11(2)(b), Rule 20.2

(iv) where - possibly after correction (refer to paragraphs 6.024 to 6.053) - the checks made by the receiving Office show that the international application meets the requirements prescribed for that purpose by the PCT, an international filing date is accorded to the international application by the receiving Office;

Article 12, Rule 22, Rule 23

(v) copies of the international application, its translation, where applicable, and other related documents are transmitted by the receiving Office to the International Searching Authority and to the International Bureau so that they may carry out the procedural steps for which they are responsible in the further processing of the international application.

6.002. [Deleted]

6.003. How must the international application be filed at the receiving Office?

Rule 29, Rule 89bis.1, Rule 92.4, Section 703

Each receiving Office specifies the means of submission it accepts for the filing of international applications. Most receiving Offices accept and encourage the electronic filing of international applications. For the relevant information for each receiving Office refer to Annexes B and C.

An Office or organization which has notified the International Bureau that it only accepts international applications to be filed in electronic form or by electronic means, may treat any document submitted to it on paper as not having been received. Nevertheless, the receiving Office may decide in a particular case to accept any documents submitted on paper but is not obliged to do so.

Where a receiving Office accepts international applications to be filed on paper the international application may be deposited with or mailed to the receiving Office.

Receiving Offices may allow international applications to be filed on paper to obtain an international filing date and require that the application be resubmitted electronically within two months from the date of a corresponding invitation by the receiving Office. If corresponding documents are not timely resubmitted, the receiving Office will declare the application to be considered withdrawn.

An international application may also be filed by other means of rapid communication, notably by facsimile machine, provided that the receiving Office places such facilities at the disposal of applicants and that the original is furnished within 14 days, if so required by the receiving Office (refer to Annexes B). The requirements in relation to filing the international application and any subsequent documents by facsimile machine are explained in more detail in paragraphs 11.067 to 11.070.

6.004. Is the international application treated as confidential by the receiving Office?

Article 30

Yes, it is. Third parties are not permitted to have access to the international application, unless requested or authorized by the applicant, before the date of international publication. Designated Offices are,

however, permitted to publish the fact that they have been designated, together with a limited amount of bibliographic data. For further details as to confidentiality, refer to Article 30 and paragraphs 11.072 to 11.074.

INTERNATIONAL FILING DATE

6.005. What are the conditions that must be fulfilled for the international application to be entitled to an international filing date?

Article 11(1), Rule 20.1, Rule 20.2

The receiving Office must accord an international filing date to the international application if it finds that the following conditions are fulfilled:

- (i) the applicant does not obviously lack, for reasons of residence or nationality, the right to file an international application with the receiving Office (refer to paragraphs 5.008, 5.020 and 5.023);
- (ii) the international application is in the prescribed language (refer to paragraph 6.006);
- (iii) the international application contains at least the following elements:
 - (a) an indication that it is intended as an international application,
 - (b) a request which constitutes the designation of a Contracting State bound by the PCT on the international filing date (under Rule 4.9(a) - refer to paragraph 5.052),
 - (c) the name of the applicant (for this purpose it is sufficient if the name of the applicant is indicated in a way which allows his/her identity to be established, even if the name is misspelled, or the given names are not fully indicated, or, in the case of legal entities, the indication of the name is abbreviated or incomplete),
 - (d) a part which on the face of it appears to be a description,
 - (e) a part which on the face of it appears to be a claim or claims.

6.006. Not all parts of my international application are in the same language. Will the receiving Office accord an international filing date to my international application?

Article 11(1)(ii), Article 11(1)(iii), Rule 12.1, Rule 20.1(c), Rule 20.1(d)

For the purposes of according an international filing date, the requirement that the international application be in a prescribed language is met, in most receiving Offices, if the description and claims (but not necessarily the other elements of the international application) are in a language accepted by the receiving Office under Rule 12.1(a) and (c) (refer to Rule 20.1(c) and paragraph 5.013). If any of the other elements of the international application are not in a language accepted by the receiving Office, they may be corrected later without affecting the international filing date (refer to paragraphs 6.032 and 6.034). A translation will need to be furnished by the applicant in respect of any international application which is filed in a language which is not a language accepted by the International Searching Authority which is to carry out the international search and/or a language of publication; refer to paragraphs 6.013 to 6.020). In certain Offices, however, Rule 20.1(c) is incompatible with the applicable national law. For as long as that incompatibility continues, that Rule will not apply for those Offices; all elements of an international application filed with those Offices as receiving Office must therefore comply with the language requirements of Rule 12.1 before an international filing date can be accorded (refer to Annex C for details).

6.007. [Deleted]

6.008. What date is accorded as the international filing date?

Article 11(1), Article 11(2)(b), Rule 20.1, Rule 20.2

The reply to this question depends on whether the requirements for according an international filing date (refer to paragraph 6.005) were fulfilled on the date on which the international application was received by the receiving Office, or, pursuant to Rule 20.6, considered to have been received (refer to paragraph 6.026 to 6.031), or - following correction of defects in relation to those requirements - on a later date. The international filing date will, in the former case, be the date on which the international application was received by the receiving Office and, in the latter case, the date on which the correction was received by the receiving Office. Naturally, any correction has to comply with some conditions; in particular it has to be filed within a certain time limit. More is said about this in paragraph 6.025. Where all the sheets pertaining to the same international application are not received on the same day by the receiving Office, refer to paragraph 6.026.

6.009. Does non-payment, incomplete payment or late payment of fees influence the international filing date?

Article 11(3), Article 11(4), Article 14(3), Rule 27

No, it does not, however, those defects will eventually lead the receiving Office to declare that the international application is considered withdrawn (refer to paragraphs 5.195 and 5.196). Although an international application which has not been accorded an international filing date and an international application which is considered withdrawn are both excluded from further processing in the international phase, an international application which fulfills the requirements necessary for it to be accorded an international filing date may be invoked as a priority application under the Paris Convention for the Protection of Industrial Property (if the conditions laid down by that Convention are fulfilled) even where the international application is considered withdrawn under the PCT (for non-payment of fees or other reasons).

6.010. Can the receiving Office refuse to treat an international application as such for reasons of national security?

Article 27(8), Rule 22.1, Section 330

Each Contracting State is free to apply measures deemed necessary for the preservation of its national security. For example, each receiving Office has the right not to treat an international application as such and not to transmit the record copy to the International Bureau and the search copy to the International Searching Authority. Compliance with national security prescriptions where the international application is filed with the International Bureau as receiving Office will not be checked by the International Bureau; such compliance is the applicant's responsibility. Where an international filing date has been accorded but national security considerations prevent transmittal of the record copy, the receiving Office must so declare to the International Bureau before the expiration of 13, or at the latest 17, months from the priority date.

6.011. How does the applicant know whether his/her application has been accorded an international filing date or that the application is not treated as an international application or is considered to have been withdrawn?

Rule 20.2, Rule 20.4(i), Rule 20.5(c), Rule 20.5bis(c), Rule 22.1, Rule 29.1(ii)

Where the receiving Office accords an international filing date to the international application, it promptly notifies the applicant of that date and of the international application number; where it decides that the international application is not to be treated as an international application (because of a negative determination for lack of compliance with Article 11, or because national security considerations prevent it from being treated as such) or is to be considered withdrawn, it promptly notifies the applicant accordingly.

6.012. Can an international filing date once accorded be "taken away"?

Article 14(4), Rule 29.3, Rule 29.4, Rule 30.1, Rule 82ter.1, Section 312

If, after having accorded an international filing date, the receiving Office finds that it should not have accorded it, the international application is considered withdrawn and the receiving Office so declares and promptly notifies the applicant. If the International Bureau or the International Searching Authority finds that an international filing date should not have been accorded, it calls the relevant facts to the attention of the receiving Office. However, such a finding may validly occur only during the four months following the international filing date and must be preceded by a notification to the applicant of the intention to make the declaration which should, where applicable, also include an invitation to confirm the incorporation of missing elements in accordance with Rule 20.6(a). The applicant has the right to submit arguments within two months from the notification or, where applicable, confirm the incorporation by reference of missing elements. For the rectification of errors made by the receiving Office in according the international filing date, refer to Rule 82ter.1 and the National Phase, paragraph 6.028.

TRANSLATION OF INTERNATIONAL APPLICATIONS

6.013. When is a translation of the international application required?

Rule 12.1

Every receiving Office must accept, for the purpose of filing international applications, at least one language which is both a language of publication and a language accepted by the International Searching Authority, or, if applicable, by at least one of the International Searching Authorities, competent for the international searching of international applications filed with that receiving Office. In addition, any receiving Office may accept one or more other languages for the purpose of filing international

applications. A translation of the international application is required when the language in which the international application is filed is a language which is not a language of publication and/or a language accepted by the International Searching Authority which is to carry out the international search.

6.014. What are the translation requirements if the international application is filed in a language which is not accepted by the International Searching Authority?

Rule 12.3

Where the language in which the international application is filed is not accepted by the International Searching Authority that is to carry out the international search, the applicant must furnish, to the receiving Office, a translation of the international application into a language which is both a language accepted by that Authority and a language of publication. Moreover, unless the international application was filed in a language of publication (refer to paragraph 9.017), the language into which the international application is translated must also be a language in which international applications may be filed with the receiving Office concerned. For any sequence listing part of the description, a translation of the language-dependent free text in the sequence listing may be required if not already provided in a language accepted by the International Searching Authority as filed. The translation must be provided in a new sequence listing containing the language-dependent free text in the accepted language. The applicant may either replace the language-dependent free text with the translation or if permitted by the receiving Office, add the translation such that the new sequence listing contains the language-dependent free text in two languages (one must be English). (Concerning translation of the request, refer to paragraph 6.019).

6.015. What is the time limit for furnishing a translation of my international application where the application is filed in a language which is not accepted by the International Searching Authority?

The translation of the international application must be furnished to the receiving Office within one month from the date on which the international application was received by that Office. Where, by the time the receiving Office notifies the applicant of the international application number and international filing date, the applicant has not furnished the required translation, the receiving Office will, preferably together with that notification, invite the applicant to furnish the required translation either within the time limit of one month from the date on which the international application was received by the receiving Office, or, in the event that the required translation is not furnished within that time limit, to furnish it and to pay, where applicable, the late furnishing fee (refer to paragraph 6.017), within one month from the date of the invitation or two months from the date of receipt of the international application by the receiving Office, whichever expires later.

6.016. Will my application be withdrawn in case that I do not furnish a translation or pay the late furnishing fee?

Where the receiving Office has sent to the applicant an invitation to furnish the translation and, where applicable, pay the late furnishing fee, and the applicant has not done so within the applicable time limit, the international application will be considered withdrawn and the receiving Office will so declare. However, any translation and any payment which are received by the receiving Office before that Office makes the declaration that the international application is considered withdrawn, and before the expiration of 15 months from the priority date, will be considered to have been received before the expiration of the applicable time limit.

6.017. What is the amount of the late furnishing fee for translations?

Rule 12.3(e)

The late furnishing fee which any receiving Office may collect for translations which are furnished after the expiration of the time limit of one month from the date on which the international application is received by the receiving Office, is equal to 25% of the international filing fee referred to in item 1 of the Schedule of Fees, not taking into account any fee for each sheet of the international application in excess of 30 sheets.

6.018. What are the translation requirements if the abstract or text matter in the drawings of the international application are in a language which is different from the language of the description and claims?

Rule 26.3ter(a)

If the abstract or text matter in the drawings of the international application is in a language which is different from the language of the description and claims, then the receiving Office will invite the applicant to furnish a translation of the abstract or the text matter of the drawings into the language in which the international application is to be published. However, no such invitation will be issued if the abstract or text matter in the drawings is in the language in which the international application is to be published, or

if a translation of the international application is required because the language in which the international application was filed is not accepted by the International Searching Authority which is to perform the international search and that translation will also be in the language in which the application is to be published.

6.018A. What is the procedure if the description and claims are not in a single language?

Rule 12.3(c), Rule 12.3(d), Rule 12.3(e), Rule 26.3ter(e)

Generally, the PCT requires that the description and claims of an international application are filed in a language accepted by the receiving Office. Compliance with the prescribed language is a requirement for obtaining an international filing date (refer to Article 11(1)(ii), Rule 20.1(c) and paragraphs 6.005 to 6.006). If the description or claims is in a language that is not accepted by the receiving Office, that Office must forward the application under the safeguard procedure of Rule 19.4 to the receiving Office of the International Bureau, which accepts any language (refer to paragraph 6.034).

If the description and claims, or part thereof, are not filed in a single language but all the languages used are accepted by the receiving Office, the receiving Office will invite the applicant to furnish a translation to provide the description and claims in a single language within one month from the date of receipt of the international application. That language must be:

- (i) one of the languages contained in the description or claims as filed;
- (ii) a language accepted by the International Searching Authority that will carry out the international search;
- (iii) and the language in which the international application is to be published.

However, no such invitation will be issued if the receiving Office considers that the use of multiple languages assists in the comprehension of the disclosure and requesting a translation would not be appropriate in a particular case, for example in the case of language-neutral terms (such as computer coding language), certain technical terms including their transliteration or translation, scientific publication citations, or inventions relating to translation technology.

If all of the above-mentioned three criteria cannot be satisfied (for example, the languages used, while accepted by the receiving Office, are not languages accepted by the chosen International Searching Authority or languages of publication), the receiving Office invites the applicant to furnish a translation of the international application under Rule 12.3 or 12.4.

In all instances, if the required translation is not furnished within the one-month time limit, the Office may require the applicant to pay any applicable late furnishing fee within one month from the date of the invitation or two months from the date of receipt of the international application by the receiving Office, whichever expires later (refer to paragraphs 6.015 to 6.017).

6.019. What are the translation requirements if the request is in a language which is not a language of publication accepted by the receiving Office for the purpose of filing the request?

Rule 12.1(c), Rule 26.3ter(c)

Whatever the language in which the description and claims are filed, the request must always be filed in a language of publication accepted by the receiving Office for the purposes of filing the request. If the request is in a language which does not fulfill this requirement, the receiving Office invites the applicant to file a translation that complies with it.

6.020. What are the translation requirements if the international application is filed in a language which is accepted by the International Searching Authority, but is not a language of publication?

Rule 12.4, Rule 48.3

If the international application is filed in a language which is not a language of publication but is a language accepted by the International Searching Authority which is to carry out the international search, the applicant must furnish to the receiving Office a translation of the international application into a language of publication which the receiving Office accepts for that purpose. For any sequence listing part of the description, a translation of the language-dependent free text in the sequence listing may be required if not already provided in a language of publication as filed and no translation was required under Rule 12.3(a) for the purposes of the international search. The translation must be provided in a new sequence listing containing the language-dependent free text in a language of publication. The applicant may either replace the language-dependent free text with the translation or if permitted by the receiving Office, add the translation such that the new sequence listing contains the language-dependent free text in two languages (one must be English). (Concerning the translation of the request, refer to paragraph 6.019).

6.021. What is the time limit for furnishing a translation of my international application where the application is filed in a language which is accepted by the International Searching Authority, but is not a language of publication?

The translation of the international application must be furnished to the receiving Office within 14 months from the priority date. Where the applicant has not furnished the required translation within the applicable time limit, the receiving Office will invite the applicant to furnish the required translation, and to pay, where applicable, the late furnishing fee (refer to paragraph 6.023), within 16 months from the priority date.

6.022. Will my application be withdrawn in case that I do not furnish a translation or pay the late furnishing fee?

Where the receiving Office has sent to the applicant an invitation to furnish the translation and, where applicable, pay the late furnishing fee, and the applicant has not done so within the applicable time limit, the international application will be considered withdrawn and the receiving Office will so declare. However, any translation and any payment which are received by the receiving Office before that Office makes the declaration that the international application is considered withdrawn, and before the expiration of 17 months from the priority date, will be considered to have been received before the expiration of the applicable time limit.

6.023. What is the amount of the late furnishing fee for translations?

The late furnishing fee which any receiving Office may collect for translations which are furnished after the expiration of the time limit of 14 months from the priority date, is equal to 25% of the international filing fee referred to in item 1 of the Schedule of Fees, not taking into account any fee for each sheet of the international application in excess of 30 sheets.

CORRECTION OF DEFECTS AND INCORPORATION BY REFERENCE OF MISSING ELEMENTS OR PARTS, OR CORRECT ELEMENTS OR PARTS IN CASE THEY HAVE BEEN ERRONEOUSLY FILED

6.024. What defects in the international application may be corrected and within what time limits?

The following paragraphs attempt to give general answers to those questions in the characteristic cases of possible defects.

6.025. What defects influence the international filing date?

(i) Where the receiving Office finds that the international application does not comply with the requirements for according an international filing date - in other words:

Article 11(1)(i)

(a) that the applicant obviously lacks, for reasons of residence and nationality, the right to file an international application with the receiving Office (but also refer to paragraphs 6.035 and 6.036);

Article 11(1)(iii)(a)

(b) that the international application does not contain an indication that it is intended as an international application;

Article 11(1)(iii)(b)

(c) that the international application does not contain a request which constitutes the designation of all Contracting States bound by the PCT on the international filing date (under Rule 4.9(a) - refer to paragraph 5.052);

Article 11(1)(iii)(c)

(d) that the international application does not contain the name of the applicant or does not contain at least the minimum indications concerning the name of the applicant which are indicated in paragraph 6.005(iii)(c);

Article 11(1)(iii)(d), Article 11(1)(iii)(e)

(e) that the international application does not contain a part which, on the face of it, appears to be a description and a part which, on the face of it, appears to be a claim or claims;

Article 11(1)(ii), Rule 19.4, Rule 20.3, Rule 20.6, Rule 20.7

the receiving Office invites the applicant to correct the defect. The time limit for filing the correction is two months from the date of the invitation to correct. If the correction is made within the time limit, the date of receipt of the correction becomes the international filing date; otherwise, the application is not treated as an international application (but also refer to paragraphs 6.035 and 6.036 in relation to the applicant's residence and nationality, and paragraphs 6.013 to 6.020 for applications filed in a language which is accepted by the receiving Office but which is not both a language accepted by the International Searching

Authority which is to carry out international searching, and a language of publication). Where the defect concerns item (i)(e) above, the receiving Office will invite the applicant to confirm in accordance with Rule 20.6 that the missing element concerned was incorporated by reference under Rule 4.18 (refer to paragraphs 6.027 to 6.031), in which case it may be possible to retain the earlier date as the international filing date. Where the required elements of the international application are not in a language accepted by the receiving Office, that Office will transmit the international application to the International Bureau as receiving Office under Rule 19.4 (noting that the International Bureau as receiving Office is prepared to accept international applications filed in any language; refer to paragraph 6.034 and Annex C).

Article 14(2), Rule 20.5, Rule 20.5bis, Rule 20.7

(ii) Where the receiving Office finds that parts of the description, claims, all drawings or parts thereof are, or appear to be, missing or that the description, claims, parts of the description or claims, all drawings or parts thereof are or appear to be erroneously filed, it notifies the applicant accordingly and invites the applicant to correct the defect or else, where appropriate, to confirm in accordance with Rule 20.6 that the missing part or correct element or part was incorporated by reference under Rule 4.18 (refer to paragraph 6.027 to 6.031 for details). The time limit for furnishing such missing parts or correct elements or parts is two months from the date of the invitation. If no invitation is issued and the applicant notices and wishes to correct a defect, this is also permitted within a time limit of two months from the date on which papers were first received by the receiving Office. If the missing parts or correct elements or parts are furnished within that time limit, the date of their receipt becomes the international filing date, unless the applicant is able to confirm in accordance with Rule 20.6 that the missing part or correct element or part concerned was incorporated by reference under Rule 4.18 (refer to paragraphs 6.027 to 6.031), in which case it may be possible to retain the earlier date as the international filing date. Where missing drawings referred to in the international application are not furnished within the time limit, any references to drawings in the international application are considered non-existent and the international filing date remains as originally accorded. However, where the international filing date is corrected to a later date, any priority claim will be considered void, for the purposes of the procedure under the PCT, if the accorded international filing date falls outside the two month period after the expiration of the priority period of the priority claim concerned (refer to paragraphs 5.060 and 6.038).

Rule 20.5(e), Rule 20.5bis(e)

(iii) Where the international filing date has been corrected, the applicant may, in a notice submitted to the receiving Office within one month from the date of mailing of the notification of later submitted elements or parts (Form PCT/RO/126), request that the missing part or the correct element or part be disregarded in order to preserve the date on which papers were first received as the international filing date and, where applicable, to retain the priority claim (Rule 20.5(e) or 20.5bis(e)). The applicant will be notified of the decision made by the receiving Office on whether the international filing date has been restored (Form PCT/RO/129).

6.026. What happens if all sheets of the international application are not received on the same day?

Rule 20.3(b), Rule 20.5(b), Rule 20.5(c), Rule 20.5(d), Rule 20.5bis(b), Rule 20.5bis(c), Rule 20.5bis(d), Rule 20.7

The receipt of further sheets after an invitation to correct has been sent under Article 11(2)(a) or 14(2) (refer to paragraph 6.025) generally results in the date of receipt of those further sheets being accorded as the international filing date, provided that they are received within the applicable time limit under Rule 20.7, and unless the applicant is able to include these later submitted sheets by way of incorporation by reference (refer to paragraphs 6.027 to 6.031). If no invitation to correct has been sent but all the sheets relating to the same purported international application (apart from the abstract) are not received on the same day by the receiving Office, and the applicant has not confirmed the incorporation by reference of those later submitted sheets, the Office corrects the request by marking on it the date on which the papers completing the international application were received, and that later date is accorded as the international filing date, provided that the later sheets were received within two months from the date on which sheets were first received. Each sheet is marked with the date on which it was actually received. In case those later submitted sheets are to correct erroneously filed sheets, and the applicant has not confirmed the incorporation by reference of those later submitted sheets, the erroneously filed sheets concerned are removed from the application. The absence or late receipt of the abstract does not, of itself, result in correction of the date marked on the request or in the according of a later international filing date.

6.027. Can missing or correct pages be added to an international application without affecting the international filing date?

Rule 19.4(a)(iii), Rule 20.3, Rule 20.5, Rule 20.5bis, Rule 20.8

This is possible under certain circumstances, but the resulting international filing date will not be recognized in some Contracting States (refer to paragraph 6.031). Under Rule 4.18, where an element

of the international application referred to in Article 11(1)(iii)(d) or (e) or a part of the description, claims or drawings referred to in Rule 20.5(a), or an element or part of the description, claims or drawings referred to in Rule 20.5*bis*(a) is not otherwise contained in the international application but is completely contained in the earlier application of which priority is claimed on the date on which one or more elements referred to in Article 11(1)(iii) were first received by the receiving Office, it is possible to incorporate by reference these missing or correct elements or parts into the international application. Such incorporation by reference will have the effect that the elements or parts which have been incorporated by reference will be considered to have been received on the date on which one or more elements referred to in Article 11(1)(iii) were first received. As a result, the international filing date would remain the date when one or more elements referred to in Article 11(1)(iii) were first received (provided that all other Article 11 requirements for the according of a filing date are met). These procedures do not apply to missing pages if the receiving Office has notified the International Bureau under Rule 20.8(a) that any of Rules 20.3(a)(ii) and (b)(ii), 20.5(a)(ii) and (d), and 20.6 are not compatible with its national law. Moreover, these procedures do not apply to correct pages if the receiving Office has notified the International Bureau under Rule 20.8(a-*bis*) that any of Rules 20.5*bis*(a)(ii) and (d) are not compatible with its national law. Such a receiving Office will therefore neither invite nor accept a confirmation of the incorporation by reference. Instead, the receiving Office would apply the above described correction procedure (paragraph 6.025). A list of Offices which have notified the International Bureau under Rule 20.8(a) and/or 20.8(a-*bis*) and which will therefore not accept the incorporation by reference of missing elements or parts can be found on WIPO's website at https://www.wipo.int/en/web/pct-system/texts/reservations/res_incomp. If the need to incorporate certain missing or correct elements or parts becomes apparent after the international application has been filed, the applicant may request the receiving Office to transmit the international application to the receiving Office of the International Bureau under Rule 19.4(a)(iii), which does accept the incorporation by reference of missing or correct elements or parts.

6.028. How should missing or correct elements or parts be incorporated by reference into the international application?

Rule 4.18, Rule 20.6

A statement of incorporation by reference referred to in Rule 4.18 must have been included in the international application on the date when one or more elements referred to in Article 11(1)(iii) are first received by the receiving Office. Such a statement is automatically included if Form PCT/RO/101 is used in paper or electronically. If such a statement was not contained in the request at the time of filing, it can only be added to the request if it was otherwise contained in, or submitted with, the international application on the date of filing. Furthermore, one or several priority claims to earlier applications which completely contain the missing or correct element or part must have been made in the international application at the time of filing. Adding such priority claims under Rule 26*bis*.1(a) would not be sufficient. If these requirements have been met, the applicant should confirm the incorporation by reference by way of a written notice to the receiving Office within the time limit indicated below. Such notice should be accompanied by:

- a sheet or sheets embodying the entire element or part as contained in the earlier application;
- where the applicant has not already complied with the requirements of Rule 17.1(a), (b) or *b-bis*, a copy of the earlier application as filed;
- where Rule 20.6(a)(iii) applies, a translation or translations of the earlier application; and
- in the case of a missing or correct part, an indication as to where the part is contained in the earlier application and, where applicable, in any translation of the earlier application.

6.029. What is the time limit for confirming the incorporation by reference of missing or correct elements or parts?

Rule 20.7

Where no invitation by the receiving Office has been sent to submit missing or correct elements or parts (Form PCT/RO/103 or PCT/RO/107), the time limit to confirm is two months from the date on which papers were first received by the receiving Office. Where such an invitation has been issued, the time limit to confirm is two months from the date of mailing of this invitation. If this time limit expires after the expiration of 12 months from the filing date of the earliest application, the priority of which is claimed, the receiving Office will draw this circumstance to the attention of the applicant (as a warning that, if the missing or correct elements or parts are not confirmed to have been incorporated by reference and the international filing date is thus corrected to a date after the expiration of the priority period, the correction of the international filing date may result in the loss of the right of priority; the same applies, even if the missing or correct elements or parts are confirmed to have been incorporated by reference, with regard

to those States which do not apply the provisions concerning incorporation by reference (refer to paragraph 6.031)). For missing elements, where the applicant has neither submitted a correction under Article 11(2) nor a notice under Rule 20.6(a) confirming the incorporation by reference of missing elements referred to in Article 11(1)(iii)(d) or (e) prior to the expiration of this two-month time limit, any such correction or notice received by the receiving Office after the expiration of that time limit, but before it has sent a notification under Rule 20.4(i) (Form PCT/RO/104) to the applicant, is considered to have been received within the time limit (Rule 20.7(b)).

6.029A. What happens to the erroneously filed element or part if the incorporation by reference of the correct element or part is confirmed?

Rule 20.5bis(d), Section 309(b)(iv)

Where a correct element or part is considered to have been contained in the purported international application on the date on which one or more elements referred to in Article 11(1)(iii) were first received by the receiving Office under Rule 20.6(b), the erroneously filed element or part concerned will remain in the application. The receiving Office will mark those erroneously filed sheets as “ERRONEOUSLY FILED (RULE 20.5bis)” and move those sheets to the end of the corresponding element of the purported international application. The receiving Office will transmit the erroneously filed sheets to the International Bureau and they will be published as part of the international application.

6.030. What are the consequences if the requirements for the incorporation by reference are not complied with?

Rule 20.3(b)(i), Rule 20.4, Rule 20.5(c), Rule 20.5(e), Rule 20.5bis(c), Rule 20.5bis(e)

If not all of the requirements for the incorporation by reference are fulfilled (for example, if a missing or correct element or part is not entirely contained in the earlier application), the international application will be assigned a later international filing date (the date of receipt of the missing or correct element or part, to the extent that all other requirements of Article 11(1) are complied with on that date) (refer to paragraphs 6.025 and 6.026). The applicant may, however, request that the missing part or correct element or part be disregarded, in accordance with Rule 20.5(e) or 20.5bis(e) (refer to paragraph 6.025(iii)). In this case, the international filing date will be reinstated and the missing part or correct element or part will be considered not to have been submitted.

6.031. What are the effects of the successful incorporation of missing or correct elements or parts on designated or elected Offices?

Rule 20.8(c), Rule 82ter.1

In most Contracting States, the elements or parts will be treated as if they had actually been contained in the international application as originally filed. Designated and elected Offices may, to a limited extent, review decisions by receiving Offices which have allowed incorporation by reference (Rule 82ter.1(b)). If the designated or elected Office finds that: the applicant did not comply with the obligation to furnish a priority document; the statement of incorporation was missing or not submitted with the request; no written notice confirming incorporation by reference was submitted; no required translation was furnished; or the element or part in question was not completely contained in the priority document; then the designated or elected Office may treat the international application as if the international filing date had been accorded on the basis of the date on which the sheets containing the missing or correct elements or parts were submitted, but only after giving the applicant the opportunity to make observations on this outcome and/or to request that, at least, the missing parts or the correct elements or parts which had been furnished be disregarded, in accordance with Rule 82ter.1(d).

However, those designated Offices which have submitted notifications of incompatibility under Rule 20.8(b) and/or (b-bis), may treat the international application as if the international filing date had been accorded on the basis of the date on which the sheets containing the missing or correct elements or parts, as the case may be, were submitted, but also only after having given the applicant the opportunity to make observations on this outcome and/or to request that, at least, the missing parts or the correct elements or parts which had been furnished be disregarded, pursuant to Rule 20.8(c).

6.032. What defects do not influence the international filing date?

Where the receiving Office finds that

Article 14(1)(a)(i), Rule 2.3, Rule 4.1(d), Rule 4.15

(i) the international application is not signed (or, in the cases referred to in paragraph 5.091, does not bear a seal; also refer to paragraph 11.027 for cases where an applicant refuses to sign or cannot be found or reached);

Article 14(1)(a)(ii), Rule 4.4, Rule 4.5

(ii) the international application does not contain the name of the applicant presented in the prescribed way (other than those referred to in paragraph 6.005(iii)(c), for which case refer to paragraph 6.025(i)(d)), or the prescribed indications in respect of at least one of the applicants - these indications are specified in Rules 4.4 and 4.5; they include, in particular, the applicant's address, residence and nationality;

Article 14(1)(a)(iii), Rule 4.3

(iii) the international application does not contain a title (that is, a title for the claimed invention);

Article 14(1)(a)(iv), Rule 8

(iv) the international application does not contain an abstract;

Article 14(1)(a)(v), Rule 11, Rule 26.3

(v) the international application and, where applicable, the translation of the international application, does not comply, to the extent provided for in the Regulations, with the prescribed physical requirements (the physical requirements are specified in detail in Rule 11; compliance with them must be checked only to the extent that such compliance is necessary for the purpose of reasonably uniform international publication, and no international application will be considered withdrawn for lack of such compliance if it complies to the extent necessary for the purpose of reasonably uniform international publication);

Article 3(4)(i), Rule 12.1, Rule 26.3*ter*(a)

(vi) any element of the international application, other than the description and claims, is not in an admitted language (refer to paragraphs 5.013, 6.005(ii) and 6.006);

Article 14(1)(b), Rule 26.1, Rule 26.2, Rule 26.2*bis*(b), Rule 26.3*ter*(b), Rule 26.5, Rule 29.1

the receiving Office invites the applicant to correct the defect (however, regarding international applications which are filed in a language which is accepted by the receiving Office but require translation, refer to paragraphs 6.013 to 6.020). The time limit for filing the correction is two months from the date of the invitation. If the correction is made within the time limit (including any extension - refer to paragraph 6.037), the international filing date remains the date on which the international application was received by the receiving Office; otherwise, the international application is considered withdrawn. In certain Offices, however, the provisions of Rule 26.3*ter*(a) for correction of elements not in an accepted language are incompatible with the applicable national law. For as long as that incompatibility continues, that Rule will not apply for those Offices; all elements of an international application filed with those Offices as receiving Office must therefore comply with the language requirements of Rule 12.1 before an international filing date can be accorded (also refer to paragraph 6.006 and refer to Annex C for details).

6.033. [Deleted]

6.034. What happens if the application is filed in a language which is not accepted by the receiving Office?

Rule 19.4(a)(ii), Rule 19.4(b), Rule 19.4(c)

If the international application is filed in a language which is not a language accepted by the national (or regional) Office with which it is filed, but is in a language accepted by the International Bureau as receiving Office, that international application will be considered to have been received by that Office on behalf of the International Bureau as receiving Office. In fact, the International Bureau as receiving Office accepts international applications filed in any language (refer to Annex C). In such a case, the international application will be date-stamped by the national (or regional) Office concerned and promptly transmitted to the International Bureau (unless this is prevented by national security prescriptions). That transmittal may be subjected to the payment of a fee equal to the transmittal fee (refer to paragraph 5.184(i) and Annex C), but other fees paid will be refunded by the national (or regional) Office to the applicant and the applicable fees will then have to be paid to the International Bureau as receiving Office (refer to Annex C). The international application so transmitted will be considered to have been received by the International Bureau as receiving Office on the date on which it was received by the national (or regional) Office, except that, for the purposes of calculating the time limits for paying the fees due on filing the international application to the competent receiving Office, the date of receipt of the international application is considered to be the date on which the international application was actually received by the International Bureau as receiving Office.

6.035. What happens if the applicant is a resident or national of a Contracting State but files the application with a "non-competent" receiving Office?

Rule 19.4(a)(i), Rule 19.4(b), Rule 19.4(c)

If the international application is erroneously filed with a national (or regional) Office which acts as a receiving Office under the Treaty by an applicant who is a resident or national of a Contracting State, but that Office is not competent under Rule 19.1 or 19.2 (having regard to the applicant's residence and nationality) to receive the international application, the international application will be considered to have

been received by the Office with which it was filed on behalf of the International Bureau as receiving Office (refer to paragraphs 5.008 and 5.009). In such a case, the international application will be date-stamped by the national (or regional) Office concerned and promptly transmitted to the International Bureau (unless this is prevented by national security prescriptions). That transmittal may be subjected by the national Office to the payment of a fee equal to the transmittal fee (refer to paragraph 5.184(i) and Annex C), but other fees paid will be refunded by the national Office to the applicant and the applicable fees will then have to be paid to the International Bureau as receiving Office (refer to Annex C (IB)). The international application so transmitted will be considered to have been received by the International Bureau as receiving Office on the date on which it was received by the national (or regional) Office, except that, for the purposes of calculating the time limits for paying the fees due on filing the international application, the date of receipt of the international application is considered to be the date on which the international application was actually received by the International Bureau as receiving Office.

6.036. May the applicant correct indications of residence and nationality?

Article 11(1)(i), Article 14(1)(a)(ii), Rule 4.5, Section 329

If the indications of the applicant's residence and nationality as stated in the request do not support the applicant's right to file an international application (refer to paragraphs 5.020, 5.023 and 6.005(i)), that is, if the applicant appears not to be (or, where there are two or more applicants, none of the applicants appears to be) a resident or national of a Contracting State, there is *prima facie* a defect under Article 11(1)(i) and the receiving Office issues an invitation accordingly to correct that defect (refer to paragraph 6.025(i)(a)). The applicant may be able to show that he/she actually had, on the date on which the international application was received by the receiving Office, the right to file an international application with that receiving Office. In such a case, the applicant should submit evidence to the receiving Office accordingly, together with a proposed correction of the indications concerning his/her residence and/or nationality. If the receiving Office is satisfied, on the basis of that evidence, of the applicant's right to file the international application, the invitation to correct the defect under Article 11(1)(i) will be considered to be an invitation to correct a defect under Article 14(1)(a)(ii) and Rule 4.5 in the prescribed indications concerning the applicant's residence and/or nationality, and the indications may be corrected accordingly. If such a correction is made, no defect will be considered to exist under Article 11(1)(i), and the defect will thus not prevent the accordancy of the actual date of receipt of the international application as the international filing date. Note, however, that the United States Patent and Trademark Office as receiving Office has stated that it will not apply the procedure outlined above.

6.037. Can time limits to correct certain defects be extended?

Rule 26.2

The time limit of two months for the correction of defects under Article 14(1) (refer to paragraph 6.032) may be extended by the receiving Office. The receiving Office may extend the time limit *ex officio* or at the request of the applicant at any time - even after the time limit fixed in the invitation has expired - before a decision is taken on whether the applicant has submitted the correction within the time limit and whether or not the international application so corrected is to be considered withdrawn. On the other hand, the time limits fixed by the receiving Office for the correction of defects under Article 11 or Article 14(2) (refer to paragraph 6.025) and for the payment of missing or underpaid fees under Rule 16*bis* (refer to paragraphs 5.193 and 5.195) may not be extended.

6.038. Can defects in priority claims be corrected?

Rule 26*bis*.1(a), Rule 26*bis*.2(b), Rule 91

Any defective priority claim may be corrected and any missing priority claim added by a notice which may be submitted to the receiving Office or the International Bureau. The time limit for correcting or adding a priority claim is 16 months from the priority date or, where the correction or addition would cause a change in the priority date, 16 months from the priority date as so changed, whichever 16 month period expires first, provided that a notice correcting or adding a priority claim may in any event be submitted until the expiration of four months from the international filing date. If a correction of a priority claim is received before the receiving Office or the International Bureau, as the case may be, declares the priority claim void (refer to paragraph 6.043) and not later than one month after the expiration of the applicable time limit, it is considered to have been received before the expiration of that time limit. To correct a priority claim, any indication relating to that priority claim may be changed, added or deleted. It should be noted that an obvious mistake in priority claims may be rectified under Rule 91 within a time limit of 26 months from the priority date provided that the rectification of the mistake would not cause a change in the earliest priority date.

6.039

Where the applicant has made a request for early publication of the international application, any notice to correct or add a priority claim received by the receiving Office or the International Bureau after that request was made will be considered not to have been submitted, unless that request is withdrawn before the technical preparations for international publication have been completed.

6.040. The priority claim in my international application has been corrected which results in a new priority date. How will upcoming time limits be calculated?

Rule 26bis.1(c)

Where the correction or addition of a priority claim causes a change in the priority date, any time limit which is computed from the previously applicable priority date and which has not already expired will be computed from the priority date as so changed.

6.041. Can the applicant be invited to correct defects in a priority claim?

Rule 26bis.2

Where the receiving Office or, if the receiving Office fails to do so, the International Bureau, finds in relation to a priority claim that;

- (i) the international application has an international filing date which is later than the date on which the priority period expired and that no request for restoration of the right of priority has been submitted;
- (ii) the priority claim does not comply with the requirements of Rule 4.10 (refer to paragraph 5.057); or
- (iii) any indication in a priority claim is not the same as the corresponding indication appearing in the priority document;

the receiving Office or the International Bureau, as the case may be, will invite the applicant to correct the priority claim.

6.042. The filing date of my international application is outside the priority period of 12 months. Will the receiving Office invite me to correct the priority claim?

Rule 26bis.2(a), Rule 26bis.3

Where the defect consists of the fact that the filing date of the international application is outside the priority period but is within two months from the date on which the priority period expired, the receiving Office also informs the applicant of the possibility of submitting a request for the restoration of the right of priority in accordance with Rule 26bis.3 (refer to paragraphs 5.062 to 5.069), except where the receiving Office has notified the International Bureau under Rule 26bis.3(j) of the incompatibility of Rule 26bis.3(a) to (i) with the national law applied by that Office.

6.043. I did not respond to an invitation from the receiving Office to correct my priority claim. Will the priority claim be considered void?

Rule 26bis.2(c)

If the applicant fails to respond to an invitation from the receiving Office or the International Bureau to correct a priority claim before the expiration of the time limit for doing so, that priority claim will, for the purposes of the procedure under the Treaty, be considered void and the receiving Office or the International Bureau, as the case may be, will so declare and inform the applicant accordingly. However, a priority claim will not be considered void only because the indication of the number of the earlier application is missing, an indication in the priority claim is not the same as the corresponding indication appearing in the priority document, or the international application has an international filing date which is later than the date on which the priority period expired, provided that the international filing date is within two months of that date.

6.044

Rule 26bis.2(d), Rule 26bis.2(e)

Where the receiving Office or the International Bureau has made a declaration that a priority claim will be considered void, for the purposes of the procedure under the PCT, or where the priority claim has only not been considered void because Rule 26bis.2(c) applies (refer to last sentence of paragraph 6.043), the International Bureau will publish, together with the international application, information concerning the priority claim, as well as any information submitted by the applicant concerning such priority claim which is received by the International Bureau prior to the completion of the technical preparations for international publication. Where the applicant wishes to correct or add a priority claim but the time limit to do so under Rule 26bis.1 has expired, the applicant may, prior to the expiration of 30 months from the

priority date and subject to the payment of a special fee (refer to Section 113(c) of the Administrative Instructions), request the International Bureau to publish information concerning the matter.

6.045. Can defects in declarations referred to in Rule 4.17 be corrected? Can declarations be added?

Rule 26*ter*.1

Any defective declaration may be corrected and any new (missing) declaration may be added by a notice submitted to the International Bureau by the applicant, either in response to an invitation to correct (refer to paragraph 6.046) or on his/her own initiative. The time limit for correcting or adding a declaration is 16 months from the priority date. Any correction or addition which is received by the International Bureau after that time limit is considered to have been received on the last day of the time limit if it reaches the International Bureau before the technical preparations for international publication have been completed.

6.046. Which are the defects in declarations made under Rule 4.17 in respect of which the applicant may be invited to submit a correction?

Rule 26*ter*.2(a)

Where the receiving Office or the International Bureau finds that any declaration contained in the request appears to be defective or incomplete, the receiving Office or the International Bureau, as the case may be, may invite the applicant to correct the declaration within the time limit referred to in paragraph 6.045. The kinds of defects which may give rise to an invitation are, for example, the fact that a declaration does not contain the standardized wording as prescribed, or that the blank spaces have not been filled in with names, dates, etc., furthermore, in respect of the declaration of inventorship for the purposes of the designation of the United States of America, that it is not signed as prescribed.

6.047. How should a correction or addition of a declaration referred to in Rule 4.17 be presented?

Section 216, Section 317

Any correction or addition of a declaration must be made by way of a notice consisting of the corrected or added declaration itself accompanied by a letter explaining the correction or addition. Such notice should be submitted directly to the International Bureau in all cases, even if that notice is in response to an invitation issued by the receiving Office. Any notice nevertheless submitted to the receiving Office will be date stamped by that Office and transmitted to the International Bureau.

6.048

Section 214(c)

In the case of a corrected declaration, the applicant must submit a replacement sheet, using the relevant Box (amongst Boxes Nos. VIII (i) to (v)). In the case of an added declaration, the applicant may either use the relevant sub-box mentioned above or a blank sheet of paper. Any corrected or added declaration of inventorship for the purposes of the designation of the United States of America should be signed and dated by the inventor and should be entitled "Supplemental declaration of inventorship (Rules 4.17(iv) and 51*bis*.1(a)(iv))".

6.049. What happens when the applicant fails to correct a declaration referred to in Rule 4.17?

Rule 48.2(b)(iv)

The International Bureau will publish declarations, either as originally filed, or as corrected, whether or not they comply with Rule 4.17. Furthermore, an indication about the fact that declarations were made will be included in the front page of the published international application.

6.050. What happens where the International Bureau receives a correction or addition of a declaration referred to in Rule 4.17 after the applicable time limit?

Rule 26*ter*.1, Section 419(c)

Where the International Bureau receives a correction or addition of a declaration after the applicable time limit (refer to paragraph 6.045), it will notify the applicant accordingly. It does not publish that declaration, or communicate that declaration to the designated Office(s), but informs the applicant that any such declaration should be submitted directly to the designated Office(s) concerned. In the case of a declaration of inventorship signed by at least one of the inventors, the International Bureau will return the declaration to the applicant.

6.051. Is the receiving Office the only authority which may note any of the above defects during the international phase?

Rule 28

If, in the opinion of the International Bureau, the international application is not signed as provided in the Regulations by at least one of the applicants, or does not contain the name of the applicant presented in the prescribed way, or the prescribed indications in respect of at least one of the applicants, or does not

comply to the extent provided in the Regulations with the prescribed physical requirements, the International Bureau, brings such defects to the attention of the receiving Office. Unless that Office believes that there is no defect, it must then invite the applicant to correct it, within a time limit of two months from the date of the invitation (refer to paragraph 6.032).

6.052. How should a correction be presented?

Rule 26.4, Rule 92.1

The correction must generally be filed in the form of one or more replacement sheets incorporating the correction and accompanied by a letter. The letter accompanying a replacement sheet must explain the differences between the replacement sheet and the one it replaces. Correction by letter without replacement sheets is possible only for corrections of the request where the correction is of such a nature that it can be transferred from the letter to the request or other part of the record copy without any adverse effect on the clarity and the direct reproducibility of the sheet onto which the correction is to be transferred. As to the signature and other requirements of such letters, refer to Rule 92.1

6.053. Does a correction entail the payment of a fee?

Both the request for and the making of any correction are free of charge. There is also no fee for the extension of a time limit for correction (refer to paragraph 6.037).

6.054. Can the applicant appeal or file a petition against an unfavorable decision of the receiving Office?

The PCT does not expressly provide for any appeal or petition during the international phase. However, practice has shown that receiving Offices reconsider their decisions on petition, and that some national courts or appeal boards have accepted appeals against decisions taken by national (or regional) Offices in their capacity as receiving Offices. However, the latter possibility, even where the applicant is successful in obtaining a favorable revision of the decision of the receiving Office, may remain without effect in the States designated in the international application, particularly when the applicant has not performed the acts required under Article 22(1), 39(1)(a) or 25 within the applicable time limit.

6.055

Article 25, Rule 29.1, Rule 51

The PCT provides for the review by designated Offices of any decision of the receiving Office refusing to accord an international filing date or declaring that the international application is considered withdrawn. (For details of the procedure, including the time limit for requesting such review, refer to National Phase, paragraphs 6.018 to 6.021.)

6.056. Can failure to meet a time limit in the proceedings before the receiving Office or a delay in furnishing documents to that Office be excused?

Article 24(2), Article 48(2), Rule 82*bis*

The PCT provides that any Contracting State must, as far as that State is concerned, excuse, for reasons allowed by the national law, any delay in meeting any time limit. Moreover, any Contracting State may, as far as it is concerned, excuse for other reasons any delay in meeting any time limit. Finally, any designated Office may maintain the effect of an international application (refer to paragraphs 5.003 to 5.007), even where the decision of the receiving Office to the effect that the international application, or the designation of the State concerned, is considered withdrawn is found to be correct. (For details, refer to National Phase, paragraph 6.021.)

RECORD COPY AND SEARCH COPY

6.057. How does the record copy reach the International Bureau?

Article 12(2), Article 12(3), Article 22(1), Article 24(1)(ii), Article 24(1)(iii), Rule 22.1, Rule 22.3

What are the consequences if it does not reach the International Bureau within the prescribed time limit? The record copy (refer to paragraph 5.180), which incidentally is, for the purposes of the procedure under the PCT, considered the true copy of the international application, must reach the International Bureau in time because, if the record copy has not been received by that Bureau within the prescribed time limit, the international application is considered withdrawn. However, no international application is considered withdrawn in such a case without the applicant having been informed beforehand (refer to paragraph 6.058). Failure to transmit the record copy does not relieve the applicant of the obligation to enter the national phase before the designated Offices within the applicable time limit (refer to National Phase, paragraphs 6.022 to 6.027).

6.058. How does the International Bureau monitor the receipt of the record copy?

Rule 20.2(c), Rule 22.1(e)

The International Bureau, once informed by the receiving Office of the international application number and of the international filing date, monitors the receipt of the record copy. If the International Bureau has not received the record copy within 13 months from the priority date, it urges the receiving Office to send it. If, one month later, the record copy has still not been received, the International Bureau notifies the applicant of the fact. The applicant can then ask the receiving Office either to transmit the record copy or to issue – and this must be done free of charge – a certified copy of the international application which the applicant can directly transmit to the International Bureau. Only after the expiration of three months from the above-mentioned notification from the International Bureau to the applicant may the International Bureau make the finding that no record copy has been received within the prescribed time limit. Thus the applicant will always have been warned and offered the possibility of taking care of the transmittal of the record copy himself/herself before any loss of rights can occur. The certification of a copy of the international application must be made free of charge in such a case, and may be refused only in certain cases (for instance where national security considerations prevent the international application from being treated as such; for details, refer to Rule 22.1(e)).

6.059. How does the search copy reach the International Searching Authority?

Article 12(1), Rule 12.1(c), Rule 23.1, Rule 25.1

The search copy (refer to paragraph 5.180) is transmitted by the receiving Office to the International Searching Authority. The search copy is only transmitted if the international search fee has been fully paid to the receiving Office (refer to paragraphs 5.184(ii), 5.193, 5.195 and 5.198), and, where the international application was filed in a language not accepted by the International Searching Authority, only after the required translation has been furnished (refer to paragraph 5.181). Therefore, it is in the applicant's interests to pay the search fee promptly, and, where applicable, furnish the translation promptly, in order to avoid any delay in establishment of the international search report. The International Searching Authority notifies the International Bureau, the applicant and the receiving Office of the fact and date of receipt of the search copy.

6.060. Can the applicant obtain certified copies of the international application?

Rule 21.2

Upon request and against payment of a fee, the receiving Office must furnish to the applicant certified copies of the international application as filed and of any corrections to it. The certified copy of the international application is the priority document where the applicant claims the priority of that international application. For copies of priority documents referred to in the international application, refer to paragraph 5.070.

CHAPTER 7: THE INTERNATIONAL SEARCH PROCEDURE: PROCESSING OF THE INTERNATIONAL APPLICATION BY THE INTERNATIONAL SEARCHING AUTHORITY

GENERAL

7.001. What are the main procedural steps before the International Searching Authority?

Article 15, Article 18, Rule 43, Rule 43bis.1

The main procedural steps that any international application goes through before the International Searching Authority are the following:

- (i) conducting the international search,
- (ii) preparing the international search report, and
- (iii) establishing a written opinion.

7.002. Which International Searching Authority is competent?

Article 16, Rule 4.14bis, Rule 35

Each receiving Office (except the International Bureau as receiving Office – refer to paragraph 5.008) specifies one or more International Searching Authorities as competent to carry out international searches on international applications filed with it. For some receiving Offices, different International Searching Authorities are competent depending on the language in which the international application is filed or, where the international application is filed in a language accepted by the receiving Office but not by the International Searching Authority, translated. Where several International Searching Authorities are specified as competent by the receiving Office, the applicant may choose between them (subject to any such language restriction). Annex C indicates the International Searching Authority or Authorities specified as competent by each receiving Office, and the languages in which international applications filed with that Office are accepted for international search by those Authorities. Where the international application is filed with the International Bureau as receiving Office, the competent International Searching Authority (or Authorities) is that (or are those) which would have been competent if the international application had been filed with a competent national (or regional) Office as receiving Office. All of the languages accepted for search by each International Searching Authority are set out in Annex D. Where two or more International Searching Authorities are competent to carry out the international search, the applicant must indicate the Authority of his/her choice in the request form (refer to paragraph 5.072) and should also indicate it in the fee calculation sheet (refer to paragraphs 5.093 and 5.187). Finally, within the framework of the respective agreements relating to the functioning of certain Offices as International Searching Authorities, these Authorities may provide for limitations of their competence in respect of certain international applications. The consolidated texts of these Agreements are available on the WIPO website at the following address: https://www.wipo.int/en/web/pct-system/access/isa_ipea_agreements. For more detailed information, refer to Annex D.

7.002A. May the applicant submit comments on earlier search results to the Authority that shall carry out the international search?

Where an international application claims the priority of an earlier application in relation to which a search had already been carried out by the same Office that acts as International Searching Authority, some International Searching Authorities have indicated that they would, when carrying out the international search, consider comments made by applicants in response to the earlier search results relating to the priority application. Applicants who wish to have such comments taken into account should submit them to the receiving Office together with the international application, typically by checking Box No. IX of the request, sub-box “Other”, and indicating “Informal comments on earlier search results”. These informal comments would then be transmitted to the International Searching Authority and the International Bureau together with the search copy and the record copy. Informal comments on earlier search results will be published on PATENTSCOPE (For information on which International Searching Authorities offer this service, refer to Annex D.)

7.003. What is the purpose of the international search?

Article 15(4), Rule 33

The purpose of the international search is to discover relevant prior art. “Prior art” consists of everything which has been made available to the public anywhere in the world by **any means before the relevant date. There are no restrictions on where, how or in what language the information was disclosed. There are also no limits as to the age of the disclosure, provided it was disclosed before the relevant date. It may be 100 years old or disclosed just one day before the relevant date. The relevant date for the**

international search procedure is the international filing date. Prior art for the international search is relevant in respect of the international application if it can help determine whether or not the claimed invention is new and whether or not it involves an inventive step (in other words, whether it is or is not obvious), provided that it was made publicly available prior to the international filing date (for further details, refer to Rule 33). The international search is made on the basis of the claims, with due regard to the description and the drawings (if any) contained in the international application. The results of the international search are set out in the international search report (refer to paragraphs 7.023 to 7.026).

7.004. What documents are searched by the International Searching Authority?

Article 15(4), Rule 34.1

The International Searching Authority must endeavor to discover as much of the relevant prior art as its facilities permit, and it must in any case consult the so-called “minimum documentation.” The scope of PCT minimum documentation is defined in Rule 34.1(b) and consists of patent documents and a list of selected items of non-patent literature. Roughly stated, the former comprises all the published international applications and the patent documents published by all of the national and regional Offices now acting as an International Searching Authority (or their legal predecessors) and by any other Office which has made a notification to this effect, provided that the documents have been made available in accordance with the given technical and accessibility requirements. A detailed list of the patent collections forming part of the PCT minimum documentation is contained in the WIPO Handbook (Part 4.1, available at: https://www.wipo.int/en/web/standards/part_04/patent-inventory). For the latter, it comprises all the scientific periodicals which the International Searching Authorities have agreed to include in the minimum documentation, and a complete list is also available from the WIPO Handbook (Part 4.2, available at: https://www.wipo.int/en/web/standards/part_04). It should be emphasized that, where the International Searching Authority has more than the “minimum documentation” at its disposal, it is obliged also to consult that additional documentation.

7.004A. What if the international application contains later submitted missing parts or correct elements or parts?

Rule 20.5, Rule 20.5bis

The international search will usually be carried out on the basis of the application containing the missing parts or the correct elements or parts. In the case of incorporation by reference of correct elements or parts, although the erroneously filed elements or parts remain in the international application as per Rule 20.5bis(d), they will not have to be considered for the purpose of international search.

7.004B

Rule 20.5(c), Rule 20.5(d), Rule 20.5bis(c), Rule 20.5bis(d), Rule 40bis.1

However, if the inclusion or incorporation by reference of missing parts or correct elements or parts is notified to the International Searching Authority only after it has begun to draw up the international search report, it may invite the applicant to pay an additional fee for that purpose. The invitation will invite the applicant to pay the additional fee within one month from the date of the invitation and indicate the amount of the fee to be paid. The applicant will then have to pay this additional fee directly to the International Searching Authority. If the additional fee is not paid within the time limit, the International Searching Authority will draw up the international search report and the written opinion without taking into account the missing parts or correct elements or parts.

NUCLEOTIDE AND/OR AMINO ACID SEQUENCE LISTINGS

7.005. What special requirements apply during the international search to a nucleotide and/or amino acid sequence listing?

Rule 5.2, Rule 13ter.1, Section 208, Section 513(a)

Where the International Searching Authority finds that an international application contains disclosure of one or more nucleotide and/or amino acid sequences required to be included in a sequence listing pursuant to Annex C of the Administrative Instructions and that the sequence listing complying with the prescribed standard (refer to paragraph 5.099) in a language accepted by that Authority has not already been furnished (either as part of the international application or filed subsequently for the purposes of international search), that Authority may invite the applicant to furnish a listing complying with this standard or containing a translation of the language-dependent free text in a language accepted by that Authority and, if applicable, to pay a late furnishing fee. The listing required by the International Searching Authority is for the purpose of carrying out the international search; the application of the requirements of national law in relation to disclosure of inventions involving a sequence listing is a matter for the national phase of processing.

7.006. [Deleted]

7.007. [Deleted]

7.008. Does the International Bureau recommend any software for the preparation of sequence listings in electronic format?

The sequence listing should be created using WIPO Sequence (refer to paragraph 5.104).

7.009. How should I label a diskette or any other electronic carrier accepted by the International Searching Authority for the submission of sequence listings?

Annex F - Appendix IV - 2.(f) of the Administrative Instructions

The diskette or any other electronic carrier that is acceptable to the competent International Searching Authority must have a label permanently affixed thereto on which has been typed, or hand-printed in block capitals, the name of the applicant, the title of the invention, a reference number, the date on which the data were recorded, the computer operating system and the name of the competent Authority. If the diskette or any other electronic carrier that is acceptable to the competent Authority is submitted after the date of filing of an application, the labels must also include the filing date of the application and the application number.

7.010. What is the procedure for furnishing a sequence listing upon invitation?

Rule 13^{ter}.1(a), Rule 13^{ter}.1(c), Rule 13^{ter}.1(d)

An invitation from the International Searching Authority to furnish a sequence listing complying with the standard provided for in Annex C to the Administrative Instructions (refer to paragraphs 7.005 to 7.008) or containing a translation of the language-dependent free text, will specify a time limit for response to the invitation. The furnishing of a sequence listing in response to the invitation may be subjected by the International Searching Authority to the payment of a late furnishing fee. The amount of the late furnishing fee shall be determined by the International Searching Authority but shall not exceed 25% of the international filing fee referred to in item 1 of the Schedule of Fees (excluding any fee paid for each sheet of the international application in excess of 30). Any sequence listing furnished by the applicant must be accompanied by a statement to the effect that the listing does not go beyond the disclosure in the international application as filed. If the applicant does not comply within that time limit, the search undertaken by the International Searching Authority may be restricted (refer to paragraph 7.013). For the means of submitting documents, refer to paragraphs 11.067 to 11.070.

7.011. Does a sequence listing furnished to the International Searching Authority form part of the international application?

Rule 13^{ter}.1(e)

Any sequence listing furnished separately to the International Searching Authority under Rule 13^{ter} is used only for the purposes of the international search and does not form part of the international application. Nevertheless, once the international application has been published, any such sequence listing will be made available for public inspection by the International Bureau on PATENTSCOPE (<https://www.wipo.int/en/web/patentscope/>). The applicant may later amend the description (under Article 34 or at the time of national phase entry) to include a sequence listing part of the description complying with WIPO Standard ST.26.

7.012. Will a sequence listing furnished to the International Searching Authority also meet any requirements of the International Preliminary Examining Authority or, in the national phase, of a designated Office?

Rule 13^{ter}.2, Rule 49.5(a-bis)

The same requirements in relation to sequence listings for the purposes of international search apply during international preliminary examination (refer to paragraph 10.063). The International Preliminary Examining Authority may, for example, invite the applicant to furnish to it a sequence listing complying with the standard provided for in Annex C of the Administrative Instructions or containing a translation of the language-dependent free text in a language accepted by that Authority for the purposes of international preliminary examination. Concerning designated Offices, no designated Office may require the applicant to furnish to it a sequence listing other than a sequence listing complying with the standard provided for in Annex C of the Administrative Instructions. If a designated Office finds that a sequence listing does not comply with the prescribed standard and/or does not contain language-dependent free text in a language accepted by the Office, it may invite the applicant to furnish a listing or a translation complying with those requirements (refer to National Chapters).

LIMITATIONS ON INTERNATIONAL SEARCH

7.013. May the International Searching Authority refuse to search certain subject matter?

Article 17(2)(a)(i), Article 17(2)(b), Rule 13ter.1(d), Rule 39.1

The International Searching Authority is not required to perform an international search on claims which relate to any of the following subject matter:

- (i) scientific and mathematical theories,
- (ii) plant or animal varieties or essentially biological processes for the production of plants and animals, other than microbiological processes and the products of such processes,
- (iii) schemes, Rules or methods of doing business, performing purely mental acts or playing games,
- (iv) methods for treatment of the human or animal body by surgery or therapy, as well as diagnostic methods,
- (v) mere presentation of information, and
- (vi) computer programs to the extent that the Authority is not equipped to search prior art concerning such programs.

However, certain International Searching Authorities do, in practice, search these fields to varying extents – for example, several International Searching Authorities search subject matter which is normally searched under the national (or regional) procedure (for details, refer to Annex D). In addition, the International Searching Authority is not required to search the international application, to the extent that a meaningful search cannot be carried out, in certain cases where a sequence listing is not furnished in accordance with the prescribed standard or is not available to it in an accepted language (refer to paragraphs 7.005 to 7.012). If the International Searching Authority is not required to search any of the claims, it may declare that it will not establish an international search report. It should, nevertheless, be noted that the lack of an international search report in such a case does not, in itself, have any influence on the validity of the international application, the processing of which, including its communication to the designated Offices, continues. In respect of the possibility for the International Searching Authority to limit its competence, refer to paragraph 7.002.

7.014. May the International Searching Authority refuse to search international applications which are unclear or have other defects?

Article 17(2)(a)(ii), Article 17(2)(b), Rule 6.4(a)

If the International Searching Authority considers that the description, the claims or the drawings fail to comply with the prescribed requirements to such an extent that a meaningful search cannot be carried out, it may declare that it will not establish a search report (such a declaration may also be made in respect of some of the claims only). This may in particular occur where the description or the claims are unclear. The lack of an international search report does not, of itself, have any influence on the validity of the international application, the processing of which, including its communication to the designated Offices, continues. Where only some of the claims are found to be “unsearchable,” the International Searching Authority will not search them but will search the rest of the international application; as a result, it will then establish a partial search report in relation to the searched claims. This partial search report also contains a declaration under Article 17(2)(b) that certain claims were found unsearchable. The same may apply in the case of multiple dependent claims which do not comply with the manner of drafting provided for in the second and third sentences of Rule 6.4(a) (refer to paragraph 5.113).

UNITY OF INVENTION

7.015. What is the purpose of the requirement of “unity of invention”?

Article 17(3)(a), Rule 13

The search fee (refer to paragraph 5.184(ii) and Annex D) is intended to compensate the International Searching Authority for carrying out an international search on the international application, but only where the international application meets the requirement of “unity of invention.” That means that the international application must relate to only one invention or must relate to a group of inventions which are so linked as to form a single general inventive concept. The requirement of unity of invention is explained in detail in paragraphs 5.114 to 5.123.

7.016. What happens where the International Searching Authority considers that the international application does not meet the requirement of unity of invention?

Article 17(3)(a), Rule 13, Rule 40.1, Rule 40.2(a), Rule 40.2(b), Rule 40.2(e)

If the International Searching Authority finds that the international application does not meet the requirement of unity of invention, it invites the applicant to pay additional fees, specifying the reasons for its finding and indicating the number of additional fees to be paid. The invitation will also invite the applicant to pay, where applicable, and will indicate the amount of, the protest fee as referred to in Rule 40.2(e). Such additional fees are payable directly to the International Searching Authority within one month from the date of the invitation. Annex D indicates the amount of the additional search fee per additional invention charged by each International Searching Authority.

7.017

When the International Searching Authority invites the applicant to pay additional fees, it may annex to the invitation the results of a partial international search limited to the invention first mentioned in the claims (the relevant claims are identified in the invitation). The results of such a partial search will be included in the international search report when it is established, together with the results of the search of any further invention for which the applicant pays additional fees within the time limit fixed in the invitation.

7.018

Article 17(3)(a), Rule 13

The International Searching Authority establishes the international search report in any case on those parts of the international application which relate to the “main invention,” that is, the invention - or group of inventions so linked as to form a single general inventive concept - first mentioned in the claims. Moreover, the International Searching Authority establishes the international search report also on those parts of the international application which relate to any invention - or any group of inventions so linked as to form a single general inventive concept - in respect of which the applicant has paid the additional fee within the time limit fixed in the invitation.

7.019. May the applicant protest against payment of the additional fees?

Rule 40.2(c), Rule 40.2(d)

Yes, any applicant may pay the additional fee under protest, that is, accompanied by a reasoned statement to the effect that the international application complies with the requirement of unity of invention or that the number of the required additional fees is excessive. Any such protest is examined by a review body constituted in the framework of the International Searching Authority, and a decision is taken on it. To the extent that the applicant's protest is found to be justified, the additional fee is totally or partly reimbursed. At the request of the applicant, the texts of both the protest and the decision on it are notified to the designated Offices together with the international search report.

7.020

Rule 40.1, Rule 40.2(e)

Where the applicant pays additional fees under protest, the International Searching Authority may also require the applicant to pay a fee for the examination of the protest (“protest fee”). Details of the protest fee, if any, charged by the International Searching Authorities appear in Annex D. Where the applicant has not, within one month from the date of the invitation to pay additional fees, paid any required protest fee, the protest shall be considered not to have been made and the International Searching Authority shall so declare.

7.021. What happens if the applicant does not pay the additional fees as invited?

Article 17(3)(b)

Where, within the prescribed time limit, the applicant does not pay all the additional fees indicated by the International Searching Authority, but pays only some of them, or does not pay any additional fee at all, certain parts of the international application are not searched by that Authority. The lack of an international search report in respect of those parts of the international application does not, of itself, have any influence on the validity of the international application, the processing of which, including its communication to the designated Offices, continues in respect of all claims. Nevertheless, the national law of any designated State may provide that such unsearched parts of the international application will be considered withdrawn as far as that State is concerned unless a special fee is paid by the applicant to its national Office. There are only a few Offices which apply such provisions. Details of special fees are given in the respective National Chapters.

TITLE AND ABSTRACT

7.022. What happens if the International Searching Authority finds that the title of the invention or the abstract is missing or defective?

Rule 37, Rule 38, Rule 44.2

In such cases, and in certain circumstances, it is the International Searching Authority which eventually establishes an appropriate title or abstract. For details, refer to Rules 37, 38 and 44.2, and paragraph 5.173.

INTERNATIONAL SEARCH REPORT

7.023. When must the international search report be established?

Article 18(1), Rule 42

The international search report must be established within three months from the receipt of the search copy by the International Searching Authority (refer to paragraph 6.059) or nine months from the priority date, whichever time limit expires later.

7.024. What are the contents of the international search report?

Rule 43

The international search report contains, among other things, the citation of the documents considered relevant, the classification of the subject matter of the invention (according to the International Patent Classification) and an indication of the fields searched (those fields being identified by a reference to their classification) as well as any electronic data base searched (including, where practicable, the search terms used). Citations of particular relevance must be indicated specially. Citations which are not relevant to all the claims must be indicated in relation to the claim or claims to which they are relevant. If only certain passages of the document cited are relevant or particularly relevant, they must be identified, for example by an indication of the page on which, or the column or lines in which, the passage appears. It is important to note that an international search report must not contain any expression of opinion, reasoning, argument or explanation of any kind whatsoever. For full details, refer to Rule 43.

7.025. How do the applicant and the International Bureau receive the international search report?

Article 18(2), Rule 44.1

The International Searching Authority transmits, on the same day, one copy of the international search report (or, where none is established, a declaration to that effect - refer to paragraphs 7.013 and 7.014) and the written opinion established by it to the applicant and to the International Bureau. The latter publishes the international search report with the published international application (refer to paragraph 9.015) and sends a copy to the designated Offices.

7.025A. May the applicant respond to the international search report?

The Regulations do not specifically provide for an opportunity for the applicant to respond to the international search report, except that after receipt of the report, the applicant is entitled, under Article 19, to one opportunity to amend the claims of the international application (refer to paragraphs 9.004 to 9.011). For the possibility to respond to the written opinion of the International Searching Authority, refer to paragraph 7.030.

7.026. How can the applicant obtain copies of the documents cited in the international search report?

Article 20(3), Rule 44.3

The applicant can obtain copies of the documents cited in the international search report by requesting them from the International Searching Authority. Certain International Searching Authorities, however, transmit such copies automatically without extra charge to the applicant, together with the international search report. Annex D indicates those International Searching Authorities and indicates for the other Authorities the fees charged for furnishing copies on request.

WRITTEN OPINION OF THE INTERNATIONAL SEARCHING AUTHORITY

7.027. What is the written opinion of the International Searching Authority?

Rule 43bis.1(a)

The International Searching Authority will establish, at the same time that it establishes the international search report or the declaration referred to in Article 17(2)(a), a preliminary and nonbinding written opinion on the questions whether the claimed invention appears to be novel, to involve an inventive step and to

be industrially applicable, very similar in scope to the written opinion established by the International Preliminary Examining Authority during international preliminary examination.

7.028

Rule 44.1

The relevant date for determining prior art for the purposes of establishing the written opinion is the international filing date or, where priority of an earlier application is claimed, the priority date - this date is different from that used in establishing the international search report but is consistent with the date used in international preliminary examination. The written opinion of the International Searching Authority is established in the language in which the international search report is established, and is communicated to the applicant and to the International Bureau together with the international search report or the declaration referred to in Article 17(2)(a) (refer to paragraph 7.025). The written opinion, unless it is not yet available to the International Bureau, is also made publicly available on PATENTSCOPE on the same day that the international application is published.

7.029. When must the written opinion be established?

Article 18(1), Rule 42

The International Searching Authority must, as a rule, establish the international search report and the written opinion within three months from the receipt of the search copy sent to it by the receiving Office or within nine months from the priority date, whichever time limit expires later.

7.030. May the applicant respond to the written opinion of the International Searching Authority?

Even though no special provisions are included in the Regulations providing for the applicant to comment on the written opinion of the International Searching Authority, in accordance with the decision of the PCT Assembly, applicants may submit comments on an informal basis to the International Bureau. The purpose of such informal comments is to give the applicant an opportunity to rebut the written opinion of the International Searching Authority in the event that international preliminary examination is not requested. There is no maximum word count for informal comments. When submitting informal comments to the International Bureau, they should be clearly identified as such. Informal comments will be made publicly available on PATENTSCOPE as from the date of international publication. It is recommended to submit informal comments before the expiration of 28 months from the priority date, so that they will be available to designated Offices upon entry into the national phase. Any informal comments received after 30 months from the priority date will only be kept in the file of the International Bureau and not be transmitted to the designated Offices. As far as the language of the informal comments is concerned, it is the practice of the International Bureau to accept and communicate to designated Offices informal comments in any language. Any formal response to the written opinion of the International Searching Authority must be submitted directly to the International Preliminary Examining Authority under Article 34 as part of the procedure under Chapter II. If a demand is filed, informal comments submitted under Chapter I will not be forwarded to the designated Offices, however they will still be made available to the public on PATENTSCOPE.

7.031. What is the relationship between the written opinion of the International Searching Authority and the international preliminary report on patentability (IPRP) (Chapter I)?

Rule 44bis

If no international preliminary examination report has been or will be established, the written opinion of the International Searching Authority will form the basis for the issuance by the International Bureau, on behalf of the International Searching Authority, of the international preliminary report on patentability (IPRP) (Chapter I) which will be communicated to all designated Offices, together with any informal comments submitted by the applicant. The international preliminary report on patentability (Chapter I) is made available on PATENTSCOPE for public inspection after the expiration of 30 months from the priority date.

7.032

Rule 43bis.1(c), Rule 66.1bis

If a demand for international preliminary examination is filed in respect of an international application, the written opinion which has been established by the International Searching Authority will, in general, be used by the International Preliminary Examining Authority as its own first written opinion, unless the International Preliminary Examining Authority notifies the International Bureau to the contrary.

CHAPTER 8: SUPPLEMENTARY INTERNATIONAL SEARCH

GENERAL

8.001. What is supplementary international search?

Rule 45bis

Supplementary international search permits the applicant to request, in addition to the international search carried out under Article 15(1) (the “main international search”, as explained in Chapter 7), one or more supplementary international searches each to be carried out by an International Authority (the “Authority specified for supplementary search”) other than the International Searching Authority that carries out the main international search.

8.002. What are the benefits of supplementary international search for the applicant?

Requesting supplementary international search reduces the risk of new prior art being cited in the national phase. The increasing diversity of prior art in different languages and different technical fields means that the Authority carrying out the main international search is not always capable of discovering all of the relevant prior art. Requesting one or more supplementary international searches, during this early phase of the patent prosecution, expands both the linguistic and technical scope of the search. In addition, it may also be possible to have the supplementary search carried out in a State where they are likely to enter the national phase later on.

8.003. Which authorities can be requested to carry out a supplementary international search?

Rule 45bis.1(e), Rule 45bis.9(b)

Only an International Searching Authority that has stated its preparedness to carry out supplementary international searches (refer to Annex SISA), and which is not the International Searching Authority that carried out the main international search, can be requested to carry out a supplementary international search.

8.004. Does each Authority offer the same supplementary international search service?

Rule 45bis.9(a), Rule 45bis.9(c)

The Authorities prepared to offer supplementary international searches may specify any limitations and conditions on this service in their agreement with the International Bureau (refer to https://www.wipo.int/en/web/pct-system/access/isa_ipea_agreements). These limitations may include limitations as to the subject matter for which supplementary searches will be carried out, beyond those limitations that can be evoked in respect of the main international search (refer to paragraphs 7.013 and 7.014), and limitations as to the total number of supplementary international searches which will be carried out in a given period (refer to Annex SISA).

8.005. When should the request for a supplementary search be filed?

Rule 45bis.1(a), Rule 45bis.1(e)(i)

In many cases, requests for supplementary search will be filed once the applicant has received the main international search report. In any event, the applicant must file a request for a supplementary international search prior to the expiration of 22 months from the priority date. If the request is received after the expiration of this time limit, it will be considered not to have been submitted and there are no provisions to extend this time limit.

SUPPLEMENTARY SEARCH REQUEST

8.006. How should a supplementary search request be filed?

Rule 45bis.1(b), Section 102(f), Section 102(g)

To facilitate preparation of the supplementary search request, the International Bureau has made available Form PCT/IB/375 “Supplementary Search Request” in editable PDF format on WIPO’s website (instructions on how to complete and save the editable form are also available at: <https://www.wipo.int/en/web/pct-system/forms/instructions>). This form should be completed in accordance with indications in the Notes attached to the form. While use of this form is optional, it is highly recommended. It is further recommended to submit the form to the International Bureau through ePCT.

8.007. Can I submit more than one request for supplementary international search?

Rule 45bis.1(a)

If the applicant wishes more than one supplementary international search to be carried out, a separate request, preferably using Form PCT/IB/375, should be submitted for each supplementary international search requested.

8.008. Where should a supplementary search request be filed?

Rule 45bis.1(b), Rule 45bis.4(e)

A supplementary search request must be filed with the International Bureau and not with the Authority specified for supplementary search. The International Bureau will transmit the request to the Authority specified for supplementary search once it has verified that all formal requirements have been complied with.

8.009. In which language should the supplementary search request be filed?

Rule 92.2(d), Section 104

The supplementary search request should be filed in either English or French.

8.010. What is the language of correspondence with the International Bureau in connection with supplementary international search?

Rule 92.2(d), Section 104

Any correspondence between the applicant and the International Bureau should be in English or French, at the choice of the applicant, provided that it is in the same language as the international application – if the international application was filed in English or French. However, communications from the applicant to the International Bureau via ePCT may also be in the language of publication of the international application.

8.011. How should the Authority specified for supplementary search be identified?

Rule 45bis.1(b)(ii)

The Authority specified for supplementary search should be identified, by an indication of the name or two-letter code of the Authority at the top of the first sheet of the supplementary search request form (PCT/IB/375).

8.012. Which documents, other than the supplementary search request must be submitted?

Rule 13ter.1, Rule 45bis.1(c)

Where neither the language in which the international application was filed, nor the language in which a translation (if any) has been furnished for the purposes of main international search or international publication, is accepted by the Authority specified for supplementary search, a translation of the international application into a language which is accepted by that Authority must be submitted together with the request. Where the international application contains disclosure of one or more nucleotide and/or amino acid sequences required to be included in a sequence listing pursuant to Annex C of the Administrative Instructions, the applicant, if so required, should furnish a copy of the sequence listing (complying with the prescribed standard in a language accepted by that Authority) to the International Bureau together with the supplementary search request.

Box No. I: Identification of the International Application**8.013. How should the international application be identified when I file a request for international supplementary search?**

Rule 45bis.1(b)(i), Section 109, Section 110

The applicant should clearly identify the international application by its international application number, international filing date (for the date format, refer to paragraph 5.061) and title, as provided for in Box No. I. If a new title has been established by the International Searching Authority, that title should be indicated.

8.014

Where the international application claims the priority of several earlier applications, the filing date of the earliest application whose priority is claimed should be indicated as the priority date. A file reference not exceeding 25 characters may also be indicated, if desired by the applicant (refer to paragraph 5.017).

Box No. II: Applicant

8.015. How should the applicant be identified?

Rule 45*bis*.1(b)(i)

The applicant should be identified by the indications of his/her name and address in Box No. II. The requirements for these indications are the same as those for the request form (PCT/RO/101) (refer to paragraphs 5.025 to 5.034).

8.016

Where there are two or more applicants, only one needs to be indicated for the purposes of requesting supplementary search. It is recommended that the applicant who will represent all the applicants, and to whom notifications are to be sent, be indicated. If an agent or a common representative is indicated in Box No. III of the request, notices will be sent to that agent or common representative (also refer to paragraphs 11.015 to 11.017).

8.017. How can the applicant receive notifications via e-mail?

Rule 4.4(c)

If an e-mail address is indicated in Box No. II of the supplementary search request form, the International Bureau, and the Authority specified for supplementary search (if it provides such a service), will send notifications in respect of the international application to the applicant by e-mail, thus avoiding processing or postal delays. In this case, no paper notifications will usually be sent by postal mail, unless the Authority specified for supplementary search is willing to additionally send such paper notifications. Where the agent or common representative has also provided an e-mail address, e-mail notifications will only be sent to the appointed agent or common representative (refer to paragraph 8.018). Note that not all Authorities will send such notifications by e-mail (refer to Annex B). If no e-mail address is provided, or if the applicant chooses to receive notifications exclusively by postal mail, by marking the corresponding check-box in Box No. II, or in the cases where the Authority specified for supplementary search does not provide for sending notifications by e-mail, notifications will be sent to the given mailing address exclusively by postal mail. It is the applicant's responsibility to keep any e-mail address details up-to-date and to ensure that incoming e-mails are not blocked, for any reason, on the recipient's side. Changes to the e-mail address indicated should be requested to be recorded, preferably directly at the International Bureau, under Rule 92*bis*.

Box No. III: Agent or Common Representative

8.018. How is an agent appointed for the purposes of the procedure before the Authority specified for supplementary search?

Rule 45*bis*.1(b)(i), Rule 90.1, Rule 90.2, Rule 90.4, Rule 90.5

The appointment of an agent to represent the applicant for the purposes of all procedures during the international phase, including the procedure before the Authority specified for supplementary search, may be made in Box No. IV of the request form (PCT/RO/101) or in a separate power of attorney submitted to the receiving Office (also refer to paragraphs 5.041 to 5.046 and 11.001 to 11.014).

8.019. Can I appoint an agent specifically for the procedures before the Authority specified for supplementary search?

Where, however, an agent is to be appointed specifically for the purposes of the procedure before the Authority specified for supplementary search, this should be indicated in Box No. III of the supplementary search request form and the form signed by the applicant.

8.020

The appointment of an agent may also be made in a separate power of attorney signed by the applicant. The indications in Box No. III or in a separate power of attorney must include the name and address of the agent (refer to paragraphs 5.025 to 5.029). It is recommended that the agent's telephone number, facsimile number and/or e-mail address also be indicated. It is also recommended that where an agent is registered with the Office, that is acting as the Authority specified for supplementary search, the number or other indication under which the agent is so registered should be included. Model powers of attorney are available in editable PDF format on the WIPO website. Any separate power of attorney must be submitted to the Authority specified for supplementary search if the appointment was made specifically for the purposes of the procedure before that Authority. Where a general power of attorney authorizes an agent to represent the applicant before the Office, which acts as the Authority specified for supplementary

search, and the appointment was made specifically for the purposes of the procedure before that Authority, the general power of attorney must be deposited with the said Authority. The Authority specified for supplementary search may waive the requirement that a separate power of attorney or a copy of the general power of attorney be submitted to it (refer to Annex SISA).

8.021. How can an agent receive notifications via e-mail?

Rule 4.4(c)

If an e-mail address is indicated in Box No. III, the International Bureau, and the Authority specified for supplementary search (if it provides such a service), will send notifications to the agent or common representative at the indicated e-mail address, thus avoiding processing or postal delays (refer to paragraph 8.017). In this case, no paper notifications will usually be sent by postal mail, unless the Authority specified for supplementary search is willing to additionally send such paper notifications. If no e-mail address is provided, or if the agent or common representative chooses to receive notifications exclusively by postal mail, by marking the corresponding check-box in Box No. III, or in the cases where the Authority specified for supplementary search does not provide for sending notifications by e-mail, notifications will be sent to the given mailing address exclusively by postal mail.

8.022. What is the address for correspondence?

Section 108

Where an agent is appointed specifically for the purposes of the procedure before the Authority specified for supplementary search, all notifications issued by that Authority will be addressed only to that agent. Otherwise, correspondence will be sent to the agent appointed previously or to the common representative, as the case may be. However, where no agent or common representative is appointed and the applicant wishes correspondence to be sent to a different address other than that indicated in Box No. II, the applicant may indicate that address in Box No. III. In such cases, the last check-box of Box No. III must be marked. However, the last check-box must not be marked if either of the check-boxes "agent" or "common representative" in Box No. III has been marked.

Box No. IV: Basis for Supplementary International Search

8.023. Where should the language, for the purposes of supplementary international search, be indicated?

Rule 45bis.1(b)(iii)

The applicant should indicate the language, for the purposes of supplementary international search, in Box No. IV and whether that language is that of the international application as originally filed, or of any translation furnished to the receiving Office under Rule 12.3 or 12.4. Where neither the language in which the international application was filed, nor the language in which a translation (if any) has been furnished under Rule 12.3 or 12.4, is accepted by the Authority specified for supplementary search, a translation of the international application, into a language accepted by that Authority, must be furnished together with the request. In such cases, the last check-box concerning language should be marked. Where more than one of the above applies, the applicant may indicate which language version is to form the basis of the supplementary international search, by marking the corresponding check-box.

8.024. When and how may the applicant select certain inventions to be searched?

Rule 45bis.1(d), Rule 45bis.5(d)

Where the International Searching Authority has found that the international application does not comply with the requirement of unity of invention, the applicant may choose, among the several inventions, which invention he/she wishes to be searched by the Authority specified for supplementary search. If the applicant wishes to limit the supplementary international search to an invention, other than the main invention referred to in Article 17(3)(a), he/she may indicate this wish by marking the last check-box in Box No. IV of the supplementary search request form, and state the corresponding numbers of the claims relating to this invention in the space provided. Where the international search report is available to the Authority specified for supplementary search before it starts the supplementary international search, it may, however, exclude from the search any claims which were not the subject of the main international search.

Box No. V: Check List

8.025. What is the purpose of the check list?

Box No. V should be completed by the applicant to allow the International Bureau to verify the completeness of the documents accompanying the supplementary search request and, in particular, to

check whether a translation of the international application and a sequence listing, where indicated in the respective check-boxes, are actually received.

Box No. VI: Signature of Applicant, Agent or Common Representative

8.026. Who must sign the supplementary search request?

Rule 90.3(a), Rule 92.1

The supplementary search request must be signed by one of the applicants or by the appointed agent. It should be noted, however, that additional signatures may be required for withdrawal of the supplementary search request (refer to paragraphs 11.048 to 11.061).

Notes to the Supplementary Search Request Form

8.027. What are the Notes to the supplementary search request form?

The Notes to the supplementary search request form are intended to facilitate the completion of that form. They outline, in relation to each Box of that form, what indications are required and how they are to be made. The Notes are not required to be submitted with the supplementary search request.

Fee Calculation Sheet

8.028. What is the fee calculation sheet?

The fee calculation sheet is intended to help the applicant calculate the total amount of fees payable to the International Bureau. The sheet is usually annexed to the supplementary search request form (refer to 8.006). It is strongly recommended that the applicant complete the fee calculation sheet and submit it to the International Bureau. This will help the International Bureau to verify the fee calculations and identify any errors. The Notes to the fee calculation sheet provide details about completion of the sheet. For more information about the payment of fees generally, refer to paragraphs 5.184 to 5.199.

FEES

8.029. Which fees must be paid by the applicant?

Rule 45bis.2(a), Rule 45bis.3(a)

Two fees must be paid for supplementary international search: (i) the supplementary search fee for the benefit of the Authority specified for supplementary search; and (ii) the supplementary search handling fee for the benefit of the International Bureau. The supplementary search fee charged by each Authority varies and is fixed by the Authority in its agreement with the International Bureau (refer to https://www.wipo.int/en/web/pct-system/access/isa_ipea_agreements and Annex SISA). The supplementary search handling fee is fixed by the PCT Assembly and listed in the Schedule of Fees annexed to the PCT Regulations.

8.029A. Is any fee reduction available?

An applicant is entitled, in accordance with the Schedule of Fees, item 5, to a reduction of 90% of the supplementary search handling fee if he/she is a natural person and a national of and resides in a State that is listed as being a State whose per capita gross domestic product is below 25,000 US dollars (according to the most recent 10-year average per capita gross domestic product figures at constant 2005 US dollars values published by the United Nations), and whose nationals and residents who are natural persons have filed less than 10 international applications per year (per million population) or less than 50 international applications per year (in absolute numbers) according to the most recent 5-year average yearly filing figures published by the International Bureau or if he/she is, whether a natural person or not, a national of and resides in a State that is listed as being classified by the United Nations as a least developed country. (For a list of States whose nationals and residents are eligible for the fee reduction, refer to <https://www.wipo.int/documents/d/pct-system/docs-en-fee-reduction-january.pdf>). If there are several applicants, each must satisfy one or the other of the above-mentioned criteria. However, it should be noted that an applicant is only entitled to the reduction if, at the time of filing the supplementary search request, the applicant is the true and only owner of the application and under no obligation to assign, grant, convey or license the rights in the invention to another party which is not eligible for the fee reduction. If the applicant is, or all applicants are, entitled to the reduction of the supplementary search handling fee, this reduction applies on the basis of the indications of name, nationality and residence

given in Box No. II of the supplementary search request, without the need for a specific request to be made.

8.030. When must the applicable fees be paid?

Rule 45bis.2(b), Rule 45bis.2(c), Rule 45bis.3(b), Rule 45bis.3(c), Rule 45bis.4(c), Rule 45bis.4(d)

Both the supplementary search fee and the supplementary search handling fee must be paid to the International Bureau within one month from the date of receipt of the supplementary search request. If they are not paid in full within that time limit, a late payment fee will become due (refer to Form PCT/IB/377). If the fees remain unpaid, the International Bureau will consider the request not to have been submitted.

8.031. In which currencies may fees for supplementary international search be paid?

Payment of fees will only be accepted in Swiss francs. The amount payable is the amount applicable on the date of payment.

8.032. Can fees already paid be refunded in some circumstances?

Rule 45bis.2(d), Rule 45bis.3(d), Rule 45bis.3(e)

If, before the International Bureau has transmitted the relevant documents to the Authority specified for supplementary search, the international application is withdrawn or considered withdrawn, or the supplementary search request is withdrawn or considered not to have been submitted, the International Bureau will refund both the supplementary search fee and the supplementary search handling fee to the applicant. If, before the Authority specified for supplementary search has started the search, the supplementary search request is considered not to have been submitted, that Authority will refund the supplementary search fee to the applicant in accordance with its agreement with the International Bureau (refer to paragraph 8.029).

PROCESSING OF THE SUPPLEMENTARY SEARCH REQUEST BY THE INTERNATIONAL BUREAU

8.033. What does the International Bureau check upon receipt of the supplementary search request?

Rule 45bis.1(e)

Following receipt of the supplementary search request, the International Bureau will check whether the request was received within the prescribed time limit, that is, before the expiration of 22 months from the priority date. It will verify whether the Authority specified is competent to carry out the search, that is, an International Authority which is prepared to offer supplementary international searches and which is not the International Searching Authority that carried out the main international search. If these requirements have not been complied with, it will declare the supplementary search request not to have been submitted, and will notify the applicant accordingly using Form PCT/IB/379 (also refer to paragraphs 8.003 to 8.005).

8.034. What happens if there are other defects in the supplementary search request?

Rule 45bis.4(a)

The International Bureau will then check whether the supplementary search request has clearly indicated the name and address of at least one applicant and of the agent (if any), the title of the invention, the international filing date and the international application number. It will also verify whether a translation of the international application is needed to carry out the supplementary international search, and where necessary, whether that translation has been furnished. If any of these requirements have not been complied with, it will invite the applicant to correct these defects within one month from the date of the invitation using Form PCT/IB/378 (also refer to paragraphs 8.013 to 8.016, 8.018 to 8.020, and 8.023).

8.035. What happens if the fees are not paid or not paid in full?

Rule 45bis.4(b), Rule 45bis.4(c)

The International Bureau will also check whether the supplementary search fee and the supplementary search handling fee have been paid in full. If not, and the one month time limit has not expired, it will invite the applicant to pay the amount required to cover those fees using Form PCT/IB/376. If the one month time limit has already expired, the International Bureau will issue Form PCT/IB/377, inviting the applicant to pay the amount required together with a late payment fee equal to 50% of the supplementary search handling fee, within one month from the date of the invitation (refer also to paragraphs 8.029 and 8.030).

8.036

Rule 45bis.4(d)

If the applicant fails to correct these defects, or does not pay the fees in full, before the expiration of the respective time limit, the supplementary search request will be considered not to have been submitted, and the International Bureau will make a declaration to this effect and notify the applicant accordingly using Form PCT/IB/379.

8.037. When will the International Bureau transmit the relevant documents to the Authority specified for supplementary search?

Rule 45bis.4(e)

Once the International Bureau finds that all of the preceding requirements (refer to paragraphs 8.033 to 8.035) have been complied with, it will transmit the relevant documents (refer to paragraph 8.038) to the Authority specified for supplementary search, promptly after it receives the international search report, or after the expiration of 17 months from the priority date, whichever occurs first. If some documents are still not available to it at the above time, it will promptly transmit them once they are available.

8.038. Which documents are transmitted by the International Bureau to the Authority specified for supplementary search?

Rule 45bis.4(e), Rule 45bis.4(f)

The International Bureau will transmit to the Authority specified for supplementary search a copy of each of the following, where applicable:

- (i) the supplementary search request,
- (ii) the international application,
- (iii) any sequence listing furnished therewith,
- (iv) any translation furnished which is to be used as the basis for the supplementary international search,
- (v) the international search report and the written opinion (including an English translation),
- (vi) any invitation by the International Searching Authority to pay additional fees concerning unity of invention, and
- (vii) any protest by the applicant against the opinion of the International Searching Authority concerning unity of invention, and the decision thereon by the same Authority.

SUPPLEMENTARY INTERNATIONAL SEARCH PROCEDURE

8.039. When will the Authority start work on the supplementary international search?

Rule 45bis.5(a)

On receipt of the relevant documents from the International Bureau, the Authority specified for supplementary search should promptly begin its work (refer to paragraph 8.037). However, if on receipt of the relevant documents, the international search report and written opinion are not yet available, the Authority may postpone the start of the search until it receives these documents. Work on the supplementary international search must, however, commence promptly after the expiration of 22 months from the priority date, regardless of the lateness of the international search report and written opinion. The absence of those documents will be noted on the international search report.

8.040. Which documents may the applicant submit directly to the Authority specified for supplementary search?

Rule 13ter.1, Rule 45bis.4(e), Rule 45bis.5(c)

The applicant should furnish all the required documents to the International Bureau with the supplementary search request (refer to paragraph 8.012), and the International Bureau will transmit these, together with all other relevant documents, to the Authority specified for supplementary search (refer to paragraph 8.038). Any amendments filed under Article 19 or 34 will not be taken into account. If, however, the applicant did not submit a copy of the sequence listing complying with the prescribed standard in a language accepted by that Authority to the International Bureau, together with the request for supplementary search (refer to paragraph 8.012), the applicant will be invited by the Authority specified for supplementary search to submit such a copy to the said Authority. Failure to comply with this requirement may result in that Authority only carrying out the supplementary international search to the extent that a meaningful search can be carried out without the sequence listing (refer also to paragraphs 7.005 to 7.012 for more relevant information).

8.041. What are the consequences if the Authority finds that carrying out the supplementary international search is excluded by a limitation or condition?

Rule 45bis.5(g), Rule 45bis.5(h), Rule 45bis.9

If the Authority specified for supplementary search finds that carrying out the search is entirely excluded by a limitation or condition set out in its Agreement with the International Bureau (refer to https://www.wipo.int/en/web/pct-system/access/isa_ipea_agreements), other than a limitation under Article 17(2), it will declare that the supplementary search request be considered not to have been submitted, and promptly notify the applicant and the International Bureau accordingly. If, however, the Authority finds that carrying out the search is not entirely excluded, it may restrict the search to certain claims only and will indicate this fact in the supplementary international search report.

8.042. May the Authority refuse to search certain claims?

Article 17(2)(a), Rule 45bis.5

In certain circumstances the Authority is not obliged to conduct a supplementary search on some or all of the claims in the international application. These include subject matter that the Authority would not search in a main international search and claims which have not been searched by the main searching Authority. If the Authority specified for supplementary search finds that it is not obliged to search any of the claims, it will declare that no supplementary international search report will be established (refer to paragraph 8.048) and promptly notify the applicant and the International Bureau accordingly.

8.043. What is the scope of the supplementary international search?

Rule 45bis.5(f)

The supplementary international search shall cover at least the documentation indicated for that purpose in the Agreement between the International Authority acting as the Authority specified for supplementary search and the International Bureau (refer to https://www.wipo.int/en/web/pct-system/access/isa_ipea_agreements). For some Authorities this may comprise all PCT documentation plus other patent and technical documents held by that Authority, while others will focus specifically on documentation in certain languages (refer to Annex SISA).

8.044. What will happen where the main International Searching Authority finds that the international application does not comply with the requirement of unity of invention?

Rule 13, Rule 45bis.5(e)

If the main International Searching Authority finds that the international application does not comply with the requirement of unity of invention and the applicant did not pay any additional search fees, the Authority specified for supplementary search is not obliged to carry out any supplementary search on claims which have not been searched by the main International Searching Authority. The requirements for unity of invention are set out in detail in paragraphs 5.114 to 5.123. The Authority specified for supplementary search is not, however, obliged to agree with the main International Searching Authority and may make its own finding on unity of invention.

8.045. What will happen where the Authority specified for supplementary search considers that the international application does not comply with the requirement of unity of invention?

Rule 45bis.6(a), Rule 45bis.6(c)

If the Authority specified for supplementary search finds that the international application does not comply with the requirement of unity of invention (the requirements for unity of invention are set out in detail in paragraphs 5.114 to 5.123) it will not invite the applicant to pay additional fees, as the International Searching Authority does in the main international search. Instead, it will establish the supplementary international search report on those parts of the international application that relate to the invention first mentioned in the claims ("main invention"), and notify the applicant of its opinion that the international application does not comply with the requirement of unity of invention and specify the reasons for that opinion. The applicant may, within one month from the date of the notification, request the Authority to review its opinion, subject to the payment of any review fee (refer to Annex SISA). The review fee will be refunded in full where the opinion is found to be unjustified (refer to paragraph 8.046), and a revised supplementary international search report will be issued, where appropriate.

8.046. What will happen when the applicant requests a review of the opinion of the Authority on unity of invention?

Rule 45bis.6(d), Rule 45bis.6(e)

If the applicant requests a review of the opinion of the Authority specified for supplementary search that the international application does not comply with the requirement of unity of invention and pays any required review fee, the Authority will review its opinion on unity of invention. The review may not be

carried out only by the person who made the decision which is the subject of the review. The result of the review will be notified to the applicant. If the opinion is found to be entirely unjustified, the Authority will establish the supplementary international search report on all parts of the international application and refund the review fee to the applicant. If the opinion is found to be partially unjustified, and the Authority still considers that the international application does not comply with the requirement of unity of invention, it will establish a corrected supplementary international search report where necessary. Independent of the review, the applicant may always request that the text of both the request for review and the decision thereon be communicated to the designated Offices together with the supplementary international search report.

8.047. When is the supplementary international search report established?

Rule 45bis.7(a)

The supplementary international search report must be established within 28 months from the priority date using Form PCT/SISA/501.

8.048. What happens when the Authority specified for supplementary search declares that no supplementary international search report will be established?

Rule 45bis.7(a)

A declaration that no supplementary international search report will be established must be made within 28 months from the priority date using Form PCT/SISA/502 (refer to paragraphs 8.003 and 8.004).

8.049. What does the supplementary international search report contain?

Rule 45bis.7(d), Rule 45bis.7(e)

The supplementary international search report is generally similar in contents and appearance to the main international search report (refer to paragraph 7.024). It does not, however, contain comments on the title of the invention or the abstract, nor does it contain the classification of the subject matter. Further, it does not repeat relevant prior art documents which have already been cited in the international search report, unless this is necessary because of new relevance when read in conjunction with other documents discovered during the supplementary international search. On occasion, the supplementary international search report may contain more detailed explanations concerning citations of documents than those in the main international search report. This is due to the fact that, unlike the main international search, no written opinion is established with the supplementary international search report, and these additional details are helpful for a full understanding of the prior art. Furthermore, it may contain additional comments on the scope of the supplementary search which has been conducted. This is of particular relevance when the supplementary search has been carried out without the benefit of the main international search report.

8.050. How can the applicant obtain copies of the documents cited in the supplementary international search report?

Article 20(3), Rule 44.3, Rule 45bis.7

Many Authorities which have stated their preparedness to carry out supplementary international search transmit such copies automatically, without extra charge to the applicant, together with the supplementary international search report. Annex SISA indicates whether an Authority charges a fee for furnishing copies of these documents.

8.051. How is the supplementary international search report transmitted?

Article 20(1), Rule 45bis.8, Rule 47.1(d)

The Authority specified for supplementary search will, on the same day, transmit one copy of the supplementary international search report (or, the declaration that no supplementary international search report will be established) to the International Bureau and one copy to the applicant. The International Bureau will include the supplementary international search report in its communication to each designated Office, as if it were part of the international search report, unless the designated Office has waived this requirement.

8.052. Is a copy of the supplementary international search report sent to the International Preliminary Examining Authority?

Rule 45bis.8(b), Rule 45bis.8(c), Section 420(b)

Where the applicant files a demand for international preliminary examination, and the International Preliminary Examining Authority is not the same Authority as that specified for supplementary search, the International Bureau will, promptly on receipt of the supplementary international search report, transmit a copy of said report to the International Preliminary Examining Authority. The report, together with the

international search report, will all be taken into account by that Authority during the process of international preliminary examination. Note, however, if that Authority has already begun to draw up the international preliminary examination report, it need not take into account the supplementary international search report for the purposes of that report.

8.053. Will the supplementary international search report be published?

Article 20(3), Rule 44.3, Rule 94.1(b)

The supplementary international search report is not published *per se* nor as part of the international publication. Nevertheless, once the international application has been published, and the supplementary international search report has been received, it is made available for public inspection by the International Bureau on PATENTSCOPE (<https://www.wipo.int/en/web/patentscope/>).

CHAPTER 9: INTERNATIONAL PUBLICATION, AMENDMENT OF CLAIMS, AND OTHER PROCESSING OF THE INTERNATIONAL APPLICATION BY THE INTERNATIONAL BUREAU

GENERAL

9.001. What are the main procedural steps at the International Bureau?

The main procedural steps that any international application goes through at the International Bureau are the following:

Rule 22.1, Rule 24.2

(i) the International Bureau monitors the receipt of the record copy of the international application and notifies the fact, and the date of receipt, to the applicant and the authorities concerned; for details, refer to paragraph 9.002;

Article 19, Rule 46

(ii) the applicant may amend the claims of the international application under Article 19 by means of a communication addressed to the International Bureau; for details, refer to paragraphs 9.004 to 9.011;

Article 21, Rule 48

(iii) the international application is published by the International Bureau (such publication usually takes place just after the expiration of 18 months from the priority date); for details, refer to paragraphs 9.012 to 9.024;

Article 20, Rule 43*bis*, Rule 44, Rule 47

(iv) copies of the international application, the international search report and the written opinion of the International Searching Authority (in the form of the international preliminary report on patentability (Chapter I of the PCT; refer to (v) and (vi) below) pertaining to it are transmitted by the International Bureau to the designated Offices; for details, refer to paragraphs 9.028 and 9.029;

Rule 44*bis*

(v) where a preliminary examination report (international preliminary report on patentability (Chapter II of the PCT)) has not been established, the International Bureau issues an international preliminary report on patentability (Chapter I of the PCT) (refer to paragraph 7.031);

Rule 44*bis*.2, Rule 44*bis*.3

(vi) copies of that report are transmitted by the International Bureau to the applicant, and to the designated Offices in accordance with Rule 93*bis*, but not before the expiration of 30 months from the priority date; the International Bureau may also, if so requested by any designated State, transmit a copy of a translation into English of the international preliminary report on patentability (Chapter I of the PCT) to any interested designated Office and to the applicant at the same time as it communicates the report to that Office;

Article 36, Rule 70, Rule 71, Rule 72, Rule 73, Rule 74

(vii) where a demand for international preliminary examination has been filed, the International Bureau notifies the elected Offices, transmits the international preliminary report on patentability (Chapter II of the PCT) and related documents to them, and makes a translation of that report into English (if required by any elected Office); for further details, refer to paragraphs 10.006, 10.045, 10.078 10.079 and 10.079A.

9.002. When and to whom does the International Bureau notify its receipt of the record copy of the international application?

Rule 24.2, Rule 47.1(a-*bis*), Rule 93*bis*.1

When are designated Offices notified? How the International Bureau receives the record copy and how it monitors that receipt is explained in paragraphs 6.057 and 6.058. The record copy of the international application should normally reach the International Bureau before the expiration of 13 months from the priority date. After receiving the record copy, the International Bureau notifies the applicant, the receiving Office and the International Searching Authority (unless it has informed the International Bureau that it wishes not to be so notified) of the fact and of the date of receipt of the record copy. All those notifications are effected promptly after the International Bureau's receipt of the record copy.

9.003. What should the applicant do when receiving the notification of receipt of the record copy?

Rule 24.2(a), Rule 53.7, Rule 90*bis*.2

The notification sent to the applicant (Form PCT/IB/301) contains the list of the designated Offices. This notification will allow the applicant to check whether the fact that certain designations (DE, JP and/or KR) were specifically excluded in the request, and/or any subsequent withdrawal of designations have been

properly reflected. The applicant may wish to withdraw the designation of any designated State at this point, or at any time prior to the expiration of 30 months from the priority date.

AMENDMENT OF THE CLAIMS UNDER ARTICLE 19

9.004. When and how may the claims of the international application be amended in the international phase?

Article 19(1), Rule 46, Rule 49.5(a)(ii), Rule 49.5(c), Rule 49.5(c-bis)

The applicant is entitled, under Article 19, to one opportunity to amend the claims of the international application in the international phase. (Further opportunities to amend the claims, and also the description and the drawings, are available during the international phase under Article 34 if, and only if, the applicant files a demand for international preliminary examination – refer to paragraphs 9.011, 10.024 to 10.028, and 10.067 to 10.071). Any amendment to the claims, under Article 19, must be filed with the International Bureau – not with the receiving Office or the International Searching Authority. The amendments must be in the language in which the international application is published (Arabic, Chinese, English, French, German, Japanese, Korean, Portuguese, Russian or Spanish – refer to paragraphs 9.017 to 9.019). The opportunity to make amendments under Article 19 is available after the applicant has received the international search report and the written opinion of the International Search Authority, and remains available until the end of 16 months from the priority date or two months after the transmittal (that is, the date of mailing) of that report and opinion, whichever expires later. Amendments received by the International Bureau after the time limit are still accepted if they have been received before the technical preparations for international publication have been completed. Amendments to the claims under Article 19 are not allowed where the International Searching Authority has declared, under Article 17(2)(a), that no international search report would be established. However, it should be noted that, where an international search report has been established but nevertheless also contains, in Box No. II, a declaration under Article 17(2)(b) that certain claims were found unsearchable, either because they relate to subject matter not required to be searched by the Authority or because they relate to parts of the international application that do not comply with the prescribed requirements to such an extent that a meaningful international search could not be carried out, amendments under Article 19 are allowed in relation to the claims that were searched (refer to paragraph 7.014). Upon entry into the national phase, if the claims have been amended under Article 19, a translation of both the claims as filed and as amended (in the form of a translation of the complete set of claims furnished under Rule 46.5(a) in replacement of all the claims originally filed) and any statement may have to be furnished to the designated/elected Offices (refer to National Chapters (Summaries)). (As to amendments in the national phase, refer to paragraphs 5.111, 5.127 and 5.162, the National Phase and National Chapters.) The submission of Article 19 amendments should comprise:

- (i) a complete set of claims in replacement of the claims originally filed (refer to paragraph 9.005)
- (ii) a letter which must indicate the differences between the claims as filed and those as amended plus the basis for the amendments (refer to paragraphs 9.005 to 9.006A)
- (iii) an optional statement under Article 19 (refer to paragraphs 9.007 to 9.008)

9.005

Rule 6.1, Rule 46.5, Section 205

When filing amendments to the claims under Article 19, the applicant is required to file a sheet or sheets containing a complete set of claims in replacement of the claims originally filed. The replacement sheet or sheets must be accompanied by a letter drawing attention to the differences between the claims as filed and the claims as amended. It must also indicate the basis for the amendment to the claims with specific references to particular parts of the application (description, claims, drawings) as originally filed (refer to paragraph 9.006). Where an amendment results in the cancellation of an entire sheet of the international application as originally filed, the amendment (that is, the cancellation) is evidenced only by the letter addressed to the International Bureau. Amendments may consist in the cancellation of one or more entire claims, in the addition of one or more new claims, or in the amendment of the text of one or more of the claims as filed. All the claims appearing on a replacement sheet must be numbered in Arabic numerals (corresponding to the order of the claims). Where a claim is cancelled, no renumbering of the other claims is required. However, where the applicant does renumber claims, they must be renumbered consecutively.

9.006. What should the accompanying letter contain?

Rule 46.5, Section 205

The letter, which must accompany the replacement sheets containing amendments to the claims, must indicate firstly the differences between the claims as filed and those as amended and secondly the basis for the amendments in the application as filed. This should be done by stating, in connection with each claim appearing in the international application, whether:

- (i) the claim is unchanged,
- (ii) the claim is cancelled;
- (iii) the claim is new;
- (iv) the claim replaces one or more claims as filed;
- (v) the claim is the result of the division of a claim as filed, etc.

The replacement sheets containing the amended claims should not, however, contain marked-up text; they should contain clean text only. This should be followed by an indication of the basis for the amendments in the application as filed. The basis for the amendments has to be indicated so that the examiner may, by consulting those precise references in the application, assess whether the amendments contain subject-matter which extends beyond the disclosure of the application as filed. Therefore, non-specific indications such as “refer to the description as filed” or “refer to the claims as filed” are generally not considered sufficient for an indication of the basis for the amendment. Example:

“Claim 1 amended; claims 2 to 7 unchanged; claims 8 and 9 amended; claims 10 to 14 cancelled; claims 15 to 17 unchanged; new claim 18 added.

(i) Basis for the amendment: Claim 1 has been amended at lines 4 and 11 to 14 and now indicates that the filter comprises a periodic backwashing means serially coupled to a first and second chamber. The basis for this amendment can be found in original claims 2 and 4 as filed.

(ii) Basis for the amendment: Concerning amended claims 8 and 9, the indication of ‘quick-fire piston’ is in paragraph Nos. 2 and 19 in the description as filed.

(iii) Basis for the amendment: Claim 18 is new, the indication is in drawing No. III of the original application.”

9.006A. What happens where the international application is not in the same language as the accompanying letter?

Rule 92.2(d)

The accompanying letter should be furnished in English or French. References may, however, be made to the international application in the language of the international application where to do so will facilitate the work of the examiner in finding the reference, for example:

(i) Basis for the amendment: Concerning amended claim 2, the indication of “請求項1に基づくパーキングアシストシステム” is in paragraph Nos. 23, 46 and 85 in the description as filed.

9.007. What is a statement accompanying an amendment?

Article 19(1), Rule 46.4, Rule 48.2(a)(vi)

Any amendment may be accompanied by a brief statement by the applicant explaining the amendment and indicating any impact it might have on the description and the drawings. Such a statement is published together with the international application itself (refer to paragraphs 9.012 to 9.024). Statements not referring to a specific amendment are not permitted. The statement must not exceed 500 words if in English or when translated into English. It may not contain disparaging comments on the international search report or on the relevance of any of the citations contained in that report. References to certain citations in the report may be made only in connection with an amendment made to a specific claim. The statement must be in the language in which the international application is published (refer to paragraphs 9.017 and 9.018).

9.008

Rule 46.4(a), Rule 48.2(a)(vi)

A statement explaining the amendment is not to be confused with, and must be clearly distinguished from, the letter indicating the differences between the claims as filed and those as amended and the basis for the amendment (refer to paragraph 9.006). It is also distinct from the statement concerning amendments which must be included in a demand for international preliminary examination (refer to

paragraphs 10.024 to 10.027). It must therefore be identified as such by a heading “Statement under Article 19(1).” Where the statement does not comply with the requirements, it is neither published by the International Bureau nor communicated to the designated Offices.

9.009. May the amended claims include new matter?

Article 19(2), Article 19(3), Rule 66.2(a)(iv)

The PCT provides that amendments are not to go beyond the disclosure in the international application as filed. This requirement is not directly enforceable during Chapter I of the international phase, but failure to comply with it may have adverse consequences for the applicant during the international preliminary examination and in the national phase (refer to paragraphs 10.070 and 11.047 below).

9.009A. What happens where the replacement sheets were not accompanied by a letter?

Rule 46.5(b), Rule 70.2(c-bis)

The PCT requires that replacement sheets filed with Article 19 amendments must be accompanied by a letter indicating the basis for the amendment to the claims (refer to paragraph 9.006). Substantive compliance with this requirement is not checked during the international phase unless the applicant requests international preliminary examination but failure to comply with it may have adverse consequences for the applicant during international preliminary examination and in the national phase (also refer to paragraph 11.047A below).

9.010. Should a copy of amendments under Article 19 be filed with the International Preliminary Examining Authority?

Rule 53.9(a)(i), Rule 55.3, Rule 62.1, Rule 62.2

If the applicant submits a demand for international preliminary examination, he/she should file a copy of the amendments to the claims under Article 19, the letter which accompanied the amended claims and the statement under Article 19(1) (if any) with the International Preliminary Examining Authority with the demand (if the amendment has already been filed), or at the same time as filing the amendment with the International Bureau (if the amendment is filed after the demand). Where the International Preliminary Examining Authority requires a translation of the international application under Rule 55.2, the applicant should also furnish a translation of any amendments made under Article 19 and any letter that accompanied the amendments if he/she wishes those amendments to be taken into account for international preliminary examination. The International Bureau transmits a copy of any amendment, accompanying letter and any statement under Article 19 received prior to the filing of the demand to the International Preliminary Examining Authority unless that Authority indicates that it has already received a copy. If an amendment, the accompanying letter and any statement under Article 19 are received after the demand has been filed, the International Bureau transmits a copy to the International Preliminary Examining Authority in any event; but timely filing of a copy of these documents by the applicant direct with that Authority ensures that the international preliminary examination will proceed without undue delay or uncertainty. Refer to paragraphs 10.024 to 10.028 in connection with the demand form.

9.011. In what circumstances should the claims be amended under Article 19?

Article 34(2)(b), Rule 48.2(f), Rule 66.1(b)

Since any amendments of the claims under Article 19 are published with the international application (refer to paragraph 9.015), such amendment may be useful to the applicant if there is a reason to better define the scope of the claims for the purposes of provisional protection in those designated States whose national law provides for such protection (refer to paragraph 9.024). It is to be noted that, where international preliminary examination takes place, the applicant has the right under Article 34(2)(b) to file amendments to the claims (as well as to the description and the drawings) with the International Preliminary Examining Authority, regardless of whether or not he/she has filed amendments to the claims under Article 19 with the International Bureau (refer to paragraphs 10.024, 10.028, 10.067 to 10.071, and 11.045 to 11.047). There is therefore normally no need to amend the claims under Article 19 where a demand for international preliminary examination is filed, unless there is a particular reason related to provisional protection or otherwise for amending the claims before international publication.

INTERNATIONAL PUBLICATION

9.012. When and how is the international application published by the International Bureau?

International applications are published by the International Bureau except in any of the following cases:

Rule 20.4

(i) if the international application is not accorded an international filing date by the receiving Office (refer to paragraphs 6.005 to 6.012);

Article 21(5)

(ii) if the international application is considered withdrawn before the technical preparations for publication have been completed;

Article 21(5)

(iii) if the international application is withdrawn by the applicant (refer to paragraphs 11.048 and 11.049) before the technical preparations for publication have been completed;

Article 64(3)

(iv) if, at the time of the completion of the technical preparations for publication, the only designated State remaining is the United States of America (since the United States of America made a declaration under Article 64(3)(a)), unless any of the exceptions specified in Article 64(3)(c) applies.

9.013. When does international publication take place?

Article 21(2), Rule 48.4, Section 113

International publication takes place promptly after the expiration of 18 months from the priority date. However, when the applicant asks the International Bureau to publish the international application earlier, the International Bureau does so. If the applicant asks for early publication and the international search report, or the declaration referred to in Article 17(2)(a), is not available for publication with the international application, a special fee, the amount of which is indicated in Annex B (IB), is payable to the International Bureau. Normally, international publication takes place every Thursday, except when the International Bureau is closed for business. In such cases, the publication date will be announced in the PCT Newsletter.

9.014. When are the technical preparations for international publication completed?

The technical preparations for publication are completed by the 15th day prior to the date of publication. However, any change that should be taken into consideration for publication on a specific publication date should reach the International Bureau at least one day before the 15-day time limit to allow the International Bureau to process the change. The last day for receipt of such changes will therefore always be on Tuesday at midnight (Central European time (CET)), i.e. 16 days before the publication date when publication falls on a Thursday (or 17 days before the publication date when publication exceptionally takes place on a Friday because the International Bureau is closed for business on a Thursday).

9.015. What constitutes international publication?

Article 21(3), Rule 48.1, Rule 48.2(a), Rule 48.2(f), Rule 48.2(g), Rule 48.2(h), Section 404, Section 406(b)

Publication of international applications filed under the PCT takes place wholly in electronic form. The published international application will include any declaration filed under Rule 4.17 and, if available at the time of publication, the international search report or declaration by the International Searching Authority to the effect that no international search report will be established, and also any amendment, including any statement, under Article 19. Where the time limit for amending the claims has not expired at the time of the completion of the technical preparations for publication, the international application is published with an annotation accordingly, and any amendment received within the time limit is published later. Similarly, if the international search report or declaration by the International Searching Authority is not available, the international application is published with an annotation accordingly and the report or declaration is published separately after it has been received by the International Bureau. Each published international application is assigned an international publication number consisting of the code "WO" followed by an indication of the year and a serial number (for example, WO 2004/123456). For further details governing international publication, refer to Article 21 and Rule 48.

9.016. Where is my international application published?

Rule 86.1(i), Section 407(b)

On the same date the international application is published, the bibliographic data, the title of the invention, the abstract and a characteristic drawing (if any) of each published international application are made available on PATENTSCOPE.

9.016A. Can the applicant request that certain information be omitted from international publication?

Rule 26.4, Rule 48.2(l)

The applicant can make a reasoned request to the International Bureau to omit certain information from publication. The applicant should preferably use Form PCT/IB/384 for such a request, accompanied by

replacement sheets from which the relevant information has been omitted, except for cases where the omission of information would result in the omission of an entire sheet, and an accompanying letter drawing attention to the differences between the replaced sheet(s) and the replacement sheet(s). In the request, the applicant must also explain why the information does not obviously serve the purpose of informing the public about the international application, that the publication of such information would clearly prejudice the personal or economic interests of a person and that there is no prevailing public interest to have access to that information. The request for omission of information from publication must be received by the International Bureau prior to the completion of technical preparations for international publication (refer to paragraph 9.014).

If the International Bureau finds that the reasoned request satisfies all of the above-mentioned criteria, it will omit that information from international publication (and/or public file access, refer to paragraph 11.073A) and inform the applicant of its decision (form PCT/IB/385). If the International Bureau decides not to omit the requested information from international publication, it will inform the applicant accordingly (form PCT/IB/386).

Where the International Bureau has omitted information from international publication, and that information is also contained in the file of the international application held by the receiving Office, the International Searching Authority, the Authority specified for supplementary search or the International Preliminary Examining Authority, the International Bureau will also promptly notify that Office or Authority accordingly, so that they do not make that information publicly available either.

9.017. In what language is the international application published?

Article 21(4), Rule 45.1, Rule 48.3, Section 406*bis*

If the international application is filed in Arabic, Chinese, English, French, German, Japanese, Korean, Portuguese, Russian or Spanish, it is published in the language in which it was filed. Where the language of publication is Arabic, Chinese, French, German, Japanese, Korean, Portuguese, Russian or Spanish, the International Bureau prepares English translations of the title of the invention, the abstract and the international search report (or the declaration referred to in paragraph 7.014), and includes the translations in the published international application. Where the applicant wishes to propose an English translation of the title of the invention, she/he may furnish the suggested translation to the International Bureau before the expiration of 14 months from the priority date. The International Bureau shall, to the extent possible, take the suggested translation into account in the preparation of the translation. The International Bureau also prepares, where applicable, French translations of the title and the abstract. The title and abstract are published on PATENTSCOPE.

9.018

Rule 48.3(b)

If the international application is filed in a language which is a language other than Arabic, Chinese, English, French, German, Japanese, Korean, Portuguese, Russian or Spanish and is a language accepted by the International Searching Authority for international search, the applicant must furnish a translation of the international application into a language of publication accepted by the receiving Office for that purpose. The international application will be published in that language of translation only (refer to paragraphs 6.020 to 6.023).

9.019

If the international application is filed in a language which is neither a language of publication (Arabic, Chinese, English, French, German, Japanese, Korean, Portuguese, Russian or Spanish) nor a language accepted by the International Searching Authority for international search, it is published in the language of the translation furnished by the applicant (refer to paragraphs 6.013 to 6.020).

9.020

Rule 86.2(a)

The bibliographic data, titles and abstracts, and any figure which appears on the front page of each published international application are published in English and in French on PATENTSCOPE.

9.021. How can copies of the published international application be obtained?

Rule 86.1(i), Rule 86.4

In addition to downloading the published international application from the WIPO website anyone may obtain a copy of the published international application by ordering it from the International Bureau, preferably referring to its international publication number (if available).

9.022. How can the published international application in electronic form be accessed?

Rule 86.1(i), Rule 86.4

The published international application in electronic form is available on PATENTSCOPE.

9.023. How can copies of the priority document be obtained?

Rule 4.10(b), Rule 17.2(c)

Third parties who wish to receive a copy of the priority document may apply to the Office with which the earlier application was filed, to certain designated Offices or to the International Bureau. The International Bureau makes copies of priority documents, after international publication of the international application available on PATENTSCOPE, or on paper upon request and subject to reimbursement of the cost. However, the International Bureau does not furnish such copies if, prior to the international publication, the international application was withdrawn, or the relevant priority claim was withdrawn or was considered not to have been made, or the relevant declaration of the priority claim was cancelled.

9.023A. How can international publication be prevented?

Article 21(5), Rule 90*bis*.1(c)

The applicant may prevent international publication by withdrawing the international application, provided that the applicant submits a notice of withdrawal and that the notice of withdrawal reaches the International Bureau before the completion of technical preparations for that publication (refer to paragraph 9.014). It is strongly recommended to send the notice of withdrawal directly to the International Bureau through ePCT (signing in with strong authentication at <https://pct.wipo.int/ePCT>), preferably using the corresponding Action. Using an ePCT Action will ensure that the international application is immediately flagged as withdrawn in the International Bureau's processing system and will prevent publication if submitted before the completion of technical preparations for international publication. In the rare situation where ePCT cannot be used, an alternative document upload system is available at <https://pct.wipo.int/ePCTExternal/pages/UploadDocument.xhtml>; the notice of withdrawal may state that the withdrawal is to be effective only on the condition that international publication can still be prevented. In such a case the withdrawal is not effective if this condition cannot be met – that is, if the technical preparations for international publication have already been completed. The same effect may possibly be achieved if, for example through non-payment of the applicable fees, the international application is considered withdrawn and the receiving Office so declares (Form PCT/RO/117). Issuance of this declaration by the receiving Office alone, however, will not prevent international publication unless the declaration is also received by the International Bureau before completion of technical preparations for international publication (Rule 29.1(v)). International publication may be postponed by withdrawing the priority claim as outlined in paragraphs 11.056 and 11.057.

9.024. What are the legal effects of international publication?

Article 29

Article 29 has the effect of ensuring, with certain qualifications, that provisional protection is available after the international publication of an international application in the same way as it is after national publication of unexamined national applications. The qualifications are such as to enable Contracting States to make such protection conditional on the furnishing of translations (in some circumstances), on the expiration of 18 months from the priority date, and/or on receipt by the designated Office of a copy of the international application as published under the PCT. For further details, refer to Article 29. Annexes B indicate what the position is in each Contracting State.

9.025. Can access be gained at the International Bureau to the file of an international application?

Rule 94

For international applications filed before 1 July 1998, the applicant or any person authorized by the applicant may, subject to reimbursement of the cost of the service, obtain copies from the International Bureau of any document contained in its file. For international applications filed on or after 1 July 1998, the International Bureau makes certain documents in its file available on PATENTSCOPE together with the published international application. In addition, it will, at the request of any person but not before the international publication of the international application and subject to Article 38, furnish, upon reimbursement of the cost of the service, copies of any document contained in its file, except for information which has been omitted from international publication or public file access following a reasoned request by the applicant (refer to paragraphs 11.072 to 11.074 for details concerning the confidentiality of international applications).

9.026. [Deleted]

9.027. Can I get access to a copy of the international preliminary report on patentability (Chapter II of the PCT)?

Rule 94.1(c)

Concerning access to the international preliminary report on patentability (Chapter II of the PCT), the International Bureau, if so requested by an elected Office, makes copies of that report available on PATENTSCOPE to third parties on behalf of that Office, but not before the expiration of 30 months from the priority date. A number of elected Offices have made this request to the International Bureau, refer to https://www.wipo.int/en/web/pct-system/texts/access_iper ; similarly, the International Bureau also makes related documents received from the International Preliminary Examining Authority under PCT Rule 71.1(b) available on PATENTSCOPE (refer to paragraph 10.079A).

COMMUNICATION OF COPIES TO THE DESIGNATED OFFICES

9.028. How and when do the designated Offices receive copies of the international application?

Article 20(1)(a), Article 22(1), Rule 47.1(a), Rule 47.2, Rule 47.3, Rule 93*bis*

Subject to what is said in this paragraph and in paragraph 9.029, the International Bureau communicates a copy of the international application in the language in which the international application is published, to each designated Office upon their request and at the time specified by that Office, pursuant to Rule 93*bis*, but not prior to the international publication. Where the language in which the international application is published is different from the language in which it was filed, the International Bureau will furnish to any designated Office, upon the request of that Office, a copy of that application in the language in which it was filed. In practice, the communication is effected by sending a copy of the published international application (for details concerning the contents of published international applications, refer to paragraph 9.015). The International Bureau also sends, promptly after the expiration of 19 months from the priority date in respect of designated Offices which do not apply the 30 month time limit, and again promptly after the expiration of 28 months from the priority date in respect of designated Offices which do apply the 30 month time limit, a notice (Form PCT/IB/308 (First Notice) (19 months) and Form PCT/IB/308 (Second and Supplementary Notice) (28 months)) to the applicant informing him/her of the Offices to which the communication has been effected and of the date of such communication. The notices must be accepted by all designated Offices as conclusive evidence that the communication has duly taken place on the date specified in the notices. On receiving the notices, the applicant knows that he/she does not have to send a copy of the international application to any of the designated Offices indicated on them as having been sent the communication.

9.029. May I submit a copy of my international application to the designated Offices before international publication?

Article 13, Article 23(2), Article 40(2), Rule 31, Rule 47.4, Rule 61.2(d)

A copy of the international application (albeit without the international search report) is communicated by the International Bureau, prior to the communication referred to in the preceding paragraphs, to any designated Office which so requests; this transmittal may not be done before the expiration of one year from the priority date. It should be noted that, to date, no national or regional Office has asked for a copy of all the international applications designating it to be the subject of such an early communication. If the applicant wishes, he/she may at any time transmit, or ask the International Bureau to transmit, a copy of the international application to any designated Office. Such special transmittal by the International Bureau requires the payment of a fee, the amount of which is indicated in Annex B (IB). Further details are to be found in Article 13 and Rule 31. It is to be noted that transmittal in this way does not, unless expressly requested by the applicant, entitle the designated Office to start its processing of the international application. If, however, the applicant makes an express request to a designated or elected Office (under Article 23(2) or 40(2), respectively) for early commencement of national processing, the International Bureau then promptly effects the communication to the Office concerned upon request by the applicant or the designated or elected Office.

CHAPTER 10: INTERNATIONAL PRELIMINARY EXAMINATION UNDER CHAPTER II OF THE PCT

GENERAL

10.001. What is international preliminary examination?

Article 31(1), Article 31(4)(a), Article 32(1), Article 33(1), Rule 53.7

International preliminary examination of an international application may be requested under Chapter II of the PCT to obtain “a preliminary and non-binding opinion on the questions whether the claimed invention appears to be novel, to involve an inventive step (to be non-obvious), and to be industrially applicable” (Article 33(1)). It is carried out by an “International Preliminary Examining Authority” at the request - called “demand” - of the applicant, for use before the “elected” Offices, that is, the designated Offices which are elected by the applicant for that purpose, (note that the filing of a demand constitutes the election of all Contracting States which are designated and bound by Chapter II of the Treaty). Not every applicant who has the right to file an international application has the right to demand international preliminary examination; the following paragraphs explain who may make a demand.

10.002. What are the main effects of the international preliminary examination?

Article 39(1), Article 40(1), Article 64(2)(a)(i), Article 64(2)(a)(ii)

Since the criteria on which the international preliminary examination is based (refer to paragraph 10.001) correspond to internationally accepted criteria for patentability, the international preliminary report on patentability (Chapter II of the PCT) gives the applicant the opportunity to evaluate the chances of obtaining patents in elected Offices before incurring the expense and trouble of entering the national phase. Moreover, the fact that the carrying out of such an examination has been demanded has the result that the national phase in each elected State is normally delayed until the expiration of 30 months from the priority date (longer times apply in some elected Offices), provided that the demand is submitted before the expiration of 19 months from the priority date (Note, however, that the 30-month time limit applies in any case, to all but two designated Offices even if they have not been elected within the 19-month time limit; refer to paragraph 5.005 for details). For further details, refer to paragraph 10.010, and also the National Chapters, (Summaries).

10.003. Can a third party access information contained in the file of the International Preliminary Examining Authority?

Article 38, Rule 94

With the exception of the fact that a demand has been filed and the names of those designated States for which a notice of withdrawal has been submitted to the International Bureau or to the International Preliminary Examining Authority are available on PATENTSCOPE, the international preliminary examination procedure remains confidential between the applicant, the International Preliminary Examining Authority and the International Bureau. In respect of international applications filed before 1 July 1998, a copy of the international preliminary examination report, when it has been established, is sent by the International Bureau to each elected Office as well as the applicant, but is not available from the International Preliminary Examining Authority or the International Bureau to any other persons or Offices. In respect of international applications filed on or after 1 July 1998, copies of all documents contained in the file of the International Preliminary Examining Authority, except for information which has been omitted from international publication or public access following a reasoned request by the applicant (refer to paragraphs 9.016A and 11.073A), may be obtained by third parties via those elected Offices whose national law provides for access to the files of national applications (also refer to paragraphs 10.080 and 10.081, and 11.072 to 11.074). Concerning the availability of the international preliminary examination report and related documents from the International Bureau, refer to paragraph 9.027.

MAKING A DEMAND FOR INTERNATIONAL PRELIMINARY EXAMINATION

10.004. On what conditions may a demand for international preliminary examination be submitted?

Article 31(2)(a), Rule 18.1, Rule 54

There are two conditions which have to be fulfilled for a demand to be submitted. First, the applicant - or, if there are two or more applicants, at least one of them - must be a resident or a national of a Contracting State bound by Chapter II of the PCT (currently all Contracting States but Uruguay are bound by Chapter II of the PCT). Second, the international application must have been filed with the receiving Office of, or acting for, a Contracting State bound by Chapter II. Potential applicants who have residence and/or nationality in more than one Contracting State, and thus generally have a choice of receiving Office, should therefore file the international application with a receiving Office of or acting for a Contracting State

bound by Chapter II if they wish to take advantage later of the international preliminary examination procedure. However, it should be noted that the right to make a demand may be lost if, following a change in the applicants named in the international application, there is no longer, at the time the demand is made, at least one applicant who is a resident or national of a Contracting State bound by Chapter II. The concepts of residence and nationality are defined in Rule 18.1 (refer to paragraph 5.023). If the applicant does not have the right to make a demand, the demand is considered not to have been submitted.

10.005. Which States may be elected?

Article 31(4), Article 64(1), Rule 53.7, Rule 90*bis*.4

All Contracting States which are designated in the international application and are bound by Chapter II of the PCT are elected. The printed demand form (available on the WIPO website at: <https://www.wipo.int/documents/d/pct-system/docs-en-forms-demand-ed-demand.pdf>) contains a pre-printed statement that the filing of the demand constitutes the election of all Contracting States which are designated and are bound by Chapter II of the Treaty (refer to paragraph 10.029). Please note that States whose designation has been withdrawn cannot subsequently be elected. If the applicant does not wish to elect a particular State, the election of that State may be withdrawn after a demand has been filed. It should be also noted that withdrawal of the designation of a State which has been elected shall entail withdrawal of the corresponding election.

10.006. Where should the demand for international preliminary examination be submitted?

Article 31(3), Article 31(6)(a), Article 32(2), Rule 59

The demand must be made separately from the international application, and be submitted directly to an International Preliminary Examining Authority which is competent to carry out international preliminary examination on the international application concerned. Each receiving Office (except the International Bureau as receiving Office - refer to paragraph 5.008) specifies one or more International Preliminary Examining Authorities as competent to carry out international preliminary examination on international applications filed with it. In addition, different International Preliminary Examining Authorities may be competent in relation to an international application depending on the language in which the international application was filed and on which International Searching Authority carried out the international search. Where several International Preliminary Examining Authorities are competent in relation to a particular international application, having regard to which receiving Office the international application was filed with and the language of the international application, the applicant may choose between them. Where the international application is filed with the International Bureau as receiving Office, the competent International Preliminary Examining Authority (or Authorities) is that (or are those) which would have been competent if the international application had been filed with a competent national (or regional) Office as receiving Office. The International Preliminary Examining Authority or Authorities competent for international applications filed with each national (or regional) Office acting as receiving Office, and the languages accepted for international preliminary examination by each International Preliminary Examining Authority, may be ascertained by consulting Annexes C and E. Finally, within the framework of the respective agreements relating to the functioning of certain Offices as International Preliminary Examining Authorities, these Authorities may provide for limitations of their competence in respect of certain international applications. The consolidated texts of these Agreements are available on the WIPO website at the following address: https://www.wipo.int/en/web/pct-system/access/isa_ipea_agreements. For more detailed information, refer to Annex E.

10.007. What happens if a demand for international preliminary examination is not submitted to the competent Authority?

Rule 59.3(a), Rule 59.3(b), Rule 59.3(e)

If a demand is submitted to a receiving Office, an International Searching Authority, an International Preliminary Examining Authority which is not competent for the international preliminary examination of the international application, or the International Bureau, that Office or that Authority or the International Bureau, as the case may be, will mark on it the date of receipt, which will be considered to be the date on which the demand was received on behalf of the competent International Preliminary Examining Authority.

10.008

Rule 59.3(c), Rule 59.3(f)

When a demand is filed with a receiving Office, an International Searching Authority, or an International Preliminary Examining Authority which is not competent for the international preliminary examination of the international application, that Office or Authority may send the demand either directly to the competent

International Preliminary Examining Authority, or to the International Bureau which will in turn forward the demand to the competent International Preliminary Examining Authority.

10.009

Rule 59.3(c), Rule 59.3(d)

If two or more International Preliminary Examining Authorities are competent, the applicant will be invited by the Office or Authority to which the demand was submitted, or by the International Bureau, as the case may be, to indicate, within the time limit applicable under Rule 54*bis*.1(a) or within 15 days from the date of the invitation, whichever is later, the competent International Preliminary Examining Authority to which the demand should be transmitted. Where the applicant furnishes that indication, the demand will promptly be transmitted to the competent International Preliminary Examining Authority. Where no indication is so furnished, the demand will be considered not to have been submitted, and the Office or Authority to which the demand was submitted, or the International Bureau, as the case may, will declare that the demand is considered not to have been submitted.

10.010. At what stage of the procedure should the demand for international preliminary examination be submitted?

Article 39(1), Rule 54*bis*.1(a), Rule 69.1(a)(iii), Rule 69.2

A demand may be submitted at any time prior to the expiration of the following time limits, whichever expires later:

- (i) three months from the date of transmittal to the applicant of the international search report and the written opinion of the International Searching Authority, or of the declaration, referred to in Article 17(2)(a) that no international search report will be established; or
- (ii) 22 months from the priority date.

In addition, in respect of some Offices (refer to paragraph 5.005), in order to secure the full effect of the demand – including the delaying of the national phase until 30 months from the priority date – it must be submitted before the expiration of 19 months from the priority date. Since international preliminary examination will normally not start before the international search report and the written opinion of the International Searching Authority are available (refer to paragraphs 10.051 to 10.055), the applicant will normally wish to take that report and opinion into account before deciding whether to proceed further for patent protection. Note, however, that the 19 month time limit will expire regardless of whether the establishment of the international search report and the written opinion of the International Searching Authority are delayed. On the other hand, the length of time available for the international preliminary examination depends on the earliest possible submission of the demand after the international search report and the written opinion of the International Searching Authority are available, since the international preliminary report on patentability (Chapter II of the PCT) must in most cases be established before the expiration of 28 months from the priority date, or six months from the time provided for the start of the international preliminary examination, or six months from the date of receipt by the International Preliminary Examining Authority of the translation furnished by the applicant, if applicable, whichever period expires last (refer to paragraph 10.074). The more time available for the international preliminary examination, the better will be the result and quality which can be expected. Therefore, a demand should be filed as soon as possible after the applicant's evaluation of the international search report and the written opinion of the International Searching Authority has shown that it is worthwhile to pursue the international application further.

TRANSLATION OF INTERNATIONAL APPLICATION FOR THE PURPOSES OF INTERNATIONAL PRELIMINARY EXAMINATION

10.011. What happens if the international application was filed or published in a language which is not accepted by the International Preliminary Examining Authority?

Rule 55.2

Where neither the language in which the international application was filed nor the language in which the international application is published is accepted by the International Preliminary Examining Authority that is to carry out the international preliminary examination, the applicant must furnish with the demand a translation of the international application into a language which is both a language accepted by that Authority, and a language of publication. No such translation is required where the International Searching Authority and the International Preliminary Examining Authority are part of the same national Office or intergovernmental organization, in which case the international preliminary examination will be carried out on the basis of the translation furnished for the purposes of the international search (refer to

paragraphs 6.014 to 6.017). Details about the languages accepted for international preliminary examination by the various International Preliminary Examining Authorities appear in Annex E. Refer to paragraph 9.010 in connection with the need to file a translation of amendments under Article 19.

THE DEMAND

10.012. What requirements as to form, contents and language must the demand for international preliminary examination comply with?

Article 31(3), Rule 53, Section 102(b), Section 102(i)

The demand must either be made on a printed form to be filled in with the required indications or be presented as a computer print-out complying with the Administrative Instructions. To facilitate preparation of the demand, the International Bureau has prepared downloadable PDF (portable document format) versions on its website at <https://www.wipo.int/en/web/pct-system/forms/>. The editable PDF version of the form (PCT/IPEA/401) may be completed using a computer or printed out and filled in using a typewriter. The demand, and instructions on how to complete the editable version, is available in Arabic, Chinese, English, French, German, Japanese, Korean, Portuguese, Russian and Spanish.

Sample filled-in forms are also available from the above website address. Copies of forms may also be obtained, free of charge, from the receiving Office or the International Preliminary Examining Authority.

The demand may also be filed online by using the ePCT service (signing in with strong authentication at <https://pct.wipo.int/ePCT>).

10.013

Rule 53, Rule 55.1

The completed demand must identify the applicant and the international application to which it relates. The demand contains a petition that the international application be the subject of international preliminary examination. The filing of the demand constitutes the automatic election of all Contracting States which are designated and which are bound by Chapter II of the PCT - refer to paragraph 10.029 and the sample filled-in demand form, at the addresses indicated in paragraph 10.012). It must, where applicable, contain a statement concerning amendments, on the basis of which the international preliminary examination will start (refer to paragraphs 10.025 and 10.026) and an indication of the language in which international preliminary examination will be carried out. The demand must be in the language of the international application or, if the international application has been filed in a language other than the language in which it is published, in the language of publication. However, where a translation of the international application is required because the International Preliminary Examining Authority accepts neither the language in which the international application is filed nor the language in which the international application is published (refer to paragraphs 5.013 and 10.011), the demand must be in the language of that translation. The demand must be signed (refer to paragraphs 10.031, 10.032, and 11.027). Details for the filling in of the demand form are given below in respect of each Box of that form. Where more than one International Preliminary Examining Authority is competent in relation to the international application (refer to paragraph 10.006), the Authority chosen by the applicant, and with which the demand is filed, should be identified, preferably by an indication of the name or two-letter code of the Authority (refer to Country Names and Two-Letter Codes (formerly Annex K)), at the top of the first sheet of the demand form in the space provided for that purpose.

Box No. I: Identification of the International Application

10.014. What are the requirements with respect to the identification of the international application?

Rule 53.6

The international application must be identified by its international application number, filing date and title. If the international application number is not known to the applicant at the time of filing of the demand, the name of the receiving Office with which the international application was filed must be indicated. The title of the invention must be the same as that which appears in the published international application (that is, the same as that indicated in the request, unless it was modified by the International Searching Authority - refer to paragraph 7.022).

10.015

It is recommended that the applicant indicate the file reference, if any, not exceeding 25 characters in length, in the box provided for this purpose on the first sheet of the demand form (refer to paragraphs 5.017 and 5.105 in relation to the request and the description).

10.016

Indication of the priority date on the demand is not mandatory, but is recommended since it will assist the International Preliminary Examining Authority to ascertain promptly whether or not the demand was filed before the expiration of 19 months from the priority date.

Box No. II: Applicant(s)

10.017. Who may file a demand for international preliminary examination?

Article 31(2), Rule 4, Rule 53.4, Rule 53.5, Rule 54.1, Rule 54.2, Rule 60.1(a-bis)

If there is a sole applicant, that applicant must be a resident or national of a Contracting State bound by Chapter II of the PCT. If there are two or more applicants, it is sufficient that one of them be a resident or national of a Contracting State bound by Chapter II, regardless of the elected State(s) for which each applicant is indicated. The detailed requirements for the various indications required in connection with each applicant (full names and addresses, telephone, facsimile and/or e-mail address, nationality and residence) are the same as those required under Rule 4 in connection with the request (refer to paragraphs 5.023 to 5.034). Where the applicant is registered with the International Preliminary Examining Authority, the number or other indication under which the applicant is so registered may also be indicated in Box No. II. Note that any inventor who is not also an applicant is not indicated in the demand. Where a question of the applicant's residence or nationality arises, the International Preliminary Examining Authority will request the receiving Office or, where the international application was filed with the International Bureau as receiving Office, the national Office of, or acting for, the Contracting State concerned to decide the question and will inform the applicant of such request. The applicant has the opportunity to submit arguments relating to the issue of residence or nationality directly to the Office concerned, which will decide the question promptly.

10.018. Who should be indicated if there has been a change in the name or person of the applicant?

Rule 92bis.1

If the recording of a change in the name or person has been requested under Rule 92bis.1 before the demand was filed (refer to paragraphs 11.018 to 11.022), it is the applicant(s) on record at the time when the demand is filed who must be indicated in the demand.

10.018A. How can the applicant receive notifications via e-mail?

If an e-mail address is indicated in Box No. II of the demand form, the International Bureau, and the International Preliminary Examining Authority, if it provides such a service, will send notifications to the applicant by e-mail, thus avoiding processing or postal delays. Where the agent or common representative has also indicated an e-mail address, e-mail notifications will only be sent to the appointed agent or common representative (refer to paragraph 10.022). Note that not all Authorities will send such notifications by e-mail (refer to Annex B). If no e-mail address is provided, or if the applicant chooses to receive notifications exclusively by postal mail, by marking the corresponding check-box in Box No. II, or in the cases where the International Preliminary Examining Authority does not provide for sending notifications by e-mail, notifications will be sent to the given mailing address exclusively by postal mail. It is the applicant's responsibility to keep any e-mail address details up-to-date and to ensure that incoming e-mails are not blocked, for any reason, on the recipient's side. Changes to the e-mail address indicated should be requested to be recorded, preferably directly at the International Bureau, under Rule 92bis.

Box No. III: Agent or Common Representative

10.019. Does the applicant have to be represented by an agent before the International Preliminary Examining Authority?

No, the applicant is not obliged to, but may be represented by an agent. In most cases, it is highly advisable to use an agent (refer to paragraph 1.004).

10.020. May the applicant be represented by an agent before the International Preliminary Examining Authority?

Article 49, Rule 2.2, Rule 90.1(a), Rule 90.1(c)

Yes, the applicant may be represented by the agent who represented him/her for the filing of the international application (if any) or by another agent having the right to practice before the receiving Office with which the international application was filed (refer to Annex C). The applicant may also be represented by an agent appointed specifically for the purposes of the international preliminary

examination procedure and chosen from among those persons who have the right, according to the Rules applicable in the national or regional Office acting as International Preliminary Examining Authority, to practice before that Office (refer to National Chapters, (Summaries)). Refer to paragraphs 11.001 to 11.014 for more information about representation.

10.021. When and how may an agent be appointed for the purposes of the procedure concerning the international preliminary examination?

Rule 53.2(a)(ii), Rule 53.5, Rule 90

If an agent has already been appointed for the filing of the international application, that agent may also represent the applicant for the purposes of the international preliminary examination procedure and may sign the demand on behalf of the applicant. Alternatively, a different agent or an additional agent may be designated in the demand for international preliminary examination or in a separate power of attorney. The detailed requirements for the various indications required in connection with each agent (full names and addresses, telephone, facsimile, e-mail address(es)) are the same as those required under Rule 4 in connection with the request (refer to paragraph 5.043). Where the agent is registered with the International Preliminary Examining Authority, the number or other indication under which the agent is so registered may also be indicated in Box No. III. Further information about the manner of appointing agents, including sub-agents, appears in paragraphs 11.001 to 11.014.

10.021A. How can an agent (or common representative) receive notifications via e-mail?

If an e-mail address is indicated in Box No. III, the International Bureau and the International Preliminary Examining Authority (if it provides such a service) will send notifications to that address by e-mail, thus avoiding processing or postal delays (refer to paragraph 10.018A). If no e-mail address is provided, or if the agent or common representative chooses to receive notifications exclusively by postal mail, by marking the corresponding check-box in Box No. III, or in the cases where the International Preliminary Examining Authority does not provide for sending notifications by e-mail, notifications will be sent to the given mailing address exclusively by postal mail.

10.022. May the applicants be represented by a common representative?

Rule 2.2*bis*, Rule 90.2, Rule 90.4

The provisions relating to common representatives which apply at earlier stages (refer to paragraph 5.048) continue to be applicable during the international preliminary examination procedure. That is, if no common agent is appointed, one of the applicants may be appointed by the other applicants as the common representative of all the applicants, and if neither a common agent nor a common representative is appointed, the applicant named first in the request who is entitled to file an international application with the receiving Office concerned will be considered to be the common representative ("deemed common representative") (refer to paragraph 11.006). A separate power of attorney must be filed with the International Preliminary Examining Authority, the International Bureau or the receiving Office, if the person appointed at the time the demand is filed signs the demand on behalf of the applicant. However, the receiving Office, the International Bureau or the International Preliminary Examining Authority may waive the requirement that a separate power of attorney be filed. For further details refer to Annexes B (IB), C and E.

10.023. What other provisions apply to agents and common representatives during the international preliminary examination procedure?

The same general provisions apply to agents and common representatives during the international preliminary examination as apply during other stages of the international phase (for example, in relation to their legal position and revocation and renunciation of appointments - refer to paragraphs 11.001 to 11.014).

Box No. IV: Basis for International Preliminary Examination (Statement Concerning Amendments and Indication of the Language for the Purposes of International Preliminary Examination)

10.024. Can the applicant amend the claims, the description and the drawings before and during the international preliminary examination?

Article 34(2)(b), Rule 66.1(b), Rule 66.1(d)

The applicant has the right, under Article 34(2)(b), to amend the claims, the description and the drawings before the start of the international preliminary examination and also during the examination, if time permits, until the preparation of the international preliminary report on patentability (Chapter II of the PCT). (As far as the claims are concerned, this is in fact the second opportunity to amend them before

the international preliminary examination starts; the first opportunity is offered by the possibility of submitting amendments under Article 19 to the International Bureau as described in paragraphs 9.004 to 9.009, and 9.011.) For further details concerning amendments under Article 34(2)(b), refer to paragraphs 10.028, 10.067 to 10.071, 11.045 to 11.047.

10.025. What is the purpose of indicating the basis for international preliminary examination? Do the statement concerning amendments and the indication of the language for the purposes of the international preliminary examination have to be filled in?

Rule 53.2(a)(iv), Rule 53.9

(i) The statement concerning amendments should be completed, since it enables the International Preliminary Examining Authority to identify those documents which will serve as the basis for the start of the international preliminary examination with a view to starting it as soon as possible. However, failure to complete the statement or to complete it correctly is not fatal to the application. In particular, if no amendments have been filed under Article 19 or Article 34 and if the applicant does not wish to file such amendments at the time when the demand is filed, the result will simply be that the international preliminary examination will start on the basis of the international application as originally filed. The applicant will not be precluded from making amendments at a later stage of the international preliminary examination, provided that they reach the International Preliminary Examining Authority in sufficient time to be taken into account. On the other hand, if there have been amendments but they are not indicated, or if the applicant wishes later to file amendments but does not so indicate, the start of the international preliminary examination may be delayed or the applicant may find that there is insufficient time at a later stage to have the intended amendments taken into account.

(ii) Completing the indication of the language for the purposes of the international preliminary examination and its associated check-boxes helps the International Preliminary Examining Authority determine quickly, with a view to starting international preliminary examination as soon as possible, whether the demand and the international application are in a language accepted by that Authority, or whether a translation of the international application is required. Completing the indication also helps the International Preliminary Examining Authority decide whether any amendments filed with the demand (refer to paragraph (i) above) are in the appropriate language.

10.026. How should the statement concerning amendments be completed?

If amendments to the claims have been made under Article 19 (refer to paragraphs 9.004 to 9.009) prior to the filing of the demand, the statement must indicate whether, for the purposes of the international preliminary examination, the applicant wishes the amendments to be taken into account (in which case a copy of the amendments should be filed with the demand) or to be considered as reversed by an amendment under Article 34. If no amendments under Article 19 have been made but the time limit for filing such amendments (refer to paragraph 9.004) has not expired at the time when the demand is filed, the statement may, if the applicant so chooses, indicate that the applicant wishes the start of the international preliminary examination to be postponed (refer to paragraph 10.054). If any amendments under Article 34 are submitted with the demand, the statement must so indicate. A more detailed explanation is given below for each of the check-boxes in Box No. IV.

“1. The applicant wishes the international preliminary examination to start on the basis of:

☐ the international application as originally filed”

This check-box should be marked either where the applicant has not made any amendments under Article 19 and does not intend at the time of filing the demand to file any amendments, or where the applicant has already made amendments under Article 19 but is no longer interested in pursuing them.

“the description

☐ as originally filed

☐ as amended under Article 34

the claims

☐ as originally filed

☐ as amended under Article 19

☐ as amended under Article 34

the drawings

☐ as originally filed

☐ as amended under Article 34”

Rule 60.1(g), Rule 69.1(e)

These check-boxes should be marked only where the applicant wishes amendments to be taken into account for the start of the international preliminary examination. Where the applicant wishes amendments which have previously been made under Article 19 to be taken into account, a copy of the amendments, and any statement accompanying such amendments, should be attached to the demand. If a check-box is marked but the demand is not accompanied by the documents referred to, the start of international preliminary examination will be delayed until the International Preliminary Examining Authority receives them. Amendments under Article 34 should be submitted with, and attached to, the demand. The applicant should also indicate, by marking the appropriate check-box(es), which parts of the international application are so amended.

Rule 53.9(a)(ii)

“2. ☐ The applicant wishes any amendments to the claims made under Article 19 to be considered as reversed.”

This check-box should be marked only where the applicant, after having previously made amendments under Article 19, no longer wishes them to be considered for international preliminary examination. Marking this check-box will have the effect that those amendments will be considered as reversed by an amendment under Article 34.

“3. ☐ Where the IPEA wishes to start the international preliminary examination at the same time as the international search in accordance with Rule 69.1(b), the applicant requests the IPEA to postpone the start of the international preliminary examination until the expiration of the applicable time limit under Rule 69.1(d)”.

This check-box should be marked only where, at the time when the demand is filed, the time limit for filing amendments under Article 19 has not expired (refer to paragraph 9.004) and the applicant intends to file such amendments after filing the demand. In practice, this situation is only likely to arise if the demand is filed before the international search report is available. If this check-box is marked but the applicant later decides not to file amendments under Article 19, the applicant should send a notice to the International Preliminary Examining Authority that there is no intention to file such amendments, and the international preliminary examination will then start.

“4. ☐ The applicant expressly requests to postpone the start of the international preliminary examination until the expiration of the applicable time limit under Rule 54*bis*.1(a).”

This check-box should be marked if the applicant wishes to postpone the start of the international preliminary examination until the expiration of the applicable time limit under Rule 54*bis*.1(a). Otherwise, where the International Searching Authority and the International Preliminary Examining Authority are not the same Authority, examination will commence once the International Preliminary Examining Authority is in possession of the required fees, the international search report, or a notice of the declaration under Article 17(2)(a) and the written opinion of the International Searching Authority.

10.027. May several check-boxes be marked in Box No. IV?

Yes - for example, under item (1), two or three check-boxes may be marked if the applicant has already filed amendments to the claims under Article 19 and wishes those amendments to be taken into account along with further amendments under Article 34 to the description and/or drawings (and possibly further amendments to the already amended claims).

10.028. May the applicant make amendments during the international preliminary examination in addition to any amendments mentioned in Box No. IV?

Rule 66.1(b), Rule 66.4*bis*

Yes, the applicant is not precluded from later making amendments, or further amendments, during the course of the international preliminary examination (refer to paragraphs 10.067 to 10.071), regardless of what appears in the statement concerning amendments, and in this sense the statement is not binding on the applicant or on the conduct of the international preliminary examination. For example, the applicant may choose to file amendments under Article 34 at a later stage which supersede amendments previously made under Article 19, even though the statement indicates that those previous amendments should be

taken into account. However, the information contained in the statement is used by the International Preliminary Examining Authority to determine when, and on what basis, the international preliminary examination is to start (refer to paragraphs 10.051 to 10.055). Moreover, amendments or arguments need not be taken into account by the International Preliminary Examining Authority for the purposes of the international preliminary report on patentability (Chapter II of the PCT) if they are received after the Authority has begun to draw up that report (refer to paragraph 10.068). Since the time available for international preliminary examination is limited, it is in the applicant's interests to be as definite as possible, at the time of filing the demand, as to what should form the basis of the international preliminary examination. If the applicant intends to file amendments under Article 34 but is not in a position to submit them with the demand, that intention should preferably be mentioned in a letter filed with the demand. It is to be noted that since, under Rule 66.1*bis*, the written opinion of the International Searching Authority will in the majority of cases be considered to be the written opinion of the International Preliminary Examining Authority, if amendments under Article 34 are not filed together with the demand, the International Preliminary Examining Authority might, shortly after the expiration of the time limit under Rule 54*bis*.1(a), start to draw up the international preliminary report on patentability (Chapter II of the PCT).

Box No. V: Election of States

10.029. Which States may be elected?

Rule 53.7

The making of a demand has the effect of electing all Contracting States which have been designated and which are bound by Chapter II of the PCT. That usually means the election of all Contracting States except for Uruguay, which is currently the only State not bound by Chapter II of the PCT.

Box No. VI: Check List

10.030. What is the purpose of the Check List?

The Check List in Box No. VI should be completed by the applicant to allow the International Preliminary Examining Authority to verify the completeness of the documents filed with the demand. Of particular importance in the Check List are the indications relating to amendments referred to in the statement concerning amendments. The indications given in the Check List should correspond with the indications given in Box No. IV.

Box No. VII: Signature of Applicant, Agent or Common Representative

10.031. Who must sign the demand?

Rule 53.4, Rule 53.8, Rule 60.1(a-*ter*), Rule 90.3

The demand must be signed by the applicant or, if there is more than one applicant, by all the applicants making the demand – that is, the applicants for the States which are elected. However, an agent or common representative may sign the demand on behalf of the applicant or applicants who appointed him/her. The demand may be signed on behalf of all the applicants by an appointed common agent or common representative, or by the applicant who is considered to be the common representative (“deemed common representative”) if no common agent or common representative has been appointed (refer to paragraph 11.006). However, if the signature(s) of one or more applicants is missing, the International Preliminary Examining Authority will not invite the applicants to furnish the missing signature(s) provided that at least one of the applicants has signed the demand. Should a notice of withdrawal be filed at any time during the international phase, that notice will have to be signed by the applicant or, if there are two or more applicants, by all of them (Rule 90*bis*.5), or by any agent or common representative whose appointment has been effected by each applicant signing the request, the demand or a separate power of attorney (Rule 90*bis*.4(a)).

10.032. When must or may a seal be used instead of a signature?

Rule 2.3

In the demand or other papers filed with the China National Intellectual Property Administration (CNIPA) as International Preliminary Examining Authority, a seal may be used instead of a signature. In the case of a demand or other papers filed in English with the European Patent Office (EPO) as International Preliminary Examining Authority in respect of international applications filed with the Japan Patent Office (JPO) as receiving Office, a signature must be furnished instead of a seal. In the demand or other papers

filed with the Ministry of Intellectual Property of the Republic of Korea (MOIP) as International Preliminary Examining Authority, a seal may be used instead of a signature (refer to paragraph 5.091 in respect of the request).

Notes to the Demand Form

10.033. What are the Notes to the demand form?

The Notes to the demand form (refer to the WIPO website at: <https://www.wipo.int/documents/d/pct-system/docs-en-forms-demand-ed-demand.pdf>) are intended to facilitate the completion of that form. They indicate, in relation to each Box of the form, what indications are required and how they are to be made. The Notes are not required to be filed with the demand.

Fee Calculation Sheet

10.034. What is the fee calculation sheet?

The fee calculation sheet is intended to help the applicant calculate the total amount of fees payable to the International Preliminary Examining Authority. The sheet is usually annexed to the printed demand form which the applicant obtains from the receiving Office or the International Preliminary Examining Authority. It is not part of the form, however, and its use is not mandatory. Nevertheless, it is strongly recommended that the applicant complete the fee calculation sheet and submit it to the International Preliminary Examining Authority. This will help the International Preliminary Examining Authority verify the calculations and identify any errors. Refer to the Notes to the fee calculation sheet at the WIPO Internet address in paragraph 10.033 for details about completion of the sheet. For further information about the payment of fees, refer to paragraphs 10.035 to 10.043.

FEES

10.035. What fees are payable in respect of a demand for international preliminary examination?

Article 31(5)

There are two kinds of fees which have to be paid in connection with the demand:

Rule 58.1(a), Rule 58.1(c)

(i) the "preliminary examination fee," which is fixed by and accrues to the International Preliminary Examining Authority, mainly for carrying out the international preliminary examination and for establishing the international preliminary report on patentability (Chapter II of the PCT);

Rule 57.1

(ii) the "handling fee," which is fixed in the Schedule of Fees to the PCT Regulations and accrues to the International Bureau for carrying out various tasks, including, where required, the translation of the international preliminary report on patentability (Chapter II of the PCT) into English (refer to paragraph 10.039).

10.036. Is any fee payable for effecting an election?

There is no "election fee". The only fees payable for filing a demand are those specified in paragraph 10.035.

10.037. To whom are these fees payable?

Rule 57.1, Rule 58.1(c)

The preliminary examination fee and the handling fee are payable to the International Preliminary Examining Authority, which forwards the handling fee to the International Bureau.

10.038. In what currency are these fees payable?

Rule 57.2(b), Rule 58.1(c)

Generally, the preliminary examination fee and the handling fee are payable in the currency or one of the currencies prescribed by the International Preliminary Examining Authority. Complete information on this question is contained in Annex E.

10.039. What are the amounts of these fees?

Rule 57.2(a), Rule 57.3, Rule 58.1(b)

Annex E indicates the amounts of the preliminary examination fee and the handling fee payable to each International Preliminary Examining Authority.

10.040. What fee reductions are available?

A reduction of the preliminary examination fee charged by the Austrian Patent Office, the European Patent Office and the Spanish Patent and Trademark Office may be available to applicants from certain States - refer to Annexes E for further details.

10.041

In accordance with the Schedule of Fees, item 5, an applicant is entitled to a reduction of 90% of the handling fee if (a) the applicant is a natural person and a national of and resides in a State that is listed as being a State whose per capita gross domestic product is below 25,000 US dollars (according to the most recent 10-year average per capita gross domestic product figures at constant 2005 US dollars values published by the United Nations), and whose nationals and residents who are natural persons have filed less than 10 international applications per year (per million population) or less than 50 international applications per year (in absolute numbers) according to the most recent 5-year average yearly filing figures published by the International Bureau; or (b) if the applicant is, whether a natural person or not, a national of and resides in a State that is listed as being classified by the United Nations as a least developed country. (For a list of States whose nationals and residents are eligible for the fee reduction, refer to <https://www.wipo.int/documents/d/pct-system/docs-en-fee-reduction-january.pdf>). If there are several applicants, each must satisfy one or the other of the above-mentioned criteria. However, it should be noted that an applicant is only entitled to the reduction of the handling fee if, at the time of filing the demand, that applicant is or all applicants are the true and only owners of the application and under no obligation to assign, grant, convey or license the rights in the invention to another party which is not eligible for the fee reduction, as outlined above. If the applicant is or all applicants are entitled to the reduction of the handling fee, this reduction applies on the basis of the indications of name, nationality and residence given in Box No. II of the demand, without the need for a specific request to be made.

10.042. When are these fees due?

Rule 57.3, Rule 58.1(b)

The preliminary examination fee and the handling fee must be paid within one month from the date on which the demand was submitted or 22 months from the priority date, whichever expires later, provided that, where the demand was transmitted to the competent International Preliminary Examining Authority under Rule 59.3, the handling fee must be paid within one month from the date of receipt by that Authority or 22 months from the priority date, whichever expires later. As to the consequences of non-payment or late payment of these fees, refer to paragraph 10.047.

10.043. In what cases are these fees refunded?

Rule 54.4, Rule 57.4, Rule 58.3

The International Preliminary Examining Authority will refund the handling fee if the demand is withdrawn before being sent to the International Bureau or if the demand is considered not to have been submitted because none of the applicants had the right to file a demand (refer to paragraph 10.004). Each International Preliminary Examining Authority decides at its discretion whether it will refund the preliminary examination fee, or any part thereof, in other circumstances. Details are indicated in Annex E.

PROCESSING OF THE DEMAND FOR INTERNATIONAL PRELIMINARY EXAMINATION

10.044. What happens to the demand for international preliminary examination once it has been received?

Rule 60.1(a), Rule 61.1

The International Preliminary Examining Authority promptly notifies the applicant of the date of receipt of the demand, and then examines the demand to ascertain whether it meets all the requirements. If it does not, the International Preliminary Examining Authority invites the applicant to comply. For full details on the correction of defects in the demand, refer to Rule 60.1 and paragraphs 10.047 to 10.049, and paragraph 10.050.

10.045

Article 31(7), Rule 61.1(a), Rule 61.2, Rule 61.3, Rule 61.4, Section 431

The International Preliminary Examining Authority sends the demand or a copy thereof to the International Bureau. The International Bureau then notifies Offices of their election and informs the applicant that it has done so. For full details, refer to Rules 61.2 and 61.3. In addition, the International Bureau, promptly after the filing of the demand but not before the international publication, publishes information on the

WIPO website at: <https://www.wipo.int/en/web/patentscope/> on the demand and the elected States concerned, as provided in the Administrative Instructions.

10.046. What action can the applicant take if the indications on the demand form do not support the applicant's right to file the demand?

Article 31(2)(a), Rule 61.1(b), Section 614

If the indications of the applicant's residence and nationality given in Box No. II of the demand form do not support the applicant's right to file a demand with the International Preliminary Examining Authority concerned (refer to paragraph 10.004), the International Preliminary Examining Authority notifies the applicant that the demand is considered not to have been submitted. It may happen, however, that those indications were incorrectly stated or that the applicant in fact had a residence and/or nationality supporting the applicant's right to file the demand. In such a case, evidence should immediately be submitted indicating that, in fact, the applicant had, on the date on which the demand was received by the International Preliminary Examining Authority, the right to file the demand with that Authority. If that evidence is to the satisfaction of the Authority, it will then regard the requirements of Article 31(2)(a) as having been fulfilled on the date of actual receipt of the demand, and the indications in the demand can be corrected.

10.047. Can defects in the demand for international preliminary examination, non-compliance with certain language requirements, and non-payment of certain fees be corrected, and if so how?

What are the consequences? If the International Preliminary Examining Authority finds that:

Article 31(3), Rule 53, Rule 55.1

(i) the demand does not meet the requirements as to form, contents and languages (refer to paragraph 10.012),

Rule 57.3

(ii) the handling fee was not paid within one month from the date on which the demand was submitted or, where the demand was transmitted to the competent International Preliminary Examining Authority under Rule 59.3, within one month from the date of receipt by that Authority, or was not paid in the prescribed currency (refer to paragraphs 10.035 and 10.038), or

Rule 58.1(b), Rule 58*bis*, Rule 60.1(b)

(iii) the preliminary examination fee was not paid within one month from the date on which the demand was submitted or, where the demand was transmitted to the competent International Preliminary Examining Authority under Rule 59.3, within one month from the date of receipt by that Authority, or was not paid in the prescribed currency (fixed by the International Preliminary Examining Authority - refer to paragraphs 10.035 and 10.038), it invites the applicant to correct the defect(s) and comply with the requirements and/or to pay the required fee(s). In the case of defects as to form or language, the invitation specifies a time limit of at least one month from the date of the invitation, which time limit may be extended by the International Preliminary Examining Authority at any time before a decision is taken. In the case of defects as to fee payment, the invitation specifies a time limit of one month from the date of the invitation; a late payment fee may also be required; no extension of this time limit is available. However, any payment must be considered to have been received before the expiration of the applicable time limit if it is received by the International Preliminary Examining Authority before the expiration of the time limit for paying the fee(s) or, where an invitation to pay missing fees has been sent, before that Authority makes the declaration that the demand is considered not to have been made.

10.048

Rule 60.1(b), Rule 61.1(b)

If the applicant complies with the invitation within the specified time limit, there is no adverse consequence, other than possibly delaying the start of the international preliminary examination (refer to paragraph 10.050), except where the defect was that the demand did not permit the international application to be identified. In the latter case, the demand is considered to have been received on the date on which the required correction to it is received, and the International Preliminary Examining Authority informs the applicant of that date.

10.049

Rule 60.1(c), Rule 61.1(b)

If, after the expiration of the time limit specified (including any extensions), a signature (of at least one applicant), or other required indication (in respect of one applicant who has the right according to Rule 54.2 to make a demand) is still lacking the demand is considered not to have been submitted and the International Preliminary Examining Authority will so declare.

10.050

Article 39(1)(a)

Where the demand is considered to have been received, as described in paragraph 10.048, on a date later than that on which it was actually submitted, the effect of postponing the commencement of the national phase (refer to paragraph 10.002 above) is lost if that later date is after the expiration of 19 months from the priority date. This is, however, only relevant in respect of any State whose designated Office has notified the International Bureau that the 30-month time limit under Article 22(1), as in force from April 1, 2002, is incompatible with the national law applied by that Office. The effect of postponing the commencement of the national phase is also lost where the demand is considered not to have been submitted (refer to paragraph 10.049).

THE INTERNATIONAL PRELIMINARY EXAMINATION

10.051. When does the international preliminary examination start?

Rule 69.1(a)

Subject to the exceptions mentioned in paragraphs 10.052 to 10.055, the International Preliminary Examining Authority starts the international preliminary examination when it is in possession of the demand, the amount due (in full) for the handling fee and the preliminary examination fee, including, where applicable, the late payment fee under Rule 58*bis*.2, and of either the international search report and the written opinion established under Rule 43*bis*.1 or a declaration by the International Searching Authority that no international search report will be established and the written opinion established under Rule 43*bis*.1, unless the applicant expressly requests to postpone the start of the international preliminary examination until the expiration of the applicable time limit under Rule 54*bis*.1(a).

10.052. What is a “telescoped” procedure for the purpose of international preliminary examination?

Rule 69.1(b)

If the competent International Preliminary Examining Authority is part of the same (national or regional) Office as the competent International Searching Authority, the international preliminary examination may, if the Office wishes and except where the applicant has requested that the international preliminary examination be postponed (refer to paragraph 10.054), start at the same time as the international search (often called a telescoped procedure since the international search and international preliminary examination partly overlap).

10.053. Will the International Preliminary Examining Authority take into account my amendments made under Article 19?

Rule 53.9(a)(i), Rule 62, Rule 69.1(c)

Where the statement concerning amendments made in the demand contains an indication that amendments under Article 19 are to be taken into account, the International Preliminary Examining Authority will not start the international preliminary examination before it has received a copy of the amendments concerned and the accompanying letter. Therefore, a copy of those amendments and accompanying letter should be attached to the demand by the applicant in order to allow as much time as possible for the international preliminary examination (refer to paragraphs 9.010, 10.025 and 10.026). The International Bureau will, in any event, send a copy of those amendments and accompanying letter to the International Preliminary Examining Authority unless that Authority has indicated that it has already received them (refer to paragraph 9.010), but waiting for those copies to be sent may delay the start of the international preliminary examination.

10.054. How can I postpone the start of the international preliminary examination?

Rule 53.9(b), Rule 69.1(d)

Where the statement concerning amendments contains an indication that the start of the international preliminary examination is to be postponed (refer to paragraph 10.026), the International Preliminary Examining Authority will not start the international preliminary examination before whichever of the following occurs first:

- (i) it has received a copy of any amendments under Article 19;
- (ii) it has received a notice from the applicant stating that the applicant does not intend to make amendments under Article 19; or
- (iii) the expiration of the applicable time limit under Rule 46.1.

Therefore, where the applicant gives such an indication in the demand, he/she should ensure that the International Preliminary Examining Authority is informed promptly of any amendments or of any decision not to file amendments, in order to gain the maximum time possible for the international preliminary examination procedure.

10.055

Rule 53.9(c), Rule 55.2, Rule 55.3(a), Rule 55.3(b), Rule 55.3(c), Rule 55.3(d), Rule 69.1(e)

Where the statement concerning amendments contains an indication that amendments under Article 34 are submitted with the demand (refer to paragraph 10.026), but no such amendments are, in fact, submitted with the demand, the International Preliminary Examining Authority will not start the international preliminary examination before it has received the amendments or before it has invited the applicant to file them and the time limit fixed in that invitation has expired, whichever occurs first. Where the international application was not filed in the language of publication, any amendments under Article 34 and any accompanying letter (as well as any letter accompanying Article 19 amendments) must be in the language of publication. Where the international preliminary examination is carried out on the basis of a translation of the international application (refer to paragraph 10.011), any such amendments, and any amendments under Article 19 which are to be taken into account, and any letter that accompanied such amendments must be in the language of that translation. Where such amendments have been or are filed in another language, a translation of the amendments into the language in which the international preliminary examination is carried out must also be furnished (also refer to paragraph 11.046). If the amendments or accompanying letter are not in the required language, the International Preliminary Examining Authority will invite the applicant to furnish them within a reasonable time limit. If the applicant fails to furnish the amendments and/or the accompanying letter within the time limit set in the invitation, the International Preliminary Examining Authority will not take the amendments into consideration for the purposes of the international preliminary examination.

10.056. May the International Preliminary Examining Authority ask for the priority document and a translation of it?

Rule 66.7

If the International Preliminary Examining Authority needs a copy of an application the priority of which is claimed in the international application ("the priority document") and the International Bureau already has the priority document in its possession (refer to paragraph 5.070), the International Bureau furnishes a copy of it to the Authority on request. Should the applicant have failed to provide the priority document under Rule 17.1, the international preliminary report on patentability (Chapter II of the PCT) may be established as if the priority had not been claimed, but no elected Office may later disregard the priority claim under those circumstances before giving the applicant an opportunity to furnish the priority document within a time limit which is reasonable under the circumstances. Where the priority document is in a language other than the language or one of the languages indicated for the International Preliminary Examining Authority in Annex E, and that Authority is of the opinion that the validity of the priority claim is relevant for the formulation of the opinion on whether the claimed invention appears to be novel, to involve an inventive step and to be industrially applicable, the Authority may invite the applicant to furnish to it a translation in that language. The applicant must comply with that invitation within two months from its date; otherwise, the international preliminary report on patentability (Chapter II of the PCT) may be established as if the priority had not been claimed.

10.057. What is the purpose of the international preliminary examination?

Article 33(1)

As already stated in paragraph 10.001, the purpose of the international preliminary examination is to formulate an opinion - which is "preliminary" (since a final opinion will be formulated only in the national phase by the national or regional Patent Office or by a competent national or regional court) and "non-binding" (on anyone, including elected Offices) - on whether the claimed invention appears (i) to be novel, (ii) to involve an inventive step (to be non-obvious), and (iii) to be industrially applicable. While there is not a fully uniform approach to these criteria in national laws, their application under the PCT during the international preliminary examination procedure is such that the international preliminary report on patentability (Chapter II of the PCT) gives a good idea of the likely results in the national phase.

10.058. For the purposes of the international preliminary examination, when is a claimed invention considered novel?

Article 33(2), Rule 64

For the purposes of the international preliminary examination, a claimed invention is considered novel if it is not anticipated by the prior art. Rule 64 defines prior art for the purposes of the examination.

10.059. For the purposes of the international preliminary examination, when is a claimed invention considered to involve an inventive step?

Article 33(3), Rule 65

For the purposes of the international preliminary examination, a claimed invention is considered to involve an inventive step if, having regard to the prior art as defined in the Regulations (refer to paragraph 10.058), it is not, at the prescribed relevant date, obvious to a person skilled in the art. For further details, refer to Rule 65.

10.060. For the purposes of the international preliminary examination, when is a claimed invention considered industrially applicable?

Article 33(4)

For the purposes of the international preliminary examination, a claimed invention is considered industrially applicable if, according to its nature, it can be made or used (in the technological sense) in any kind of industry.

10.061. What documents form the basis of the international preliminary examination?

Rule 66.1, Rule 66.4*bis*

The international preliminary examination is based on the claims, the description and the drawings comprised in the international application. Amendments to the claims under Article 19 made before the demand was filed are taken into account unless they are superseded by a subsequent amendment under Article 34 (refer to paragraph 10.028) or considered as reversed by an amendment under Article 34 (refer to paragraph 10.026). Amendments made after the demand is filed, whether under Article 19 or under Article 34, are also taken into account for the purposes of the international preliminary examination, except that they need not be taken into account for the purposes of a written opinion of the International Preliminary Examining Authority or the international preliminary report on patentability (Chapter II of the PCT) if they are received after the International Preliminary Examining Authority has begun to draw up that opinion or report. As to the permissibility of amendments in general, refer to paragraph 11.047.

10.062. What happens if no international search report has been established in respect of certain claims?

Rule 66.2(a)(vi)

Claims relating to inventions in respect of which no international search report has been established (refer to paragraphs 7.013 to 7.021) need not be the subject of international preliminary examination and any written opinion of the International Preliminary Examining Authority, as well as the international preliminary report on patentability (Chapter II of the PCT), will so indicate.

10.062A. Does the International Preliminary Examining Authority carry out any additional search?

Rule 66.1*ter*

The International Preliminary Examining Authority normally carries out a top-up search to discover any documents referred to in Rule 64, which have been published or have become available to the Authority for search subsequent to the date on which the international search report was established, unless where it considers that this would serve no useful purpose, for example, where it finds that the international application, in its entirety, relates to subject matter on which it is not required to carry out an international preliminary examination. The international preliminary examination report indicates whether a top-up search was carried out. When establishing the international preliminary examination report, the Authority may include results of the top-up search.

10.063. What special requirements apply during the international preliminary examination to nucleotide and/or amino acid sequence listings?

Rule 13*ter*.2

Where the International Preliminary Examining Authority finds that an international application contains disclosure of a nucleotide and/or amino acid sequence required to be included in a sequence listing pursuant to Annex C of the Administrative Instructions and that a sequence listing complying with the prescribed standard (refer to paragraph 5.099) in a language accepted by that Authority has not already been furnished (as part of the international application or for the purposes of international preliminary examination, as the case may be), that Authority may invite the applicant to furnish a sequence listing complying with this standard or containing a translation of the language-dependent free text. The listings required by the International Preliminary Examining Authority are for the purposes of carrying out the international preliminary examination. National law requirements, in relation to disclosure of inventions involving sequence listings, are a matter for the national phase of processing.

10.064. What matters concerning the international application may be the subject of comment by the International Preliminary Examining Authority?

Rule 66.2

The International Preliminary Examining Authority notifies the applicant in a written opinion if it considers that

Article 34(4)(a)(i), Article 35(3)(a), Rule 66.2(a)(i), Rule 67

(i) the international application relates to subject matter on which it is not required to carry out an international preliminary examination, and decides not to carry out such an examination (this situation being the same as the one described in paragraph 7.013 in relation to the international search),

Article 34(4)(a)(ii), Rule 66.2(a)(i)

(ii) the description, the claims or the drawings are so unclear, or the claims are so inadequately supported by the description, that no meaningful opinion can be formed on the novelty, inventive step (non-obviousness) or industrial applicability of the claimed invention (this situation being the same as the one described in paragraph 7.014 in relation to the international search),

Rule 66.2(a)(ii)

(iii) the international preliminary report on patentability (Chapter II of the PCT) should be “negative” (refer to paragraph 10.075) in respect of any of the claims because the invention claimed therein does not appear to be novel, does not appear to involve an inventive step (be non-obvious), or does not appear to be industrially applicable,

Rule 66.2(a)(iv)

(iv) any amendment goes beyond the disclosure in the international application as filed (refer to paragraphs 10.070 and 11.047),

Rule 66.2(a)(v)

(v) the international preliminary report on patentability (Chapter II of the PCT) should be accompanied by (unfavorable) observations on the clarity of the claims, the description and the drawings, or on the question of the claims being fully supported by the description,

Rule 66.2(a)(vi)

(vi) a claim relates to an invention in respect of which no international search report has been established (refer to paragraphs 7.013 to 7.021) and the International Preliminary Examining Authority has decided not to carry out the international preliminary examination in respect of that claim,

Rule 66.2(a)(vii)

(vii) a nucleotide and/or amino acid sequence listing is not available to it in such a form and language that a meaningful international preliminary examination can be carried out (similarly to paragraph 5.099 in relation to the international search),

Rule 66.2(a)

(viii) the national law applied by the national Office which acts as the International Preliminary Examining Authority does not allow multiple dependent claims to be drafted in a manner different from that provided for in the second and third sentences of Rule 6.4(a) (this situation being the same as the one described in paragraphs 5.113 and 7.014 in relation to the international search).

10.065

Rule 66.2(a)(iii)

The Authority also proceeds as indicated in paragraph 10.064 where it notices some defect in the form or contents of the international application. Where observance of the unity of invention requirement (refer to paragraphs 5.114 to 5.123) is in question, refer to paragraph 10.072.

10.066. What is a “written opinion”?

Rule 66.2, Rule 66.4(a)

A “written opinion” is a notification, issued by the International Preliminary Examining Authority to the applicant, which indicates any comments by the Authority on the matters mentioned in paragraph 10.064. The written opinion must fully state the reasons for it, must invite the applicant to submit a written reply and must fix a time limit for the reply (usually two months, but extendible at the applicant's request - for more details, refer to Rule 66.2(d)). There may be no written opinion if the Authority has no such comments to make (in which case the Authority will proceed directly to the issuance of the international preliminary report on patentability (Chapter II of the PCT)). The Authority may issue one or more additional written opinions if time permits, particularly if the applicant makes a prompt and serious attempt to address the Authority's comments by argument or amendment.

10.067. How may the applicant react to a written opinion by the International Preliminary Examining Authority?

Article 34(2)(a), Article 34(2)(d), Rule 66.2(b), Rule 66.2(c), Rule 66.2(d), Rule 66.3, Rule 66.4, Rule 66.5, Rule 66.6, Rule 66.8

The applicant may ask for further clarifications from the International Preliminary Examining Authority and may voluntarily give clarifications to it, since the PCT expressly provides that the applicant has a right to communicate orally, by telephone or personally, or in writing with the Authority (Article 34(2)(a); refer also to Rule 66.6). More specifically, where the applicant receives a written opinion from the Authority on any of the matters referred to in paragraphs 10.064 and 10.065, he/she may respond to that written opinion (refer to Article 34(2)(d)). The response may consist of amendments and/or arguments. Any change – other than the rectification of obvious mistakes (refer to paragraphs 11.033 to 11.044) – in the claims, the description or the drawings (including cancellation of claims, omission of passages in the description or omission of certain drawings) is considered an amendment. For the form of amendments, refer to paragraph 10.071. If the International Preliminary Examining Authority issues one or more additional written opinions, the applicant's reaction possibilities are the same as in the case of the first written opinion. The applicant may request one or more additional opportunities for submitting amendments or arguments if sufficient time remains.

10.068. Will amendments and arguments always be taken into account?

Rule 66.4bis

Amendments and arguments submitted will be taken into account if they are received in sufficient time. In view of the limited time available for international preliminary examination, however, it is in the applicant's interest to reply as soon as possible to any written opinion. Amendments or arguments need not be taken into account by the International Preliminary Examining Authority for the purposes of a written opinion or the international preliminary report on patentability (Chapter II of the PCT) if they are received after the Authority has begun to draw up that opinion or report.

10.069. Am I obliged to make changes to my international application after receipt of a negative written opinion?

It should be noted that the International Preliminary Examining Authority cannot force the applicant to make any change in the international application. In other words the applicant may disregard any opinion of the said Authority, either wholly or in part. Such an attitude may lead to an unfavorable or less favorable international preliminary report on patentability (Chapter II of the PCT), but the applicant may prefer such a report (in the hope of overcoming, in the national phase, any difficulties that it may cause) to an undesirable change.

10.070. May amendments include new matter in the international application?

Article 34(2)(b), Rule 70.2(c)

As for amendments under Article 19 (refer to paragraph 9.009), amendments under Article 34(2)(b) may not go beyond the disclosure in the international application as filed. If the International Preliminary Examining Authority considers that any amendments do not comply with this requirement, it will comment accordingly in any written opinion and in the international preliminary report on patentability (Chapter II of the PCT), and the report will be established as if such amendment had not been made (also refer to paragraph 11.047).

10.071. What must be done to effect amendments to the international application before the International Preliminary Examining Authority?

Rule 11.14, Rule 46.5, Rule 55.3, Rule 66.8, Rule 70.2(c-bis)

The applicant must submit a replacement sheet for every sheet which, on account of an amendment, differs from the sheet previously filed. The amendment must be submitted with an accompanying letter which explains the difference between the replaced sheet and the replacement sheet and which preferably explains the reasons for the amendment. In addition, the letter must indicate the basis for the amendment in the application. The basis for the amendment must always refer to the application (description, claims, drawings) as originally filed, even if multiple amendments were made during the international phase. When filing amendments to the claims, a complete set of claims in replacement of the claims as originally filed (or previously amended under Article 19) shall be submitted. For an example of how the basis for the amendment should be indicated, refer to paragraph 9.006. For the consequences of not furnishing an accompanying letter with the replacement sheets, refer to paragraph 11.047A. Where the amendment consists in the deletion of passages or in minor alterations or additions, the alterations or additions may be made on a copy of the relevant sheet of the international application, provided that the clarity and direct reproducibility of that sheet are not adversely affected. No replacement sheet is required where the amendment results in the cancellation of an entire sheet; such an amendment may

be communicated in a letter which preferably explains the reasons for the amendment. For amendments to the claims, also refer to paragraphs 9.005 and 9.006 in relation to the international search, which apply *mutatis mutandis*. Where the international application was not filed in the language of publication, any amendments under Article 34 and any accompanying letter (as well as any letter accompanying Article 19 amendments) must be in the language of publication. Where the international preliminary examination is carried out on the basis of a translation of the international application (refer to paragraphs 10.011, 10.054 and 10.055), any amendments under Article 34 and any amendments under Article 19, which are to be taken into account, and any accompanying letter must be in the language of that translation. Where such amendments have been or are filed in another language, a translation of the amendments into the language in which the international preliminary examination is carried out must also be furnished (refer to paragraphs 5.013, 10.011 and 11.046). No fee is payable in respect of filing any amendments under Article 34(2)(b). If the amendments or accompanying letter are not in the required language, the International Preliminary Examining Authority will invite the applicant to furnish them within a reasonable time limit. If the applicant fails to furnish the amendments and/or the accompanying letter within the time limit set in the invitation, the International Preliminary Examining Authority shall not take such amendments into account for the purposes of the international preliminary examination.

10.072. What happens where the International Preliminary Examining Authority finds that “unity of invention” is lacking?

Rule 68, Rule 70.13

If the International Preliminary Examining Authority considers that the international application does not comply with the unity of invention requirement (refer to paragraphs 5.114 to 5.123 for the notion of “unity of invention”), it may choose between two courses of action: it may carry out the international preliminary examination on the entire international application and express its views on the lack of unity of invention in the international preliminary report on patentability (Chapter II of the PCT), or it may invite the applicant to either restrict the claims so that they meet the requirement (in which case the Authority must specify at least one possibility of restriction) or to pay additional fees (since the preliminary examination fee is calculated to cover cases where unity of invention exists). If the applicant chooses to restrict the claims as required, the examination is carried out on the claims as restricted. If the applicant chooses to pay the additional fees, the international preliminary examination is carried out on the claims for the main invention and those claims in respect of which additional fees were paid, and the report will indicate that such additional fees have been paid. The additional fees may be paid under protest, in which case procedures similar to those explained in relation to the international search apply (refer to paragraphs 7.019 and 7.020). If the applicant neither restricts the claims nor pays additional fees, the examination is carried out on the main invention as identified by the International Preliminary Examining Authority or the applicant, or in cases of doubt as defined in Rule 68.5 (namely, the invention first mentioned in the claims is considered to be the main invention).

10.073

Article 34(3)

A finding of lack of unity of invention may continue to be important during the national phase. Any elected Office which agrees with the finding of lack of unity may, during the national procedure, require the applicant to restrict the claims or to divide the application into a number of divisional applications, or to pay special fees in order to maintain those parts of the international application which do not relate to the main invention (for further details, refer to Article 34(3)).

THE INTERNATIONAL PRELIMINARY REPORT ON PATENTABILITY (CHAPTER II OF THE PCT)

10.074. When must the international preliminary report on patentability (Chapter II of the PCT) be established?

Article 35(1), Rule 69.2

The time limit for establishment of the international preliminary report on patentability (Chapter II of the PCT) is whichever of the following which expires last: 28 months from the priority date; six months from the time provided under Rule 69.1 for the start of the international preliminary examination; or six months from the date of receipt by the International Preliminary Examining Authority of the translation furnished under Rule 55.2 (refer to paragraphs 10.051 to 10.055). Thus, under normal circumstances, the applicant receives the report, at the latest, two months before national processing at the elected Offices may start. This ensures that the applicant has time to consider whether, and in which elected Offices, he/she wants to enter the national phase and to prepare the necessary actions (for details, refer to National Phase).

10.075. What are the form and contents of the international preliminary report on patentability (Chapter II of the PCT)?

Article 35(1), Article 35(2), Rule 70, Section 604

The international preliminary report on patentability (Chapter II of the PCT) contains, among other things, a statement (in the form of a simple “yes” or “no”), in relation to each claim which has been examined, on whether the claim appears to satisfy the criteria of novelty, inventive step (non-obviousness) and industrial applicability. The statement is, where appropriate, accompanied by the citation of relevant documents together with concise explanations pointing out the criteria to which the cited documents are applicable and giving reasons for the International Preliminary Examining Authority's conclusions. Other matters which may be included in the report are listed in paragraphs 10.064 and 10.065. The report also includes an indication whether any additional relevant documents had been discovered during a top-up search, states the date on which a top-up search was made or else states that no such top-up search was made (refer to paragraph 10.062A). Where applicable, the report also includes remarks relating to the question of unity of invention (refer to paragraph 10.072). For more details, refer to Article 35(1) and (2), Rule 70 and Section 604.

10.076. How are amendments to the international application referred to in the international preliminary report on patentability (Chapter II of the PCT)?

Rule 70.2(c-bis), Rule 70.2(e), Rule 70.16

The international preliminary report on patentability (Chapter II of the PCT) identifies the basis on which it is established - that is, whether, and if so, which, amendments have been taken into account. If amendments were made either under Article 19 and/or Article 34, but the applicant failed to submit the required accompanying letter to the International Bureau or the International Preliminary Examining Authority, the report may be established as if the amendments concerned had not been made and the report shall so indicate. The following are attached as “annexes” to the international preliminary report on patentability (Chapter II of the PCT): replacement sheets containing amendments under Article 19 and/or Article 34, which have been taken into account, and any accompanying letters, and replacement sheets containing rectifications of obvious mistakes, and accompanying letter authorized under Rule 91. Where a rectification of an obvious mistake is not taken into consideration because it has reached the International Preliminary Examining Authority only after it has begun to draw-up the report and, as a result, was not taken into account, the report shall so indicate and the sheets relating to the rectification will be annexed to the report. Amendments under Article 19 which have been considered as reversed by an amendment under Article 34 (refer to paragraph 10.026) or which have been superseded by later replacement sheets, or amendments resulting in the cancellation of entire sheets, are not annexed to the report neither are the letters which accompany such replacement sheets. However, if the International Preliminary Examining Authority considers that the superseding or reversing amendment goes beyond the original disclosure, each superseded or reversed replacement sheet and any letter relating to such sheets are nevertheless annexed to the report. Similarly, if the applicant failed to submit, together with the superseding or reversing amendments, the required accompanying letter, indicating the basis of the amendment in the application as filed, and where, as a result, the report is established as if the superseding or reversing amendments had not been made, each such superseded or reversed replacement sheet and any letter relating to such sheets are nevertheless annexed to the report.

10.077. May the international preliminary report on patentability (Chapter II of the PCT) express a view on the patentability of the invention?

Article 35(2)

No, it may not. Article 35(2) expressly states that “the international preliminary examination report shall not contain any statement on the question whether the claimed invention is or seems to be patentable or unpatentable according to any national law.” It should be noted that, in this context, “national law” includes regional patent treaties (the ARIPO Harare Protocol, the Eurasian Patent Convention, the European Patent Convention and the OAPI Agreement).

10.078. In what language is the international preliminary report on patentability (Chapter II of the PCT) established?

Rule 70.17, Rule 72, Rule 74

Are translations prepared? The international preliminary report on patentability (Chapter II of the PCT) and any annexes are established in the language in which the international application is published - refer to paragraphs 9.017 to 9.020) - except where the international preliminary examination is carried out on the basis of a translation (refer to paragraphs 5.013, 10.011 and 10.013), in which case the international preliminary report on patentability (Chapter II of the PCT) and annexes are established in the language of that translation. Each elected State may require that the report, if it is not in (one of) the official

language(s) of its national Office, be translated into English. If this is the case, the translation of the body of the report is prepared by the International Bureau, which transmits copies to the applicant and to each interested elected Office. If any elected Office requires a translation of annexes to the report, the preparation and furnishing of that translation is the responsibility of the applicant.

10.079. How do the applicant, the International Bureau and the elected Offices receive the international preliminary report on patentability (Chapter II of the PCT) and, where applicable, its translation?

Article 36(1), Article 36(3)(a), Rule 71.1, Rule 73.2, Rule 93*bis*

The International Preliminary Examining Authority transmits, on the same day, copies of the international preliminary report on patentability (Chapter II of the PCT) (and any annexes – refer to paragraph 10.076) to the applicant and the International Bureau. The latter transmits copies of the report (including any annexes) to the elected Offices, as well as a translation into English of the body of the report where that is required by any elected Office in accordance with Rule 93*bis*; it is however the applicant's responsibility to prepare a translation of any annexes, if required, and send it to the elected Offices concerned (refer to paragraph 10.078 and the National Phase). If, in the opinion of the applicant, there are errors in the translation of the international preliminary report on patentability (Chapter II of the PCT), he/she may send written observations on such errors to any interested elected Office and must send a copy of such observations to the International Bureau. As far as comments on the content of the international preliminary report on patentability (Chapter II of the PCT) itself are concerned, they should be addressed to the elected Offices during the national phase.

10.079A. Are any other documents in the file of the International Preliminary Examining Authority transmitted to the International Bureau?

Rule 71.1(b), Section 602*bis*

The International Preliminary Examining Authority also transmits a copy of the following documents to the International Bureau, which will communicate a copy to the elected Offices at the same time as it transmits a copy of the international preliminary report on patentability:

- any written opinion issued by the Authority;
- any replacement sheet containing amendments under Article 34 and any letter accompanying the amendments, including any such amendments and letters that have been superseded;
- any letter containing arguments that the applicant submitted to the Authority under PCT Rule 66.3 (refer to paragraph 10.067);
- any invitation to restrict claims or pay additional fees issued by the Authority;
- any protest against the invitation to restrict the claims or pay additional fees and the decision thereon, regardless whether or not the applicant has so requested in accordance with Rule 68.3(c); and
- any other document in its file that it wishes to transmit.

These documents will be transmitted to the International Bureau at any time after they have become available, but generally not later than the time of transmittal of the international preliminary examination report. It should be noted that any International Preliminary Examining Authority may decide to postpone the transmittal of the aforementioned documents until such time as it is technically prepared to do so.

10.080. Are the international preliminary report on patentability (Chapter II of the PCT) and any other documents from the file of the international preliminary examination accessible to persons other than the applicant and the elected Offices?

Article 36(3)(a), Article 38(1), Rule 71.1(b), Rule 73.2(a), Rule 94.1, Rule 94.2, Rule 94.3

The report and related documents from the file of the international preliminary examination are not published by the International Bureau. According to Article 36(3)(a), the International Bureau communicates the report to elected Offices. As of 1 January 2004, however, if so requested by an elected Office (details of such requests are published in the *Official Notices (PCT Gazette)*), the International Bureau will make available on PATENTSCOPE at: <https://www.wipo.int/en/web/patentscope/> the international preliminary report on patentability (Chapter II of the PCT), although, not before the expiration of 30 months from the priority date. Similarly, according to the amendments to Rules 71.1(b) and 94.1(c), which entered into force on 1 July 2020, any other document received at or established by the International Preliminary Examining Authority on or after 1 July 2020 will be made available on PATENTSCOPE after 30 months from the priority date (refer to paragraph 10.079A). The International Preliminary Examining Authority may not, unless requested or authorized by the applicant, give copies to anyone other than the applicant and the International Bureau. Once the international preliminary report

on patentability (Chapter II of the PCT) becomes part of the file in the elected Office, however, the national law applicable by that Office applies as to access to that report and the international preliminary examination file by persons other than the applicant, as indicated in paragraph 11.072.

10.081. [Deleted]

10.082. How can the applicant obtain copies of the documents cited in the international preliminary report on patentability (Chapter II of the PCT)?

Article 36(4), Rule 71.2

The applicant may obtain copies of those documents cited in the international preliminary report on patentability (Chapter II of the PCT) which were not cited in the international search report by requesting them from the International Preliminary Examining Authority. Annex E indicates the fees charged by such Authorities for furnishing copies on request.

10.083. What is the effect and usefulness of the international preliminary report on patentability (Chapter II of the PCT) in the national phase?

Since the international preliminary report on patentability (Chapter II of the PCT) contains an opinion on the compliance of the international application with internationally accepted criteria of novelty, inventive step (non-obviousness) and industrial applicability, it provides the applicant with a strong basis on which to evaluate the chances of obtaining patents in the various Offices in the national phase. While the international preliminary report on patentability (Chapter II of the PCT) is not binding on elected Offices, it carries considerable weight with them, and a favorable report will assist the prosecution of the application before the elected Offices. An elected Office which is the same national or regional Office as that which carried out the international preliminary examination as International Preliminary Examining Authority under the PCT will generally proceed rapidly to the grant of a patent in the national phase if the international preliminary report on patentability (Chapter II of the PCT) is favorable to the international application.

CHAPTER 11: MISCELLANEOUS QUESTIONS CONCERNING THE INTERNATIONAL PHASE

REPRESENTATION BY AGENTS AND COMMON REPRESENTATIVES

11.001. For what purposes may an agent be appointed?

Rule 90.1

The applicant may appoint an agent or agents to represent him/her before the receiving Office, the International Bureau, the International Searching Authority, any Authority specified for supplementary search and the International Preliminary Examining Authority – that is, for the purposes of the international phase generally. The applicant may also appoint an agent or agents to represent him/her specifically before the International Searching Authority, any Authority specified for supplementary search or before the International Preliminary Examining Authority. Agents appointed for the purposes of the international application during the international phase will not be automatically regarded as agents by national Offices during the national phase; other agents may thus have to be appointed for the purposes of the national phase before each of the various designated Offices (refer to National Chapters, (Summaries)).

11.002. Who may be appointed as an agent?

Article 49, Rule 83.1*bis*, Rule 90.1

A person may be appointed as agent for the international phase generally if that person has the right to practice before the Office with which the international application is filed. Where the international application is filed with the International Bureau as receiving Office (refer to paragraph 5.008), any person who has the right to practice before the national (or regional) Office of, or acting for, a Contracting State of which the applicant (or, if there are two or more applicants, any of the applicants) is a resident or national (refer to Annex C) may be appointed as agent. A person may be appointed as agent to represent the applicant specifically before the International Searching Authority, before any Authority specified for supplementary search, or before the International Preliminary Examining Authority if that person has the right to practice before the Office or intergovernmental organization which acts as that Authority. The right to practice before an Office or organization is governed by the national law applied by the Office or organization concerned.

11.003. Are all applicants required to have the same agent?

Each applicant is free to appoint his/her own agent. Ordinarily, however, it will be convenient for all of two or more applicants to appoint the same person to represent all of them as their “common agent” (or to appoint a number of common agents – for example, the partners in the firm of patent attorneys or patent agents which acts for the applicant).

11.004. Can an agent appoint a sub-agent?

Rule 90.1(d)

Any agent who has been appointed to represent the applicant for the international phase in general may appoint a sub-agent to represent the applicant, unless there is an indication otherwise in the document by which the original agent was appointed. Sub-agents may be appointed to represent the applicant either generally or before a specific International Searching Authority, Authority specified for supplementary search or International Preliminary Examining Authority. A sub-agent's appointment is subject to the same qualifications as to the right to practice as are set out in paragraph 11.002.

11.005. What is a “common representative” of the applicants?

Article 9, Rule 2.2*bis*, Rule 90.2(a)

Where there are two or more applicants and they have not appointed a common agent representing all of them for the purposes of the international phase in general, one of the applicants may be appointed by the other applicants as their common representative. Only a person who is a national or resident of a Contracting State, and thus is entitled to file an international application, may be appointed as common representative.

11.006. What happens if no common agent or common representative is specifically appointed?

Rule 2.2*bis*, Rule 26.2*bis*(a), Rule 90.2(b), Rule 90*bis*.5

If there are two or more applicants and they do not appoint a common agent or a common representative, the first-named applicant who has the right to file an international application with the receiving Office concerned (refer to paragraphs 5.020 to 5.023) will automatically be considered to be the common representative of all the applicants (“deemed common representative”). Such “deemed common representative” may do most of the things which an appointed agent or an appointed common representative may do on behalf of all the applicants, including signing the request, the demand and

many other documents for the purposes of the PCT. However, the “deemed common representative” may not validly sign, on behalf of the other applicants, a notice effecting withdrawal of the international application, a designation, one or more priority claim(s), the demand or an election, without submitting evidence of their consent to such withdrawal. If the “deemed common representative” has appointed an agent, that agent is able to perform any act which could be performed by the “deemed common representative” on behalf of the other applicants, including the signing of certain documents with effect for all the applicants (but, similarly, is not able to sign any notice of withdrawal).

11.007. How is an agent or common representative appointed?

Rule 90.4(a)

The appointment of an agent or common representative may be effected in the request and or the demand (refer to paragraphs 5.041 to 5.049, and 10.019 to 10.023) in a separate power of attorney (refer to paragraph 11.008) or in a general power of attorney (refer to paragraph 11.009). Where there are two or more applicants, a common agent or common representative, representing all of them, may be appointed by a combination of those methods, provided that each applicant signs either the request, the demand or a power of attorney.

11.008. What are the requirements with respect to a separate power of attorney?

Rule 90.4

Where the appointment of an agent or common representative is effected by a separate power of attorney, that power of attorney must be submitted to either the receiving Office or the International Bureau. However, any receiving Office, International Searching Authority, Authority specified for supplementary search, International Preliminary Examining Authority and/or the International Bureau may waive the requirement that a separate power of attorney be submitted to it (details of such waivers are published in the *Official Notices (PCT Gazette)*) in the PCT Newsletter and on the WIPO website at: <https://www.wipo.int/en/web/pct-system/texts/waivers>. It should be noted, however, that a waiver made by an Office, an Authority or the International Bureau does not apply where the agent or the common representative submits any notice of withdrawal referred to in Rules 90*bis*.1 to 90*bis*.4. A suitable model form for a separate power of attorney is available on the WIPO website at: <https://www.wipo.int/en/web/pct-system/forms/pa/index>.

11.009. Can an agent be appointed by a general power of attorney to represent the applicant in relation to any international application filed by that applicant?

Rule 90.5

Yes, such a general appointment can be made. The original general power of attorney must be filed with the receiving Office if the appointment was for the purposes of the international phase generally, or with the International Searching Authority, the Authority specified for supplementary search, or the International Preliminary Examining Authority if the appointment was specifically to represent the applicant before that Authority. The appointment will then be effective in relation to any particular application filed by that applicant provided that the general power of attorney is referred to in the request, the demand or a separate notice. However, any receiving Office, International Searching Authority, Authority specified for supplementary search, and/or International Preliminary Examining Authority may waive the requirement that a copy of the general power of attorney be attached to the request, the supplementary search request, the demand or any separate notice (details of such waivers are published in the *Official Notices (PCT Gazette)*). For an Office or Authority that has not made a waiver of the requirement, a copy of the general power of attorney must be attached to the request, supplementary search request, demand or separate notice. That copy of the signed original need not, itself, be separately signed. A suitable model form for a general power of attorney is available on the WIPO website at: <https://www.wipo.int/en/web/pct-system/forms/pa/index>. It should be noted that a waiver made by an Office or an Authority does not apply where the agent or the common representative submits any notice of withdrawal referred to in Rules 90*bis*.1 to 90*bis*.4.

11.010. What is the legal position of an agent or common representative?

Rule 90.3

Any act by or in relation to an agent or common representative has the effect of an act by or in relation to the applicant or applicants whom the agent represents for the purposes of the procedure before the receiving Office, International Bureau, International Searching Authority, Authority specified for supplementary search, and/or International Preliminary Examining Authority, depending on whether the appointment was for general purposes or for the purposes of the procedure before a particular authority (refer to paragraph 11.001). In particular, an agent or common representative is able to sign documents in connection with the international application on behalf of the applicants. However, an applicant who is

the deemed common representative (refer to paragraph 11.006) may not sign notices of withdrawal on behalf of the other applicants (refer to paragraphs 11.048, 11.050, 11.056 and 11.060). If there are two or more agents representing the same applicant or applicants, an act by or in relation to any of those agents has the effect of an act by or in relation to that applicant or those applicants.

11.011. Can the appointment of an agent or a common representative be revoked?

Rule 90.6(a)

Yes, it can. The document containing the revocation must be signed by the persons who made the appointment or by their successors in title. The appointment of a sub-agent may also be revoked by the applicant concerned. If the appointment of an agent is revoked, any appointment of a sub-agent by that agent is also considered revoked.

11.012

Rule 90.6(b), Rule 90.6(c)

The appointment of an agent for the international phase in general automatically has the effect, unless otherwise indicated, of revoking any earlier such appointment of an agent. The appointment of a common representative similarly has the effect, unless otherwise indicated, of revoking any earlier appointment of a common representative.

11.013

The rules for signing and submission of a power of attorney apply *mutatis mutandis* to a revocation of an appointment (refer to paragraphs 11.007 and 11.008).

11.014. How can an agent or common representative renounce his/her appointment?

Rule 90.6(d), Rule 90.6(e), Section 425

Renunciation of an appointment may be made by means of a notification signed by the agent or common representative. The Rules for signing and submission of a power of attorney apply *mutatis mutandis* to a renunciation (refer to paragraphs 11.007 and 11.008). The applicant is informed of the renunciation by the International Bureau.

CORRESPONDENCE TO THE APPLICANT

11.015. To whom will correspondence be addressed by the various authorities under the PCT?

Section 108(b)

Where there is a sole applicant in relation to an international application, correspondence will be sent to the applicant at the address indicated; or, if one or more agents have been appointed, to that agent or the first-mentioned of those agents; or, if there is no appointed agent, but a special address has been indicated for notifications (refer to paragraphs 5.030 and 5.051), to that special address.

11.016

Section 108(c)

Where there are two or more applicants who have appointed one or more common agents, correspondence will be addressed to that agent or the first-mentioned of those agents. Where no common agent has been appointed, correspondence will be addressed to the common representative (either the appointed common representative or the applicant who is the “deemed common representative” – refer to paragraphs 11.005 and 11.006) at the address indicated; or, if the common representative has appointed one or more agents, to that agent or the first-mentioned of those agents; or, if the common representative has not appointed an agent but has indicated a special address for notifications, to that special address.

11.017

Section 108(d)

Where one or more agents have been appointed specifically to represent the applicant(s) before the International Searching Authority, the Authority specified for supplementary search, or the International Preliminary Examining Authority, correspondence will be addressed by the Authority concerned to that agent or the first-mentioned of those agents.

CHANGES CONCERNING THE APPLICANT, INVENTOR, AGENT OR COMMON REPRESENTATIVE

11.018. What should be done where there is a change in the person, name, residence, nationality or address of the applicant, or in the person, name or address of the inventor, agent or common representative?

Rule 92bis, Section 422

Where there is a change in the person, name, residence, nationality or address of the applicant, or in the person, name or address of the inventor, agent or common representative, the applicant or the receiving Office should ask the International Bureau to record the change. If so requested, the International Bureau records the change and notifies all Offices and PCT Authorities interested in the change accordingly. Any such recording is free of charge.

11.018A. Where should requests for change be sent?

While Rule 92bis provides for the possibility, at the choice of the applicant, to send requests for change to the receiving Office or the International Bureau, it is strongly recommended to send them directly to the International Bureau, preferably via ePCT (signing in with strong authentication or without strong authentication at <https://pct.wipo.int/ePCT>). It is important that the International Bureau - and not the receiving Office - receives the request for change in order to meet the applicable time limit of 30 months from the priority date.

11.018B. Does the applicant need to provide any documentary evidence?

Where the applicant or agent of record requests a change, it is not necessary to produce any documentary evidence relating to the change. In particular, where the applicant or agent of record requests a change in the person of the applicant, the International Bureau does not require an assignment or other documentary evidence to show the transfer of rights. Assignments and other documentary evidence relating to any transfer of rights may, however, be required by the designated Offices once national processing has started; the National Chapters of this Guide give details on this matter. If the agent of record wishes to also represent the new applicant, a power of attorney, signed by the new applicant, should be furnished at the same time, unless the Office or Authority with which the request is filed has waived the requirement that a power be furnished (refer to paragraphs 11.008 and 11.009). It should be noted that the International Bureau has waived such a requirement (refer to <https://www.wipo.int/en/web/pct-system/texts/waivers>).

Where a person not yet named in the request form, hereinafter referred to as the new applicant, without the written consent of the applicant of record, requests a change in the person of the applicant, a copy of an assignment or other documentary evidence supporting the change in person must be filed with the request for the change. Where the request for a change of applicant is made by a (new) agent for the new applicant, a power of attorney signed by the new applicant must be furnished in addition to the documentary evidence unless the Office or Authority with which the request is filed has waived the requirement that a separate power of attorney, or a copy of a general power of attorney, has to be submitted (refer to paragraphs 11.008 and 11.009). It should be noted that the International Bureau has not waived that requirement and, as a consequence, a new power of attorney will always be required when filing this type of request for a change with the International Bureau.

Section 422bis(a)(iii)

Where an applicant is requested to be deleted from the records and that request was not also signed by or on behalf of the applicant concerned, the International Bureau will send a copy of the notification of change (Form PCT/IB/306) to the applicant who has been removed from the records. This also applies where the request is signed by an agent on behalf of the applicants who is only deemed appointed since the receiving Office has waived the requirement that a power of attorney must be submitted. In case the applicant concerned objects to the change in writing during the international phase, the recorded change would be undone.

Where a patent agent changes to a new firm and requests that the change be recorded, such change would be considered as a change of address and a new power need not be furnished.

11.018C. Must a new applicant be a national or resident of a contracting State?

It is not necessary, in order for a change in the person of the applicant to be recorded, that the new applicant be a resident or national of a PCT Contracting State; the PCT does not contain any restriction as to whom an international application may be assigned. The applicant's right to file the international application is determined solely on the basis of the nationality and residence of the applicant(s) indicated in the request form at the time when the international application is filed. However, the residence and nationality of the new applicant must be borne in mind in considering whether that applicant has the right to file a demand for international preliminary examination (refer to paragraphs 10.017 and 10.018).

11.018D. What other kind of changes are covered by Rule 92bis?

Changes concerning the addition or deletion of indications relating to applicants and/or inventors, the order of applicants and/or inventors in the request form, changes relating to e-mail addresses etc. will also be recorded under Rule 92bis if requested.

It should be noted that it is not possible during the international phase to record rights of third parties, such as licenses, pledges or other security interests. Such changes, to the extent provided for under the applicable national law, can only be recorded during the national phase and in accordance with the applicable national procedures.

11.019. Where a change affects multiple applications, may the applicant make a single request?

Where a change concerns multiple pending international applications, it is recommended that applicants submit a single written request and include a list of the PCT applications concerned (and not a separate request for each application). The list should only include pending international applications, that is, applications for which the 30-month time limit from the priority date has not yet expired.

11.020. Is there a special form for requesting the recording of changes under Rule 92bis?

There is no special form for requesting the recording of changes under Rule 92bis. The request may be presented in the form of a letter to the receiving Office or the International Bureau, clearly specifying the application concerned and which information is requested to be changed. Where the request concerns a change in a name or address and the application is filed in a language which uses non-Latin characters, in addition to the new name or address in the language of filing, a transliteration or translation of the new name or address into English must also be provided. It is strongly recommended to file such requests directly with the International Bureau through ePCT (signing in with strong authentication or without strong authentication at <https://pct.wipo.int/ePCT>).

11.021. What is the time limit to request the recording of changes?*Rule 92bis.1(b)*

The International Bureau records the change if it receives the request for recording before the expiration of 30 months (regardless of the precise time limit applicable to enter the national phase, Office by Office, such as 31 months or later) from the priority date. If the applicant wants a particular change to be taken into account for international publication of the application, the request for change must reach the International Bureau before technical preparations for international publication have been completed (refer to paragraph 9.014). If the request reaches the International Bureau too late to be reflected in the international publication but within the 30-month time limit, it will nevertheless be acted upon and notified to the designated/elected Offices. The bibliographic data page of PATENTSCOPE is updated to reflect any recorded change until the expiration of 30 months. If the request reaches the International Bureau after the expiration of 30 months, the change will not be recorded and the applicant will have to proceed with such request before each designated/elected Office.

11.022. What is the legal effect of any recorded change?

In principle, all designated and elected Offices are obliged to accept changes recorded by the International Bureau. However, Offices are entitled to require additional evidence or documents in the national phase regarding changes recorded during the international phase (for information on the Offices which require additional documents in the national phase, including a new request for change specifically for the national phase before a particular Office, refer to the relevant Summary in the National Chapters of this Guide).

DEATH OF APPLICANT OR INVENTOR**11.023. What should be done in the case of the death of the applicant during the international phase?***Article 27(2), Rule 92bis.1(a)*

The answer to this question depends on the national law applicable in such a case. The successor to the rights of the applicant (whether an heir, a legal representative, the estate represented by a legal representative, etc.) should be indicated as the new applicant, and a request for such a change to be recorded accordingly should be made under Rule 92bis.1 (refer to the procedure outlined in paragraphs 11.018 to 11.022). The reason for the requested change must be indicated. Documentary evidence proving the right to the application is not required during the international phase (although it may be required by any designated Office for the purposes of the national phase of processing).

11.024. [Deleted]

11.025. What should be done if the inventor died before the international application was filed?

Article 9, Rule 18.1

In such a case, the request must indicate the name of the deceased inventor with an indication that he/she is deceased, for instance: "JONES, Bernard (deceased)."

11.026. What should be done in the case of the death of the inventor during the international phase?

In such a case, the recording of a change to indicate that the inventor is deceased may be requested; where such indication is added, the inventor's address would be removed.

APPLICANT UNAVAILABLE OR UNWILLING TO SIGN THE INTERNATIONAL APPLICATION OR OTHER DOCUMENTS

11.027. What must be done if the applicant is temporarily unavailable to sign the international application?

Article 14(1)(a)(i), Article 14(1)(b), Rule 26.2, Rule 26.2*bis*, Section 316

Where an applicant is temporarily unavailable, the international application can be filed without that applicant's signature. The lack of an applicant's signature or of a power of attorney signed by that applicant, where either of these might be required, are correctable defects under Article 14(1)(a)(i) and (b), and can be remedied by filing a copy of the request (or, where the request has been signed by an agent, of a power of attorney (where this might be necessary)), duly signed by the applicant within the time limit fixed by the receiving Office for the correction of these potential defects (refer to paragraph 6.032).

11.028. - 11.032. [Deleted]

RECTIFICATION OF OBVIOUS MISTAKES

11.033. Can obvious mistakes be rectified by the applicant?

Rule 91.1(a), Rule 91.1(g)

Obvious mistakes in the international application or other documents submitted by the applicant may generally be rectified if the rectification is requested within the applicable time limit. Any such rectification is effected free of charge. Rule 91 considers certain mistakes to be not "rectifiable" (refer to paragraph 11.037) and requires applicants to rely on other means of correction (refer to Rules 20.4, 20.5, 26*bis* and 38.3).

11.034. What types of mistakes can be rectified?

Rule 91.1(c)

Only obvious mistakes can be rectified. A mistake is considered obvious if it is obvious to the competent authority that, at the relevant date (refer to paragraph 11.036), something else was intended than what appears in the document concerned, and that nothing else could have been intended other than the proposed rectification. In other words, both the mistake and the rectification of that mistake have to be obvious to the competent authority.

11.035. Is there any limitation on the kind of documents which an authority could consider when determining whether a mistake is obvious?

Rule 91.1(d), Rule 91.1(e)

If the mistake is contained in the description, the claims or the drawings, or in a correction or any amendment thereof, the competent authority is limited, for the purposes of determining whether both the mistake and the proposed rectification are obvious (refer to paragraph 11.034), to only take into account the contents of the description, the claims and the drawings and, where applicable, of the correction or amendment concerned. If the mistake is contained in the request or a correction thereof or in any other document mentioned in Rule 91.1(b)(iv), the competent authority should, for the purposes of determining whether both the mistake and the proposed rectification are obvious, take into account not only the content of the international application itself and, where applicable, the correction concerned and any other document referred to in Rule 91.1(b)(iv), but also any other document submitted by the applicant together with the request, correction or document, as the case may be, including any priority document that is available to that competent authority. Furthermore, the authority should also take into account any other document contained in the authority's international application file at the relevant date (refer to paragraph 11.036).

11.036. What is the relevant date applied by the competent authority for the determination of whether a mistake and its rectification are obvious?

Rule 91.1(f)

Where the mistake appears in the international application as filed, the relevant date is the international filing date; where the mistake appears in any document other than the international application as filed, including any mistake in a correction or an amendment of the international application, the relevant date is the date on which the document (correction and/or amendment) concerned was submitted.

11.037. Which mistakes cannot be rectified under Rule 91?

Rule 91.1(g)

The following mistakes cannot be rectified under Rule 91:

- omissions of entire elements or sheets of the international application, even if clearly resulting from inattention at the stage of filing of the international application, for example, when copying or assembling sheets;
- mistakes in the abstract;
- mistakes in an amendment under Article 19, unless the International Preliminary Examining Authority is the competent authority to authorize the rectification of such mistakes under Rule 91.1(b)(iii);
- mistakes in a priority claim or in a notice correcting or adding a priority claim if the rectification of the mistake would cause a change in the priority date (refer to paragraph 6.038 concerning whether such mistakes can instead be corrected under Rule 26*bis*.1(a));

11.038. Do rectifications of obvious mistakes need to be authorized by a particular Office?

Rule 91.1(b)

Yes, rectifications must be authorized by the competent PCT authority, that is:

- (i) if the mistake is in the request or in any correction thereof - by the receiving Office;
- (ii) if the mistake is in the description, the claims or the drawings or in any correction thereof - by the International Searching Authority, or by the International Preliminary Examining Authority where a demand for international preliminary examination has been made and has not been withdrawn and the date on which the international preliminary examination should start pursuant to Rule 69.1 has passed;
- (iii) if the mistake is in the description, the claims or the drawings or any correction thereof, or in any amendment under Article 19 or 34, and if a demand for international preliminary examination has been made and has not been withdrawn and if the date on which the international preliminary examination should start pursuant to Rule 69.1 has passed - by the International Preliminary Examining Authority;
- (iv) if the mistake is in any document other than those referred to in item (i) to (iii) above submitted to the receiving Office, the International Searching Authority, the International Preliminary Examining Authority or the International Bureau, other than a mistake in the abstract or in an amendment under Article 19 - by that Office, Authority or Bureau, as the case may be.

11.039. Where and when must a request for rectification be sent?

Rule 91.2

The request for rectification must be addressed to the authority competent to authorize the rectification (refer to paragraph 11.038). It must be filed within 26 months from the priority date. The request must specify the mistake to be rectified and the proposed rectification; it can also contain a brief explanation if the applicant so wishes. The procedure provided for in Rule 26.4 (refer to paragraph 6.052) applies as to the manner in which the proposed rectification should be indicated.

11.040. Can a competent authority invite the applicant to correct an obvious mistake?

Rule 91.1(h)

Where the receiving Office, the International Searching Authority, the International Preliminary Authority or the International Bureau discovers what appears to be a rectifiable obvious mistake in the international application or in any other document, it may invite the applicant to file a request for rectification under Rule 91.

11.041. What steps will the competent authority take once a request for rectification of an obvious mistake has been filed?

Rule 48.2(i), Rule 70.16(a)(iii), Rule 91.3(a), Rule 91.3(b)

Once the applicant has filed a request for rectification of an obvious mistake, the competent authority promptly decides whether to authorize or to refuse the requested rectification and promptly notifies its decision to the applicant and the International Bureau. In case of a refusal, the competent authority should also inform the applicant and the International Bureau of the reasons for the refusal. Where the competent authority has authorized the rectification of an obvious mistake under Rule 91, the document concerned shall be rectified in accordance with Sections 325, 413*bis*, 511 and 607 of the Administrative Instructions. Where the rectification has been authorized by the receiving Office, the International Searching Authority or the International Bureau, the International Bureau publishes the rectified sheets as part of the international application if the authorization is received or given by the International Bureau before completion of technical preparations for international publication. Where such authorization is received or given only after technical preparations have been completed, the International Bureau will republish the international application in accordance with Rule 48.2(i). Where the rectification is authorized by the International Preliminary Examining Authority, the rectified sheets and the request for rectification of an obvious mistake submitted by the applicant are annexed to the IPRP (Chapter II of the PCT).

11.042. When does the rectification of an obvious mistake become effective?

Rule 91.3(c)

If the mistake appears in the international application as filed, the rectification becomes effective as from the international filing date; if the mistake appears in any document other than the international application as filed, including any mistake in a correction or any amendment to the international application, the rectification becomes effective as from the date on which that document was submitted.

11.043. What can be done if the authorization of a rectification is refused?

Rule 91.3(d), Section 113(b)

If the authorization of a rectification is refused, the applicant may request the International Bureau, within two months from the date of the refusal, in writing, to publish the request for rectification, the reasons for refusal by the authority and any further brief comments that may be submitted by the applicant, together with the international application. This request is subject to the payment at the same time of a special fee, the amount of which is indicated in Annex B (IB). Once the request for rectification and the reasons for refusal have been published, the applicant may pursue it further before the designated Offices under their national law and practice for the rectification of obvious mistakes. Refused requests for rectification are not annexed to the IPRP except in certain circumstances as set out in paragraph 10.076.

11.044. What are the effects of the authorization of an obvious mistake on the designated and elected Offices?

Rule 91.3(e), Rule 91.3(f)

Generally, designated and elected Offices must process the international application in the national phase “as rectified”, unless that designated or elected Office has already started the processing or examination of the international application before the date on which that Office is notified under Rule 91.3(a) by the International Bureau of the authorization of the rectification concerned. Otherwise, a designated or elected Office may only disregard a rectification that was authorized under Rule 91.1 if it finds that it would not have authorized the rectification of the obvious mistake if it had been the competent authority. In the latter case, the designated Office may, however, only disregard any rectification that was authorized during the international phase, if it has given the applicant an opportunity to make observations, within a reasonable time limit, on the Office's intention to disregard the rectification.

AMENDMENTS OF THE CLAIMS, DESCRIPTION AND DRAWINGS

11.045. How, and at what stages, may the claims, description and drawings in an international application be amended?

Article 19, Article 34(2)(b)

As described elsewhere in this text, during the international phase the applicant has one opportunity to amend the claims under Article 19 after receiving the international search report (refer to paragraphs 9.004 to 9.011). Amendments may also be made under Article 34(2)(b) to the description, claims and drawings before and during the international preliminary examination procedure (refer to paragraphs 10.024 to 10.028, and 10.067 to 10.071). Such amendments are in addition to the possibilities for correction of defects under Article 11 and Rule 20 (refer to paragraphs 6.024 to 6.026) and Article 14 and

Rule 26 (refer to paragraph 6.032), and to the possibility for rectification of obvious mistakes under Rule 91.1 (refer to paragraphs 11.033 to 11.044). Applicants are also guaranteed the opportunity to amend the international application for the purposes of the national phase by virtue of Articles 28 and 41 (refer to National Chapters).

11.046. In what language should amendments be submitted during the international phase?

Rule 46.3, Rule 55.3

Concerning the language in which amendments of the claims under Article 19 must be submitted, refer to paragraphs 9.004 and 9.017 to 9.019; concerning the language in which amendments of the description, claims and/or drawings under Article 34 must be submitted, refer to paragraph 10.071.

11.047. May amendments to the claims, description or drawings during the international phase introduce new matter into the international application?

Article 19(2), Article 19(3), Article 34(2)(b), Rule 66.2(a)(iv), Rule 70.2(c)

Article 19(2) and Article 34(2)(b) both provide that amendments are not to go beyond the disclosure in the international application as filed. Compliance will not be checked during the international phase unless the applicant requests international preliminary examination. If the International Preliminary Examining Authority considers that any amendments go beyond the original disclosure, it will comment accordingly in any written opinion of the International Preliminary Examining Authority and in the international preliminary report on patentability (Chapter II of the PCT), and the report will be established as if such amendment had not been made (refer to paragraphs 10.064(iv) and 10.070). Compliance with the requirement may be important during the national phase, when it may be checked by the designated Offices, and non- may result at that stage in adverse consequences such as disallowance of the amendments or the according of a later filing date for any new matter claimed as a result of the amendments concerned. On the other hand, if the national law applicable in a designated Office permits amendments to go beyond the disclosure in the application as filed, non-compliance with the requirement has no consequence in the State concerned. Although customary in most national laws and contained in the European Patent Convention, the requirement is not one which - by virtue of the PCT - would bind any of the Contracting States. It is contained in the PCT because most laws provide for it, and it therefore seems to be a useful warning to all applicants planning to make amendments in the international phase.

11.047A. What happens where the claims, description or drawings have been amended, but the replacement sheets were not accompanied by a letter?

Article 19(1), Article 34(2)(b), Rule 46.5(b)(iii), Rule 66.8, Rule 70.2(c-bis)

The PCT requires that replacement sheets submitted with Article 19 or Article 34 amendments must be accompanied by a letter indicating the basis for the amendment in the application as filed (refer to paragraph 9.005, 9.006 and 10.071). Substantive compliance with this requirement is not checked during the international phase unless the applicant requests international preliminary examination. If the International Preliminary Examining Authority finds that the replacement sheets were either not accompanied by such a letter or that the letter failed to indicate the basis for the amendment, the International Preliminary Examining Authority may establish the international preliminary report on patentability (Chapter II of the PCT) as if such amendment had not been made. Compliance with this requirement may also be important during the national phase, when it may be checked by the designated Offices, and failure to comply may result in disallowance of the amendments.

WITHDRAWALS

11.048. Can the applicant withdraw the international application?

Rule 90.4(e), Rule 90.5(d), Rule 90bis.1, Rule 90bis.5

The applicant may withdraw the international application by a notice addressed to the International Bureau or to the receiving Office or, where Article 39(1) applies, to the International Preliminary Examining Authority, and received before the expiration of 30 months (refer to paragraph 5.005) from the priority date. Any such withdrawal is free of charge. A notice of withdrawal must be signed by all the applicants.

An appointed agent or appointed common representative may sign such a notice on behalf of the applicant or applicants who appointed him/her, but an applicant who is the “deemed common representative” (refer to paragraph 11.006) may not sign such a notice on behalf of the other applicants. Where an Office, Authority or the International Bureau has waived the requirement that a separate power of attorney, or a copy of a general power of attorney, has to be furnished, the waiver does not apply in respect of any notice of withdrawal.

11.049. What is the effect of withdrawal of an international application or the priority claim on international publication?

Article 21(5), Rule 90bis.1(c)

The applicant may prevent international publication by withdrawing the international application as described in paragraph 9.023A.

International publication may be postponed by withdrawing the priority claim as outlined in paragraphs 11.056 and 11.057.

11.050. Can the applicant withdraw designations?

Rule 90bis.2, Rule 90bis.5

The applicant may withdraw the designation of any State, and in respect of any kind of protection available, or only in respect of some of the kinds of protection available, by a notice addressed to the International Bureau or to the receiving Office or, where Article 39(1) applies, to the International Preliminary Examining Authority, and received before the expiration of 30 months (refer to paragraph 5.005) from the priority date. Any such withdrawal is free of charge. A notice of withdrawal must be signed by all the applicants. An appointed agent or appointed common representative may sign such a notice on behalf of the applicant or applicants who appointed him/her, but an applicant who is the “deemed common representative” (refer to paragraph 11.006) may not sign such a notice on behalf of the other applicants.

11.051. What is the effect of withdrawal of a designation?

Rule 90bis.2(a)

Withdrawal of the designation of a State which has been elected for the purposes of international preliminary examination automatically results in withdrawal of the corresponding election.

11.052

Rule 90bis.2(b)

Where a State has been designated for the purposes of obtaining both a national patent and a regional patent (refer to paragraphs 4.022 to 4.026, and 5.052 to 5.053), withdrawal of the designation of that State is taken to mean withdrawal only of the designation for the purpose of obtaining a national patent, unless otherwise indicated. In practice, the applicant should always make it clear which of the designations is intended to be withdrawn.

11.053

Rule 90bis.2(c)

If all designations are withdrawn, the international application itself will be treated as withdrawn.

11.054

Rule 90bis.2(e)

A designation will not be published if the notice of its withdrawal reaches the International Bureau before the technical preparations for international publication have been completed (refer to paragraph 9.014).

11.055

Where the international application indicates different applicants for different designated States, the withdrawal of a designation may result in the applicant for the designation which is withdrawn being no longer an applicant for any designated State. In such a case, replacement sheets for the request indicating only the remaining applicants, namely those for the States the designations of which have not been withdrawn, should be furnished together with the notice of withdrawal. Should the applicant fail to submit a replacement sheet, the request is corrected by the receiving Office or by the International Bureau. Whichever authority makes the correction notifies the other and the applicant accordingly.

11.056. Can the applicant withdraw priority claims made in the international application?

Rule 90bis.3, Rule 90bis.5

The applicant may withdraw a priority claim made in the international application by a notice addressed to the International Bureau or to the receiving Office or, where Article 39(1) applies, to the International Preliminary Examining Authority, and received before the expiration of 30 months (refer to paragraph 5.005) from the priority date. Any or all of the priority claims may be so withdrawn. Any such withdrawal is free of charge. A notice of withdrawal must be signed by all the applicants. An appointed agent or appointed common representative may sign such a notice on behalf of the applicant or applicants who appointed him/her, but an applicant who is the “deemed common representative” (refer to paragraph 11.006) may not sign such a notice on behalf of the other applicants.

11.057. How are time limits calculated after the withdrawal of a priority claim?

Rule 90bis.3(d), Rule 90bis.3(e)

Where the withdrawal of a priority claim causes a change in the priority date of the international application, any time limit which is computed from the original priority date and which has not yet expired - for example, the time limit before which processing in the national phase cannot start - is computed from the priority date resulting from the change. (It is not possible to extend the time limit concerned if it has already expired when the priority claim is withdrawn.) However, if the notice of withdrawal reaches the International Bureau after the completion of the technical preparations for international publication, the International Bureau may proceed with the international publication on the basis of the time limit for international publication as computed from the original priority date.

11.058. Can the applicant withdraw a supplementary search request?

Rule 90bis.3bis

The applicant may withdraw a supplementary search request at any time prior to the date of transmittal to the applicant of the supplementary international search report or the declaration that no such report will be established. However, withdrawal of the request will only result in a refund of any fees paid if the International Bureau has not yet transmitted any document to the Authority specified for supplementary search. A notice of withdrawal may be addressed either to the International Bureau or to the Authority specified for supplementary search, and the withdrawal will be effective on receipt of the notice by that Authority or the International Bureau. However, if the notice does not reach the Authority specified for supplementary search in sufficient time to prevent the transmittal of the report or declaration, the report or declaration will still be communicated to each designated Office as required. Where there are two or more supplementary search requests that have been submitted in respect of the same international application, the notice must specify which, of any such requests, is intended to be withdrawn.

11.059. Who must sign a notice of withdrawal for a supplementary search request?

The notice of withdrawal of the supplementary search request must be signed by the applicant or, if there are two or more applicants, by all of them, or by the agent or common representative whose appointment has been effected by each applicant signing either the request, the supplementary search request, the demand, or a power of attorney.

11.060. Can the applicant withdraw the demand for international preliminary examination or the election of any State?

Article 37, Rule 90bis.4, Rule 90bis.5

The applicant may withdraw the demand or the election of any State at any time prior to the expiration of 30 months from the priority date by a notice addressed to the International Bureau. Any such withdrawal is free of charge. A notice of withdrawal must be signed by all the applicants. An appointed agent or appointed common representative may sign such a notice on behalf of the applicant or applicants who appointed him/her, but an applicant who is the "deemed common representative" (refer to paragraph 11.006) may not sign such a notice on behalf of the other applicants.

11.061

Article 37(4)

In respect of designated Offices which do not apply the 30-month time limit, the applicant should exercise care in withdrawing the demand or elections after the expiration of the time limit under Article 22 for entry into the national phase, since such withdrawal is treated in each of the elected States concerned as a withdrawal of the international application for that State unless the national phase has already started in that State. If withdrawal of the demand or elections is effected before the expiration of that time limit, however, the international application will not be considered withdrawn, but the applicant will, of course, have to take the usual steps before the expiration of that time limit to enter the national phase (refer to paragraph 5.005 and National Phase, paragraph 3.001). For further details, refer to Article 37(4).

COMPUTATION OF TIME LIMITS**11.062. What are the rules concerning the computation of time limits?**

Rule 80

There are detailed provisions in Rule 80 concerning the computation of time limits (whether expressed in years, months or days), including the case where a time limit expires on a non-working day. The days which are non-working days for the International Bureau are published periodically in the *Official Notices (PCT Gazette)* and in the PCT Newsletter. The PCT Time Limit Calculator is designed to assist applicants

in computing PCT time limits and is available on the WIPO website at: <https://pct.wipo.int/ePCTExternal/pages/PctTimeline.xhtml?lang=en>. Where a period starts on the date of a notification, that period may be extended if the notification was actually mailed on a later date or was received more than seven days after the date it bears; refer to Rule 80.6 for details. For computation of time limits based on the priority date in cases where the priority claim is withdrawn, refer to paragraph 11.057.

IRREGULARITIES IN THE MAIL SERVICE

11.063. Can a delay or loss in the mail be excused?

Article 48(1), Rule 82.1

Rule 82 contains detailed provisions governing the situation where a letter arrives late or gets lost due to irregularities in the mail service, for example, because the mail service was interrupted due to a strike. The provisions operate to excuse failure to meet a time limit for filing a document for up to six months after the expiration of the time limit concerned, provided that the document was mailed at least five days before the expiration of the time limit. In order to take advantage of these provisions, the mailing must have been by registered airmail or, where surface mail would normally arrive at the destination concerned within two days of mailing, by registered surface mail. Evidence is required to satisfy the Office or organization concerned, and a substitute document must be filed promptly - refer to Rule 82.1(b) and (c) for details.

11.064. Can a delay or loss be excused where a delivery service is used?

Rule 82.1(d), Rule 82.1(e)

Some national Offices and intergovernmental organizations also apply these provisions where a delivery service other than the postal authorities is used to mail documents or letters; refer to Rule 82.1(d) and (e) for details, and Annexes B for information about which Offices and organizations recognize use of delivery services for this purpose, and in what circumstances Rule 82.1 will apply to such use.

EXCUSE OF DELAY IN MEETING TIME LIMITS

11.065. Can a delay in meeting time limits caused by “*force majeure*” circumstances be excused?

Rule 82~~quater~~.1, Section 111

The provisions of Rule 82~~quater~~.1 provide a basis for a general excuse of delay in meeting time limits before Offices, Authorities or the International Bureau during the international phase, when resulting from *force majeure* circumstances like war, revolution, civil disorder, strike, natural calamity, epidemic, a general unavailability of electronic communications services or other like reason in the locality where the applicant resides, has a place of business or is staying. The excuse of delay only applies to time limits fixed in the Regulations and therefore it neither applies to the priority period, since the priority period is set by Article 4C of the Paris Convention (for restoration of the right of priority refer to paragraphs 5.062 to 5.068), nor to the time limit for entering the national phase in accordance with Articles 22 and 39 (refer to paragraphs 5.005 and 5.006).

11.065A

To request an excuse of delay in meeting time limits resulting from *force majeure* circumstances under Rule 82~~quater~~.1, the applicant must take the relevant actions (submission of documents, responses to invitations or the payment of fees) as soon as reasonably possible. Generally, this means within a short period of the cause of the delay ceasing to apply. For example, in cases where a strike prevented an agent from reaching his/her office, it would be expected that the action should, in most cases, be taken either the next working day or shortly thereafter, depending on how much preparatory work had been disrupted. On the other hand, where a disaster has resulted in the complete destruction of an agent's files, it would reasonably be expected to take longer to reassemble all the necessary documents and systems to allow the necessary action to be taken. In the case of general unavailability of electronic communication services, the applicant must establish that the outage affected a widespread geographical area rather than being a localized problem, that it was unexpected or unforeseen, and that there was no alternative communication means available. The request for the excusing of the delay and the relevant evidence must be submitted to the competent Office or Authority or the International Bureau as soon as reasonably possible and, in any case, not later than six months after the expiration of the applicable time limit.

As to the form of evidence which would be acceptable, for example, a news report from a reliable mass media outlet, or a statement or announcement from the relevant national authority is normally acceptable for this purpose. In the case of general unavailability of electronic communications services, a statement from the provider of Internet services or the company providing electricity to the applicant may also be acceptable.

An Office, Authority or the International Bureau may waive the requirement for evidence, for example, where it is aware of the occurrence of an event in a particular State or place which would justify an excuse of delay in meeting time limits. The Office, Authority or the International Bureau, as the case may be, sets and publishes the conditions for any such waiver, and notifies the International Bureau, which publishes the information in question in the Gazette. The interested party must nevertheless submit a request to excuse the delay and state that the delay was due to the situation to which the waiver applies.

11.065B. Can a delay in meeting time limits caused by the unavailability of electronic means of communication at an Office or intergovernmental organization be excused?

Rule 82*quater*.2, Section 111

Rule 82*quater*.2 allows any Office or intergovernmental organization to provide for a general excuse of delay in meeting time limits if the failure to meet the time limit was due to the unavailability of any permitted electronic means of communication at that Office or organization. If the Office or organization so provides, it notifies the International Bureau which will publish the information in the Gazette and on WIPO's website at: <https://www.wipo.int/en/web/pct-system/texts/unavailability>. Moreover, at the time when such an event has taken place (e.g., an unforeseen outage) or is scheduled to take place (e.g., a scheduled maintenance), the Office or organization publishes information about the unavailability including the duration and notifies the International Bureau which will publish the information on any such unavailability, including the period of the unavailability, in the Gazette. The excuse of delay only applies to time limits fixed in the Regulations and therefore it neither applies to the priority period, since the priority period is set by Article 4C of the Paris Convention (for restoration of the right of priority refer to paragraphs 5.062 to 5.068), nor to the time limit for entering the national phase in accordance with Articles 22 and 39 (refer to paragraphs 5.005 and 5.006).

11.065C

Where the applicant failed to meet a time limit due to the unavailability of one of the permitted electronic means of communication at the Office or organization (refer to paragraph 11.065B), she/he must perform the relevant action on the next working day on which the said electronic means of communication becomes available and request for excuse of delay indicating that the time limit was not met due to the unavailability of one of the permitted electronic means of communication at the Office or organization at the time of attempted submission.

EXTENSION OF TIME LIMITS

11.065D. May an Office or intergovernmental organization generally extend time limits in situations of “*force majeure*”?

Rule 82*quater*.3, Section 111

Rule 82*quater*.3 allows Offices, Authorities and the International Bureau in exceptional circumstances and due to a *force majeure* event, to establish a period of extension such that time limits fixed in the Regulations are generally extended during the international phase. An Office or intergovernmental organization may take such a decision where the State in which it is located is experiencing a general disruption caused by an event listed in Rule 82*quater*.1(a) (for the list of events refer to paragraph 11.065) and that general disruption affects the operations at the said Office or organization in such a manner that it impacts the ability of parties to perform actions before that Office or organization within the time limits fixed in the Regulations, for example in the case of an epidemic or a natural disaster, or where the infrastructure (such as electricity supply, water supply or roads) in the place where the Office or organization is located has been seriously damaged due to an earthquake or tsunami.

To the extent that the general disruption continues, the Office or Authority concerned or the International Bureau may establish additional periods of extension. Any period or additional period of extension may not be longer than two months from the date it began. Where an Office, Authority or the International Bureau extends or additionally extends time limits, it publishes information about the beginning and end dates of the period concerned, and the International Bureau publishes that information in the Gazette and on WIPO's website. Any time limit fixed in the Regulations which would expire during that period would,

subject to Rule 80.5, expire on the first day after the expiration of that period or additional period. The applicant does not need to request the extension.

Any such extension may only apply to time limits fixed in the Regulations and therefore it would neither apply to the priority period, since the priority period is set by Article 4C of the Paris Convention (for restoration of the right of priority refer to paragraphs 5.062 to 5.068), nor to the time limit for entering the national phase in accordance with Articles 22 and 39 (refer to paragraphs 5.005 and 5.006). Any extension or additional period of extension need not be taken into account by any designated or elected Office if, at the time the information relating to the extension is published, national processing before that Office has already started.

FILING OF LETTERS AND DOCUMENTS

11.066. What are the rules concerning the filing of letters and documents?

Rule 12.1, Rule 55.2, Rule 92, Section 104

There are detailed provisions in Rule 92 concerning letters and documents submitted by the applicant in the course of the international procedure: letters must be signed; any other document submitted must be accompanied by a letter; letters and documents from the applicant to the receiving Office, the International Searching Authority, the Authority specified for supplementary search, and the International Preliminary Examining Authority must generally be in the language of the international application or, where a translation of the international application has been transmitted or furnished for the purposes of the international search, supplementary international search, international publication or international preliminary examination (refer to paragraphs 5.013, 6.020, 8.012, 9.018 and 10.011), in the language of that translation. Any communication from the applicant to the International Bureau must be in English or French and may be in the language of publication of the international application if it is submitted via ePCT. As to the language of any amendments to the claims under Article 19 (and their accompanying statement), refer to paragraphs 9.004 and 9.007. As to the language of the demand and of any amendments under Article 34, refer to paragraphs 10.013 and 10.071.

11.067. How must documents be filed?

Rule 89*bis*.2, Rule 92.4, Section 703, Section 713

Each national Office or Authority specifies the means by which documents and correspondence relating to international applications may be filed with it. For information on the possibility of submitting documents and correspondence in electronic form or by electronic means via ePCT to the relevant Offices or Authorities, refer to the relevant Office Profile in ePCT External (<https://pct.wipo.int/ePCTExternal/pages/OfficeProfile.xhtml>).

An Office or Authority which only accepts submissions in electronic form or by electronic means may treat any document submitted to it on paper as not having been received. Nevertheless, the Office or Authority may decide in a particular case to accept any documents submitted via other means.

An Office or Authority may require that documents filed on paper be resubmitted electronically within two months from the date of a corresponding invitation. If a document is not resubmitted by electronic means it will be disregarded or considered as not having been submitted. Information on any Office or Authority that has such a requirement is provided in Annexes B.

Rule 92.4 governs the use of facsimile machine and other like means of communication resulting in the filing of a printed or written document. These means of communication may only be used where the national Office or intergovernmental organization concerned is prepared to receive correspondence by these means. Some Offices and organizations require, for certain or all kinds of documents, that a communication by such admitted means of communication must, in any event, be confirmed by the applicant within 14 days; otherwise the communication may be considered not to have been made. However, failure to comply with such a requirement may be waived in some cases. Even where there is no standing requirement for originals to be furnished, an Office or organization may require the originals in any particular case. Further details on these requirements are set out in Rule 92.4, and information as to the practice and requirements applied in particular Offices and organizations is given in Annexes B.

11.068

Applicants should, before sending a document by a means of telecommunication, check in Annexes B to ascertain the applicable requirements. Where the documents to be submitted are documents making up the international application or replacement sheets containing amendments or corrections to the

international application, the original should in any event be mailed as a matter of course on the same or the following day.

11.069

Rule 92.4(d)

Where an original is sent to an Office or organization of a document previously transmitted to that Office or organization by a means of telecommunication, the original must be accompanied by a letter identifying the date and means of the earlier transmission.

11.070

If part or all of a document received by such means of transmission is illegible, or if part of the document is not received, the document is treated as not having been received to the extent that it is illegible or that the attempted transmission failed, and the Office or organization promptly notifies the applicant accordingly.

11.071. May a file reference be used in correspondence?

Section 109

The applicant or the appointed agent may mark a file reference in the box provided for that purpose on the first sheet of the request form (refer to paragraph 5.017), on each page of the other elements of the international application (refer to paragraphs 5.105 and 5.124), on the first sheet of the supplementary search request form (refer to paragraph 8.013), on the first sheet of the demand form (refer to paragraph 10.015), and in any other correspondence relating to the international application. The file reference may be composed either of letters of the Latin alphabet or Arabic numerals, or both. The hyphen character (“-”) may be used as a separator between alphanumeric characters. It may not exceed 25 characters. The receiving Office, the International Bureau, the International Searching Authority, the Authority specified for supplementary search and the International Preliminary Examining Authority will use the file reference in correspondence with the applicant.

CONFIDENTIALITY OF INTERNATIONAL APPLICATIONS

11.072. To what extent are international applications treated as confidential?

Article 30, Article 38, Rule 94.1(a), Rule 94.1bis(a), Rule 94.1ter(a)

An international application is confidential in relation to third parties until the international publication date, with only limited and specified exceptions (refer to Article 30). The International Bureau, the receiving Office and the International Searching Authority will at any time, at the request of the applicant or any person authorized by the applicant, furnish copies of any document contained in its file, subject to reimbursement of the cost of the service. An order for access made by a court with competent jurisdiction would be taken by the International Bureau as substituting for the applicant's authorization. (For access to the file of the International Preliminary Examining Authority refer to paragraph 11.074).

11.073

Rule 17.2, Rule 48, Rule 94.1(b)

After international publication, the international application itself is publicly available, as are any published amendments under Article 19 (refer to Rule 48.2(f)), the international search report (refer to Article 21(3) and Rule 48.2(a)(v)) (these elements are included in the published international application) and copies of priority documents (noting the exceptions mentioned in paragraph 9.023; refer to Rule 17.2). In respect of international applications filed on or after 1 July 1998, the International Bureau will, after international publication, furnish copies of any document contained in its file at the request of any person and upon reimbursement of the cost of the service, but subject to the restrictions imposed by Article 38 in respect of documents relating to the international preliminary examination. However, the International Bureau will not provide access to any document contained in its file which has been omitted from international publication (refer to paragraph 9.016A) or public file access (refer to paragraph 11.073A), nor will it give access to any document which was solely prepared for internal use by the International Bureau.

Rule 94.1bis(b), Rule 94.1ter(b)

After international publication, the receiving Office and the International Searching Authority may also furnish copies of any document contained in its file at the request of any person and upon reimbursement of the cost of the service except for documents which have been omitted from international publication (refer to paragraph 9.016A) or public file access (refer to paragraph 11.073A).

11.073A. Can the applicant request that the International Bureau restrict access to certain information contained in its file?

Rule 94.1(e)

The applicant can make a reasoned request to the International Bureau to omit certain information from public file access. (For the manner in which such a request should be presented, refer to paragraph 9.016A). A request to omit information from public file access may be submitted at any time.

Where the International Bureau has omitted information from public access, and that information is also contained in the file of the international application held by the receiving Office, the International Searching Authority, the Authority specified for supplementary search or the International Preliminary Examining Authority, the International Bureau will also promptly notify that Office or Authority accordingly, so that they will not provide access to such information either.

11.074. To what extent is the international preliminary examination confidential?

Article 36(3)(a), Article 38, Rule 71.1(b), Rule 94.1, Rule 94.2, Rule 94.3, Section 420

Where the applicant requests international preliminary examination, Article 38 expressly provides that the International Bureau and the International Preliminary Examining Authority may not allow unauthorized access to the file of the international preliminary examination. Access by third parties to papers relating to the international preliminary examination held in the files of the International Bureau and the International Preliminary Examining Authority thus will be permitted only if that is requested or authorized by the applicant. However, once the international preliminary report on patentability (Chapter II of the PCT) and related documents have been communicated to each elected Office by the International Bureau, third parties may gain access to these documents. Such access may be allowed only to the same extent as provided by the national law for access to the file of a national application. Furthermore, the International Bureau will, if so requested by an elected Office (details of such requests are published in the Official Notices (PCT Gazette), also refer to https://www.wipo.int/en/web/pct-system/texts/access_iper), furnish copies of the international preliminary report on patentability (Chapter II of the PCT) and related documents received from the International Preliminary Examining Authority under Rule 71.1(b) (refer to paragraph 10.079A) on behalf of an elected Office that has made such a request. However, access shall not be provided to third parties as to the information which has been omitted from international publication or public access (refer to paragraphs 9.016A and 11.073A). It should be noted that the furnishing of copies of documents may be subject to a fee payable to that Office.

REFERENCES TO DEPOSITED BIOLOGICAL MATERIAL

11.075. When must an international application include a reference to biological material and/or to its deposit with a depositary institution?

Rule 13bis.1, Rule 48.2(a)(viii)

The PCT does not require the inclusion of such a reference in an international application; it merely prescribes the contents of any reference to deposited biological material (defined as particulars given with respect to the deposit of biological material or to the biological material so deposited) which is included in an international application, and when such a reference must be furnished. It follows that the applicant will refer to a need to make such a reference only when it is required for the purpose of disclosing the invention claimed in the international application in a manner sufficient for the invention to be carried out by a person skilled in the art - that is, when the law of at least one of the designated States provides for the making, for this purpose, of a reference to deposited biological material if the invention involves the use of biological material that is not available to the public. Annex L lists those national (or regional) Offices of, or acting for, the Contracting States whose national law provides for the making of a reference to deposited biological material for the purposes of patent procedure; those national (or regional) Offices whose laws do not provide for such references are indicated in Annexes B (in some cases together with information given by those Offices on the possibility of referring in the international application to deposits of biological material even though the applicable national law does not provide specially for it). Where any indications are furnished separately from the description and are received by the International Bureau before the completion of technical preparations for international publication, the date of receipt by the International Bureau and the indication will be included in the published international application.

11.076. What effect does the PCT give to such a reference?

Rule 13bis.2

A reference to deposited biological material made in accordance with the requirements of the PCT must be regarded by each of the designated Offices as satisfying the requirements of the national law applicable in that Office with regard to the contents of such references and the time for furnishing them.

11.077. May the reference be made for the purposes of only some of the designated States?

Rule 13bis.5

A reference may be made for the purposes of all designated States or for one or only some of the designated States. A reference is considered to be made for the purpose of all designated States unless it is expressly made for certain designated States only. References to different deposits may be made for the purposes of different designated States.

11.078. What are the indications which must be given in the reference with regard to the deposit of biological material?

Rule 13bis.3, Rule 12.1ter

There are two kinds of indication which may have to be given, namely:

- (i) indications specified in the PCT Regulations themselves; and
- (ii) additional indications which have been notified by the national (or regional) Office of (or acting for) a State designated in the international application and which have been published in the *Official Notices (PCT Gazette)*; these additional indications may relate not only to the deposit of the biological material but also to the biological material itself (refer to paragraph 11.079).

The indications in the first category are:

- (i) the name and address of the depositary institution with which the deposit was made;
- (ii) the date of the deposit with that institution; and
- (iii) the accession number given to the deposit by that institution.

Annex L sets out, for each national (or regional) Office, the additional indications (if any) in the second category which are required to be given. These indications must be furnished both in the language in which the international application is filed and, where a translation of the international application is required under Rule 12.3(a) or 12.4(a), in the language of that translation.

11.079. What are the indications concerning biological material itself which must be given in the reference?

Rule 13bis.3(a)(iv), Rule 13bis.7(a)

The national laws of some of the national (or regional) Offices require that, besides indications concerning the deposit of biological material, an indication be given concerning the biological material itself, such as, for example, a short description of its characteristics, at least to the extent that this information is available to the applicant. These requirements must be met in the case of international applications for which any such Office is a designated Office, provided that the requirements have been notified to the International Bureau and published in the *Official Notices (PCT Gazette)*. Annex L indicates, for each of the national (or regional) Offices, the requirements (if any) of this kind which have been so notified and published.

11.080. At what time must the reference (with the indications which must be contained therein) be made?

Rule 13bis.4, Rule 13bis.7(a)(ii)

If any indication is not included in a reference to deposited biological material contained in the international application as filed, it may be furnished to the International Bureau within 16 months from the priority date unless the International Bureau has been notified (and, at least two months prior to the filing of the international application, has published in the *Official Notices (PCT Gazette)*) that the national law applicable by a designated Office requires in relation to national applications that the indication be furnished earlier. If any of the indications are furnished to the International Bureau after the expiration of 16 months from the priority date but before the technical preparations for international publication have been completed, those indications will be considered by any designated Office to have been furnished on the last day of the 16-month time limit. If the applicant makes a request for early publication (refer to paragraph 9.013), all indications should be furnished by the time the request is made, since any designated Office may regard any indication not furnished when the request is made as not having been furnished in time. Annex L specifies, for each national (or regional) Office whose national law requires a

reference to deposited biological material to be furnished earlier than 16 months after the priority date, the applicable time limit(s) for furnishing such indications.

11.081. What is the consequence of failure to furnish an indication on time?

Rule 13bis.3(b), Rule 13bis.4, Rule 48.2(a)(viii)

No check is made in the international phase to determine whether a reference has been furnished within the prescribed time limit. However, where the indications were received after the technical preparations for international publication have been completed, the International Bureau notifies the designated Offices of the date(s) on which indications not included in the international application as filed were furnished to it. Failure to include a reference to deposited biological material (or any indication required in such a reference) in the international application as filed, or failure to furnish it (or the indication) within the prescribed time limit, has no consequence if the national law does not require the reference (or indication) to be furnished in a national application. Where there is a consequence, it is the same as that which applies under the national law.

11.082. Where should the reference be made?

Section 209

To the extent that indications relating to the deposit of biological material are not given in the description, they may be furnished on a separate sheet, for which purpose Form PCT/RO/134 (refer to WIPO website at: <https://www.wipo.int/en/web/pct-system/forms/>) should preferably be used. That separate sheet may be filed after the international application is filed. If the sheet is submitted when the international application is filed, a reference to it should be made in the check list (Box No. IX) contained on the last sheet of the request form (refer to website address above). Certain designated Offices require that the indications relating to the deposit of biological material must be included in the description at the time of filing (refer to Annex L) so the sheet, if submitted when the international application is filed, may need to be included as one of the sheets of the description; otherwise the indications given in it will not be taken into account by those Offices in the national phase. If the sheet is furnished to the International Bureau later (refer to paragraph 11.080), it must be enclosed with a letter. Form PCT/RO/134 may also be prepared using ePCT.

11.083. How does the applicant decide on the depositary institution with which to deposit the biological material?

Rule 13bis.7(b)

Each national (or regional) Office whose national law provides for deposits of biological material for the purposes of patent procedure notifies the International Bureau of the depositary institutions with which the national law permits such deposits to be made. Information on the institutions notified by each of those Offices is published by the International Bureau in the *Official Notices (PCT Gazette)*. Annex L indicates the institutions with which deposits may be made.

11.084

Rule 13bis.5(c)

A reference to a deposit cannot be disregarded by a designated Office for reasons pertaining to the institution with which the biological material was deposited if the deposit referred to is one made with a depositary institution notified by that Office. Thus, by consulting the Official Notices (PCT Gazette) (or Annex L), the applicant can be sure that the biological material has been deposited with an institution which will be accepted by the designated Office.

11.085. Does a reference in an international application to the deposit of biological material involve the possibility of a sample being obtained by the International Searching Authority or the International Preliminary Examining Authority?

Rule 13bis.6

International Searching Authorities and International Preliminary Examining Authorities may not require the furnishing of a sample of deposited biological material for the purposes of international search or international preliminary examination, respectively.

11.086. What possibility is there, when a reference is made in an international application to the deposit of biological material, of third persons obtaining a sample?

Rule 13bis.6

The furnishing of samples is governed by the national laws applicable in the designated Offices. Rule 13bis.6, however, provides for the delaying of any furnishing of samples under the national law applicable

in each of the designated (or elected) Offices until the start of the national phase, subject to the ending of this delaying effect brought about by the occurrence of either of the following two events:

(i) the applicant has, after international publication of the international application, taken the steps necessary to enter the national phase before the designated Office (refer to National Phase, paragraph 4.001);

(ii) international publication of the international application has been effected, and that publication has the same effects, under the national law applicable in the designated Office, as the compulsory national publication of an unexamined national application (in other words, the international application has qualified for the grant of provisional protection); for the Contracting States whose national laws provide for provisional protection, and the conditions which have to be met for an international application to qualify for that protection, refer to Annexes B.

11.087

With respect to certain designated Offices (for instance, the European Patent Office), the applicant may take advantage of the procedure whereby, until the occurrence of a certain event, the biological material may be made available only by the issue of a sample to an expert nominated by the requester. For details, refer to Annex L.

REQUIREMENTS FOR SEQUENCE LISTINGS

11.088. What special requirements apply to nucleotide and/or amino acid sequences disclosed in international applications?

Rule 5.2, Rule 13^{ter}, Section 208, Annex C of the Administrative Instructions

Refer to paragraphs 5.099 to 5.104, 7.005 to 7.012, and 10.063. Refer to National Phase, paragraph 6.033 and National Chapters in relation to the national phase.

EXTENSION OF INTERNATIONAL APPLICATIONS TO SUCCESSOR STATES OF FORMER CONTRACTING STATES

11.089. What is a successor State?

Rule 32.1(a)

A successor State is a State whose territory was, before its independence, part of the territory of a PCT Contracting State that subsequently ceased to exist (the predecessor State), and which (successor State) has deposited with the Director General of WIPO a declaration indicating that the PCT continues to be applicable in that State ("declaration of continuation"). As from the date of the deposit of such a declaration, the successor State may be designated in international applications. Moreover, the effects of international applications filed during a certain period are extended to the successor State.

11.090. Which are the international applications whose effects are extended to a successor State?

Rule 32.1(b)

Rule 32 provides that the effects of any international application filed during a certain period are extended to a successor State, irrespective of which States have been designated in the international application. This period, for those successor States whose date of independence is later than the date of the day following the last day of the existence of the predecessor State, begins on the day following the last day of the existence of the predecessor State and ends two months after the date on which the Director General notifies the Governments of the States party to the Paris Convention for the Protection of Industrial Property of the successor State's declaration of continuation. For those States whose date of independence is earlier than the date of the day following the last day of the existence of the predecessor State, the successor State may, in conjunction with its declaration of continuation, declare that the period referred to above starts on the date of its independence.

11.091. How will an applicant know that the effects of his/her international application have been extended to a successor State?

Rule 32.1(c)

Information on any international application whose filing date falls within the applicable period (refer to paragraph 11.090) and whose effect is extended to the successor State shall be published by the International Bureau in the *Official Notices (PCT Gazette)*.

11.092. What is the effect of an extension?

Rule 32.2

A successor State is considered as having been designated in the international application on the international filing date. The applicable time limits under Article 22 or 39(1) in relation to that State shall be extended until the expiration of at least six months from the date of the publication of the information under Rule 32.1(c) (refer to paragraph 11.091). A successor State may fix time limits which expire later than the time limits given in the previous sentence of this paragraph and, if it does so, the International Bureau will publish this information in the *Official Notices (PCT Gazette)*.

11.093

The procedure for extension of the effects of international applications to certain successor States (as explained above) should not be confused with the extension of European patents to States which are bound by the PCT and which have Extension Agreements with the European Patent Organisation (refer to paragraph 5.054 and Annex B (EP)).

11.094. – 11.101. [Deleted]

LICENSING INDICATIONS

11.102. How can applicants indicate their interest in licensing the invention(s) contained in their international application?

Applicants can file a request to that effect either (and preferably) by completing Form PCT/IB/382 “*Request for indication of availability for licensing purposes*” available at: <https://www.wipo.int/documents/d/pct-system/docs-en-forms-ib-editable-ed-ib382.pdf> or by way of a letter addressed to the International Bureau. Details of the licensing terms may also be included in the form or letter. All such requests should be sent directly to the International Bureau, which does not charge a fee for this service.

11.103. When should a request for indication of availability for licensing purposes be filed?

Requests for indication of availability for licensing purposes can be submitted at any time until the expiration of 30 months from the priority date.

11.104. Is it possible to file multiple licensing requests or modify those already filed?

Where applicants file multiple requests or want to modify those already filed, they must ensure their latest request is always a self-contained document, comprising complete information about any requests or modifications.

11.105. In which language can the request for indication of availability for licensing purposes be filed?

Form PCT/IB/382 will shortly be available in all ten publication languages (Arabic, Chinese, English, French, German, Japanese, Korean, Portuguese, Russian and Spanish) and the International Bureau is ready to accept the request for indication of availability for licensing purposes by way of a letter in any of those languages.

11.106. How are licensing indications made available?

The processing of the licensing request by the International Bureau generates a statement in the bibliographic data indicating the applicant's interest in concluding licensing agreements. In addition, this is linked to the filed request for indication of availability for licensing purposes (either Form PCT/IB/382 or the letter containing the licensing indications) which is available, under the “Documents” tab, in PATENTSCOPE. Applicants are reminded that if they want to publish licensing indications in relation to their international application at a very early stage, they should also consider filing a request for early international publication as provided under Article 21(2)(b).

11.107. Can the licensing indications be removed?

Applicants can request that the International Bureau remove the licensing indications from the “PCT Bibliographic Data” tab in PATENTSCOPE at any time during the international or national phase. Once removed, the licensing request and the related correspondence remain part of the file history available under the related “Documents” tab in PATENTSCOPE.

11.108. How can you search for international applications for which licensing indications are available?

In addition to being published with the international application to which it relates, the licensing indications are also a search criterion within PATENTSCOPE Search Service <https://www.wipo.int/en/web/patentscope/> allowing third parties to identify those applicants who have expressed their interest in licensing the invention(s) contained in their international application. The search criterion can also be used in combination/multi-field searches and RSS feeds.

THIRD PARTY OBSERVATIONS**11.109. What is the third party observation system?**

Section 801(a), Section 804(b)

This system allows third parties to make observations through ePCT (signing in without strong authentication at <https://pct.wipo.int/ePCT>) referring to prior art which they believe to be relevant to the question of whether the invention claimed in the international application is novel and/or involves an inventive step. There is no fee for this service. For a comprehensive user guide, refer to ePCT Third Party Observations (https://www.wipo.int/documents/d/epct/docs-en-epct_observations.pdf).

11.110. What is the time limit for submitting observations?

Section 802(a)(ii), Section 804(b)

Third party observations may be submitted at any time after the date of publication of the international application and before the expiration of 28 months from the priority date, provided that the application is not withdrawn or considered withdrawn.

11.111. How should observations be submitted by third parties?

Section 802(a)(i)

All observations must be submitted through ePCT signing in without strong authentication, either directly or through a link on the bibliographical data tab of the published international application. The use of the system requires a WIPO account (refer to <https://www3.wipo.int/authpage/signin.xhtml>). Each observation must include at least one citation that refers to a document published before the international filing date, or a patent document having a priority date before the international filing date, together with a brief explanation of how each document is considered to be relevant to the questions of novelty and/or inventive step of the claimed invention. Observations should preferably be accompanied by a copy of each cited document.

11.112. Can third parties remain anonymous?

Section 801(b)(i)

Yes, when a third party observation is submitted, the person making the observation may indicate that they wish to remain anonymous.

11.113. In what languages should observations be submitted?

Section 802(a)(iii), Section 804(b)

Observations should be submitted in a language of publication (refer to paragraph 5.013), with the exception that copies of prior art documents may be in any language.

11.114. Can the applicant comment on third party observations?

Section 804(b)

The applicant will be notified about the first published observation, and all subsequent observations will be promptly notified after the expiration of 28 months from the priority date. The applicant may comment on third party observations until the expiration of 30 months from the priority date. These comments must be submitted through ePCT (signing in with strong authentication) or by sending a letter to the International Bureau. The applicant's comments should be submitted in English, French or the language of publication of the international application. The comments will be made publicly available on PATENTSCOPE.

11.115. What restrictions exist concerning third party observations?

Section 801(b)(iii), Section 801(b)(iv)

A third party may only submit a single observation for any international application, and once submitted, it cannot be retracted or modified. There is also an upper limit of ten observations per international application.

11.116. How are observations processed?

Section 802(b), Section 803(a), Section 804(a)

Each observation will be examined by the International Bureau to determine if it is an observation on the questions of novelty and/or inventive step. It will then be made publicly available on PATENTSCOPE. It should be noted that only the observations and not the uploaded documents are made publicly available. Uploaded documents are only made available to the applicant, the competent International Authorities and designated Offices. If the observation is rejected by the International Bureau, the third party will be notified and provided with a reason.

11.117. Will third party observations be taken into account by the International Authorities and designated Offices?

Section 805

Observations will be transmitted to any competent International Searching Authority, and/or International Preliminary Examining Authority involved in the processing of the application during the international phase, if the International Bureau has not yet received the international search report, supplementary international search report or international preliminary report on patentability (Chapter II of the PCT) respectively. To the extent that the observations are received by those Authorities in time to be taken into account in drawing up their respective reports, any prior art referred to in the observations should be considered, provided that either a copy of the prior art is included, or it is otherwise immediately available to the examiner. The observations will also be transmitted to the designated Offices promptly after the expiration of 30 months from the priority date. The designated Offices are, however, not obliged to take them into account during national processing.

INDEX TO THE INTERNATIONAL PHASE

Abbreviations Used in this Index

Annex	Annex to the <i>PCT Applicant's Guide</i> — unless otherwise indicated	ISA	International Searching Authority
Art.	Article of the PCT	ISR	International search report
AIs	Administrative Instructions under the PCT	Nat. Chap. . . .	National Chapter
Demand	Demand Form (Form PCT/IPEA/401)	Nat. Phase . . .	National Phase
DO	Designated Office	PCT	Patent Cooperation Treaty
EO	Elected Office	Request	Request Form (Form PCT/RO/101)
<i>Guide</i>	<i>PCT Applicant's Guide</i>	RO	Receiving Office
IA	International application	Rule	Rule of the Regulations under the PCT
IB	International Bureau	Section	Section of the Administrative Instructions under the PCT
IPE	International preliminary examination	SIS	Supplementary international search
IPEA	International Preliminary Examining Authority	SISA	International Searching Authority specified for supplementary search
IPRP	International preliminary report on patentability	SISR	Supplementary international search report
IS	International search		

Subject Index

Subject	Paragraph	
A		
ABBREVIATION		
— of applicant name (legal entity)	6.005(iii)(c)	
— of names of States: two-letter codes	5.033	
ABSTRACT		
— as element of IA		
generally	5.010-5.012, 5.164-5.173	
content of —	5.165-5.169	
correction following approval by ISA —	5.174	
defective —	5.173, 7.022	
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